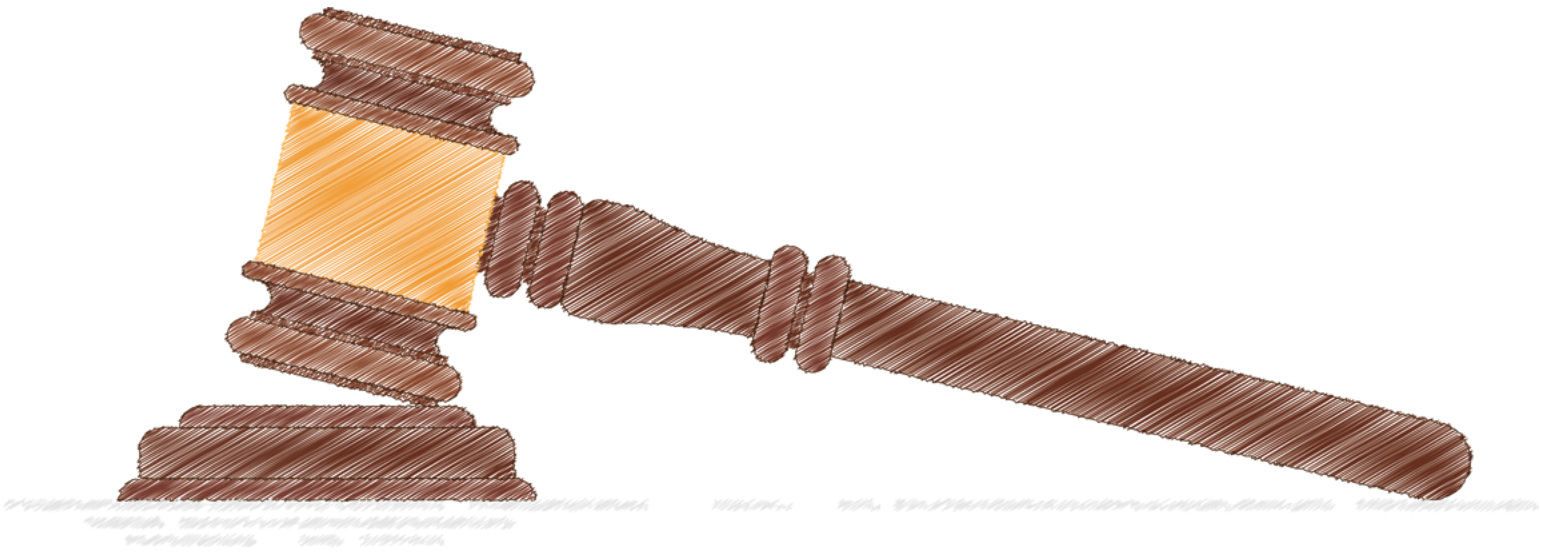
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TRIAL LAW NOTEBOOK

& GUIDE TO KENTUCKY SENTENCING LAW

ELECTRONIC EDITION



Commonwealth of Kentucky
Department of Public Advocacy
Damon Preston, Public Advocate

Introducing the DPA Trial Law Notebook, 6th Edition

Since our last edition in May 2016, we have added around 140 new citations to this Sixth Edition of the Trial Law Notebook, have rechecked the status of all of the cases throughout the manual, have added two new charts and over 20 pages of new material.

How to use this book:

Many strategic decisions which relate to trial need to be considered days or even months before trial even begins. Part I addresses those general issues, listed in alphabetical order. Parts II - VI track the progression of the trial so that you can identify with a glance through the table of contents where the information you need is based on the portion of the trial. In these sections, topics are listed chornologically to mirror the progress of at rial. Part VII, the Guide to Kentucky Sentencing Law, is a reference for use anytime to determine possible sentences. Lastly, the index at the back of this book can refer to the pages where key words and phrases are located.

The Notebook contains opinions through September, 2020. Some of the new material we have added to this edition includes:

- New sections on pretrial motions including dismissals, expert funding, immunity from prosecution, and vindictive prosecution,
- A new section on closed versus open proceedings
- A revised section on discovery to reflect the changes in the Rules of Criminal Procedure since May, 2016,
- An updated section on jury pools to reflect current practice,
- An updated section on peremptory strikes,
- A revised and expanded section on Persistent Felony Offenders,
- A new section on withdrawing guilty pleas,
- Important new information on serving time, including new legislation,
- A new section on parole revocation,
- Important new discussions of violent offenders and good time,
- Discussions of all the most important cases effecting trial law and sentencing to have come out since the last edition.
- An index which allows for quick location of key words and phrases.

As always, this manual draws upon all the relevant training done by DPA and reflects the work of many individuals.

One feature which sets this notebook apart from others is the Practice Tips. Although the tips can't dictate what must be done in any situation to be either effective or ethical, each reflects an issue of concern identified by the DPA Appeals Branch through the review of countless trial proceedings. Special thanks for their numerous contributions.

Although this is a notebook for defense attorneys – and many citations have been included simply because defense attorneys need to know about them – I have nevertheless tried as much as possible simply to state the law as it stands. To that end, I have tried to avoid simply collecting dicta which represent the law as a defense attorney may prefer it to be, rather than as it is. Still, if there is any reference which is unclear or misleading, please do not hesitate to call it to my attention. Any suggestions for improvement will be appreciated.



December 2020

A Note on Unpublished Opinions: This manual cites to unpublished opinions as examples, and only when they represent the only clear decision on an issue. CR 76.28(4)(c) says: "… unpublished Kentucky appellate decisions, rendered after January 1, 2003, may be cited for consideration by the court if there is no published opinion that would adequately address the issue before the court. Opinions cited for consideration by the court shall be set out as an unpublished decision in the filed document and a copy of the entire decision shall be tendered along with the document to the court and all parties to the action." Of course, cases which are not yet final should not be cited as authority at all until they become so.

Electronic Edition Note: You can click on page numbers, cross-references, and titles in the text, index, or table of contents to be taken directly to that location.

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DPA TRIAL LAW NOTEBOOK

I. IN GENERAL

IN ABSENTIA

Legal Standard

RCr 8.28(4) allows trials in absentia in certain cases involving misdemeanors and violations. However, subsection (1) of the rule requires a hearing and findings by the court, and the burden is on the Commonwealth at the hearing to show that the defendant's absence is intentional, knowing, and voluntary – and thus demonstrating that the defendant is waiving his right to be present at his trial. Whether the mere absence of the defendant on the day of trial is sufficient to justify such a conclusion may differ from case to case. The inference may not be justified if the defendant has never failed to show up for court before; however, it may be warranted if the defendant never appeared at any of his pretrial conferences. *See Donta v. Commonwealth*, 858 S.W.2d 719 (Ky. App. 1993). Afterward, the defendant has the right (and the burden) to show that he did not intend to waive his right to be present at his trial. *Id.*; *Burns v. Commonwealth*, 655 S.W.2d 497 (Ky. App. 1983); *Jackson v. Commonwealth*, 113 S.W.3d 128 (Ky. 2003).

Enhanceable Offenses

RCr 8.28(4) does not allow trials or guilty pleas on any offense listed in either KRS 189A or KRS 218A, presumably because many of the offenses in those chapters are enhanceable. This would lead one to conclude that trials in absentia should not be held on any enhanceable offense whether listed in 189A or 218A or not. *See Tipton v. Commonwealth*, 770 S.W.2d 239 (Ky. App. 1989), *abrogated* 150 S.W.3d 1 (Ky. 2004). In *Tipton*, the court ruled that it was an abuse of discretion to accept a plea of guilty to DUI in absentia because the offense is enhanceable. After *Tipton,* the rule was modified to allow guilty pleas in such circumstances if the court receives a written waiver from the defendant.

ADJOURNMENT

RCr 9.70 and KRS 29A.310 provide the admonition which must be given to the jury at each adjournment. Failure to give the admonition does not necessarily require reversal if the jury has already been admonished during the same trial and if no impropriety occurs, especially if there is no contemporaneous objection. *Commonwealth v. Messex*, 736 S.W.2d 341 (Ky. 1987). Trial courts have a duty to inquire whether asserted violations of the rule or statute will affect the fairness of the trial. *Conyers v. Commonwealth*, 530 S.W.3d 413, 428 (Ky. 2017) (reviewing history of cases on RCr 9.70 violations).

ADVERSARIAL BOND HEARINGS

The court must grant a motion for an adversarial bond hearing the first time a defendant requests one. RCr 4.40(1). The burden is on the defendant (that means the defendant goes first) to show that the bail set is excessive and the defendant may call prosecuting witnesses to the stand to inquire concerning anything relevant to the factors to be considered in setting the amount of bail, including the strength of the Commonwealth's case. Those factors can be found in RCr 4.10, 4.12, and 4.16(1); as well as KRS 431.520 and 431.525(1). *See also Abraham v. Commonwealth*, 565 S.W.2d 152 (Ky. App. 1977); *Stack v. Boyle*, 342 U.S. 1 (1951). The defendant may call prosecuting witnesses in an adversarial bond hearing to give testimony relevant to those factors. *Kuhnle v. Kassulke*, 489 S.W.2d 833 (Ky. App. 1973). *See generally Kentucky Bail Practice Guide (2019)*, available at http://dpa.ky.gov.

Practice Tip: Preliminary Hearing Not Held. If for some reason your client waived his preliminary hearing or it was not held for other reasons in district court, an RCr 4.40 hearing can provide a method to secure a summary of the strength of the Commonwealth's case.

BIFURCATION

Felonies and Misdemeanors Tried Together

KRS 532.055(1) governs verdicts in felony cases and requires bifurcation of guilt and sentencing phases, with separate hearings and separate verdicts. The statute does not cover misdemeanor trials. *Commonwealth v. Philpott*, 75 S.W.3d 209 (Ky. 2002), describes the procedure to be followed in a trial on felonies and misdemeanors combined. There should be no sentencing instructions in the initial instructions, even on the misdemeanors. If the jury returns a verdict of guilty on both felonies and misdemeanors and the prosecution intends to introduce the defendant's prior convictions during sentencing, then the penalty phase is itself bifurcated. The jury sentences on the misdemeanors without the introduction of the prior convictions and then returns to sentence the defendant on the felonies under KRS 532.055, at which time the prior convictions may be introduced. If the jury only returns verdicts of guilty on misdemeanors, it then retires once again to reach a verdict on the sentence without any testimony, and with only the arguments of counsel. *Id.*

Subsequent Offenses

Bifurcation is also usually necessary when the Commonwealth must also prove a 2nd or subsequent offense, or some other sentence enhancement, even in misdemeanor trials. Evidence of prior convictions is almost always inadmissible during the guilt phase of a trial. *Commonwealth v. Ramsey*, 920 S.W.2d 526 (Ky. 1996) and *Dedic v. Commonwealth*, 920 S.W.2d 878 (Ky. 1996) both require bifurcation of subsequent offense evidence in DUI cases. This requirement of enhancing subsequent offenses in a separate hearing could easily lead to trifurcated trials in the case of felonies which are also subsequent offenses. For instance, a DUI 4th trial might have a guilt phase, an enhancement phase, then a truth-in-sentencing phase. The exception is a charge such as Possession of a Firearm by a Convicted Felon, in which proof of the defendant's status as a felon is clearly part of the elements of the offense itself. *See Jackson v. Commonwealth*, 650 S.W.2d 250 (Ky. 1983) (discussing the problem of double enhancement when proof of a prior felony conviction is necessary to the case-in-chief).

In trials for a third or subsequent offense of KRS 508.032, Assault 4th, Domestic Violence within five years, a jury could return a verdict on a misdemeanor even after the charge has been indicted as a felony and the jury has returned a verdict of guilty. *Brewer v. Commonwealth*, 478 S.W.3d 363 (Ky. 2015), requires trifurcation in a prosecution for that offense. KRS 510.015 allows a jury the same sentencing option for lifetime third or subsequent misdemeanor sex offenses.

Referring to Prior Convictions

Referring to prior convictions which will be used to enhance current charges should be reserved to the penalty phase of the trial. "No reference shall be made to the prior offense until the sentencing phase of the trial, and this specifically includes reading of the indictment prior to or during the guilt phase." *Clay v. Commonwealth*, 818 S.W.2d 264, 265 (Ky. 1991) (finding admission of prior conviction in guilt phase reversible error), *overruling Smith v. Commonwealth*, 707 S.W.2d 342 (Ky. 1986). Failure to do so results in "unavoidable prejudice" to the defendant. *Commonwealth v. Ramsey*, 920 S.W.2d 526, 528 (Ky. 1996).

Persistent Felony Offender (PFO)

One would expect that trials involving PFO charges would also be trifurcated: there would be the guilt/innocence phase, then the sentencing phase, then the PFO phase. KRS 532.080(1) requires a separate PFO phase, yet KRS 532.055(3) requires PFO evidence to be introduced in a combined sentencing/PFO hearing. This requirement has created some confusion at times. *See, e.g.*, *Lemon v. Commonwealth*, 760 S.W.2d 94 (Ky. App. 1988); *Maxie v. Commonwealth* 82 S.W.3d 860 (Ky. 2002).

Nevertheless, the Kentucky Supreme Court has indicated that a PFO trial is somewhere between bifurcated and trifurcated. *Reneer v. Commonwealth*, 734 S.W.2d 794 (Ky. 1987). In *Reneer*, the court interpreted the interaction between the PFO statute KRS 532.080 and the Truth-in-Sentencing statute KRS 532.055, effectively splitting the difference on the question of bifurcation/trifurcation by requiring a "combined bifurcated" sentencing/PFO hearing. It outlined the procedure in this way: "...the jury in the combined bifurcated hearing could be instructed to (1) fix a penalty on the basic charge in

the indictment; (2) determine then whether the defendant is guilty as a persistent felony offender, and if so; (3) fix the enhanced penalty as a persistent felony offender." *Reneer*, at 798.

Note that this guidance from the Supreme Court requires the jury to deliberate twice during the same sentencing/PFO phase. The trial court follows KRS 532.055 prior to fixing the penalty for the underlying offenses. The court said: "The bifurcated penalty phase will decide the punishment on the specific charge after additional evidence pertaining to sentencing is heard." *Id*. The trial court then turns to KRS 532.080 for the remainder of the hearing to "(2) determine then whether the defendant is guilty as a persistent felony offender, and if so; (3) fix the enhanced penalty as a persistent felony offender." This is done without returning to the court to deliver verdicts on the underlying offenses. Note that the procedure is outlined in exactly this same way in the last paragraph of the *Commentary* to KRS 532.080, and that our courts have identified it as the "better practice" despite the problem of the jury being trusted to follow the steps in order on their own. *See Owens v. Commonwealth,* 329 S.W.3d 307 (Ky. 2011); *Sanders v. Commonwealth*, 301 S.W.3d 497 (Ky. 2010); *Conrad v. Commonwealth,* 534 S.W.3d 779 (Ky. 2017). *Commonwealth v. Hayes*, 734 S.W.2d 467 (Ky. 1987) and *Davis v. Manis*, 812 S.W.2d 505 (Ky. 1991) interpret the PFO statute to require that the defendant first be sentenced on the underlying charge before he can be convicted as a Persistent Felony Offender. However, a jury's failure first to set a penalty for the underlying offense may be found to be a harmless procedural error when it is not objected to at trial. *Miller v. Commonwealth*, 283 S.W.3d 690 (Ky. 2009); *Owens,* at 319.

Practice Tip: Bifurcated Trials. In a bifurcated trial (including PFO trials), make a motion in limine for the judge to begin the guilt/innocence phase by reading only the underlying offenses to the jury. For example, move the court to inform the jury the defendant is charged with DUI, but not DUI 4th Offense, and to exclude any reference to PFO.

IN CAMERA REVIEW

In Camera review is a process where the court reviews material on its own to determine whether any of it is responsive to a request or legal standard. It is frequently used for confidential or privileged information to determine whether the material must be disclosed to the other side, such as when the defense seeks privileged mental health or treatment records following the procedure in *Commonwealth v. Barroso*, 122 S.W.3d 554 (Ky. 2003).

Practice Tip: Material Not Given to the Defense. Whenever the court is reviewing material in camera, make sure to move the court to put any material not provided to the defense into the record for review in the event of an appeal. Writings used to refresh the memory of a witness should be provided to the defense under KRE 612, and withheld only if they do not relate to the testimony. This scenario is unlikely if the writing actually refreshes a recollection. Even if withheld, the writing must be preserved in the record. *Id*. Portions of discovery, witness statements or information regarding an informant which are not turned over to the defense must be similarly sealed in the record. RCr 7.24(8); RCr 7.26; KRE 508. In camera review of a witness' psychotherapy records is authorized only upon receipt of evidence sufficient to establish a reasonable belief that the records contain exculpatory evidence. The prosecutor and defense counsel do not have to be present at the review. *Commonwealth v. Barroso*, 122 S.W.3d 554 (Ky. 2003).

CHANGE OF LAW

The substantive law which applies to any given case is the law as it was at the time of the offense. This rule is codified in the convoluted language of the first part of KRS 446.110: "No new law shall be construed to repeal a former law as to any offense committed against a former law, nor as to any act done, or penalty, forfeiture or punishment incurred, or any right accrued or claim arising under the former law, or in any way whatever to affect any such offense or act so committed or done, or any penalty, forfeiture or punishment so incurred, or any right accrued or claim arising before the new law takes effect."

The procedural law which applies to any given case, however, is governed by the rules of procedure which exist at the time of the trial, not at the time of the commission of the offense. *Commonwealth v. Reneer*, 734 S.W.2d 794 (Ky.1987). The

latter part of KRS 446.110 says that, upon a change in law, "proceedings thereafter had shall conform, so far as practicable, to the laws in force at the time of such proceedings." *See Rodgers v. Commonwealth*, 285 S.W.3d 740 (Ky.2009); *Bolen v. Commonwealth*, 31 S.W.3d 907 (Ky. 2000).

KRS 446.110 also allows a defendant to opt-in to any new provision of law which reduces or mitigates any punishment: "If any penalty, forfeiture or punishment is mitigated by any provision of the new law, such provisions may, by the consent of the party affected, be applied to any judgment pronounced after the new law takes effect." In that case, the defendant needs to file notice of his "unqualified consent" to be sentenced under the new law. *Id.*; *Smith v. Commonwealth*, 400 S.W.3d 742 (Ky. 2013). In *Smith*, the defendant's diversion was revoked but, since no final judgment had ever been entered, the defendant was entitled to be sentenced under the new misdemeanor drug paraphernalia provisions, even though the charge was a felony at the time of the start of the diversion. Many death penalty defendants used this statute when life without the possibility of parole became a new sentencing option. E.g., *St. Clair v. Commonwealth*, 140 S.W.3d 510 (Ky. 2004); *Commonwealth v. Phon*, 17 S.W.3d 106, 108 (Ky. 2000). *See also* "EX POST FACTO" on page 13.

Relying on the holding in *Rodgers*, *supra*, and KRS 446.110, the Court of Appeals has ruled that the change in penalty provisions entailed in changing the Class D felony stolen property threshold from $300.00 to $500.00 should have been applied to a defendant whose case was still pending when the change went in to effect. *Blake v. Commonwealth*, 2010-CA-000987-MR, 2012 WL 410019, (Ky. App. Feb. 10, 2012) (*unpublished and review denied by order* Oct 17, 2012). The change in penalty provision of the Receiving Stolen Property statute should have been applied to the defendant in *Conyers v. Commonwealth,* 530 S.W.3d 413 (Ky. 2017). In *Virgil v. Commonwealth*, 403 S.W.3d 577 (Ky. App. 2013), the defendant was allowed to opt-in to new provisions of KRS 422.285 extending the right to DNA testing, even though the defendant's cause of action arose before the effective date of the new provisions.

SCOTUS Decisions

With regard to new United States Supreme Court decisions applying constitutional rules to criminal cases, the rule is very clear: the new rule applies retroactively to all cases, state or federal, pending on direct review or not yet final, with no exception for cases in which the new rule constitutes a "clear break" with the past. *Griffith v. Kentucky*, 479 U.S. 314 (1987).

> **Practice Tip:** Change of Law. Make sure to research the state of the law on the exact date that the offense occurred. Be especially careful in the summer, as many laws tend to take effect in the middle of July and will not yet be in the law books.

COMMONWEALTH, GENERALLY

"[The] interest of the Commonwealth in a criminal prosecution is not that it shall win a case but that justice shall be done. The decisions of this court provide abundant support of this principle. We have many times declared that there rests upon prosecuting attorneys the obligation to deal fairly with the accused and to recognize his legal rights as well as the rights of the Commonwealth, and that these public officials should see that the truth is disclosed and justice shall prevail." *Arthur v. Commonwealth*, 307 S.W.2d 182, 185 (Ky. 1957) (holding Commonwealth cannot hide written statement of defendant prior to creation of discovery rules).

COMPETENCY

Competency hearings are mandatory once the defendant has raised the issue. It is a denial of the constitutional right to a fair trial for the trial court to refuse to hold a hearing. *Pate v. Robinson*, 383 U.S. 375 (1966). Competency hearings are mandatory once specific facts are known sufficient to place the issue of competency in question. *Dorris v. Commonwealth*, 305 S.W.3d 438 (Ky. 2010). A court is not required to raise the issue of competency *sua sponte*. On the other hand, if there is substantial evidence of incompetency, the court must hold a hearing even if the defendant waives it. *Padgett v. Commonwealth*, 312 S.W.3d 336 (Ky. 2010) *overruling Gibbs v. Commonwealth*, 208 S.W.3d 848 (Ky. 2006).

The burden is on the defendant in a competency hearing to prove incompetency by a preponderance of the evidence. *Jackson v. Commonwealth*, 319 S.W.3d 347 (Ky. 2010). If the defendant is found to be incompetent, the proper response of

the court is to dismiss the charges. *Commonwealth v. Miles, Jr.*, 816 S.W.2d 657 (Ky. App. 1991).

In *Bishop v. Caudill*, 118 S.W.3d 159 (Ky. 2003), the Commonwealth requested an order requiring the defendant to submit to a competency evaluation by its own expert. The Kentucky Supreme Court ruled that the defendant was entitled to a writ of prohibition because the Commonwealth is not entitled to its own expert on the issue of competency.

Under KRS 31.185, a defendant is entitled to funds for an independent expert upon a showing of necessity and the impracticality of using state services. The reports of defense experts need not comply with KRS 504.100(2). It was not an abuse of discretion for the trial court to find the defendant incompetent even though both experts said she was competent. *Commonwealth v. Wooten*, 269 S.W.3d 857 (Ky. 2008). The defense is entitled to its own independent expert, and sending the defendant to the Kentucky Correctional Psychiatric Center (KCPC) for evaluation instead does not meet the requirements of *Ake. Conley v. Commonwealth,* 599 S.W.3d 756 (Ky. 2019). *See also* "Expert Funds" on page 21. For more discussion see the Department of Public Advocacy Mental Health Manual, November, 2014, available at http://dpa.ky.gov.

Practice Tip: Resist Improper Examination by KCPC. It is not in a client's interest to be examined by a government professional witness prior to trial. Although RCr 8.07 and KRS 504.070 et. seq. permit such examination after the defense gives notice of a mental health trial defense, the filing of a competency motion or the consulation with a Chapter 31 funded expert to consult about such a defense should not be used as a pretext to interview the client on the facts of the case. Counsel should seek a writ of prohibition to prevent improper examination. *See Bishop v. Caudill*, 118 S.W.3d 159 (Ky. 2003); *Powell v. Graham*, 185 S.W.3d 624 (Ky. 2006).

CONDITIONAL PLEAS

RCr 8.09 allows conditional pleas of guilty when approved by the court. Unless a conditional guilty plea is entered, the general rule is that unconditional pleas of guilty waive the right to appeal a finding of guilt on the sufficiency of the evidence. *Taylor v. Commonwealth*, 724 S.W.2d 223 (Ky. App. 1986). Other issues survive this waiver, such as competency to plead guilty, *Thompson v. Commonwealth*, 147 S.W.3d 22 (Ky. 2004), whether the plea complied with the requirements of *Boykin v. Alabama*, 395 U.S. 238 (1969), *Johnson v. Commonwealth*, 103 S.W.3d 687, 691 (Ky. 2003), subject matter jurisdiction and the failure to charge a public offense, RCr 8.18, and sentencing issues, *Hughes v. Commonwealth*, 875 S.W.2d 99, 100 (Ky. 1994), *Ware v. Commonwealth*, 34 S.W.3d 383, 385 (Ky. App. 2000). *See also Windsor v. Commonwealth*, 250 S.W.3d 306 (Ky. 2008); *Grigsby v. Commonwealth*, 302 S.W.3d 52 (Ky. 2010). Issues involving illegal sentences are jurisdictional and will be reviewed *de novo*. *Brady v. Commonwealth*, 396 S.W.3d 315 (Ky. App. 2013).

When a conditional guilty plea is entered, courts will consider issues on appeal if they"(1) involve a claim that the indictment did not charge an offense or the sentence imposed by the trial court was manifestly infirm, or (2) the issues upon which appellate review are sought were expressly set forth in the conditional plea documents or in a colloquy with the trial court, or (3) if the issues upon which appellate review is sought were brought to the trial court's attention before the entry of the conditional guilty plea even if the issues are not specifically reiterated in the guilty plea documents or plea colloquy." *Dickerson v. Commonwealth*, 278 S.W.3d 145, 149 (Ky. 2009). In *Helphenstine v. Commonwealth*, 423 S.W.3d 708 (Ky. 2014), the defendant preserved the trial court's denial of his motion to suppress but did not preserve the trial court's failure to hold a suppression hearing, because the defendant had never raised that issue with the trial court.

Practice Tip: Preserving the Issue. When entering a conditional guilty plea follow RCr 8.09 to the letter. The plea must be in writing. Note on the guilty plea form: (1) that the client is NOT waiving his right to appeal, and (2) the specific issue which the client is appealing. Put the information on the record as well. Move to have the condition placed in the final judgment. Do not enter a conditional plea of guilty and yet simultaneously have your client sign a form saying he is waiving his right to appeal.

CONTINUANCES

Legal Standard

In considering whether to grant a continuance a court must consider the length of delay, whether there have been any previous continuances, the inconvenience which may be caused by the continuance, whether the delay is the fault of the accused, the complexity of the case, and whether denying the continuance would prejudice the defendant. *Snodgrass v. Commonwealth*, 814 S.W.2d 579 (Ky. 1991), *overruled on other grounds*; *Eldred v. Commonwealth*, 906 S.W.2d 694 (Ky. 1995), *abrogated on other grounds*; *Edmonds v. Commonwealth*, 189 S.W.3d 558 (Ky. 2006).

Continuances may be granted because the rules of discovery have not been followed. RCr. 7.24(11). See also *Mills v. Commonwealth*, 95 S.W.3d 838 (Ky. 2003), in which the Commonwealth failed to disclose a witness to a robbery; and *Wilson v. Commonwealth*, 388 S.W.3d 127 (Ky. App. 2012), in which the trial court's denial of a continuance was reversed because the appellate court found there was a reasonable probability that the outcome of the trial would have been different in the absence of prosecutorial delays in producing requested discovery. In some cases continuances must be granted if requested. *See, e.g.*, *Anderson v. Commonwealth*, 63 S.W.3d 135 (Ky. 2001) (finding abuse of discretion for denying continuance where Commonwealth did not provide medical reports until just before trial and disclosed complaining witness statements only at the end of the first day of trial). Continuances may also be granted if the indictment does not include the names of the witnesses who appeared before the grand jury, RCr 6.08, and should be granted when the court allows the Commonwealth to amend an indictment, RCr 6.16. *Herp v. Commonwealth*, 491 S.W.3d 507 (Ky. 2016).

For continuances that should be granted when the attorney has not been allowed sufficient time to prepare, see "ANNOUNCING "READY"" on page 51.

Unavailable Witness

When a continuance is sought by the defense because a witness is unavailable, RCr 9.04 requires that an affidavit be offered into the record stating what the testimony of the witness would have been and the due diligence the defense has performed in order to attempt to secure the witness. The Commonwealth can then agree or disagree to allow the affidavit into evidence. If the Commonwealth disagrees, the court may grant a continuance. Failure to grant a continuance is reviewed for abuse of discretion. *See, e.g.*, *McIntosh v. Commonwealth*, 582 S.W.2d 54 (Ky. App. 1979), *abrogated on other grounds*; *Slone v. Commonwealth*, 382 S.W.3d 851 (Ky. 2012).

> **Practice Tip:** Make a Record. If the motion for continuance is overruled, make sure to enter the affidavit into the record if for some reason it is not attached to your motion.

Waiver

Attorneys must consult carefully with clients before deciding whether to request a continuance. Failure to request a continuance waives the issue. *Lefevers v. Commonwealth*, 558 S.W.2d 585 (Ky. 1977). Failure to follow the requirements of RCr 9.04 waives the issue. *Gray v. Commonwealth*, 203 S.W.3d 679 (Ky. 2006). Failure to accept a court's offer to continue waives the issue. *Neal v. Commonwealth*, 95 S.W.3d 843 (Ky. 2003). This is probably true even if the defendant is in custody and a continuance will lengthen his time in jail. *U.S. v. Quinn*, 230 F.3d 862 (6th Cir. 2000).

JAIL CLOTHES AND SHACKLES

RCr 8.28(5) prohibits requiring a defendant to appear before a jury in "the distinctive clothing of a prisoner." The state cannot compel a defendant to appear before a jury in jail clothes. *Estelle v. Williams*, 425 U.S. 501 (1976). Compelling the defendant to do so was reversible error in *Harmon v. Commonwealth*, 2016-CA-001258-MR, 2018 WL 3954306 (Ky. App. August 17, 2018), *unpublished.*

RCr 8.28(5) also prohibits requiring a defendant to appear before a jury in "shackles or other devices for physical restraint." This should be allowed only in extraordinary circumstances ("good cause") and requires findings that the defendant will be violent or a flight risk. Mere signs of displeasure or disrespect from the defendant are not sufficient. *Barbour v.*

Commonwealth, 204 S.W.3d 606 (Ky. 2006). The practice of requiring the defendant to wear shackles during sentencing phase of trial was held to be harmless error in *Lovett v. Commonwealth*, 2003-SC-0414-MR, 2005 WL 2045483 (Ky. Aug. 25, 2005), *unpublished,* partly because the presumption of innocence no longer applied to the defendant. However, see *Deck v. Missouri*, 544 U.S. 622 (2005), in which the Supreme Court ruled that it was a violation of due process to shackle defendants routinely during the penalty phase of a capital proceeding. In *Bruner v. Commonwealth*, 2012-SC-000785-MR, 2014 WL 4160141 (Ky. Aug. 21, 2014), *unpublished,* it was abuse of discretion for the trial court to shackle the defendant during the penalty phase of the trial for the arbitrary and capricious reason that the judge felt that was just the way things were done there.

Make sure to object if the jury might have seen the client while being moved from the jail. It is the same kind of prejudice. Whether the restraints are visible to the jury is a factor in considering prejudice. *Grady v. Commonwealth*, 325 S.W.3d 333 (Ky. 2010).

The rule against shackles does not extend beyond the client to defense witnesses. In a trial involving a riot at Northpoint prison, the defendant was not denied a fair trial when four defense witnesses, all inmates, testified while wearing shackles and prison garb. *Stacy v. Commonwealth*, 396 S.W.3d 787 (Ky. 2013).

On the related issues of armed guards in the courtroom see, *e.g.*, *Soto v. Commonwealth*, 139 S.W.3d 827 (Ky. 2004) and *Miller v. Commonwealth*, 394 S.W.3d 402 (Ky. 2011). Whether filling the courtroom with uniformed officers deprives a defendant of a fair trial is decided on a case-by-case basis. *Holbrook v. Flynn*, 475 U.S. 560, 562-67 (1986).

In *Deal v. Commonwealth*, 607 S.W.3d 652 (Ky. 2020), the court admitted that it had never yet "articulated the required analysis" since the U.S. Supreme Court had decided *Estelle*, *Deck*, and *Holbrook*, *supra*, and decided "to take the opportunity now." First, when the defendant objects to a specific trial event, the court is obliged under the Fourteenth Amendment to consider whether the practice is "inherently prejudicial." This may include the likelihood that the jury may be led to conclude that the defendant is particularly dangerous or culpable, the decisions of other courts in similar situations, and "the likelihood that the event would normally operate to the disadvantage only to those defendants who are unable to post bond to be released pending trial." Next, if the court finds the proposed event is inherently prejudicial it may allow that event only if it finds that it is justified by "some identifiable and essential state interest." Finally, if the court allows an event inherently prejudicial to the defendant which did not serve an essential state interest, prejudice is presumed on appellate review. In *Deal*, reversal was required when the court allowed the jury to view an interrogation video depicting the defendant in jail clothes and shackles at the jail, and the Commonwealth could have simply played the audio of the interrogation and could not justify the need to show the video.

DEFENSE THEORIES, TYPES OF

"Practically every defense theory will fall within one of the following defense genres:

It never happened – (mistake, setup, fabrication)
It happened, but I didn't do it – (mistaken identification, alibi, setup. etc.)
It happened, I did it, but it wasn't a crime (self-defense, accident, claim of right)
It happened, I did it, it was a crime, but it wasn't this crime (lesser-included offenses)
It happened, I did it, it was a crime, but I'm not responsible (insanity)
It happened, I did it, it was a crime, I'm responsible, so what? (jury nullification – known in some jurisdictions as the "he needed killin" defense)

Cathy R. Kelly, "Trial By Design," The Champion, vol. 26, no. 9, November, 2002, pp. 18-22.

DEFENSES WITH REFERENCES TO KENTUCKY LAW

1. A crime didn't happen.

- ◊ Accident
- ◊ Natural causes
- ◊ Self-inflicted
- ◊ Victim or witness lying
- ◊ False confession

2. It happened, but I didn't do it.

- ◊ Causation (KRS 501.060)
- ◊ Mistaken identification case
- ◊ Circumstantial evidence, no direct link to defendant
- ◊ Junk science linking defendant
- ◊ Alternative perpetrator, alternative suspect *Beaty v. Com.*, 125 S.W.3d 196 (Ky. 2003)
- ◊ False confession
- ◊ Victim or witness lying.

3. It happened, I did it, but it wasn't a crime.

- ◊ Mistake (e.g., of age) (KRS 501.070)
- ◊ Mistake of Law (KRS 501.070)
- ◊ Entrapment (KRS 505.010)
- ◊ Justifiable Use of Force (KRS 503.050, et seq.)
- ◊ Choice of Evils (KRS 503.030)
- ◊ Duress (KRS 501.090)
- ◊ Execution of Public Duty (KRS 503.040)
- ◊ Victim consent
- ◊ Date of Offenses, substantive law at time of offense, ex post facto

4. It happened, I did it, but it wasn't this crime

- ◊ Guilty of a lesser-included offense, for any reason

5. It happened, I did it, but I'm not responsible.

- ◊ Insanity (KRS 504)
- ◊ Mental Illness (KRS 504)
- ◊ Intellectual Disability (KRS 504)
- ◊ Involuntary Intoxication (KRS 501.080)
- ◊ Extreme Emotional Disturbance (KRS 507.020, et seq., KRS 508.040)
- ◊ Voluntary Intoxication, in limited circumstances (KRS 501.010, 501.080)

6. It happened, I did it, I'm responsible, but I shouldn't or can't be prosecuted.

- ◊ Jury nullification : When a defendant has pleaded not guilty, a court can never direct a verdict of guilty no matter how over whelming the evidence. *Taylor v. Commonwealth*, 125 S.W.3d 216 (Ky. 2004)
- ◊ Jurisdiction (KRS 500.060)
- ◊ Venue (KRS 452.510)
- ◊ Competency (RCr 8.06, KRS 504.100)
- ◊ Double Jeopardy (KRS 505)
- ◊ Statute of Limitations (KRS 505.050)

For the Burden of Proof on Defenses, see KRS 500.070.

DISCOVERY

General Provisions

Generally, the following is obtainable in discovery: Grand jury transcripts (RCr 5.16(3), Bill of Particulars (RCr 6.22), Defendant Statements, Experts, Texts, and Documents, Recordings, or Items (RCr 7.24), Prosecution Witness Statements (RCr 7.26; 8.27), Notice Requirements (RCr 8.07, 8.27, KRE 404 and 412). (For a comprehensive discussion of the spectrum of discovery rules and statutes throughout the United States, see Wayne R. LaFave, et al., Criminal Procedure, §20.2(b), (4th ed. 2019), comparing Federal Rule 16, the original ABA Standards, and the third edition of the ABA Standards.)

A trial court cannot avoid the commonly adopted procedures for providing discovery by issuing ex parte orders tendered by the defense on the grounds that the defense is not required to reveal its potential defense to the prosecution. *Commonwealth v. Cambron*, 546 S.W.3d 556 (Ky. App. 2018).

Legal Standard

"A cat and mouse game whereby the Commonwealth is permitted to withhold important information requested by the accused cannot be countenanced." *James v. Commonwealth*, 482 S.W.2d 92, 94 (Ky. 1972). "In a case where the murder is shrouded in mystery and the question of guilt hung in the balance, it will not do to permit the possibility that victory was obtained by ambush and surprise, even if we accept that the mistake was not 'malicious.'" *Barnett v. Commonwealth*, 763 S.W.2d 119, 123 (Ky. 1989).

Generally, evidence never turned over to the defense before trial is a more serious violation than evidence turned over too late to meet a statutory or procedural deadline. The former may require reversal, *see, e.g.*, *James, supra*, while the latter may be more likely to be reviewed on appeal by the prejudice/harmless error standard, *see, e.g.*, *Neal v. Commonwealth*, 95 S.W.3d 843, 848 (Ky. 2003). Absent a constitutional violation, "[a] discovery violation justifies setting aside a conviction 'only where there exists a reasonable probability that had the evidence been disclosed the result at trial would have been different.'" *Weaver v. Commonwealth*, 955 S.W.2d 722, 725 (Ky. 1997), *quoting Wood v. Bartholomew*, 516 U.S. 1, 5 (1995).

Open File

If the Commonwealth claims to have adopted "open file" discovery, it might be held to full disclosure on appeal. *Hicks v. Commonwealth*, 805 S.W.2d 144 (Ky. App. 1990); *Barnett v. Commonwealth*, 763 S.W.2d 119, 123 (Ky. 1989). RCr 7.24 is really two rules. RCr 7.24(1)&(2) describe the initial obligations of the Commonwealth. Under the rule, these obligations are triggered by a written request or motion from the defendant. RCr 7.24(3)(a)&(b) detail the reciprocal discovery obligations of the defendant. Under the rule, these obligations begin *only after* the Commonwealth has fully complied with its own obligations. In spite of this, though, it is quite common for courts to enter blanket discovery orders which automatically confer reciprocal discovery obligations on both parties. A form order, "infringes on the election given the defendant under RCr 7.24(2)." *Penman v. Commonwealth*, 194 S.W.3d 237, 249 (Ky. 2006), *overruled on other grounds*.

> **Practice Tip:** Enforce Discovery Rules. If you do not want to be automatically bound by reciprocal discovery obligations, ask the court to follow the rule as it is written. This may be important where the Commonwealth is routinely slack in meeting its discovery obligations. If a prosecutor routinely claims to have "open file" discovery but never puts anything in the file, or makes it the job of the defense to monitor the file for additional material, move the court to relieve you of reciprocal obligations until the Commonwealth complies with the rule. RCr 7.24(10) clarifies the continuting obligation to "promptly notify the other party" of new material. Prior to commencing a trial, file a discovery inventory with the court to inform the court of what you have (and have not) received, along with appropriate objections to the process.

Scope Includes All Agents of the Commonwealth

Officers and investigators are agents of the Commonwealth and any statements taken by them are in the possession of the Commonwealth, regardless of whether the Commonwealth's Attorney is personally aware of them. *Anderson v. Commonwealth*, 864 S.W.2d 909, 912 (Ky. 1993). The prosecutor's duty of disclosure extends to evidence in the possession

of the prosecutor, their investigators, and other state agencies as well. *Eldred v, Commonwealth*, 906 S.W.2d 694 (Ky. 1995), *overruled on other grounds*. The prosecution's failure to prepare is no defense for failure to disclose exculpatory statements. *Lynn v. Commonwealth*, 2007-CA-000844-MR, 2008 WL 4530901 (Ky. App. Oct. 10, 2008), *unpublished*.

Oral Incriminating Statements of Defendant

RCr 7.24(1), requiring the Commonwealth to disclose to the defense any oral incriminating statements made by the defendant, is not limited to statements that were written or recorded, *Chesnut v. Commonwealth*, 250 S.W.3d 288 (Ky. 2008), *overruling Berry v. Commonwealth*, 782 S.W.2d 625 (Ky. 1990), *Partin v. Commonwealth*, 918 S.W.2d 219 (Ky. 1996), and *Matthews v. Commonwealth*, 997 S.W.2d 449 (Ky. 1999). Reversal was required in *Trigg v. Commonwealth*, 460 S.W.3d 322 (Ky. 2015), when the Commonwealth did not disclose to the defense that the defendant had told the police that the room in which the contraband was found was his room.

The purpose of RCr 7.24(1) is not to inform the defendant that he made a statement but to inform the defendant, in order to plan defense strategy, whether the prosecution has knowledge of a defendant's statements which the prosecution may introduce into evidence or use to impeach. *Grant v. Commonwealth*, 244 S.W.3d 39 (Ky. 2008).

There is no rebuttal exception to this requirement. Presentation of undisclosed evidence in violation of RCr 7.24(1) under the guise of rebuttal evidence pursuant to RCr 9.42 constitutes reversible error. *Chesnut*, *supra*. But see *Clutter v. Commonwealth*, 322 S.W.3d 59 (Ky. 2010) in which the defendant's statements were disclosed just prior to trial and were allowed in rebuttal.

Witness Statements

RCr 7.26, which requires the Commonwealth to provide witness statements at least 48 hours prior to trial, is not reciprocal. There is no defense obligation to turn over witness statements, *Commonwealth v. Stambaugh*, 327 S.W.3d 435 (Ky. 2010), however counsel must consider whether they intend to introduce the statement, making it potentially discoverable under RCr 7.24(3)(b). Whether the defense may withhold a document that may be introduced as impeachment evidence is unclear. *See, e.g.*, *Gray v. Commonwealth*, 203 S.W.3d 679, 685 n1 (Ky. 2006); *Gordon v. McDonald-Burkman*, 2008-SC-000084-MR, 2008 WL 3890504, at *3, *unpublished,* (Ky. Aug. 21, 2008), *citing Gray.*

The Commonwealth's failure to disclose under RCr 7.26 an officer's assault report was reversible error which "prejudiced the [defendant's] ability to prepare a defense." *Akers v. Commonwealth*, 172 S.W.3d 414 (Ky. 2005). The RCr 7.24(2) provision prohibiting the disclosure of the notes and work product of investigating officers does not apply under RCr 7.26 once the witness has testified. *LeGrande v. Commonwealth*, 494 S.W.2d 726 (Ky. 1973). Audiotaped statements of witnesses are discoverable. *Gray v. Commonwealth*, 203 S.W.3d 679 (Ky. 2006).

Witness Lists

Neither party in a criminal action is required to disclose a witness list in pretrial discovery. *King v. Venters*, 596 S.W.2d 721 (Ky. 1980); *Lowe v. Commonwealth*, 712 S.W.2d 944 (Ky. 1996). "It is our opinion that there is no authority for requiring a defendant to furnish such a list to the Commonwealth, and we are not entirely convinced that it would be free of constitutional difficulty." *King*, at 721. See also *Commonwealth v. Nichols*, 280 S.W.3d 39 (Ky. 2009), for a full discussion. Nevertheless, a court may require a defendant to provide a witness list at trial, at the outset of voir dire, for the purpose of inquiring of the jurors if any of them were "close personal friends" or "related by blood or marriage" to any of the named witnesses. *Hardy v. Commonwealth*, 719 S.W.2d 727 (Ky. 1986). Failure to name a witness in voir dire may result in the exclusion of that "surprise" witness. *Peyton v. Commonwealth*, 253 S.W.3d 504 (Ky. 2008).

Informants

The government has an informant identity privilege under KRE 508, but when an informant will be a testifying witness, or his identity and communications are relevant and helpful to the accused or essential to a fair trial, the privilege is overcome by Constitutional requirements. *See Roviaro v. United States*, 353 U.S. 53 (1957). This includes any deals made between the prosecution and the informant. *Giglio v. United States*, 405 U.S. 150 (1972). This also includes past consideration

paid to the informant in other cases and based on the expectation of help from the informant in the future. *McBeath v. Commonwealth*, 244 S.W.3d 22 (Ky. 2007). Disclosure must be made "promptly" under RCr 7.24(10). RCr 7.26, requiring disclosure only 48 hours before trial, does not apply. The court's decision to allow the Commonwealth to wait until less than 48 hours before trial to disclose the name of a material witness (an informant) was held to be an abuse of discretion in *Little v. Commonwealth,* 553 S.W.3d 220 (Ky. 2018).

Showing Prejudice

Demonstrating prejudice is an essential element of ensuring that a discovery violation results in relief for the defense. It was an abuse of discretion for the court to allow the admission of evidence never turned over to the defense at all and which essentially gutted the defense. *Chestnut v. Commonwealth*, 250 S.W.3d 288 (Ky. 2008). It was an abuse of discretion to allow the admission of withheld evidence when the withheld evidence prevented the defense from making an informed decision as to appropriate trial strategy; specifically, whether the defendant should testify. *Grant v. Commonwealth*, 244 S.W.3d 39 (Ky. 2008). *See also Akers v. Commonwealth*, 172 S.W.3d 414 (Ky. 2005), in which discovery violations impaired the defense ability to prepare a defense.

Discoverable Types of Material

In addition to the material described in RCr 7.24 and 7.26, courts have addressed several times of specific material that the defense is entitled to in general or under certain circumstances. The defense was entitled to **social services records** in a sodomy case. *Dennis v. Commonwealth*, 306 S.W.3d 466 (Ky. 2010). The court can order disclosure of **KASPER** records in a criminal case, despite the statutory bar to disclosure. *Commonwealth v. Bartlett*, 311 S.W.3d 224 (Ky. 2010). The opposite is true in civil cases. *Commonwealth v. Chauvin*, 316 S.W.3d 279 (Ky. 2010). The defendant's right to compulsory process prevails over the witness' privilege when the **medical records** are those of a crucial prosecution witness and have bearing on the witness' competency to testify. *Commonwealth v. Grider,* 390 S.W.3d 803 (Ky. App. 2012). The same is true when the records are **psychotherapy records**. *Commonwealth v. Barroso*, 122 S.W.3d 554 (Ky. 2003). The privilege must be overcome with sufficient proof of belief that the records would contain exculpatory or impeachment evidence. *Id.*; *Sheets v. Commonwealth,* 495 S.W.3d 654 (Ky. 2016). But see *White v. Willett*, 456 S.W.3d 810 (Ky. 2015), granting a writ of prohibition on an overly-broad discovery order for mental health records. RCr 5.16(3) provides that: "any person indicted by the **grand jury** shall have a right to procure a transcript of any stenographic report or a duplicate of any mechanical recording relating to his or her indictment..." This includes transcripts of testimony concerning co-defendants. *See Gosser v. Commonwealth*, 31 S.W.3d 897 (Ky. 2000).

Discovery may be waived in plea bargaining. Plea offers may be conditioned on not viewing discovery without violation of a defendant's due process rights. In P*orter v. Commonwealth*, 394 S.W.3d 382 (Ky. 2011), the defendant gave up the right to view the videotape of the drug transaction between himself and the confidential informant. *See also U.S. v. Ruiz*, 536 U.S. 622 (2002).

Missing Evidence

In the case of evidence which was simply never collected in the first place, in order for there to be a due process violation requiring that relief be granted to the defendant, the defendant must show that the government acted in bad faith. In the case of evidence which was in the possession of the Commonwealth which was then later lost or destroyed, the defendant must also show that the exculpatory value of the evidence was obvious prior to destruction, and that the defendant can obtain the evidence by no other reasonable means. *Arizona v. Youngblood*, 488 U.S. 51 (1988); *California v. Trombetta*, 467 U.S. 479 (1984). *See also Kirk v. Commonwealth*, 6 S.W.3d 823 (Ky. 1999); *Metcalf v. Commonwealth*, 158 S.W.3d 740 (Ky. 2005). When the Commonwealth loses exculpatory evidence, the proper remedy may be a missing evidence instruction or some prohibitions or limitations on the Commonwealth's evidence. *Tinsley v. Jackson*, 771 S.W.2d 331 (Ky. 1989).

Testing Which Destroys Evidence

When a defendant is charged with a drug offense, the destruction of the total drug sample renders the test results inadmissible unless the defendant is provided with enough notes and information regarding the testing to enable him to

obtain his own expert evaluation. *Green v. Commonwealth*, 684 S.W.2d 13 (Ky. App. 1984). If one method of testing will result in destruction of the evidence but another will not, the most benign method of testing should be used first. If both the Commonwealth's and the defense's methods will result in destruction of the evidence, the defense should be allowed to test first. If neither method will destroy the evidence, the decision concerning who tests first is within the discretion of the trial court. *McGregor v. Hines*, 995 S.W.2d 384 (Ky. 1999).

Brady

"[T]he suppression by the prosecution of evidence favorable to an accused upon request violates due process where the evidence is material either to guilt or to punishment, irrespective of the good faith or bad faith of the prosecution." *Brady v. Maryland*, 373 U.S. 83 (1963); *see also Sweatt v. Commonwealth*, 550 S.W.2d 520 (Ky. 1977). *Brady* material also includes impeachment evidence concerning prosecution witnesses. *U.S. v. Bagley*, 473 U.S. 667 (1985); *see also Mounce v. Commonwealth*, 795 S.W.2d 375 (Ky. 1990). The defense can insist on a response to formal requests made under *Brady*. Where a specific request is made for information prior to trial, as in *Brady*, so long as there is a "substantial basis" for claiming that materiality exists, "the failure to make any response is seldom, if ever, excusable." *U.S. v. Agurs*, 427 U.S. 97, 106 (1976).

The defendant's right to exculpatory evidence applies whether or not there has been a request by the accused and encompasses impeachment as well as other exculpatory evidence. *Commonwealth v. Bussell*, 226 S.W.3d 96 (Ky. 2007). (reviewing the scope of exculpatory evidence under *Brady*). Failure to disclose that the state's witness was also a paid informant was a *Brady* violation in *Robinson v. Mills*, 592 F.3d 730 (6th Cir. 2010). A witness' criminal and juvenile records and probation status are *Brady* material. *See Davis v. Alaska*, 415 U.S. 308 (1974). Mental health records may be *Brady* material. *Commonwealth v. Barroso*, 122 S.W.3d 554 (Ky. 2003), allows in camera review of psychotherapy records when there is evidence to establish a reasonable belief that they contain exculpatory evidence. *See also, Commonwealth, Cabinet for Health and Family Services v. Bartlett*, 311 S.W.3d 224, 227 (Ky. 2010), *citing Barroso*.

Cases involving *Brady* violations typically involve discovery, after trial, of exculpatory evidence known to the prosecution but unknown to, and therefore not specifically requested by, the defense. These cases fall into two categories: "perjury" cases and "discovery" cases. In a "perjury" case the discovered evidence shows that a prosecution witness committed perjury on the stand during the trial. Since this is so very prejudicial to a defendant, the standard for setting aside the conviction is only that the false testimony could in any reasonable likelihood have affected the judgment of the jury. *See Giglio v. U.S.*, 405 U.S. 150 (1975). Since a "discovery" case involves exculpatory material not available to the defendant at trial but does not also involve perjured testimony, the standard in such cases is higher. In order to warrant reversal, the defendant must show that the undisclosed evidence would have created a reasonable doubt as to guilt which would not otherwise have existed without the evidence. *U.S. v. Agurs*, 427 U.S. 97 (1976). *See also Williams v. Commonwealth*, 569 S.W.2d 139 (Ky.1978) (citing *Agurs,* holding that Commonwealth's undisclosed recommendation that witness's prior conviction be vacated called testimony into doubt and was a "perjury" case).

Nevertheless, "it is fundamental, however, that the materiality of a failure to disclose favorable evidence 'must be evaluated in the context of the entire record." *Agurs*, 427 U.S. at 112 (1976). "[T]he mere possibility that an item of undisclosed information might have helped the defense, or might have affected the outcome does not establish materiality in the constitutional sense." *St. Clair v. Commonwealth*, 140 S.W.3d 510, 541 (Ky. 2004) *citing Agurs*, 427 U.S. at 112 n.20.

Practice Tip: *Brady* Requests. Be specific in making *Brady* requests about information you believe exists yet include a catch-all phrase for any unknown information. For example, if you are aware of an exculpatory police investigation, request "all records regarding the police investigation of Joe Witness for fraud in connection with an act on October 6, 1993, *and* all other information in the possession of the police department that tends to impair his credibility or demonstrate the innocence or mitigated guilt of Mr. Client." Specific requests prior to trial assist in demonstrating materiality and prejudice of withheld information, *see Grider*, 390 S.W.3d 803, while general requests extend the possible areas of inquiry in a post-conviction review if information is later discovered.

Remedies

RCr 7.24(11) provides that upon a discovery violation the court may order the material to be disclosed and "grant a continuance, or prohibit the party from introducing in evidence the material not disclosed, or it may enter such other order as may be just under the circumstances." Such "other order" might include declaring a mistrial, *Commonwealth v. Grider*, 390 S.W.3d 803 (Ky. App. 2013), ordering the trial continued with the same jury, *Stump v. Commonwealth*, 747 S.W.2d 607, 608 (Ky. App. 1987), or even an instruction admonishing the jury about the violation, *see Roblero v. Commonwealth*, 2005-SC-000301-MR, 2006 WL 2987180, at *8 (Ky. Oct. 19, 2006) (finding a discovery appellate issue waived for failure to request an instruction), *unpublished*, *citing Brock v. Commonwealth*, 391 S.W.2d 690, 692 (Ky.1965).

Subject to rare exceptions, a trial court has no authority to dismiss an indictment over the objection of the Commonwealth. One exception involves prosecutorial misconduct which prejudices the defendant. In *Commonwealth v. Grider*, 390 S.W.3d 803 (Ky. App. 2013), the Commonwealth's refusal to comply with discovery obligations until the eve of trial, combined with changing theories of prosecution during trial, warranted dismissal of the indictment over the objection of the Commonwealth. Dismissals with prejudice are more likely to be obtained after a trial has commenced. *See e.g.*, *Grider, supra; Gibson v. Commonwealth*, 291 S.W.3d 686, 689-90 (Ky. 2009).

Practice Tip: Remedy Requests and Mid Trial Violations. In addition to remedies under RCr 7.24, counsel should allege in appropriate cases a violation of prosecutorial obligations under *Brady*, or denial of the right to a fair trial under the Fifth Amendment due process clause and Section 11 of the Kentucky Constitution. If a mid-trial disclosure of exculpatory information (or any discoverable information) is made, request remedies in the alternative starting with the most advantageous. Consider in the ordering of these remedies that defense requested mistrials only create a double jeopardy bar to future prosecution if the defense was goaded into requesting the mistrial by bad faith or other fundamental unfairness of the prosecutor. See "MISTRIAL" on page 67.

EX PARTE HEARINGS

An ex parte hearing is one for which the opposing party is not given notice. Orders resulting from such hearings are usually sealed and unavailable to that party, along with the video record of the proceedings and any motions filed. As a general rule such hearings are prohibited except in limited circumstances. *See Commonwealth v. Cambron*, 546 S.W.3d 556 (Ky. App. 2018) (reviewing law of permissible ex parte hearings). The most frequent exception is where an ex parte hearing is explicitly authorized by law. For example, motions for expert funding must be held ex parte upon request of the defense. KRS 31.185(2). In contrast, a motion to set aside an arrest warrant cannot be made ex parte without notice or opportunity for the Commonwealth to be heard. *Commonwealth v. Wilson*, 384 S.W.3d 113 (Ky. 2012); *Commonwealth v. Carman, et al*, 455 S.W.3d 916 (Ky. 2015). Counsel has a special ethical obligation at an ex part hearing to inform the court of all facts--whether adverse or not--that they know relate to the ex parte request. *See* Rule of Professional Conduct 3.3(d).

Practice Tip: Don't cut corners! When conducting an ex parte hearing for Chapter 31 funds or other appropriate ex parte requests, make a written motion (filed with the clerk and sealed if appropriate), tender a prepared order to the judge, and put the hearing on the record. Without a record, there is no way to preserve the issue if the court refuses your request. If the court requires notice to the Commonwealth for such motions, consider pursuing a writ of mandamus to require the court to hear you ex parte. In any event, limit the information used in any noticed motions to the absolutely minimum necessary to convey the request. Omit, for example, the name and specialty of an expert in a motion noticing a request for expert funds that will reach the Commonwealth.

EX POST FACTO

An ex post facto violation occurs when a criminal statute is applied retroactively to subject a person to criminal liability for past conduct, the effect of which is to deprive him of due process of law in the sense of being given fair warning that his contemplated conduct constitutes a crime. *Tharp v. Commonwealth*, 40 S.W.3d 356 (Ky. 2000). *See also Purvis v. Commonwealth*, 14 S.W.3d 21 (Ky. 2000). Nevertheless, if the court can construe the law as not adding additional punishment, this protection does not exist. For example, requiring registration and notification under the Sexual Offender

Registration Act for an offender who at the time of his offense was not required to register does not disadvantage the offender to such a degree that retroactive application of the Act constitutes an improper ex post facto application of law; courts have ruled the designation of a sexual predator is not a sentence or punishment but simply a status resulting from a conviction of a sex crime, the purpose of the Act is remedial rather than punitive, and registration and notification under the Act impose only the slightest inconvenience to the offender but further the overwhelming public policy objective of protecting the public. *Hyatt v. Commonwealth*, 72 S.W.3d 566 (Ky. 2002). *See also Buck v. Commonwealth*, 308 S.W.3d 661 (Ky. 2010). On the other hand, application of the new consecutive sentencing statute to the defendant's case violated the ex post facto clause in *Cecil v. Commonwealth*, 297 S.W.3d 12 (Ky. 2009).

INDICTMENTS

History

Under the old Code of Practice in Criminal Cases, an indictment was a "fact pleading"; there were no provisions for a Bill of Particulars, but the indictment was required to be "direct and certain" with regards to the party, the offense, the county, and the circumstances. The specificity of the indictment was itself supposed to make it possible for the defense to prepare adequately. When the Rules of Criminal Procedure went into effect on January 1, 1963, however, the purpose of indictments changed. Under the Rules, indictments are now "notice pleadings." Their purpose is simply to provide adequate notice to a defendant of the charges against him. *Thomas v. Commonwealth*, 931 S.W.2d 446 (Ky. 1996); *Parker v. Commonwealth*, 291 S.W.3d 647 (Ky. 2009).

Indictment versus Information

A circuit court acquires subject matter jurisdiction over a felony case in only two ways: by a grand jury indictment or by information. *Malone v. Commonwealth,* 30 S.W.3d 180, 183 (Ky. 2000). Prosecution of a criminal charge cannot proceed by information unless the defendant has waived the right to a grand jury indictment. RCr 6.02(1) provides: "All offenses required to be prosecuted by indictment pursuant to Section 12 of the Kentucky Constitution shall be prosecuted by indictment unless the defendant waives indictment by notice in writing to the circuit court, in which event the offense may be prosecuted forthwith by information." *See Pursely v. Commonwealth,* 500 S.W.3d 807 (Ky. 2016).

Legal Standard

"Under the Due Process Clause, the sufficiency of an indictment is measured by two criteria: first, that an indictment sufficiently apprise a defendant of the criminal conduct for which he is called to answer; and, second, that the indictment and instructions together provide adequate specificity that he may plead acquittal or conviction as a defense against any future indictment for the same conduct and that he not be punished multiple times in this action for the same offense." *Schrimsher v. Commonwealth*, 190 S.W.3d 318, 325 (Ky. 2006), *quoting Russell v. U.S.*, 369 U.S. 749, 763-64 (1962), *and Valentine v. Vonteh*, 395 F.3d 626, 634-35 (6th Cir. 2000).

For an indictment to be sufficient, "the language of the statute may be used in the general description of an offense, but it must be accompanied with such a statement of the facts and circumstances as will inform the accused of the specific offense, coming under the general description, with which he is charged." *Schrimsher*, at 325, *quoting Hamling v. U.S.*, 418 U.S. 87, 117-18 (1974). In *Parker v. Commonwealth*, 291 S.W.3d 647 (Ky. 2009), the court held that naming the offense for which the defendant is indicted is usually sufficient, but noted that an unclear indictment can be clarified by a request for a bill of particulars. *Id.* at 656 n4. *See also* "Bill of Particulars" on page 20.

Facial Defects

RCr 6.10 contains the requirements for the contents of an indictment. Sometimes indictments omit or incorrectly state some part of this information. Although these defects should certainly be pointed out, they virtually never rise to the level of requiring a dismissal. Indeed, RCr 6.12 says: "An indictment...shall not be deemed invalid, nor shall the trial, judgment or other proceedings thereon be stayed, arrested or in any manner affected by reason of a defect or imperfection that does not tend to prejudice the substantial rights of the defendant on the merits."

An indictment can therefore omit the signature of the foreman of the grand jury, RCr 6.06, omit the names of the witnesses who appeared in front of the grand jury, RCr 6.08, get the caption wrong, RCr 6.10(1), get parts of the description of the offense wrong, RCr 6.10(2), contain the wrong KRS citation for the offense charged, RCr 6.10(3), or omit the date the indictment was returned in open court RCr 6.10(4). Generally speaking, pursuant to RCr 6.12 none of these defects require the dismissal of the indictment. *See, e.g.*, Abramson, *Kentucky Practice*, Vol. 8, 4th Ed., Sections 12:11 and ff. (West: 2003) pp. 312-318.

Substantive Defects

Nevertheless, it is still possible for indictments to be defective in ways which might require a remedy from the court. For example, if the indictment does not name the time, place, or alleged victim, or if it is scanty with regards to the facts alleged by the Commonwealth, then the court should grant a Bill of Particulars under RCr 6.22. *Thomas v. Commonwealth*, 931 S.W.2d 446, 450 (Ky. 1996). Since indictments are no longer fact pleadings but merely abbreviated notice pleadings, when a defendant requests a Bill of Particulars, he should be supplied freely with the details of the charges so he can prepare his defense. *Finch v. Commonwealth*, 419 S.W.2d 146 (Ky. 1967).

Indictments might also contain charges which must either be dismissed or amended, or which might require the prosecutor to elect which charge to prosecute. A few examples are given below, without an attempt to be exhaustive.

Indictment Only Charges Misdemeanors

A District Court has exclusive jurisdiction over misdemeanor charges and a Circuit Court does not have jurisdiction unless the misdemeanor charges are combined with felony charges in the indictment. If the indictment charges only misdemeanors, the charges have to be remanded to District Court. KRS 24A.110; *Keller v. Commonwealth*, 594 S.W.2d 589 (Ky. 1980). *See also* RCr 5.20, which requires indictments returning only misdemeanors to be docketed in district court.

Double Jeopardy

In addition to federal constitutional prohibition on double jeopardy, some charge combinations are barred by statute. For example, a person cannot be charged with both Forgery and Possession of a Forged Instrument, for the same instrument. KRS 516.080. Or, one charge might be a lesser included charge of another, both for the same act. *See* KRS 505.020; *Commonwealth v. Burge*, 947 S.W.2d 805 (Ky. 1996). Kentucky's statutory prohibition on double jeopardy is slightly broader but essentially the same as the federal prohibition. See KRS Chapter 505. Kentucky's constitutional prohibition is essentially the same. See KY Const. Sec. 13; *Benton v. Crittenden*, 14 S.W. 3d 1 (Ky.1999). Frequently overlooked is the possibility that a client may have already pleaded to an amended misdemeanor in district court for the same offense. *Commonwealth v. Karnes*, 657 S.W.2d 583 (Ky. 1983). *Lockhart v. Nelson*, 488 U.S. 33 (1988) and *Blockburger v. United States*, 284 U.S. 299 (1932) summarize the federal position on double jeopardy, which is more limited.

Double Enhancement

Double enhancement is a sub-species of double jeopardy violations. A common example is the case of a defendant charged with both Possession of a Handgun by a Convicted Felon and also with PFO 2nd. Each offense requires proof of at least one prior felony conviction. The principle of double enhancement says that, in order to sustain convictions on both charges, the prosecution would have to prove that the defendant had two separate prior convictions. To prove both the handgun charge and the PFO charge with a single prior conviction, and in the same proceeding, would be "double-enhancement." *Jackson v. Commonwealth*, 650 S.W.2d 250 (Ky. 1983); *Eary v. Commonwealth*, 659 S.W.2d 198 (Ky. 1983); *France v. Commonwealth*, 320 S.W.3d 60 (Ky. 2010) (involving using a prior felony sex offense to prove both persistent felony offender status and the requirement to register as a sex offender). If the indictment indicates that the Commonwealth does not have the sufficient number of prior felonies to prosecute both charges, the PFO will have to be dismissed. Remember too that, under the PFO statute, some prior felonies can merge into a single prior conviction, thus reducing the number of prior convictions available to the Commonwealth even more. KRS 532.080(4).

The big exception to this seems to be situations where there are also other charges against the defendant. In *Dale v. Commonwealth*, 715 S.W.2d 227 (Ky. 1986), one prior felony was used to prove the defendant's status as a felon for purposes

of a possession of a handgun charge, and a second prior felony was used to PFO-enhance a related robbery charge. In *O'Neil v. Commonwealth*, 114 S.W.3d 860 (Ky. App. 2003) a single prior felony was used both to prove Possession of a Handgun by a Convicted Felon and to PFO-enhance a charge of Burglary 2nd Degree. In *Oro-Jimenez v. Commonwealth*, 412 S.W.3d 174 (Ky. 2013) the Supreme Court agreed with the reasoning of the Court of Appeals in *O'Neil*. For more specifics, see "VIII. GUIDE TO KENTUCKY SENTENCING LAW" on page 112.

Date-Specific Offenses

A few statutes are very specific about the dates of offenses, and the dates of offenses included in the indictment will have to be scrutinized carefully. For example, the PFO statute requires that the prior felonies which can be used to prove PFO status have to have been served out or otherwise disposed within five years prior to the current offense. KRS 532.080(2)(c), (3)(c). Also, remember that every charge is date-specific in the sense that it is governed by the substantive law in effect at the time of the offense. *See* "CHANGE OF LAW" on page 3.

Age-Specific Offenses

Almost all of the sex offenses in KRS 510 are age-specific with regard to both the victim and the perpetrator. The indictment might, for example, charge a defendant with Rape 1st when the description of the offense would only support a charge of Rape 2nd given the date or victim alleged.

Misleading the Grand Jury

An indictment will not be dismissed simply because the Grand Jury was not presented with enough evidence or because the Grand Jury did not hear "both sides of the story." *United States v. Williams*, 504 U.S. 36 (1992); RCr 5.08; 5.10. If a prosecutor knowingly presents false, misleading, or perjured testimony, however, the court may dismiss the indictment. *Commonwealth v. Baker*, 11 S.W.3d 585 (Ky. App. 2000); *cf.*, *Caldwell v. Commonwealth*, 2008-SC-000411-MR, 2010 WL 2025124, (Ky. May 20, 2010), *unpublished*.

Amending Indictments

RCr 6.16 allows indictments to be amended "any time before verdict or finding" but the amendment cannot charge an additional or different offense nor can it prejudice the substantial rights of the defendant. Kentucky courts have read this statute broadly, however, and a prosecutor can generally amend an indictment to conform to the proof without affecting the substantial rights of a defendant, so long as the defendant is not surprised, misled, or prejudiced. *See, e.g.*, *Johnson v. Commonwealth*, 864 S.W.2d 266 (Ky. 1993); *Moran v. Commonwealth*, 399 S.W.3d 35 (Ky. App. 2013).

On the other hand, in *Stirone v. U.S.*, 361 U.S. 212 (1960), the Supreme Court held that, after an indictment has been returned, a charge cannot be broadened through amendment to include wholly additional factual allegations except by the grand jury itself. The court reasoned that the substantial right violated by allowing the amendment was "the defendant's substantial right to be tried only on charges presented in an indictment returned by a grand jury." *Id.*, at 217. As a result, counsel may object to amendments on the grounds that they would permit the Commonwealth to proceed on a theory or set of facts never reviewed by a Grand Jury, thus depriving the defendant of their rights under §12 of the Kentucky Constitution and RCr 6.02(1) to be prosecuted by indictment only.

In *Wolbrecht v. Commonwealth*, 955 S.W.2d 533 (Ky. 1997), the Commonwealth, in both the indictment and in its Bill of Particulars, had alleged that the defendants had actually killed the victim, then amended the indictment to allege that the defendants had been accomplices of some unknown shooter. The Kentucky Supreme court reversed the conviction, citing *Stirone*. See also *Commonwealth v. Ellis*, 118 S.W. 973 (Ky. 1909), quoted in *Wolbrecht*, for the proposition that a defendant has the right to rely on the fact that he will only have to rebut evidence of which he was given notice. Failure to provide discovery and the Commonwealth's last-minute change in its theory of criminal liability warranted dismissal of the indictment with prejudice in *Commonwealth v. Grider*, 390 S.W.3d 803 (Ky. App. 2012).

Indictments should correctly plead the details of any sentencing enhancements, such as prior offenses or the use of a firearm in a trafficking case. *See* "Apprendi" on page 80.

Presenting Evidence to the Grand Jury

This can be very effective. RCr 5.08 provides that a defendant may contact the Commonwealth Attorney in writing, giving notice of his request to present evidence to the grand jury. The Commonwealth Attorney then informs the grand jury of the request. However, a defendant has no constitutional right to present evidence to a grand jury. RCr 5.08 is "simply an indulgence of the court." *Stopher v. Commonwealth*, 57 S.W.3d 787, 794 (Ky. 2001).

Neither a defendant nor his attorney should contact any member of the grand jury directly, and it is generally not a good idea to have the defendant testify without careful preparation. The defendant will be put under oath (RCr 5.04) and examined by the Commonwealth Attorney (RCr 5.14) without his own attorney present, (RCr 5.18). *See, e.g.*, *Ault v. Commonwealth*, 2003-CA-002584-MR, 2005 WL 735588, (Ky. App. April 1, 2005), *unpublished*, in which the defendant, on advice from his attorney, went into the grand jury unprepared and made an awful showing, resulting in his indictment for murder. The court held that the defendant probably would have been indicted anyway, and although declaring it "unorthodox," declined to grant relief from the resulting conviction.

Sufficiency of Notice and Proof

In cases of indictments charging multiple offenses over a relatively long period of time, such as sexual abuse over a period of years, remember that when multiple offenses are charged in a single indictment, the Commonwealth must introduce evidence sufficient to prove each offense and also to differentiate each count from the others. *Miller v. Commonwealth*, 77 S.W.3d 566 (Ky. 2002); *Ruiz v. Commonwealth*, 471 S.W.3d 675 (Ky. 2015). *See also Valentine v. Vonteh*, 395 F.3d 626, 634-35 (6th Cir. 2000), in which the court described each charge as a "carbon copy" of the other, and thus held that the indictment had not given the defendant adequate notice. *But see Applegate v. Commonwealth*, 299 S.W.3d 266 (Ky. 2009) (holding that the child in that case was not required to remember specific dates and that the indictment specifying a range of time for the alleged events was sufficient).

An important statutory exception is KRS 501.100, which allows for the prosecution of a crime against a vulnerable victim in a continuing course of conduct. In *Ruiz, supra*, decided in 2015, the court lamented that in prosecutions for multiple sex offenses allegedly committed over a period of time, the state of the law required jury unanimity on which specific offenses occurred at what specific times. KRS 501.100 became effective in April of 2016 and states that the jury need not agree which specific acts occurred; they need only agree that two or more acts occurred within the specified period of time. The statute requires that the indictment "clearly charge that the crime was committed in a continuing course of conduct." The constitutionality of this statute is subject to challenge that it violates the notice requirements, jury unanimity, and the right to a meaningful review on appeal of conviction, although no litigation to date has resulted in a judicial opinion.

LIMITING INSTRUCTIONS

Appropriateness

Counsel should consider requesting limiting instructions when evidence is only admissible for a particular purpose and no others. KRE 105(a) is mandatory. It says: "...the court, upon request, shall restrict the evidence to its proper scope and admonish the jury accordingly." For example, a limiting instruction is appropriate when prior bad acts under KRE 404(b) are admitted for the limited purpose of establishing opportunity, plan, identity, etc., but not in order "to prove the character of a person in order to show action in conformity therewith." *See, e.g.*, *Bell v. Commonwealth*, 875 S.W.2d 882, 890 (Ky. 1994). Likewise, an instruction is appropriate when evidence of a prior conviction under KRE 609 is offered "for the purpose of reflecting upon the credibility of a witness." In *Lanham v. Commonwealth*, 171 S.W.3d 14 (Ky. 2005), the court ruled that a limiting instruction was required when the jury was going to listen to a tape-recorded interrogation in which the interrogating officer commented on the truthfulness of the defendant's statements.

A court is not required to give a limiting instruction *sua sponte*. It must only do so "upon request." KRE 105(a). Counsel should consider carefully whether the limiting instruction is on balance helpful or hurtful to their case, as their decision not to request one or to refuse one will likely waive the issue on appeal.

Effect on Prosecution

The important thing to remember about limiting instructions is that they also restrict the kind of argument the prosecutor can make in closing. The prosecutor will have to confine his remarks on that evidence to the purpose for which it was introduced. "[L]awyers are obligated to use such evidence only for its proper purpose during the course of a trial. For example, evidence admitted only for credibility but not a substantive purpose must be used in closing argument only in relationship to the credibility of witnesses." Robert Lawson, The Kentucky Evidence Law Handbook, 4th ed., Lexis-Nexis: 2003, § 1.05[5], p. 28. *See, e.g.*, *Zogg v. O'Bryan*, 237 S.W.2d 511 (Ky. 1951). Without an instruction, however, the evidence is admitted "without limitation." KRE 105(a).

The misuse of evidence of limited admissibility can constitute reversible error. *See Osborne v. Commonwealth*, 867 S.W.2d 484 (Ky. App. 1993). In *Osborne*, the defendant was charged with vehicular manslaughter and DUI. The prosecutor introduced the defendant's prior DUI conviction in order to prove that the DUI the defendant was charged with was actually a DUI, 2nd Offense. No limiting instruction was asked for or given. The prosecutor then urged the jury to consider the prior DUI conviction while deliberating on the manslaughter charge. The Court of Appeals ruled that it was reversible error to admit the prior DUI conviction because the defendant was not charged with DUI 2nd and because the judge admitted the evidence without a limiting instruction. The Court of Appeals also said that "...the prosecutor specifically urged the jury to consider the improper information in deliberating on Osborne's guilt on the manslaughter charge. The prosecutor's comments were inappropriate, inaccurate, highly inflammatory, and unquestionably tantamount to palpable error affecting Osborne's substantial rights." *Id*., at 489.

NOTICE OF DEFENSES

KRS 500.070(2) says simply, "No court can require notice of a defense prior to trial time." This should be understood as a statutory extension of the substantive Constitutional right of a defendant to be free from the compelled disclosure of defenses. Section 11 of the Kentucky Constitution Bill of Rights arguably prohibits a court from requiring any response to a criminal charge from a defendant other than the entry of a plea. In *L&N Rail Co. v. Commonwealth*, 66 S.W. 505 (1902), a case decided 11 years after the adoption of the current Constitution, the court, relying on the "evidence against" language in the second sentence of Section 11, held that, "[w]hether therefore, the prosecution is by penal action or indictment, a plea of not guilty, under the constitution, is the only answer that the defendant may be required to file, and puts in issue all the allegations of the petition."

Notwithstanding KRS 500.070(2), RCr 8.07 requires 90 days notice in advance of trial of intent to introduce evidence of mental illness or insanity, or assert a defense of insanity. The legislature also enacted KRS 504.070, which requires 20 days advance notice of similar information. The conflict between the statute and RCr has not been addressed in case law; counsel is advised to follow the 90 day rule in an abundance of caution unless they are openly challenging the requirement in their case. In the event that the 90 day deadline is missed, counsel may consider arguing a conflict with Section 11 of the Kentucky Constitution, due process, and other constitutional requirements.

In *Williams v. Florida*, 399 U.S. 78 (1970), the United States Supreme Court approved a Florida statute requiring the defense to give notice of the intent to introduce alibi evidence. The defendant had to disclose where and when the defendant would claim to have been and the names and contact information for any witnesses the defendant intended to call. In *Wardius v. Oregon*, 412 U.S. 470 (1973), the court ruled that it was a violation of due process to preclude defense alibi evidence for failure to give notice, when the statute did not impose a reciprocal obligation on the state to disclose its rebuttal alibi evidence. In appropriate cases, counsel may challenge conduct of the court tantamount to requiring notice of a defense on due process grounds and under Section 11 of the Kentucky Constitution.

PRETRIAL MOTIONS

Motions Which Must Be Made Before Entering a Plea

RCr 6.06 requires a certain type of objection to be raised before entering a plea to the charges. It says, "All indictments shall be signed by the foreperson of the grand jury. All informations shall be signed by an attorney for the Commonwealth. No

objection to an indictment or information on the ground that it was not signed as herein required may be made after a plea to the merits has been filed or entered." In *Stephenson v Commonwealth*, 982 S.W.2d 200 (Ky. 1998), the court imputed a waiver of the defendant's objection to the fact that the indictment was unsigned, from the defendant's failure to object to that fact prior to entering a plea. RCr 6.22 also suggests that leave of the court is required to file a motion for a bill of particulars after arraignment.

To accommodate both RCr. 6.06 and 6.22, it is customary at arraignment for defense counsel to request leave of the court to belatedly file these motions which are properly filed before entering a plea, which is liberally granted when the grounds for the motion would not be apparent on the face of the indictment.

Practice Tip: Read the Indictment Before Arraignment. Although it may be tempting to assume that the charges listed in Courtnet are correct, there are clear consequences to a client whose lawyer fails to read the indictment prior to arraignment, including waiver claims. A substantive defect in the indictment--such as an incorrectly named drug, quantity, amount, or degree--is also difficult to correct quickly due to the client's constitutional right to indictment only by a the grand jury. Even if a change in the charging instrument is only temporary, the result may be a lowered bond or pressure to let the lower charge stand.

Motions Which Must Be Made Before Trial

RCr 8.18 was originally written to encompass what were formerly motions to set aside or quash the indictment. Under the old Criminal Code, these motions also had to be made prior to entering a plea. (See above.) Effective January 1, 2015, the rule was expanded to cover motions to provide discovery, to suppress, to sever, and notice of mental health defenses. See also RCr 9.34, which requires that, "A motion raising an irregularity in the selection or summons of the jurors or formation of the jury must precede the examination of the jurors." This rule also applies to the formation of a grand jury. *Commonwealth v. Nelson*, 841 S.W.2d 628 (Ky. 1992).

Motion Deadlines

RCr 8.20 allows the court to set deadlines for motions. RCr 8.18 provides for waiver of certain issues which are not raised by the time of the deadlines, but also provides for relief from a waiver upon a showing of good cause. Counsel should be sure to consult local rules, general orders, and arraignment or trial setting orders for jurisdiction specific deadlines as well. In the event a deadline is missed, counsel should file the motion anyway and request an exception under RCr 8.18 for good cause and to vindicate the client's relevant constitutional rights. Only by actually filing the motion and all of its substantive allegations can counsel preserve the argument on appeal that the trial court should have heard the issue.

Motions In Limine

KRE 103(d) authorizes a request for a pretrial ruling on the admissibility of evidence. The rule says that the court may defer a ruling, but if the issue is resolved by an "order of record," no further objection is necessary. According to the rule, making the motion and getting a ruling will preserve the issue for appellate review.

So, if that is true, do you have to then object all over again when the evidence comes up during the trial? Maybe you do. KRE 103 notwithstanding, a motion in limine will only preserve an objection for appellate review if it meets the following criteria:

- The motion pinpoints a specific issue, i.e., it states specifically what the evidence will be and what the objection to it is,
- The motion includes a specific request,
- You get a ruling on the record, and
- Your objection at trial is the same objection as the motion in limine. If the objection at trial would be different from the one you made in limine, then the trial objection is not preserved unless you make it during trial.

See Lanham v. Commonwealth, 171 S.W.3d 14, 20-22 (Ky.2005). *Lanham* overruled in part a previous ruling in *Tucker v.*

Commonwealth, 916 S.W.2d 181 (Ky.1996), that making a motion in limine to exclude KRE 404(b) evidence did not suffice to preserve all the issues arising from that evidence where the motion did not specifically object to some of the details of the uncharged crime which were presented at the trial. According to *Tucker,* the contemporaneous objection rule in KRE 103(a)(1) required counsel to re-object. *Lanham* relaxed that requirement by specifying when a motion in limine is sufficient to preserve an issue. The best practice is simply to re-object if there is any doubt. If the objection is the same as the motion in limine, just refer the court back to that motion and the grounds for it.

Practice Tip: When the Court Defers a Decision. If the court defers a ruling on the admissibility of evidence, make sure to move the court to order that the evidence not be mentioned in opening statements. Do not forget to get a ruling later and do not accept a verbal ruling off the record. KRE 103(d) will not preserve the claim if a ruling is not made on the record or by written order.

Bill of Particulars

If the indictment does not name, e.g., the time, place, or alleged victim, or if it is scanty with regards to the facts alleged by the Commonwealth, then the court should grant a Bill of Particulars under RCr 6.22. *Thomas v. Commonwealth*, 931 S.W.2d 446, 450 (Ky. 1996); *Fitzgerald v. Commonwealth*, 403 S.W.2d 21 (Ky. 1966); *Parker v. Commonwealth*, 291 S.W.3d 647 (Ky. 2009). Since indictments are no longer fact pleadings but merely abbreviated notice pleadings, when a defendant requests a Bill of Particulars, he should be supplied freely with the details of the charges so he can prepare his defense. *Finch v. Commonwealth*, 419 S.W.2d 146 (Ky. 1967). A request for a bill of particulars can be waived once the motion has been made, if the case goes forward and the defense does not object to the failure of the Commonwealth to respond to the request. *Hampton v. Commonwealth*, 666 S.W.2d 737 (Ky. 1984), *Dunn v. Commonwealth*, 360 S.W.3d 751 (Ky. 2012).

Practice Tip: Motions for a Bill of Particulars. These motions can be excellent methods of raising factual issues in a case prior to trial, particularly where the dispute focuses on the manner of commission of a crime (i.e.: whether the defendant used a weapon or acted with another). They can also be used to compel a prosecutor to review their case and examine its weakness leading up to a plea negotiation. Although the prosecutor may respond that they are not obligated to provide the information, they will nonetheless attempt to calculate what their answer would be. Lastly, these motions may convince a court to dismiss a case for failing to allege a crime if the Commonwealth is unable to identify with specificity the conduct matching the elements of an offense. For example, in a bail jumping case under KRS 520.070 where the defendant was cited to court and failed to appear, a motion requesting the Commonwealth identify the court order which released the defendant may end the case when they are unable to provide one.

Challenges to Constitutionality

CR 24.03 states, "When the constitutionality of an act of the General Assembly affecting the public interest is drawn into question in any action, the movant shall serve a copy of the pleading, motion or other paper first raising the challenge upon the Attorney-General." *See also* KRS 418.075 and *Craft v. Commonwealth,* 483 S.W.3d 837 (Ky. 2016). Failure to follow this requirement may preclude not only appellate review of the constitutionality of the statute itself, but also review of whether the statute was unconstitutionally applied to a defendant. *Benet v. Commonwealth*, 253 S.W.3d 528 (Ky. 2008).

Dismissal

Subject to certain exceptions, a trial court has no authority to dismiss an indictment over the objection of the Commonwealth. In *Buckler v. Commonwealth*, 515 S.W.3d 670, 672 (Ky. App. 2016) the court quoted the following from *Commonwealth v. Bishop*, 245 S.W.3d 733, 735 (Ky. 2008): "[A] trial judge has no authority to weigh the sufficiency of the evidence prior to trial or to summarily dismiss indictments in criminal cases. *Commonwealth v. Hayden*, 489 S.W.2d 513, 516 (Ky. 1972); *Barth v. Commonwealth*, 80 S.W.3d 390, 404 (Ky. 2001); *Flynt v. Commonwealth*, 105 S.W.3d 415, 425 (Ky. 2003). However, there are certain circumstances where trial judges are permitted to dismiss criminal indictments in the pretrial stage. These include the unconstitutionality of the criminal statute, *Hayden*, 489 S.W.2d at 514-515; prosecutorial misconduct that prejudices the defendant, *Commonwealth v. Hill*, 228 S.W.3d 15, 17 (Ky. App. 2007); a defect in the grand

jury proceeding, *Partin v. Commonwealth*, 168 S.W.3d 23, 30-31 (Ky. 2005); an insufficiency on the face of the indictment, *Thomas v. Commonwealth,* 931 S.W.2d 446 (Ky. 1996); or a lack of jurisdiction by the court itself, RCr 8.18."

Although not specifically placed in those lists, courts have also approved of dismissals for double jeopardy constitutional violations, see "Double Jeopardy" on page 15, and similar substantive defects of the indictment. *See* "INDICTMENTS" on page 14, generally. Although a court may not dismiss an indictment simply on the grounds that probable cause does not exist, *see Bucker* and *Bishop*, *supra*, pleading the lack of probable cause in a motion to dismiss for prosecutorial misconduct appears to be allowable from the language of those cases. A court's power to dismiss an indictment over objection of the Commonwealth is part of the court's inherent supervisory authority "to manage its own affairs so as to achieve the orderly and expeditious, accurate and truthful disposition of causes and cases." *Potter v. Eli Lilly and Co.*, 926 S.W.2d 449, 453 (Ky. 1996).

The Commonwealth cannot appeal an order of dismissal when the dismissal was granted at the request of the Commonwealth, even if the Commonwealth requested the dismissal because the court made a ruling excluding evidence with which the Commonwealth disagreed. *Newkirk v. Commonwealth,* 505 S.W.3d 770 (Ky. 2017). The proper remedy for the Commonwealth when a court rules against it is an interlocutory appeal. KRS 22A.020.

Expert Funds

KRS 31.110(1)(b) requires that an indigent defendant is entitled "to be provided with the necessary services and facilities of representation, including investigation and other preparation." *Benjamin v. Commonwealth*, 266 S.W.3d 775, 788 (Ky. 2008), *Hicks v. Commonwealth,* 670 S.W.2d 837 (Ky. 1984). KRS 31.185 provides the funding mechanism for paying experts when the defendant is indigent. *Commonwealth v. Wooten*, 269 S.W.3d 857 (Ky. 2008). The burden is on the defense to present a "sufficient showing" of need for the funds. That includes "1) whether the request has been pleaded with requisite specificity; and 2) whether funding for the particularized assistance is 'reasonably necessary'; 3) while weighing relevant due process considerations." *Benjamin, supra.* It was an abuse of discretion to deny the defendant's request for funds when the only issue at trial was whether the victim died by homicide or suicide, and the defense request for a crime scene reconstructioninst was explicitly made to address that issue. *Daniel v. Commonwealth*, 607 S.W.3d 626 (Ky. 2020). KRS 31.185(2) requires the court to hold an ex parte hearing on the record to hear the defense request for funds when the defense requests such a hearing.

The defense is entitled to receive the assistance of a mental health expert who is sufficiently available to the defense and independent from the prosecution to effectively "conduct an appropriate [1] examination and assist in [2] evaluation, [3] preparation, and [4] presentation of the defense." *McWilliams v. Dunn*, 137 S.Ct. 1790, 1800 (2017), quoting *Ake. V. Oklahoma*, 470 U.S. 68, at 83 (1985). Kentucky adopted *Ake* in *Binion v. Commonwealth,* 891 S.W.2d 383 (Ky. 1995).

The defense is entitled to its own independent expert, and sending the defendant to the Kentucky Correctional Psychiatric Center (KCPC) for evaluation instead does not meet the requirements of *Ake. Conley v. Commonwealth,* 599 S.W.3d 756 (Ky. 2019).

A motion for funds should be made ex parte, KRS 31.185(2), and the defense must make a specific request and prove a "reasonable necessity" for expert assistance, *Barnett v. Commonwealth,* 317 S.W.3d 49, 56 (Ky. 2010), *Woodall v. Commonwealth*, *63 S.W.3d 104, 126 (Ky. 2001), Sommers v. Commonwealth*, 843 S.W.2d 879 (Ky. 1992), *Young v. Commonwealth,* 585 S.W.2d 378 (Ky. 1979). *See also, Hunter v. Commonwealth,* 869 S.W.2d 719 (Ky. 1994), *Crane v. Kentucky,* 476 U.S. 683 (1986). It was an abuse of discretion for the court to pre-approve an expert as "reasonably necessary," allow the defense to rely upon that ruling, and then refuse to pay the expert. *Young v. Commonwealth,* 2016-CA-000669-MR, 2018 WL 4050748, Ky. App. Aug. 24, 2018, *unpublished.*

Immunity

Closely akin to the court's power to dismiss an indictment is the statutory power to recognize immunity from criminal prosecution. KRS 503.085 provides for immunity from prosecution for the justified use of force in protecting oneself, one's property, or another person. The standard of proof is whether there is probable cause to believe that the use of force was *un*justified. If there is probable cause to believe the use of force was not justified, the prosecution may proceed. *Rodgers v.*

Commonwealth, 285 S.W.3d 740 (Ky. 2009); *Commonwealth v. Lemons*, 437 S.W.3d 708 (Ky. 2014); *Truss v. Commonwealth,* 560 S.W.3d 865 (Ky. 2018); *Commonwealth v. Bennett,* 553 S.W.3d 268 (Ky. App. 2018). KRS 218A.133 offers immunity from prosecution of only the charges of possession of a controlled substance or possession of drug paraphernalia when the person seeks medical assistance during an actual overdose or the actual overdose of another, the person remains on the scene until help arrives and the person either seeking or receiving assistance is then found to be in possession of a controlled substance or drug paraphernalia. The burden is on the defendant to show by a preponderance of the evidence that he meets the criteria for immunity. *Allen v. Commonwealth*, 2017-CA-000389-MR, 2018 WL 4523207 at 3, Ky. App. Sept. 21, 2018, *unpublished; Commonwealth v. Milner*, ---S.W.3d---, 2019 WL 5280800, Ky. App., Oct. 2019, *rev. granted* Feb 12, 2020. *But see Logsdon v. Commonwealth,* 601 S.W.3d 477 (Ky. App. 2020), in which the Court of Appeals held that the statute does not require the person who calls for medical assistance remain at the scene until help arrives, and acknowledged that this holding was against the holding in *Allen*.

Jurisdiction

Pursuant to RCr 8.18(1)(b), the two motions which can be made anytime while a case is pending are motions to dismiss based on lack of jurisdiction and on failure of the indictment to charge an offense.

Reconsider

Motions to reconsider should clearly state the new or different arguments or facts presented to the court. In *Moore v. Commonwealth*, 357 S.W.3d 470, 496-97 (Ky. 2011), the Kentucky Supreme Court dealt with the issue of filing motions to reconsider when the law and facts of the case had not changed in any relevant way. It said: "Such repetitious motions are improper. While it is true that under CR 54.02 the trial court retains broad discretion to revisit its interlocutory rulings at any time prior to the entry of a final judgment, that discretion is properly invoked only when there is a bona fide reason for it, i.e., a reason the court has not already considered. *See Tax Ease Lien Investments 1, LLC v. Brown*, 340 S.W.3d 99 (Ky. App. 2011); *Bank of Danville v. Farmers National Bank of Danville*, 602 S.W.2d 160 (Ky. 1980). Otherwise a motion to reconsider amounts to no more than badgering the court, a practice that could well be deemed a violation of Civil Rule 11. The bench and bar are admonished to take notice that this practice of filing multiple vexatious motions to reconsider is not supportable under the Civil Rules and should be discontinued."

Recusal

Judge. "KRS 26A.015(2) requires recusal when a judge has 'personal bias or prejudice concerning a party' or 'has knowledge of any other circumstances in which his impartiality might reasonably be questioned.' KRS 26A.015(2)(a) and (e), see SCR 4.300, Canon 3C(1). The burden of proof required for recusal is an onerous one. There must be a showing of facts 'of a character calculated seriously to impair the judge's impartiality and sway his judgment.' *Foster v. Commonwealth*, 348 S.W.2d 759, 760 (Ky. 1961), *cert. denied*, 368 U.S. 993 (1962), *see also Johnson v. Ducobu*, 258 S.W.2d 509 (Ky.1953). The mere belief that the judge will not afford a fair and impartial trial is not sufficient grounds for recusal. *Webb v. Commonwealth*, 904 S.W.2d 226 (Ky. 1995)." *Stopher v. Commonwealth*, 57 S.W.3d 787, 794-95 (Ky. 2001).

Judges should recuse themselves in any proceeding where they have participated in previous proceedings concerning the same defendant if the judge's impartiality may reasonably be questioned. *Small v. Commonwealth,* 617 S.W.2d 61 (Ky. App. 1981). A trial judge errs in failing to recuse themselves from challenges to prior guilty pleas where they acted as prosecutor at the time of the plea. *Carter v. Commonwealth*, 641 S.W.2d 758 (Ky. App. 1982). If a judge maintains, contrary to the record, that they reviewed the defendant's rights with the defendant at his guilty plea to a prior marijuana offense while serving as district judge, this is "personal knowledge" of the type abjured by KRS 26A.015(2)(a) and the failure to either suppress the prior conviction or recuse is an abuse of discretion. *Woods v. Commonwealth*, 793 S.W.2d 809 (Ky. 1990).

Prosecutor. See KRS 15.733. Prosecuting attorneys are subject to public reprimand when they enter into contingency fee agreements to pursue civil actions against individuals they are simultaneously prosecuting on criminal charges, *K.B.A. v. Marcum*, 830 S.W.2d 389 (Ky. 1992). They are also subject to suspension. *Kentucky Bar Ass'n v. Lovelace*, 778 S.W.2d 651 (Ky. 1989). Disqualification on retrial following remand was proper when the defendant's attorney subsequently joined the Commonwealth Attorney's office. *Brown v. Commonwealth*, 892 S.W.2d 289 (Ky. 1995).

Separate Trials

RCr 8.31 says that if a defendant or the Commonwealth will be prejudiced by the joinder of offenses or co-defendants in a single trial, the court "shall" order separate trials. However, this rule needs to be read together with RCr 6.18 and 6.20 – the rules on joining offenses and co-defendants. Since merely standing trial is itself a kind of prejudice, mere prejudice alone will not require separate trials. The joinder must be so prejudicial as to be unfair, or unnecessarily or unreasonably hurtful. An important factor for a court to consider in ruling upon a motion to sever or join is whether evidence in one offense could properly be admitted in the trial of the other. *Commonwealth v. English*, 993 S.W.2d 941, 944 (Ky. 1999); *Ratliff v. Commonwealth*, 194 S.W.3d 258 (Ky.2006). See also *Newcomb v. Commonwealth*, 410 S.W.3d 63 (Ky. 2013), in which the two alleged rapes were so similar that one could be admitted into the trial of the other for purposes of establishing a modus operandi under KRE 404(b) and therefore joinder did not prejudice the defendant. On the other hand, in *Dickerson v. Commonwealth*, 174 S.W.3d 451 (Ky. 2005), it was error to consolidate into one indictment the separate charges of violating the Sex Offender Registration Act and Possession of a Handgun by a Convicted Felon, when the two charges were unrelated. In *Hammond v. Commonwealth*, 366 S.W.3d 425 (Ky. 2012), it was reversible error to join a murder charge with unrelated charges stemming from a burglary.

"In order to justify the granting of a severance [of co-defendants], it must appear that the defendants have antagonistic defenses, or that the evidence as to one defendant tends directly to incriminate the other." *Tinsley v. Commonwealth*, 495 S.W.2d 776, 780 (Ky. 1973). *See also Rachel v. Commonwealth*, 523 S.W.2d 395 (Ky. 1975). "The movant must show that the antagonism between the co-defendants will mislead or confuse the jury." *U.S. v. Horton*, 847 F.2d 313, 317 (6th Cir. 1988). The movant satisfies this burden if he or she shows that the jury was unable "to separate and treat distinctively evidence that is relevant to each particular defendant at trial." *U.S. v. Gallo*, 763 F.2d 1504, 1525 (6th Cir. 1985), cert. denied, 475 U.S. 1017 (1986).

Perhaps the most common problems requiring severance are those which have to do with issues surrounding the U.S. Supreme Court holdings in *Bruton v. U.S.*, 391 U.S. 123 (1968) and *Crawford v. Washington*, 541 U.S. 36 (2004). Under both opinions, statements may be admissible against one co-defendant but not against another. If the Commonwealth intends to use a statement which is not redacted as required by *Bruton*, a severance might be necessary. See *Jackson v. Commonwealth*, 187 S.W.3d 300 (Ky. 2006), in which it was reversible error to refuse a motion to sever when the court ruled to admit evidence to impeach the defendant, in violation of *Crawford v. Washington*.

Practice Tip: Separate Trials. If your motion for separate trial is denied, remember to keep pointing out to the court, for the record, why the charges or co-defendants should have been severed, even into the penalty phase if necessary. *See Cosby v. Commonwealth*, 776 S.W.2d 367 (Ky. 1989), *overruled on other grounds*. In *Foster v. Commonwealth*, 827 S.W.2d 670 (Ky. 1991), the court reversed a death sentence in large part because counsel followed the denial of a motion to sever with specific mid-penalty phase objections to the prejudice caused by the joinder.

Speedy Trials

The right to a speedy trial is guaranteed by the Sixth Amendment and by §14 of the Kentucky Constitution. Each case must be reviewed on an individual basis, and the factors a court must consider are: (1) the length of the delay, (2) the reason for the delay, (3) the defendant's assertion of his right, and (4) the prejudice to the defendant. Only if the length of delay is presumptively prejudicial must the court then go on to consider the remaining factors. *Barker v. Wingo*, 407 U.S. 514, (1972). See also *Bratcher v. Commonwealth*, 151 S.W.3d 332 (Ky. 2004), for a full discussion. RCr 9.02 says that "The trials of all persons in custody under arrest shall be held as promptly as reasonably possible."

There are also two important statutory rights to a speedy trial. KRS 500.110 governs situations in which a defendant in jail in one county is also being held on a detainer from another county. KRS 440.450 is the Interstate Agreement on Detainers, governing similar situations between different states. In both cases, the defendant must be brought to trial within 180 days of giving the proper notice of his request to the proper prosecuting authority.

Practice Tip: Speedy Trials. Once a speedy trial issue is raised, make sure to (1) make all the relevant dates clear for the record, (2) do not consent to a continuance unless your client is waiving the speedy trial right (agreeing to a continuance stops the clock), and (3) move to dismiss the charges.

Suppression Hearing

RCr 8.27 includes motions to suppress alleged confessions, fruits of illegal searches, and eyewitness identifications. Motions to suppress should be made before trial and the hearing should be held outside the hearing of the jury. The rule also includes requirements regarding tendering notice of witness statements by both parties prior to the hearings. Briefs may be filed on the issues presented by the testimony either before or after the hearing. KRE 104(c), *see also Jackson v. Denno*, 378 U.S. 368 (1964). The preferred practice is for the court to make a ruling at or shortly after the suppression hearing rather than postponing the ruling for trial. See *Hayes v. Commonwealth*, 175 S.W.3d 574, 595-96 (Ky. 2005), in which it was prejudicial error to refuse to rule on the defendant's suppression motion.

While testifying in a suppression hearing, the defendant cannot be cross-examined concerning any other issues in the case. KRE 104(d), *Shull v, Commonwealth*, 475 S.W.2d 469 (Ky. 1971).

A defendant's testimony at a suppression hearing cannot be used against the defendant at trial unless the defendant testifies. A defendant is not required to make a "Hobson's choice" between establishing standing under the 4th Amendment and then being impeached with it, or maintaining his 5th Amendment right to remain silent and therefore waiving the suppression issue. *Simmons v. U.S.*, 390 U.S. 377 (1968); *Hayes*, *supra*, at 595-96. (A "Hobson's choice" is the choice between what is offered or nothing at all. It is named after Thomas Hobson (1544-1631), the keeper of a livery stable in Cambridge, England, who gave his customers one choice: buy the horse nearest to the stable door, or nothing.)

If the defendant's prior testimony at a suppression hearing is used against him as evidence of guilt in the prosecution's case-in-chief, the defendant may and must object to its use in order to maintain his Fifth Amendment right to remain silent. *Commonwealth v. Taylor*, 477 S.W.3d 592 (Ky. 2015).

Practice Tip: RCr 8.27 requires an evidentiary hearing. Make sure the facts surrounding the search go into the record, even if the defendant and the Commonwealth both stipulate to the same facts. Hearings which do not reflect the factual basis of the suppression issue, as it was presented to the trial court, leave appellate courts with nothing to rule on. You must object to not holding an evidentiary hearing. *Commonwealth v. Jones*, 217 S.W.3d 190 (Ky. 2006); *Lewis v. Commonwealth*, 42 S.W.3d 605 (Ky. 2001).

Unpublished Opinions

CR 76.28(4) says: "...unpublished Kentucky appellate decisions, rendered after January 1, 2003, may be cited for consideration by the court if there is no published opinion that would adequately address the issue before the court. Opinions cited for consideration by the court shall be set out as an unpublished decision in the filed document and a copy of the entire decision shall be tendered along with the document to the court and all parties to the action."

Venue

Venue is generally vested in the county or city in which the offense was committed. KRS 452.510. Improper venue can be waived by the defendant, so make sure that a timely motion or objection is made. RCr 8.26; KRS 452.650; *Chancellor v. Commonwealth*, 438 S.W.2d 783 (Ky. 1969); *Derry v. Commonwealth*, 274 S.W.3d 439 (Ky. 2008). A motion for change of venue must comply with KRS 452.210 and KRS 452.220. Make sure that the petition is verified and accompanied by at least two affidavits. Also, make sure that the request for a change of venue is made in a timely manner, with notice to the Commonwealth. *See Fugate v. Commonwealth*, 993 S.W.2d 931 (Ky. 1999); *Whitler v. Commonwealth*, 810 S.W.2d 505 (Ky. 1991); *Taylor v. Commonwealth*, 821 S.W.2d 72 (Ky. 1991), *overruled on other grounds*. According to *Thompson v. Commonwealth*, 862 S.W.2d 871 (Ky. 1993), a motion filed two days before trial is not timely. The motion must be renewed after voir dire. *Hodge v. Commonwealth*, 17 S.W.3d 824 (Ky. 2000). Although venue is not an element of any offense and the termination of a trial for lack of proper venue does not serve as an acquittal, the state has the burden to prove venue

in all cases, but failure to do so must be raised by the defendant with a motion to transfer to proper venue. *Turner v. Commonwealth*, 345 S.W.3d 844 (Ky. 2011).

Vindictive Prosecution

In *Yates v. Commonwealth,* 539 S.W.3d 654 (Ky. 2018), the defendant established prosecutorial vindictiveness in his retrial when his superseding indictment added additional charges or substituted more severe charges based on the same conduct charged less extensively in his first indictment. If the defendant establishes that (1) the prosecutor has a stake in deterring the defendant's exercise of his rights and (2) the prosecutors conduct was unreasonable, the a court may adopt a legal presumption that an improper vindictive motive was behind the indictment. A defendant may offer evidence of actual vindictiveness or a court can find a presumption of vindictiveness by applying the "realistic likelihood of vindictiveness" standard. If the court does not find a presumption of vindictiveness, the burden falls on the defendant to prove actual vindictiveness. The Supreme Court will presume vindictiveness only in cases in which a reasonable likelihood of vindictiveness exists. Changes in charging decisions on retrial, after the state has already uncovered and assessed the evidence against the defendant and has determined the extent of the prosecution, are much more likely to be motivated by vindictiveness than the normal kind of pretrial decisions. The remedy is dismissal of the vindictively filed charges. In *Yates,* all of his convictions on the additional charges were reversed. *Cf.*, *Commonwealth v. Perry,* 507 S.W.3d 588 (Ky. App. 2016), (finding no presumptive vindictiveness where new charges for separate conduct were added after remand from appeal).

COMMON MOTIONS AND AUTHORITY

Arraignment

- Motion to Dismiss Charges, Double Jeopardy, US 5th Amend., Ky. § 13, KRS 505
- Motion Dismiss Charges, Lack of Probable Cause on Citation, RCr 3.02(2)
- Motion to Dismiss Charges, No Review for Probable Cause within 48 Hours
- Motion to Dismiss Charges, Statute of Limitations, KRS 500.050
- Motion for an Interpreter, KRS 30A.410
- Motion for ROR Bond, RCr 4.10
- Motion for Bond to be set at "least onerous conditions", RCr 4.12
- Motion for Competency Evaluation, RCr 8.06
- Motion to Advise Defendant of Rights under the Vienna Convention
- Motion to Advise Co-defendants of Potential Conflicts, RCr 8.30(1)

Representation

- Notice of Appearance and Assertion of Rights

Preliminary Hearing

- Motion to Discharge Defendant, Proceed by Indictment Only, 10 Day Rule, RCr 3.10

Grand Jury

- Motion to Discharge Defendant, No True Bill, RCr 5.22
- Motion to Discharge Defendant, Adjournment of Grand Jury, RCr 5.22
- Motion to Discharge Defendant, Fail to Indict within 60 Days, RCr 5.22
- Request to Submit Evidence, RCr 5.08

Indictments

- Motion to Quash the Indictment, RCr 8.20, RCr 6.06
- Motion to Dismiss for Failure To State an Offense, RCr 6.10, RCr 8.18
- Motion to Dismiss for Lack of Jurisdiction, RCr 8.18
- Motion to Dismiss, Improper Venue, KRS 452.510
- Motion to Dismiss, Indictment Only Charges Misdemeanors, KRS 24A.110, RCr 5.20
- Motion to Dismiss, Statute of Limitations Has Lapsed, KRS 500.050
- Motion to Dismiss Charges Used Twice to Enhance Other Charges
- Motion to Dismiss, Double Jeopardy
- Motion to Dismiss, Improper Transfer to Circuit Court, KRS 635.020
- Motion to Dismiss, Improper Automatic Transfer to Circuit Court, *Apprendi v. N.J.*
- Motion to Dismiss, Statute Unconstitutional, CR 24.03, KRS 418.075
- Motion to Dismiss, Improper Formation of Jury Pool, Grand Jury, KRS 29A.040

Bill of Particulars

- Motion for Bill of Particulars, RCr 6.22

Multiple/Joined Counts

- Motion for Severance (of multiple counts), RCr 9.16, RCr 6.18, RCr 6.20

Co-Defendants

- Motion for Severance (of the joined trial), RCr 9.16, RCr 6.18, RCr 6.20
- Motion to Redact Statement of Co-defendant
- Motion to Exclude Statement of Non-Testifying Co-Defendant, *Crawford v. Washington*

Change of Venue

- Motion for a Change of Venue, KRS 452.210, KRS 452.230

Recusal

- Motion to Recuse, Judge, KRS 26A.015(2)
- Motion to Recuse, Prosecutor, KRS 15.733

Speedy Trial

- Notice of Assertion of Right to a Speedy Trial, 6th Amend., Ky Const. § 14
- Motion to Dismiss for Lack of Speedy Trial, see also KRS 500.110 and KRS 440.450

Jury Trial

- Motion for a Jury Trial in Petty Offenses, KRS 29A. 270(1), RCr 9.26(1)

Bench Trial

- Motion for a Bench Trial / Waiver of Jury Trial, RCr 9.26(1)
- Motion to Dismiss (directed verdict), CR 41.02(2)

Adversarial Bond Hearing
- Motion for Adversarial Bond Hearing, RCr 4.40(1)

Suppression of Evidence
- Motion for Suppression Hearing, RCr 8.27, 8.18, KRE 104(c)

Evidence
- Motion to Preserve
- Motion to Inspect Evidence Held by the Commonwealth
- Motion for Defense Testing of Evidence

Continuance
- Motion for Continuance w/ Affidavit, showing of Due Diligence, RCr 9.04
- Motion for Continuance, Discovery Violation, RCr 7.24(9)
- Recognizance of Witnesses, RCr 3.20

Discovery
- Discovery Inventory
- Motion to Opt Out of Automatic Reciprocal Discovery As Normally Ordered by the Court
- Motion to Compel Discovery, RCr 7.24
- Motion to Dismiss for Discovery Violations, RCr 7.24(9)

Depositions
- Motion to Depose Witness, RCr 7.06, et seq.

Witnesses
- Motion to Close Proceedings
- Motion to Separate Witnesses under The Rule, KRE 615
- Motion for Competency Hearing, KRE 601, 602

Experts
- Ex Parte Motion for Funds, KRS 31.185
- Motion for a *Daubert* Hearing

Competency
- Motion for a Competency Evaluation, RCr 8.06
- Motion for Defense Expert
- Ex Parte Motions for Funds, KRS 31.185

Counseling Records
- Motion for in camera Review of Counseling Records

Motions In Limine
- Motion to Exclude on Grounds that Evidence Will not Help the Jury Find the Truth, Will be Needlessly Repetitive, Mislead or Confuse the Jury, Unduly Prejudicial, KRE 102, KRE 611(a)(i), KRE 403
- Motion to Exclude Hearsay, Improper Bolstering
- Motion to Exclude Social Worker Hearsay
- Motion to Exclude Investigative Hearsay
- Motion to Exclude Hearsay in the Form of Prosecution Charts or Exhibits
- Motion to Exclude Co-Defendant Hearsay, Crawford v. Washington
- Motion to Redact Hearsay on Audio or Video
- Motion to Exclude Prosecution Transcripts of Audio or Video
- Motion to Exclude Improper Rebuttal Evidence, RCr 9.42
- Motion to Require Commonwealth to Elect Charges (double enhancement)
- Motion to Exclude Improper Closing Argument

Avowals
- Motion to Make an Avowal, KRE 103(a)(2)

Jurors
- Motion to Dismiss Improperly Formed Jury Pool, KRS 29A.040
- Motion to Strike, RCr 9.36(1), KRS 29A.290(2)(a)
- Motion for Additional Defense Peremptory Strikes, RCr 9.40, KRS 29A.280(1)
- *Batson* Challenge to Prosecution Use of Peremptory Strikes
- Notice of Jurors Defense Would Have Struck with Peremptories if Other Jurors Had Been Properly Struck for Cause
- Motion to Sequester, RCr 9.66
- Motion to Transfer Jurors to Crime Scene

- Motion to Voir Dire Juror on Improper Contact with Witnesses, KRS 29A.310(2)
- Motion to Poll the Jury, RCr 9.88

Directed Verdict

- Motion for Directed Verdict, End of Prosecution Case, permitted, CR 50.01
- Motion for Directed Verdict, End of All Evidence, mandatory, CR 50.01
- Objection to Giving Instructions on Greater Charge when Proper Charge is a Lesser Included Offense and Defense Tenders Instructions on Lesser Included Offense
- Motion for Judgment Notwithstanding the Verdict, RCr 10.24 (a renewed motion for directed verdict, within 5 days of verdict)

Instructions

- Presumption of Innocence (mandatory), RCr 9.56(1)
- Motion to Instruct on Defendant Not Testifying, RCr 9.54(3)

Sentencing

- Motion for Directed Verdict, PFO, CR 50.01
- Motion to Waive PSI, Defendant in Custody, RCr 11.02(1)
- Motion to Amend PSI, KRS 532.050(6)
- Motion to Inspect Victim Impact Statements, RCr 7.26
- Motion to Specify the Defendant is Not a Violent Offender or Offense Did Not include Serious Physical Injury, KRS 439.3401(1)

Judgments

- Motion to Amend Judgment, CR 60.01

New Trial

- Motion for New Trial, RCr 10.06, CR 59.01, CR 60.02

Appeals

- From District Court Ruling on Bail, RCr 4.43(2), KRS 419
- From District to Circuit, CR 72
- From Circuit Court Ruling on Bail, RCr 4.43, CR 76.06, CR 76.12
- Motion to Stay Execution of Sentence, RCr 12.76
- Motion for Bail, RCr 7.28
- Motion / Order to Proceed *in forma pauperis*, KRS 453.190, KRS 31.110(2)(b)
- Notice of Appeal, RCr 12.04
- Motion for Extension of Time, CR 73.08
- Designation of Record
- Motion to Photograph Large Exhibits for Appellate Record, CR 75.07(3)

Juvenile

- Motion to Proceed under the Rules of Criminal Procedure, KRS 610.015(1)
- Motion to Exclude Persons from Proceedings, KRS 610.070(3)
- Motion for a Jury Trial
- Motion for Review of DJJ Custody
- Motion to Waive Disposition
- Motion for Competency Evaluation, RCr 8.06
- Ex Parte Motion for Funds, KRS 31.185
- Appeal of District Court Disposition, KRS 610.130

Habeas Corpus

- Petition for Writ of Habeas Corpus Seeking Release of Individual Detained without Due Process, KRS 419

Writs of Prohibition, Mandamus

- To Circuit Court Against District Court, CR 81
- To Court of Appeals Against Circuit Court, CR 76.36
- Against Custodians of Prisoners or Hospitals, KRS 419, KRS 202A.151
- ***Against an Administrative Body, CR 81***

PUBLIC TRIAL/CLOSED PROCEEDINGS

In some instances, a defendant may wish that court proceedings be open to the public, in other instances he or she may wish them to be closed. Here is the law applicable to various situations:

Proceedings to Remain Open.

The right to a public trial is explicit in both the 6th Amendment to the U.S. Constitution and Section 11 of the Kentucky Constitution. "The requirement of a public trial is for the benefit of the accused, that the public may see he is fairly dealt with and not unjustly condemned, and that the presence of interested spectators may keep his triers keenly alive to a sense of their responsibility and to the importance of their functions." *Waller v. Georgia,* 467 U.S. 39, 46 (1984). The defendant must object to closed proceedings. The defendant waived his appellate argument that he was deprived of his right to a public trial when he failed to object when the trial court cleared the courtroom when the victim testified. *Crutcher v. Commonwealth,* 500 S.W.3d 811 (Ky. 2016). If the court is about to consider closing the proceedings over the objection of the defendant, the court must consider three factors and then make findings adequate to support closure of the proceedings. The factors are: (1) whether the party seeking to close the proceedings has an overriding interest that is likely to be prejudiced, (2) what the narrowest method of protecting that interest is, and (3) whether there are reasonable alternatives to closing the proceedings. *Crutcher,* at 814.

Gag Orders.

Any order imposing a prior restraint on 1st Amendment freedoms is presumptively void and may be upheld only on a showing that the exercise of 1st Amendment rights will interfere with the rights of the parties to a fair trial. A court must find there is a reasonable likelihood of material prejudice to the defendant, consider less restrictive prophylactic measures (change of venue, extensive voir dire, sequestration of jurors), and limit the scope of the injunction against speaking to only matters which would not otherwise be open to the public before trial or become open to the public during trial. *James v. Himes,* 63 S.W.3d 602 (Ky. App. 1999)

Proceedings to be Closed.

The court must conduct a hearing at which any member of the public or press who objects to closing the proceedings must be allowed to be heard. The burden of proof is on the defendant seeking closure. The defendant must show (1) that the right or interest he wishes to protect is important enough to justify the extraordinary measure of closing the proceedings (the right to neutral jury qualifies as such an interest), (2) the right or interest cannot be protected by any less restrictive alternatives, (3) it is probable that the right or interest will indeed be protected by closure. The court must make findings justifying closure. *See Lexington-Herald-Leader Co., Inc. v. Meigs,* 660 S.W.2d 658, 663-664 (Ky. 1983). *See also WPSD TV v. Jameson,* 552 S.W.3d 93 (Ky. App. 2018).

RIGHT TO TRIAL: JUDGE OR JURY

There is no constitutional right to a jury trial in the case of "petty" offenses (generally, those which carry 6 months or less in jail). Nevertheless, KRS 29A.270(1) gives a defendant the statutory right to a jury trial in "all criminal prosecutions, including prosecutions for violations of traffic laws, in Circuit and District Courts." The statute should then be interpreted as placing the burden on the accused to request a jury trial in the case of petty offenses. *Commonwealth v. Green*, 194 S.W.3d 277 (Ky. 2006). Even for a trial on a petty offense, once a defendant requests a jury trial, the jury can only be waived with the consent of the Commonwealth. *Commonwealth v. Green*, 194 S.W.3d 277 (Ky. 2006).

The Commonwealth must agree to waiver of a jury trial under RCr 9.26(1). A defendant's waiver must be in writing, and the written waiver is presumed to establish the voluntariness of the waiver for *Boykin* purposes, so that the trial court does not have to inquire further. *Marshall v. Commonwealth*, 60 S.W.3d 513 (Ky. 2001).

According to *R.S. v. Commonwealth*, 423 S.W.3d 178 (Ky. 2014), the proper motion for a directed verdict in a bench trial is a motion to dismiss under CR 41.02(2). The rule does not require that all evidence be evaluated in the light most favorable to the prosecution, but instead permits weighing of the evidence by the court. Dismissal of charges after a bench

trial, under this rule or otherwise on the merits of the evidence, serves as an acquittal for purposes of double jeopardy. *Commonwealth v. Angus*, 450 S.W.3d 719 (Ky. App. 2014).

SCIENTIFIC OR EXPERT TESTIMONY

Legal Standard

A proper analysis of admitting expert testimony begins with KRE 702. It says: "If scientific, technical, or other specialized knowledge will assist the trier of fact to understand the evidence or to determine a fact in issue, a witness qualified as an expert by knowledge, skill, experience, training, or education, may testify thereto in the form of an opinion or otherwise." This rule includes three important requirements: (1) the witness is indeed a qualified expert, (2) the testimony to be offered is valid, and (3) the testimony will "assist the trier of fact."

Daubert v. Merrell Dow Pharmaceuticals, 509 U.S. 579, (1993), concerns itself with the second requirement: what is valid scientific evidence? The criteria to be considered include: (1) Can it be or has it been tested? (2) Has it been subject to peer review and publication? (3) Is the potential error rate known? (4) Do standards and controls exist? (5) Is it generally accepted within the scientific community? The factors were not meant to be exhaustive and do not all necessarily apply to every type of testimony. *Id*.

Daubert was expanded to include technical and other specialized knowledge as well in *Kumho Tire Co. v. Carmichael*, 526 U.S. 137 (1999). Although *Daubert* and *Kumho* only applied to federal courts and some states did not adopt either decision, Kentucky adopted *Daubert* in *Mitchell v. Commonwealth*, 908 S.W.2d 100 (Ky. 1995) and *Kumho Tire* in *Goodyear Tire and Rubber Co. v. Thompson*, 11 S.W.3d 575 (Ky. 2000). *Kumho Tire* held that "... choosing which factors to apply and the weight to give each factor are matters of trial court discretion." *Id*. at 139.

If the requirements of KRE 702 are satisfied, then the evidence is also then weighed under KRE 401 (Relevant Evidence Admissible) and 403 (Exclusion Based on Prejudice), especially on the issue of whether the testimony will confuse or mislead the jury, or be a waste of time. The court included the elements of all these rules in its analysis in *Stringer v. Commonwealth*, 956 S.W.2d 883, 891 (Ky. 1997), which also allowed expert opinion on ultimate issues: "We now once again depart from the 'ultimate issue' rule and rejoin the majority view on this issue. Expert opinion evidence is admissible so long as (1) the witness is qualified to render an opinion on the subject matter, (2) the subject matter satisfies the requirements of *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, (3) the subject matter satisfies the test of relevancy set forth in KRE 401, subject to the balancing of probativeness against prejudice required by KRE 403, and (4) the opinion will assist the trier of fact."

An "ultimate issue" is one on which the trier of fact is requested to make a finding; for example, whether the defendant's speeding was the cause of the accident, or whether the drugs in the defendant's possession were being held for sale. *See Commonwealth v. Alexander*, 5 S.W.3d 104, 106 (Ky. 1999) (finding no error where expert testified that the defendant's speed was the cause of the accident because testimony did not invade the province of the jury who could still have decided the defendant was not guilty on other grounds).

Declaring a Witness an Expert

Unlike in many other jurisdictions, a Kentucky court should hear challenges to the qualification of an expert under KRE 702 outside of the hearing of the jury and there should be no declaration that the witness is an expert to the jury. *Luttrell v. Commonwealth*, 952 S.W.2d 216 (Ky. 1997); *Applegate v. Commonwealth*, 299 S.W.3d 266 (Ky. 2009). See also "Challenging Expert Testimony" on page 32. The manner in which the expert can give his testimony is governed by KRE 705.

Curriculum Vitae and Resumes

The admissibility of experts' *curriculum vitae* or resume is doubtful and may be attacked in appropriate cases. The Court of Appeals has held that such documents are relevant in a case where they declined to reach additional unpreserved claims that the documents were cumulative or inadmissible hearsay. *Yates v. Commonwealth*, 586 S.W.3d 249 (Ky. App. 2019). Although dicta, the court added: "courts have regularly excluded resumes or *curriculum vitae* as inadmissible hearsay." *Id*.

at 252, n5, *citing Hosse v. Sumner County Bd. Of Educ*., 2018 WL 1382539, at *3 (M.D. Tenn. Mar. 19, 2018) (containing a summary of such cases).

Right to Cross-examine Experts in Person

In *Melendez-Diaz v. Massachusetts*, 557 U.S. 305 (2009), the Supreme Court ruled that 1) the reports of the lab analysts were testimonial statements covered by the Confrontation Clause of the Sixth Amendment, 2) the analysts were not removed from coverage of the Confrontation Clause on the theory that they were neutral, scientific, non-accusatory witnesses, 3) the defendant's ability to subpoena the lab analysts did not relieve the state of its obligation to produce the analysts for cross-examination. *See also Bullcoming v. New Mexico*, 564 U.S. 647 (2011). It does not satisfy the requirements of *Melnedez-Diaz* or *Bullcoming* when the state calls a different analyst than the one who actually performed the test and signed the report. *Stuart v. Alabama,* 586 U.S. ____, 139 S.Ct. 36 (2018). Kentucky recognizes the application of *Melendez-Diaz*. The lab technician's report was testimonial and admission of it violated the defendant's 6th Amendment right to confront in *Peters v. Commonwealth*, 345 S.W.3d 838 (Ky. 2011). The admission of a report from the state crime laboratory without live testimony from the report's author violated the defendant's right to confront, requiring reversal in *Whittle v. Commonwealth*, 352 S.W.3d 898 (Ky. 2011), and *Manery v. Commonwealth*, 492 S.W.3d 140 (Ky. 2016). Introduction of a report from an out-of-state laboratory denied the defendant's right to confrontation in *Bowling v. Commonwealth,* 553 S.W.3d 231 (Ky. 2018).

Experts and Discovery

RCr 7.24(3)(a) requires the defense to disclose "a written summary of any expert testimony that the defense intends to introduce at trial" when it has first requested and received that same information from the Commonwealth, if there is any, and when the Commonwealth makes a written request. This part of the rule took effect January 1, 2011. Any court opinions prior to this date which hold that expert opinions do not have to be divulged are abrogated. *See, e.g.*, *Terry v. Commonwealth,* 332 S.W.3d 56 (Ky. 2010).This is true whether the expert generates a report or not. RCr 8.07 delineates discovery obligations when the defense intends to present a defense of insanity (criminal responsibility), or who intends to introduce evidence regarding insanity or any mental condition bearing on either issues of guilt or punishment or both. Generally, notice to the Commonwealth 90 days prior to trial is required. On motion of the Commonwealth, the court shall then order the defendant to be examined and may order the exclusion of the defense evidence if the defendant does not cooperate. See "NOTICE OF DEFENSES" on page 18

A defendant is unfairly surprised when the Commonwealth's expert testifies based on a premise not formerly disclosed to the defendant. In *Barnett v. Commonwealth*, 763 S.W.2d 119 (Ky. 1988), the serologist speculated during testimony that the defendant had washed blood off his hands, despite no prior notice of this testimony being given the defense. The court reversed for the resulting conviction for a violation of RCr 7.24(1)(b) which requires the Commonwealth, on written request, to turn over to the defense any reports generated by its experts as the result of experiments or examinations conducted by the expert.

The defense is required to disclose the names of their experts, a summary of their qualifications, and the bases and reasons for their opinions , if they intend to call the expert and have requested and received the Commonwealth's experts' summary of the same. RCr 7.24 (3)(a). The defense is not required to have their expert generate a report if one does not already exist. *Commonwealth v. Nichols*, 280 S.W.3d 39 (Ky. 2009). In *George v. Commonwealth*, 2001-SC-1067-MR, 2003 WL 22227195 (Ky. Sept. 18, 2003), *unpublished*, the court held that the failure of the Commonwealth to disclose the substance of a pathologist's planned testimony as to the cause, nature, and extent of the victim's injuries was reversible error, even though the older version of RCr 7.24 that it was interpreting did not specifically require it. The court reasoned that the practice denied the defendant "even the possibility of adversarial testing" of the expert's opinions and thus was unfair.

Admissibility of Specific Forms of Expert Testimony

Reliable science contradicting popular misconceptions about police interrogation tactics should be admissible. *Terry v. Commonwealth*, 332 S.W.3d 56 (Ky. 2010). Expert testimony on improper interviewing techniques is admissible. *Jenkins v. Commonwealth*, 308 S.W.3d 704 (Ky. 2010). Expert testimony on the reliability of eyewitness identification is admissible. *Commonwealth v. Christie*, 98 S.W.3d 485 (Ky. 2002). There is no blanket prohibition on the admissibility of expert testimony

on the scientific phenomenon of false confessions, and it is likely admissible in cases where it would assist the trier of fact in evaluating a purported confession. *Tigue v. Commonwealth,* 600 S.W.3d 140 (Ky. 2019) (detailing appropriate analysis in case-by-case analysis).

The court's refusal to allow the defendant to present expert testimony as to the defendant's level of intoxication was reversible error in *Weaver v. Commonwealth*, 298 S.W.3d 851 (Ky. 2009).

It is improper to allow a drug recognition expert to testify when the testimony is not based on personal observations. *Burton v. Commonwealth*, 300 S.W.3d 126 (Ky. 2009). The probative value of urinalysis results is substantially outweighed by the danger of undue prejudice if it cannot be temporally connected with an alleged offense. *Id*. at 132-137 (holding that admission of the evidence of a positive marijuana/cocaine which did not show impairment during a motor vehicle crash was inadmissible during manslaughter prosecution). It is reversible error to allow testimony regarding shaken baby syndrome after refusing to hold a *Daubert* hearing. *Hamilton v. Commonwealth*, 293 S.W.3d 413 (Ky. App. 2009).

Some attempts have been made to prohibit defense experts from testifying because they are not licensed in Kentucky or in some other way. In *Lukjan v. Commonwealth*, 358 S.W.3d 33 (Ky. App. 2012), for instance, the Commonwealth attempted to block the testimony of an arson defense expert from Eastern Kentucky University on the grounds that he was not licensed as a private investigator. (Among the services offered by licensed private investigators is the "obtaining or furnishing information with reference to … [t]he cause or responsibility for fires…[.] KRS 329A.010(4)(d).") In that case, the court ruled that KRE 702, governing the admissibility of expert testimony, has no licensing requirements and that the exclusion of the expert witness' testimony was not harmless, requiring reversal.

Challenging Expert Testimony

Under *Daubert*, the burden of proving the scientific validity of the proposed evidence is on the proponent of the evidence. Nevertheless, the Kentucky Supreme Court took judicial notice of the scientific validity of a number of types of scientific inquiry in *Fugate v. Commonwealth*, 993 S.W.2d 931 (Ky. 1999) (PCR and RFLP based DNA testing), and *Johnson v. Commonwealth*, 12 S.W.3d 258 (Ky. 1999) (microscopic hair comparison, breath testing to determine blood alcohol level, HLA blood typing in paternity tests, fiber analysis, ballistics analysis, fingerprint analysis). In the case of these types of testimony, the court need no longer hold a *Daubert* hearing, and the burden is on the challenger .

Nevertheless, counsel should continue to make *Daubert* challenges on these issues, many of which have since been widely debunked. Ten years after *Johnson* was decided the National Academy of Sciences issued a scathing review of the scientific reliability of every one of the most common forms of forensic science. Only DNA typing was excepted. *See* "Strengthening Forensic Science in the United States: A Path Forward," National Academy of Sciences, 2009; "Forensic Science in Criminal Courts: Ensuring the Scientific Validity of Feature-Comparison Methods," President's Council of Advisors on Science and Technology, September 2016. As it stands, the *Johnson* opinion continues to permit the admission of evidence which has come under very harsh criticism. *See* Andrea Kendall, "The Reliability and Admissibility of Forensic Science Evidence in Kentucky," The Advocate, December, 2013 available at http://dpa.ky.gov. In *Meskimen v. Commonwealth*, 435 S.W.3d 526, 535 (Ky. 2013), the court warned that although case law may be in acceptance of certain methods of forensic analysis, it is still the job of the court to "stay abreast of currently accepted scientific methods."

Notable cases involving forensic science testimony since *Johnson* include, *e.g.*, *Ragland v. Commonwealth*, 191 S.W.3d 569 (Ky. 2006), in which the case was remanded for retrial, in part, because the *Daubert* analysis conducted by the trial court did not include a consideration of the scientific reliability of the expert's conclusions regarding comparative bullet analysis. In *McIntire v. Commonwealth*, 192 S.W.3d 690 (Ky. 2006), the defendant's conviction was reversed because the expert testified outside her range of expertise. The court ruled that she was not qualified to give an "expert" opinion to the effect that a non-abusing parent would have had to have been aware of the fact that the child was being abused.

For more detailed discussion of *Daubert* cases in Kentucky, see the Department of Public Advocacy Evidence Manual, 8th Edition, August, 2017, available at http://dpa.ky.gov.

Practice Tip: Using the NAS and PCAST. *Johnson*, *supra*, includes on its list of per se admissible disciplines several areas of scientific testimony that are all but completely discredited in the relevant scientific community. For example, these reports, and expert testimony interpreting them, can be used to show how hair-comparison and fiber-comparison should not admitted under the *Daubert* factors. Many of the holdings of Johnson are simply ripe for attack in the correct case, and counsel should not assume that legal admissibility based on precedent is an unchangeable feature of an expert discipline.

STIPULATIONS

Stipulations should be in writing, but it is not necessarily fatal if they are not. *Clark v. Commonwealth*, 418 S.W.2d 241, 242 (Ky. 1967). The judge sometimes publishes the stipulation to the jury.

Stipulating to issues the opponent is not prepared to prove

Be aware that stipulating to part of the Commonwealth's case will have the effect of waiving that issue on appeal. In *Harris v. Commonwealth*, 2005-SC-000878-MR, 2007 WL 3226193, Ky. Nov. 1, 2007, *unpublished*, the defendant who stipulated to chain of custody could not later raise the issue on appeal.

Stipulating to issues the opponent is prepared to prove

Sometimes attorneys attempt to stipulate to an issue in order to keep an opponent's evidence out. The theory is that once a party stipulates to an issue, the production of further evidence on the issue is just cumulative, and therefore more prejudicial than probative under KRE 403. See *Old Chief v. U.S.*, 519 U.S. 172 (1997), in which the U.S. Supreme Court held that it was reversible error for the trial court to refuse the defendant's stipulation to the prior conviction element of the charged offense and to then allow the prosecution to show not only the fact of the prior offense, but the specific nature of it as well. Kentucky adopted *Old Chief* in *Anderson v. Commonwealth*, 281 S.W.3d 761 (Ky. 2009), in which the court ruled that the defendant should have been allowed to stipulate to his prior convictions in a trial for possession of firearm by a convicted felon, the evidence of the nature of the prior convictions being less probative than prejudicial under KRE 403. The court erred when it refused to allow the defendant to stipulate to his status as a convicted felon in *Ward v. Commonwealth,* 568 S.W.3d 824 (Ky. 2019).

Remember, however, that the Commonwealth does not have to accept a stipulation: "the prosecution is permitted to prove its case by competent evidence of its own choosing, and the defendant may not stipulate away the parts of the case that he does not want the jury to see." *Johnson v. Commonwealth*, 105 S.W.3d 430 (Ky. 2003), quoting *Barnett v. Commonwealth*, 979 S.W.2d 98, 103 (Ky. 1998). Moreover, if the Commonwealth does not accept the offer to stipulate, the mere fact that the defendant *offered* to stipulate will not preserve an error under KRE 403. *Johnson*, at 439. Instead, the defense must also object to the introduction under KRE 403 and/or other grounds.

SUBPOENAS

A witness in a criminal trial can only comply with a subpoena by appearing in court, and cannot be excused by an attorney. Once a witness is subpoenaed for trial, by either side, he has "a continuing obligation...to be available as a witness until the case was concluded or until he was dismissed by the court." *Anderson v. Commonwealth*, 63 S.W.3d 135, 142 (Ky. 2002), quoting *Otis v. Meade*, 483 S.W.2d 161, 162 (Ky. 1972). In *Anderson*, the Commonwealth Attorney knew that the defendant was relying on the testimony of a subpoenaed prosecution witness and excused the witness without informing either the defendant or the court.

Refusal to comply with a subpoena is punishable as contempt of court, KRS 421.110, RCr 7.02, a warrant of arrest may be issued, KRS 421.130, RCr 7.02, and a special bailiff may even be authorized to arrest persons who are in another county, KRS 421.135, RCr 7.06. A prosecutor may not facilitate their trial preparation by summoning defense witnesses to the grand jury. *Bishop v. Caudill*, 87 S.W.3d 1 (Ky. 2002). It is similarly an abuse of subpoena power to compel a witness in a criminal case to attend pretrial interviews in the attorney's office. Subpoenas can only be used to require a witness's

attendance at a formal judicial proceeding. "The government may not use trial subpoenas to compel prospective trial witnesses to attend pretrial interviews with government attorneys." *Hillard v. Commonwealth*, 158 S.W.3d 758, 764 (Ky. 2005), quoting *U.S. v. LaFuente*, 991 F.2d 1406, 1411 (8th Cir. 1993). *See also* Ethics Opinion E-423 (OPINION) adopted by the KBA Board of Governors in January 2004 and published in the March 2004 issue of the Kentucky Bench and Bar, amended by *Stengel*, below.

It is an abuse of subpoena duces tecum power to compel the production of documentary or other tangible objects to the office of an attorney when other parties receive no notice and the issuance of the subpoena was not in connection with a deposition or court proceeding, requiring sanctioning with a public reprimand. *Megibow v. K.B.A.*, 173 S.W.3d 618 (Ky. 2005). CR 45.01 states: "Subpoenas may not be used for any purpose except to command the attendance of the witness and production of documentary or other tangible evidence at a deposition, hearing or trial." See also Ethics Opinion E-140, March, 1976 in which the use of subpoenas for ex parte investigation is prohibited. (KRS 500.120, authorizing the use of subpoenas in the investigation of Internet exploitation of children, is an example of an exception to this rule. See OAG 15-021, 2015 WL 9647504, on the use of "criminal investigative subpoena duces tecum" prior to the initiation of prosecutions.)

KRS 422.305 is the medical exception in cases of subpoenaed documents and requires that both sides get a copy. RCr 5.06, concerns the use of subpoenas in grand jury proceedings, and was amended by order in *Stengel v. K.B.A.*, 162 S.W.3d 914 (Ky. 2005). The rule allows individuals to produce books, papers, documents and other materials without having to appear before the grand jury in person.

PRESERVING A CLEAR RECORD ON APPEAL

You will have a lot to think about in any trial, but try to remember the following: (1) If it cannot be seen or heard on the record, or reconstructed by the written record, it did not happen. All gaps in the record will be presumed to support the decision of the trial court. *Whaley v. Commonwealth,* 567 S.W.3d 576 (Ky. 2019). (2) Watch for dead spots in audio recording and blind spots in video recording. Know where your microphones are and where the cameras are aimed. Do not create a dead spot at counsel table by blocking microphones with books and shuffling papers. (3) Bench conferences: speak up! In courtrooms with modern sound systems, the white noise you hear when the amplifiers go off will stop the jury from overhearing what you have to say. If the judge is too far away from the microphone or is whispering, restate the judge's ruling into the microphone. (4) If the video record will not capture which juror is responding to a question during voir dire, identify the juror by juror number or name as you respond to the juror. Do the same when making a motion for a strike for cause.

II. THE JURY PANEL AND CALLING JURORS

PROCEDURE FOR SELECTING A JURY POOL

The master list of prospective jurors includes all persons in the county who are over 18 and have a license, all those persons on the county's voter registration lists, and all those persons whose tax returns show them to be residents of the county. AOC must create a master list "at least annually." Administrative Procedure of the Court of Justice, APCJ II, Sec. 2. The AOC then uses the "Jury Management Program," a "centralized electronic system," to generate a randomized list of potential jurors from the master list, and the chief circuit judge then takes as many names as needed off the list in sequence. APCJ II, Sec. 3 and 5. The people are then summonsed and become the jury pool for that county.

APCJ II, sec. 6, and KRS 29A.060(3) govern the procedure for contacting jurors for jury service and requiring that they make themselves available for "thirty (30) judicial days thereafter."

Failure to Follow the Procedure

Failure to follow the procedure can require dismissal of the indictment when it involves a grand jury, *Gill v. Commonwealth*, 374 S.W.2d 848 (Ky.1964), *Fugate v. Commonwealth*, 233 S.W.2d 1019 (Ky.1950), or the granting of a new trial when it involves a petit jury, *Williams v. Commonwealth*, 71 S.W.2d 626 (Ky.1934).

RCr 9.34 requires that, "A motion raising an irregularity in the selection or summons of the jurors or formation of the jury must precede the examination of the jurors." *See Stroud v. Commonwealth*, 922 S.W.2d 382 (Ky. 1996); *McQueen v. Commonwealth*, 339 S.W.3d 441 (Ky. 2011), *overruling Bowling v. Commonwealth,* 942 S.W.2d 292 (Ky. 1997). This rule applies to grand juries as well as petit juries. *Commonwealth v. Nelson*, 841 S.W.2d 628 (Ky. 1992); *Johnson v. Commonwealth*, 292 S.W.3d 889 (Ky. 2009) (discussing the proof which must be offered to sustain a claim of systematic exclusion of racial minorities from jury pools). The exception is when the defendant could not have discovered the irregularities by due diligence prior to the time of trial. *Allen v. Commonwealth*, 901 S.W.2d 881 (Ky. App. 1995); *Bartley v. Loyall*, 648 S.W.2d 873 (Ky. App. 1982); *McQueen*, *supra*.

Note: In both *Commonwealth v. Nelson*, 841 S.W.2d 628 (Ky. 1992) and *Allen v. Commonwealth*, 901 S.W.2d 881 (Ky. App. 1995), the courts ruled that a judge cannot delegate the responsibility of reviewing juror qualification forms and disqualifying those jurors who fall under the criteria of KRS 29A.080(2). At the time of those decisions, both APCJ II, Sec. 8 and KRS 29A.080(1) required the determination to be made by a judge. However, both KRS 29A.080(1) and APCJ II, Sec. 8 were subsequently amended and now allow those determinations to be delegated to court administrators and clerks.

Fair Cross-Section, Objecting to the Procedure Itself

A defendant has a Sixth Amendment right to a jury which represents a fair cross-section of his community. *Duren v. Missouri*, 439 U.S. 357 (1979). An objection to the composition of a jury pool based on the due process right to a fair cross-section must show that: (1) the group allegedly excluded is a distinctive group in the community, (2) the representation of that group in the venires from which the jury is selected is not fair and reasonable in relation to the numbers of other persons in the community, and (3) the under-representation is due to the systematic exclusion of the group in the jury selection process. *Ford v. Commonwealth*, 665 S.W.2d 304 (Ky. 1984), *cert denied*, 469 U.S. 984; *Smith v. Commonwealth*, 734 S.W.2d 437 (Ky. 1987); *Rodgers v. Commonwealth*, 285 S.W.3d 740 (Ky. 2009); *Mash v. Commonwealth*, 376 S.W.3d 548 (Ky. 2012).

A defendant also has an equal protection right to a jury in which there is no substantial under-representation of a racial or other identifiable group. This applies to petit juries as well as grand juries. *Castaneda v. Partida*, 430 U.S. 482 (1977); *Swain v. Alabama*, 380 U.S. 202 (1965). Nevertheless, a master list is not unconstitutional just because it may fail to include some potentially eligible voters. A fair cross-section complaint cannot be established by merely comparing the composition of the jury to that of the community, because the composition of the community also includes ineligible voters. *Ford*, at 308.

A trial judge does not have the discretion to dismiss a jury panel on the basis that it appears to be racially unrepresentative of the community at large, when the proper procedures have been followed to select the panel out of a jury pool which reflects a fair cross section of the community. *Commonwealth v. Doss,* 510 S.W.3d 830 (Ky. 2017).

Improperly Excusing Jurors

Even if the master list is unobjectionable, the court may be so liberal in granting excuses or otherwise so lax in following up on jurors who simply do not respond to being summonsed, that a drastic reduction in the available jury pool results nevertheless. For a thorough review of these issues, see Tim Arnold and Gail Robinson, "Jury Pool Issues," The Advocate, vol. 26, no. 3, May 2004, pp. 10-15. In the course of representing a murder defendant, the authors discovered that out of 500 people summonsed for service in the defendant's circuit, only 91 of them were left to serve as potential jurors on circuit, district and grand juries after one accounted for all those who never responded to the summons (178), were disqualified (48) or simply excused (183). See, e.g., *Sanborn v. Commonwealth*, 754 S.W.2d 534, 548 (Ky. 1988), "The trial court erred in the jury selection procedures, in that the judge excused a number of prospective jurors without recording a reason for the excuses on the jury qualification form.," and *Ward v. Commonwealth*, 695 S.W.2d 404, 406-7 (Ky. 1985), "It is undisputed that the trial judge had not complied with the statute [KRS 29A.100] prior to the motion to be furnished with the list."

From the Arnold and Robinson article, p 13, including the checklist below:

> "KRS 29A.080(1) and 29A.100(2), as amended in 2002, permit the chief judge to delegate decisions concerning disqualification, excuse from service for 10 days or less and postponement of service for less than a year to another judge, court administrator, or clerk. However, decisions involving excuses for "undue hardship, extreme inconvenience or public necessity" for more than 10 days must still be made by the judge. KRS 29A.100(3). If the local authorities are not following the law concerning jury selection a motion to quash the indictment and/or a motion to dismiss the petit jury panel should be made. Such a motion must be made prior to examination of the jurors. See RCr 9.34
>
> "It is important to realize that merely making an oral objection prior to voir dire is not sufficient to preserve the error. In *Grundy v. Commonwealth*, Ky., 25 S.W.3d 76 (2000), the court considered a situation...where a surprisingly low number of jurors appeared for trial. Trial counsel asked to postpone the proceedings until the no-show jurors appeared, and the court denied the motion. On appeal, Grundy alleged that the court violated Nelson by improperly excusing an excessive number of jurors. The Supreme Court held that the claim was unpreserved, because trial counsel had not made a sufficient record to permit the appellate court to rule on whether the excuses were or were not proper.
>
> "The accused has a right to make a record sufficient to permit appellate review of alleged errors. See *Powell v. Commonwealth*, Ky., 554 S.W.2d 386, 390 (1977). Consequently, counsel should object to any juror being absent who was not excused pursuant to the procedures set forth in KRS Chapter 29A and APCJ, Part II. Counsel should then ask the court to allow him or her to review the excuses for any "no show" jurors. If the court permits that, counsel should put those excuses in the record for appellate review. If, on the other hand, the judge wishes to proceed to trial without allowing counsel to review the excuses, counsel should make an oral motion on the record asking the court to put the excuses in the record as an avowal."

CHECKLIST FOR INVESTIGATING A JURY PANEL

1. When did the chief circuit judge last ask AOC to select jurors for the current term?
2. Did he ask for a sufficient number of names from AOC?
3. Is the list being used to summons jurors for this term fresh or stale?
4. Is the chief judge asking the clerk to summons a sufficient number of jurors?
5. If the letters including the jury summons and qualification forms don't reach the jurors, is the chief circuit judge having the sheriff attempt personal service?
6. Is the chief judge or someone he's properly designated reviewing forms and deciding if jurors are disqualified?
7. Is the reason for disqualification being entered on the form?
8. Is the judge following the strict standard on permanent medical exemptions?
9. As far as excuses, is the chief circuit judge acting or designating someone listed in the statute to act only as permitted (excused up to 10 days, postponement up to 12 months)?
10. Is the judge following the strict standard for excuses (undue hardship, extreme inconvenience, public necessity)?
11. When does the judge grant excuses and does counsel have any input?

12. If jurors have appeared for orientation but don't appear for trial, does the judge require them to explain themselves?
13. Have you attended the orientation and listened to what the judge tells the jurors?

OTHER OBJECTIONS TO THE JURY PANEL

Other problems might arise once the jurors have been called to sit on the jury and voir dire has begun. A few cases have addressed some of these situations. Generally speaking, it is rare that any occurrence during voir dire will require dismissal of the entire jury panel.

Remarks Made During Voir Dire

In *Tabor v. Commonwealth,* 948 S.W.2d 569 (Ky. App. 1997), a prospective juror said during voir dire that she believed she recognized the defendant and then asked out loud if he had been in the "West Kentucky Correctional Center." The trial court then excused the juror after a conference with her outside the hearing of the rest of the jurors, leaving the unmistakable impression that the juror had been right about the defendant. The Court of Appeals ruled that this response tainted the entire venire. What was crucial in this case was the fact that, although the defendant did have a prior felony conviction, he could not have been impeached with it during trial because the conviction was still on appeal. Thus, the juror gave the other jurors access to information concerning the defendant which would not have come into evidence during trial.

The Kentucky Supreme Court declined to grant relief in a similar situation in *Hall v. Commonwealth*, 2001-SC-0814-MR, 2003 WL 21254856, Ky. May 22, 2003, *unpublished*, *overruled on other grounds*. In that case, a prospective juror said during voir dire that he knew the defendant and then added, "I used to be deputy jailer in Whitesburg." The trial court struck the juror for cause but did not grant the defendant's motion for a mistrial. The Supreme Court ruled that a mistrial was not necessary because there were any number of reasons why a deputy jailer might have known the defendant other than because he had been in jail. For instance, said the court, the other prospective jurors could have assumed he had worked there, or had delivered supplies there, or had been in law enforcement.

The Court of Appeals also declined to follow *Tabor* in a case very similar to *Hall*. In *Bryant v. Commonwealth*, 2001-CA-002159-MR, 2003 WL 22110576, Ky. App. Sept. 16, 2003, *unpublished*, a prospective juror also said during voir dire that he knew the defendant from jail. In that case, unlike in *Tabor*, the defendant took the stand and was impeached with his prior felonies. The court ruled that the error was therefore harmless and a mistrial was not necessary.

Juror a Victim of Similar Crime

In *Jett v. Commonwealth*, 862 S.W.2d 908, 910-11 (Ky. App. 1993), *overruled on other grounds*, the defendant on trial for trafficking moved to set aside the jury panel when one prospective juror stated, in the presence of the entire panel, that a drug trafficker had killed his daughter. Instead, the trial court struck the prospective juror. The Court held it was not error to refuse to strike the entire panel because the defendant had proven no prejudice. A prejudicial remark by a juror does not necessarily require striking the entire panel.

Where the defendant was on trial for robbery, the fact that two prospective jurors had been robbery victims was not sufficient to render prospective jurors unqualified. *Stark v. Commonwealth*, 828 S.W.2d 603, 608 (Ky. 1991), *overruled on other grounds*. Also, where the defendant was on trial for assault and burglary and knew the victim, it was not error for the trial court to fail to strike for cause a juror who had been raped at her home three months before by a perpetrator who she did not know and who had not yet been caught. *Butts v. Commonwealth*, 953 S.W.2d 943, 945 (Ky. 1997), *overruled on other grounds*. *See also Allen v. Commonwealth,* 278 S.W.3d 649 (Ky. App. 2009).

Juror Also a Witness in the Case

In *Hellard v. Commonwealth*, 829 S.W.2d 427 (Ky. App. 1992), *overruled on other grounds*, the defendant was charged with theft by deception and forgery based on a forged rental agreement with a video store. The owner of the video store was a member of the jury pool. The defendant moved for a continuance of her trial until a new jury pool was called. The Kentucky Court of Appeals held that, even though the issue had not been preserved, it was palpable error for the trial

court to deny the motion for continuance because the "possibility of a jury according the testimony of a witness greater weight than it otherwise would have received is just too great when the witness is a member of the same jury pool." Furthermore, the court did "not feel that Hellard was required to show bias or prejudice under these circumstances." *Id*. at 429. Compare, *Colwell v, Commonwealth*, 37 S.W.3d 721 (Ky. 2001), in which the complaining witness was also a member of the jury pool but no reversible error occurred because the witness was excused before the day of trial and therefore did not mingle with other jurors prior to trial.

In *Jones v. Commonwealth*, 737 S.W.2d 466 (Ky. App. 1987), a member of the juror pool was also a witness in the defendant's trial. The juror was removed from the jury pool before trial began and the defendant was allowed to conduct voir dire on the issue of the weight other jurors might place on the witness's testimony. It was not error to deny a continuance when all the remaining jurors answered they would not be unduly influenced by the testimony of the former juror.

Juror Convicted a Co-Defendant

In *Pelfrey v. Commonwealth*, 842 S.W.2d 524 (Ky. 1993), the defendant moved for a continuance until a new jury pool could be empaneled because the jury that had convicted the defendant's companion one month earlier had been selected from this same jury pool. The trial court denied the continuance motion.

On appeal, the Court held the trial court had not abused its discretion in denying the continuance motion because "there were adequate safeguards in place to assure an unbiased jury" (i.e., for-cause and peremptory challenges). *Id.*, 525 Furthermore, the defendant had conducted a thorough voir dire examination and had not challenged any prospective jurors for cause, and the trial court had admonished the jurors to consider only what they heard from the witness stand.

The Kentucky Supreme Court further held that because the defendant had not challenged any of the prospective jurors for cause "we can only assume that he was satisfied with the jury." And that, "a continuance motion for a new panel is not the equivalent of individually challenging jurors for cause. Once trial counsel's [continuance] motion was denied, his method for reviewing the bias issue was to specifically challenge jurors. Without doing so, counsel clearly waived his jury challenge." *Id*.

See also *Hicks v. Commonwealth*, 805 S.W.2d 144 (Ky. App.1990), in which the defendant failed to show that he could not receive a fair trial from a jury drawn from the same pool of jurors who had previously convicted an alleged accomplice. And see also *U.S. v. Dempsey*, 733 F.2d 392 (6th Cir.1984), in which members of the panel called to try the defendant's case had been members of the same panel from which jurors were selected for the prior trial of the co-defendant, and three had actually served on the jury which had tried and convicted the co-defendant. The U.S. Court of Appeals ruled there was no error when the trial court did not remove the entire panel but did remove those jurors who had served on the co-defendant's panel.

Juror Had Participated in Voir Dire in Previous Trials Against Same Person

In *Merriweather v. Commonwealth*, 99 S.W.3d 448 (Ky. 2003), the court ruled that it was not reversible error to refuse to strike for cause six jurors who had participated in the voir dire of a previous unrelated assault case against the same person when the trial court determined that the jurors had only vague recollections of the nature of the former charges and that the defendant was able to use his peremptories so as to excuse all the jurors in question.

On the other hand, see *Miracle v. Commonwealth*, 646 S.W.2d 720 (Ky. 1983), in which it was held to be reversible error for the trial court to try the defendant before jurors who had previously been present when the defendant entered a guilty plea which had subsequently been withdrawn. See also *Dickerson v. Commonwealth*, 174 S.W.3d 451,462 (Ky. 2005), in which the court ruled that "the jurors who participated in the voir dire at Appellant's sodomy trial, and thereby learned he used a handgun to forcibly sodomize a child under twelve years of age, were impliedly biased and should have been excused from serving on the subsequent handgun trial," when the two charges were related, the defendant exhausted all his peremptories, and three of the biased jurors actually served on the handgun trial.

Jurors Served in a Previous Trial of the Same Person

Members of the jury panel who served as jurors in previous trials in which the person now on trial was the defendant must be disqualified and excused. *Gossett v. Commonwealth*, 426 S.W.2d 485 (Ky. 1968). Members of the jury panel who had been empaneled to try the defendant on another charge the previous day, and others who had been in the courtroom during that trial, should have been struck for cause. *Brumfield v. Commonwealth*, 374 S.W.2d 499 (Ky. 1964).

CALLING JURORS FROM THE POOL

Pursuant to RCr 9.30(2), "The jury selection process shall be conducted in accordance with Part Two (2) of the Administrative Procedures of the Court of Justice." APCJ II, Sec. 10(1) provides that when selecting a grand or petit jury from a jury panel, the judge or designee "should utilize the Jury Management System whenever possible." If that is not feasible, Sec. 10(2) provides for the old method of drawing numbers randomly from a box – the method also described in RCr 9.30. Failure to substantially follow the proper procedure requires automatic reversal, and no prejudice need be shown. *Robertson v. Commonwealth*, 597 S.W.2d 864 (Ky. 1980). See also *Bartley v. Loyall*, 648 S.W.2d 873, 874-75 (Ky. App. 1982), which held it was reversible error for the clerk to try to equalize the workload by calling the numbers of jurors who had participated in fewer cases before calling the numbers of jurors who had participated in more cases. Remember, too, that RCr 9.34 requires an objection to be made before voir dire. Calling a juror whose name had been left out of the jury selection box did not deprive the defendants of the right to a randomly selected jury when the juror had been present in the courtroom all day. *Campbell v. Commonwealth*, 260 S.W.3d 792 (Ky. 2008). Likewise, it was not a substantial deviation from the proper procedures when the court drew jurors from the jury pool of another court in another division of the same circuit as the trial court in *Hayes v. Commonwealth*, 320 S.W.3d 93 (Ky. 2010). Minor deviations from proper procedure do require a showing of prejudice. There was no palpable error when the defendant failed to object to a voir dire of the entire jury panel in *Oro-Jimenez v. Commonwealth*, 412 S.W.3d 174 (Ky. 2013). *See also Barker v. Commonwealth*, 477 S.W.3d 583 (Ky. 2015).

NUMBER OF JURORS

KRS 29A.280(2) provides for 6 jurors in District Court and 12 jurors in Circuit Court. However, a defendant may agree to have fewer than 12 jurors in Circuit Court, down to as few as 6. The right to a 12-person jury is sufficiently fundamental under the state constitution to require that a trial court must establish on the record that a defendant has been advised of the right to a 12-person jury and has personally waived it. A record reflecting the acquiescence of defense counsel is not sufficient. *Commonwealth v. Simmons*, 394 S.W.3d 903 (Ky. 2013).

There was no constitutional error in the court's failing to dismiss an alternate juror prior to the beginning of jury deliberation, resulting in deliberation by a 13-person jury, in *Sevier v. Commonwealth*, 434 S.W.3d 443 (Ky. 2014).

The clerk will initially call a number of jurors equal to the number of jurors who will sit on the jury plus the total number of combined strikes to be exercised by both sides. RCr 9.36(2). For example, for a trial in which there will be a single defendant and a jury with 2 alternates, the clerk would begin by calling 32 prospective jurors: 14 jurors plus 18 total peremptories for both sides. (See "PEREMPTORY STRIKES" on page 46 .) As jurors are struck for cause during voir dire, the clerk calls new prospective jurors to replace them, RCr 9.30(1)(a), and the process continues until there are no more motions to strike for cause or until the judge ends the voir dire.

III. VOIR DIRE AND STRIKING JURORS

Right to Conduct Voir Dire

RCr 9.38 allows for a couple of different scenarios: (1) the court allows the attorneys to conduct the voir dire, (2) the court conducts the voir dire but must then allow the attorneys to supplement the voir dire with either direct questions or questions submitted to the court in writing. If the death penalty is sought, there must be individual voir dire out of the presence of other jurors if questions will be asked concerning capital punishment, race, or pretrial publicity and, upon request, the court must allow the attorneys to conduct it.

Although there is no statutory or procedural right to allow defense attorneys to conduct voir dire in Kentucky (except in death penalty cases), "part of the guarantee of a defendant's Sixth Amendment right to an impartial jury is an adequate voir dire to identify unqualified jurors. A voir dire examination must be conducted in a manner that allows the parties to effectively and intelligently exercise their right to peremptory challenges and challenges for cause." *Hayes v. Commonwealth*, 175 S.W.3d 574, 584 (Ky. 2005), quoting *Morgan v. Illinois*, 504 U.S. 719, 729-30 (1992).

Presence of the Defendant

Commencing voir dire to death-qualify prospective jurors in the defendant's absence violated the defendant's due process right to be present at all critical stages was not harmless error beyond reasonable doubt. *Truss v. Commonwealth,* 560 S.W.3d 865 (Ky. 2018).

The Purpose of Voir Dire

The purpose of voir dire is not to get jurors either to indicate or to commit to which verdict they might render in the case once the case is submitted to the jury. The purpose of voir dire, rather, is simply to obtain a fair and impartial jury free of any interest, bias or prejudice which might prevent their finding a just and true verdict. Questions put to jurors should be as varied and elaborated as circumstances require, but questions which are clearly designed to have jurors indicate or commit to how they will vote are simply not proper. *Ward v. Commonwealth*, 695 S.W.2d 404, 407 (Ky. 1985) *Woodall v. Commonwealth*, 63 S.W.3d 104 (Ky. 2001). *See, e.g.*, *Bowen v. Commonwealth*, 2003-CA-0744-MR, 2005 WL 2318967, Ky., Sept. 22, 2005, *unpublished*, (finding improper an attempt to play to the jurors the defendant's taped statement to police during voir dire to determine if they would vote to convict based upon the statement)..

Voir Dire on Sentencing Ranges

It is reversible error to refuse to allow voir dire on sentencing ranges. *Varble v. Commonwealth*, 125 S.W.3d 246 (Ky. 2004). However, voir dire on sentencing ranges need not include informing the jury of the sentencing ranges for either enhanced or lesser included offenses, *Commonwealth v. Philpott*, 75 S.W.3d 209 (Ky. 2002), nor should it include the sentencing ranges for PFO enhancements, *Lawson v. Commonwealth*, 53 S.W.3d 534 (Ky. 2001).

On the other hand, the admission of evidence with regard to sentencing ranges is improper during the guilt/innocence phase of a felony trial. *See, e.g.*, *Day v. Commonwealth*, 361 S.W.3d 299 (Ky. 2012).

Voir Dire on Defendant Not Testifying

Refusal to allow defense counsel to voir dire prospective jurors regarding whether they would hold against defendants the fact that they exercised their Fifth Amendment right not to testify is an abuse of discretion. *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005).

Voir Dire on Reasonable Doubt

Reasonable doubt can no more be defined in voir dire than in opening statements or closing arguments. *Marsch v. Commonwealth*, 743 S.W.2d 830 (Ky. 1988); *Commonwealth v. Callahan*, 675 S.W.2d 391 (Ky. 1984); *Cuzick v. Commonwealth*, 276 S.W.3d 260 (Ky. 2009). Nevertheless, for the Commonwealth to point out that "beyond a reasonable doubt" is different from "beyond a shadow of a doubt" is not an attempt to define reasonable doubt. It is, rather, simply to point out the

obvious. *Howell v. Commonwealth*, 163 S.W.3d 442 (Ky. 2005); *Johnson v. Commonwealth*, 184 S.W.3d 544 (Ky. 2005); *Brooks v. Commonwealth*, 217 S.W.3d 219 (Ky. 2007). On the other hand, "It is proper for a defendant to inform jurors in voir dire that the Commonwealth's burden of proof is 'beyond a reasonable doubt' and to inquire whether they will hold the Commonwealth to that burden." *Hayes v. Commonwealth*, 175 S.W.3d 574, 587 (Ky. 2005).

However, the use of an analogy is an attempt to define reasonable doubt, and it violates the 14th Amendment safeguard "against the dilution of the principle that guilt is to be established by probative evidence and beyond a reasonable doubt." As an example, in *Rice v. Commonwealth*, 2004-SC-1076-MR, 2006 WL 436123, Ky. Feb. 23, 2006, *unpublished*, the prosecutor used the example, during voir dire, of deciding to marry someone. See also *Marsch*, *supra*, in which the prosecutor, during voir dire, used the example of himself as a hypothetical witness to an auto accident. "In all those cases [where this court found an impermissible attempt to define 'reasonable doubt'], some attempt was made to use other words to convey to the jury the meaning of 'beyond a reasonable doubt'" *Howell*, *supra*, at 447, quoting *Simpson v. Commonwealth*, 759 S.W.2d 224, 226 (Ky. 1988). It is permissible to refuse to allow educational remarks during voir dire on the difference between the standards of proof in civil and criminal cases when the remarks are not designed to elicit disqualifying information from the jurors. *Rogers v. Commonwealth*, 315 S.W.3d 303 (Ky. 2010).

Voir Dire on No Duty to Retreat

The defendant has the right to voir dire on the subject of no duty to retreat in self-defense cases. *Hannah v. Commonwealth*, 306 S.W.3d 509 (Ky. 2010).

Voir Dire on Disproportionate Incarceration

The defendant cannot be prohibited from asking a Caucasian juror her opinion as to whether a disproportionate number of African-Americans are incarcerated. *Ordway v. Commonwealth*, 391 S.W.3d 762 (Ky. 2013) (reasoning that such a line of questioning might have solicited information that the juror was biased on race).

Referring to Defense Attorney as Public Defender

It is entirely improper to make any reference to whether the defendant's attorney is being paid, or to how much or how little. *Goff v. Commonwealth*, 44 S.W.2d 306 (Ky. 1931).

TIMING OF STRIKES FOR CAUSE

Pursuant to RCr 9.36(1), "Challenges for cause shall be made first by the Commonwealth and then by the defense," and (3) "All challenges must be made before the jury is sworn. No prospective juror may be challenged after being accepted unless the court for good cause permits it."

STRIKES FOR CAUSE, GENERALLY

Strikes for cause are unlimited. KRS 29A.290(2)(a). Each defendant has the right to a fair and impartial jury under the 6th Amendment to the United States Constitution and § 11 of the Kentucky Constitution. Beyond this substantive right, each defendant also has a right to substantive due process in the picking of a jury under the 14th Amendment to the United States Constitution and § 2 of the Kentucky Constitution.

Legal Standard: Reasonable Grounds

In *Sturgeon v. Commonwealth*, 521 S.W.3d 189, 193 (Ky. 2017), the court held that "we concede that we have allowed the standard for judging for-cause challenges of prospective jurors to drift too far from its anchor." The court continues: "RCr 9.36(1) plainly and succinctly establishes the standard by which trial courts are to decide whether a juror must be excused for cause. The rule says: "When there is reasonable ground to believe that a prospective juror cannot render a fair and impartial verdict on the evidence, that juror shall be excused as not qualified."" *Id*.

The court went on to explain that previous decisions may have left trial courts with the impression that "a prospective juror is excused for cause only if the trial court specifically finds that the juror cannot render a fair and impartial verdict

or conform his views to the requirements of the law." *Id*. at 194. The court held that is too high of a standard. Having "a 'reasonable ground to believe' a prospective juror cannot be fair and impartial is not tantamount to an actual finding that the juror cannot be fair and impartial. RCr 9.36(1) requires only that there be a 'reasonable ground' to believe he cannot." *Id*.

The trial court must determine the existence of bias based on the particular facts of each case. *Taylor v. Commonwealth*, 335 S.W.2d 556 (Ky. 1960).

The test on appeal for failure to strike a juror for cause is whether that action was "an abuse of discretion or clearly erroneous"..."based on the totality of the circumstance [and] not on a response to any one question." *Ordway v. Commonwealth*, 391 S.W.3d 762, 780 (Ky. 2013) citing *Fugett v. commonwealth*, 250 S.W.3d 604 (Ky. 2008). *See Adkins v. Commonwealth*, 96 S.W.3d 779 (Ky. 2003).

Resolving Doubts About Bias

"[W]hen there is uncertainty about whether a prospective juror should be stricken for cause, the prospective juror should be stricken. The trial court should err on the side of caution by striking the doubtful juror.... [W]here questions about the impartiality of a juror cannot be resolved with certainty, or in marginal cases, the questionable juror should be excused." *Sturgeon v. Commonwealth*, 521 S.W.3d 189, 194 (Ky. 2017), quoting *Ordway v. Commonwealth*, 391 S.W.3d 762, at 780 (Ky. 2013).

"Even where jurors disclaim any bias and state they can give the defendant a fair trial, conditions may be such that their connection would probably subconsciously affect their decision in the case. It is always vital to the defendant in a criminal prosecution that doubt of unfairness be resolved in his favor." *Fugate v. Commonwealth*, 993 S.W.2d 931 (Ky. 1999); *Sholler v. Commonwealth*, 969 S.W.2d 706 (Ky.1998); *Randolph v. Commonwealth*, 716 S.W.2d 253 (Ky. 1986), *overruled on other grounds*.

STRIKES FOR CAUSE, EXAMPLES

Juror Fails to Meet Statutory Qualifications

The time factors which disqualify a person for jury service are set forth in KRS 29A.080(2)(g) and 29A.130. A juror is disqualified by serving on a jury for more than 30 days in any one 24-month period. Counsel may particularly wish to ask if any jurors have served on a grand jury within the last 24 months prior to their current term of service on the petit jury (the disqualification period used to be 12 months). *See, e.g.*, *Musgrove v. Commonwealth*, 2005-CA-000719, 2006 WL 3333351, Ky. App. Nov. 17, 2006, *unpublished*. A juror can serve on more than one jury panel during the 24-month period as long as the total service does not exceed 30 days. The defendant waived his objection to the problem when he did not ask questions about previous jury service during voir dire. *Williamson v. Commonwealth,* 2017-CA-000832-MR, 2019 WL 1868227, Ky. App. April 26, 2019, *unpublished.*

Juror Has Formed Opinion Regarding Guilt

A juror cannot be permitted to sit on a case where they have already formed an opinion about the guilt of the accused. *Neace v. Commonwealth*, 230 S.W.2d 915 (Ky. 1950); *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992); *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993); *Allen v. Commonwealth*, 276 S.W.3d 768 (Ky. 2008); *Gabbard v. Commonwealth*, 297 S.W.3d 844 (Ky. 2009).

Juror Has Trouble Accepting Legal Principles

Jurors can be excused for demonstrating a serious problem accepting the concepts of a defendant's right to remain silent, the burden of proof, and the presumption of innocence. *Humble v. Commonwealth*, 887 S.W.2d 567 (Ky. App. 1994). See also *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005), for a full discussion.

Juror Cannot Consider Mitigators

Shane v. Commonwealth, 243 S.W.3d 336 (Ky. 2007), *Fugett v. Commonwealth*, 250 S.W.3d 604 (Ky. 2008). "Any juror to whom mitigating factors are…irrelevant should be disqualified for cause, for that juror has formed an opinion concerning the merits of the case without basis and the evidence developed at trial." *Morgan v. Illinois*, 504 U.S. 719, 739 (1992).

Close Relationships Generally

"A potential juror may be disqualified from service because of connection to the case, parties, or attorneys and that is a bias that will be *implied as a matter of law*." *Sholler v. Commonwealth*, 969 S.W.2d 706, 709 (Ky. 1998) (emphasis added).

"Irrespective of the answers given on voir dire, the court should presume the likelihood of prejudice on the part of the prospective juror because the potential juror has such a close relationship, be it familial, financial or situational, with any of the parties, counsel, victims or witnesses." *Sholler v. Commonwealth*, 969 S.W.2d 706, 709 (Ky. 1998); *Montgomery v. Commonwealth,* 819 S.W.2d 713 (Ky. 1992). "Some relationships between a potential juror and an attorney, party, victim, or witness are so close that the implied bias from the relationship 'transgresses the concept of a fair and impartial jury.'" *Cochran v. Commonwealth*, 114 S.W.3d 837, 840 (Ky. 2003).

"Once that close relationship is established, without regard to protestations of lack of bias, the court should sustain a challenge for cause and excuse the juror." *Sholler v. Commonwealth*, 969 S.W.2d 706, 709 (Ky. 1998); *Ward v. Commonwealth*, 695 S.W.2d 404 (Ky. 1985).

The following lists are meant to be illustrative but not exhaustive. Each was a basis for excusing a juror unless indicated otherwise.

Juror Has a Close Relationship With a Party

- One juror **worked with the victim's wife** and another juror had **worked with the victim** and liked him. *McDaniel v. Commonwealth*, 341 S.W.3d 89 (Ky. 2011).
- Juror **discussed the case with a relative of the victim**. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993).
- Married to a person who was a **second or third cousin of the victim**. *Marsch v. Commonwealth*, 743 S.W.2d 830 (Ky. 1987).
- First **cousin to victim**. *Pennington v. Commonwealth*, 316 S.W.2d 221 (Ky. 1958).
- Juror's mother was a **first cousin to victim's mother**. *Leadingham v. Commonwealth*, 201 S.W. 500 (Ky. 1918).
- Juror's wife was a **second cousin of defendant**. *Smith v. Commonwealth*, 734 S.W.2d 437 (Ky. 1987).
- **Juror's sister was a Victim's Advocate** working closely with the prosecution and assigned to aid, assist, and comfort members of the victim's family. *Ordway v. Commonwealth*, 391 S.W.3d 762 (Ky. 2013).
- Juror **knew murder victim's brother**. *Jackson v. Commonwealth*, 392 S.W.3d 907 (Ky. 2013).
- But see *George v. Commonwealth*, 885 S.W.2d 938 (Ky. 1994), where the Court held that no error occurred when the trial court allowed a juror to remain on the jury after she realized during testimony that she was the victim's third cousin.
- Juror was a **previous victim of the defendant**. The juror realized this after the guilt-innocence phase but before the penalty phase. The defendant was entitled to a new penalty phase. *Commonwealth v. Douglas,* 553 S.W.3d 795 (Ky. 2018).
- Disqualification was not required of juror who was Facebook "friend" of victim's wife. *McGaha v. Commonwealth*, 414 S.W.3d 1 (Ky. 2013).
- Defendant was entitled to a hearing to investigate potential juror misconduct when jurors denied using Facebook and the defendant then proved, after trial, that they were "friends" of the victim's mother. *Sluss v. Commonwealth*, 381 S.W.3d 215 (Ky. 2012).
- A juror whose mother worked with the stepfather of the victim, who frequently drove past the memorial erected at the

site of the accident, and who had been told the defendant took drugs and acted irresponsibly should have been struck for cause in *Sluss v. Commonwealth*, 450 S.W.3d 279 (Ky. 2014).

Juror Has a Close Relationship With a Witness

- Juror's being related to and living in the **same rural area of the county with the complaining witness's boyfriend, and being married to boyfriend's cousin**, may have justified a challenge for cause. *Anderson v. Commonwealth*, 864 S.W.2d 909, 911 (Ky. 1993).
- Where juror, an investigative social worker, was employed by CHR, the **same organization with which a key Commonwealth witness** was employed, and was assigned to the same unit as two key Commonwealth witnesses, it was an abuse of discretion to fail to excuse the juror for cause. *Alexander v. Commonwealth*, 862 S.W.2d 856, 864 (Ky. 1993), *overruled on other grounds*.
- Juror **knew both the Commonwealth Attorney and the chief investigating officer** in the crime. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993).
- Juror was a **friend of the chief investigating officer**. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993).
- Juror was the **brother of a sheriff** who was active in the prosecution of the case. *Hayes v. Commonwealth*, 458 S.W.2d 3 (Ky. 1970).
- First **cousin to a key prosecution witness**. *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky. 1988).
- **Wife of the arresting police officer**. *Calvert v. Commonwealth*, 708 S.W.2d 121 (Ky. 1986).
- Juror who played little league baseball and went to high school with a witness for the prosecution ten years before trial, but who denied any continuing social relationship with the witness, had to be excused for cause in prosecution for murder and burglary, where witness appeared ambivalent as to whether prior relationship would affect his determinations of credibility. *Fugate v. Commonwealth*, 993 S.W.2d 931 (Ky. 1999).

Juror Has a Close Relationship With Attorney

- Prospective and actual jurors who had previously been represented by the prosecutor and who stated they would seek out such representation in the future (although attorney/client relationship does not automatically disqualify a juror). *Futrell v. Commonwealth*, 471 S.W.3d 258 (Ky. 2015); *Fugate v. Commonwealth*, 993 S.W.2d 931, 938 (Ky. 1999); *Riddle v. Commonwealth*, 864 S.W.2d 308 (Ky. 1993).
- The jury foreman was the **brother-in-law of the Assistant Commonwealth** Attorney. *Edmonson v. Commonwealth,* 526 S.W.3d (Ky.2017).
- Juror **knew both the Commonwealth Attorney and the chief investigating officer** in the crime. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993), *overruled on other grounds*.
- Juror had **business dealings with the prosecution**. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993), *overruled on other grounds*.
- Juror's **wife and the prosecutor were first cousins by marriage** (however, relationship by blood and affinity are treated the same for purposes of juror disqualification). *Thomas v. Commonwealth*, 864 S.W.2d 252, 256-7 (Ky. 1993).
- Uncle of the Commonwealth Attorney. *Ward v. Commonwealth*, 695 S.W.2d 404, 407 (Ky. 1985).
- **Secretary of the Commonwealth Attorney**. Position gave rise to a loyalty to employer that would imply bias. *Randolph v. Commonwealth*, 716 S.W.2d 253 (Ky. 1986), *overruled on other grounds*.
- Manager of an ambulance service, which had a contract with the Ambulance Board for which the prosecutor was the attorney, and who had been **asked as manager of the Ambulance Board to participate in the search for the defendants** (who were charged with escape) and who had been held hostage in a previous escape. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (1992).
- **County attorney at the defendant's preliminary hearing**. *Godsey v. Commonwealth*, 661 S.W.2d 2 (Ky. App. 1983).

- **Mother of county attorney** at the time of the defendant's preliminary hearing. *Morrison v. Commonwealth,* 528 S.W.3d 896 (Ky. 2017).
- Juror was being **represented by the prosecutor on a legal matter** at the time of trial. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992).
- Prosecutor was **cousin's son-in-law**. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992).
- *But see Sholler v. Commonwealth*, 969 S.W.2d 706, 709 (Ky. 1998), wherein the trial court did not abuse its discretion in refusing to dismiss for cause a potential juror who knew the Commonwealth attorney through mutual friends and their mutual membership in a large card club.

Juror Has Other Biases

- Where the defendant, on trial for sexual crimes against his seven year-old daughter, is black, his wife is white, and their child is biracial, a **juror who expressed a distaste for "mixed marriages,"** and stated he would judge the wife's credibility a degree differently than he would judge the credibility of other witnesses, should have been excused for cause. *Alexander v. Commonwealth*, 862 S.W.2d 856, 864 (Ky. 1993), *overruled on other grounds*.
- Where juror stated (1) he was **racially biased**, (2) he left his neighborhood because young black men were hanging around in the area, (3) when he walked into the courtroom, he assumed Appellant was the accused because of the color of his skin, and (4) he was opposed to, in fact offended by, inter-racial relationships, he should have been excused for cause. *Gamble v. Commonwealth*, 68 S.W.3d 367, 373 (Ky. 2002).
- Jurors **related to prison employees**, who knew many prison employees, whose two best friends and two brothers worked at the prison, and had discussed the case with their brothers should have been struck for cause. *Thompson v. Commonwealth*, 862 S.W.2d 871, 875 (Ky. 1993), *overruled on other grounds*.
- **Former police officer and present deputy sheriff**. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992). But see *Sholler v. Commonwealth*, 969 S.W.2d 706, 708 (Ky. 1998), where the court reaffirmed the principle espoused in *Sanders v. Commonwealth*, 884 S.W.2d 665 (Ky. 1990), *cert. denied*, 502 U.S. 831 (1991), which held that police officers are not disqualified per se to serve as jurors in criminal cases.
- Employee of the prison from which defendants escaped and who acknowledged he **would give more credibility to a law enforcement officer's testimony** and would feel "bad" about acquitting the defendants if proof was not sufficient to show guilt. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992).
- Outside patrolman and guard for a prison who acknowledged he had **spoken with persons in the prison** regarding the escape. *Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992).
- Juror states he **will give police officers more credibility** than other witnesses. *Shane v. Commonwealth*, 243 S.W.3d 336 (Ky. 2007); *Fugett v. Commonwealth*, 250 S.W.3d 604 (Ky. 2008). But compare, *Sholler v. Commonwealth*, 969 S.W.2d 706 (Ky. 1998), *Stopher v. Commonwealth*, 57 S.W.3d 787 (Ky. 2001), and *Soto v. Commonwealth*, 139 S.W.3d 827 (Ky. 2004).

REHABILITATING BIASED JURORS

There is simply no "magic question" such as, "Can you set aside what you have heard, your connection, your religious beliefs, etc., and make a decision based only on the evidence and instructions given by the Court?" *Montgomery v. Commonwealth*, 819 S.W.2d 713, 717-718 (Ky. 1992). In *Montgomery*, the Court declared "the concept of 'rehabilitation' is a misnomer in the context of choosing qualified jurors and direct[ed] trial judges to remove it from their thinking and strike it from their lexicon." *Id*. at 718. This basic principle has been repeatedly upheld by the Court. *Hodge v. Commonwealth*, 17 S.W.3d 824 (Ky. 2000); *Gill v. Commonwealth*, 7 S.W.3d 365 (Ky.1999); *Gabbard v. Commonwealth*, 297 S.W.3d 844 (Ky. 2009).

Where potential jurors' attitudes and past experiences created a reasonable inference of bias or prejudice, their affirmative responses to the "magic question" did not eradicate the bias and prejudice. *Alexander v. Commonwealth*, 862 S.W.2d 856, 865 (Ky. 1993), *overruled on other grounds*. A juror may indicate that he can be impartial, but may demonstrate a state

of mind to disprove that statement by subsequent comments or demeanor so substantially at odds that it is obvious he is biased. In contrast, an individual may flatly and blatantly demonstrate his inability to be impartial and fair and no magic question can rehabilitate his bias. *McDaniel v. Commonwealth*, 341 S.W.3d 89 (Ky. 2011).

Once a potential juror expresses disqualifying opinions, the potential juror may not be rehabilitated by leading questions regarding whether she can put aside those opinions and be fair and impartial. *Thomas v. Commonwealth*, 864 S.W.2d 252, 258 (Ky. 1993), *overruled on other grounds* (juror expressing strong opinion on death penalty). "Even where jurors disclaim any bias and state that they can give the defendant a fair trial, conditions may be such that their connection [to the case or the parties] would probably subconsciously affect their decision in the case." *Thomas* at 255. *See also Gamble v. Commonwealth*, 68 S.W.3d 367 (Ky. 2002) (juror expressing strong racial bias).

The Kentucky Supreme Court has also held that the answers of prospective jurors "to leading questions, that they would disregard all previous information, opinions and relationships should not be taken at face value." *Marsch v. Commonwealth*, 743 S.W.2d 830, 834 (Ky.1988). "Mere agreement to a leading question that the jurors will be able to disregard what they have previously read or heard, without further inquiry, is not enough...to discharge the court's obligation to determine whether the jury [can] be impartial." *Miracle v. Commonwealth*, 646 S.W.2d 720, 722 (Ky.1983).

PEREMPTORY STRIKES

Legal Standard

In *Thomas v. Commonwealth*, 864 S.W.2d 252 (Ky. 1993), the court established a bright line rule which required automatic reversal whenever a defendant had to use his peremptory strikes in order to remove jurors who should have been struck for cause. The premise of the rule was that a defendant is entitled to the free use of all his peremptories without having to use them on jurors who should have already been removed. This rule was abandoned in *Morgan v. Commonwealth*, 189 S.W.3d 99 (Ky. 2006), *overruling Thomas*, however *Morgan* was itself overruled in *Shane v. Commonwealth*, 243 S.W.3d 336 (Ky. 2007). The *Thomas* rule is once again the law: being forced to use a peremptory challenge on a juror who should have been struck for cause is a denial of the full use of a defendant's peremptory strikes and, as such, is reversible error per se if it results in the defense not being able to strike a different juror who is then sat on the jury. *See Gabbard v. Commonwealth*, 297 S.W.3d 844 (Ky. 2009); *Hurt v. Commonwealth*, 409 S.W.3d 327 (Ky.2013).

Gabbard describes the procedure by which counsel must specify on the juror strike sheet which jurors they would have struck if they had not had to use their peremptories to strike another juror who should have been struck for cause. *See also King v. Commonwealth*, 276 S.W.3d 270 (Ky.2009) (noting an exception to *Shane*, holding that it is not reversible error when the juror one would have struck does not end up sitting on the jury). It is essential that the selection of the jurors that counsel would have struck be made at the same time that the peremptories are exercised and in writing on the actual strike sheet. In cases after *Ward v. Commonwealth,* 587 S.W.3d 312 (Ky. 2019), failure to do so will prevent the defendant from seeking relief on appeal. *See also McDaniel v. Commonwealth*, 341 S.W.3d 89 (Ky.2011) (holding that the trial court's failure to strike two clearly biased prospective jurors constituted a violation of the defendant's substantial right and rendered the jury process unfair). (*Shane* was applied to civil cases in *Grubb v. Norton Hospitals, Inc.*, 401 S.W.3d 483 (Ky.2013).)

Number of

In District Court each side gets 3 peremptory strikes, in Circuit Court each side gets 8. KRS 29A.280(1) and RCr 9.40(1).

Additional peremptories are required when alternate jurors are seated and also when co-defendants are tried together. RCr 9.40(1),(2), and (3). When alternates are seated, there is one more strike per side and also one more per defendant. In addition, when co-defendants are tried together the defense gets one more defense strike for each co-defendant, to be exercised independently of any other defendant.

So, for example, in a trial with two co-defendants and two alternate jurors, the peremptories would be distributed as follows:

	"Per Side"		"Per Defendant"	
	Prosecution	Defense	Co-D #1	Co-D #2
Normally	8	8		
With Alternate(s)	1	1	1	1
Co-Defendants			1	1

As one can see on the chart: Each side starts with 8 peremptories. Since there are alternates, there is one more strike per side and also one more strike per defendant (the strikes per defendant are to be used independently). Lastly, since there are 2 co-defendants, each co-defendant gets one more strike apiece, to be also used independently of each other. That would give the Commonwealth 9 total peremptories and the defendants 13, in that trial. *Springer v. Commonwealth*, 998 S.W.2d 439 (Ky. 1999). "[T]he basic entitlement to peremptory challenges under RCr 9.40(1) is eight for the Commonwealth and eight for the defense. If more than one defendant is being tried, the defendants are entitled to a total of ten peremptory challenges: eight to be exercised jointly pursuant to RCr 9.40(1), and one each to be exercised independently pursuant to RCr 9.40(3). If one or two additional (alternate) jurors are seated, the defendants are entitled to a total of thirteen peremptory challenges: nine to be exercised jointly pursuant to RCr 9.40(1) and (2); one each to be exercised independently pursuant to RCr 9.40(3); and an additional one each to exercised independently pursuant to RCr 9.40(2)...." Id. at 444. For a more recent full discussion of the issue, *see Mulazim v. Commonwealth*, 600 S.W.3d 183 (Ky. 2020).

The exception is that in cases with just a single defendant and alternate jurors, the defendant only gets one extra peremptory, like the prosecution, for a total of 9. The reasoning is that, if there are not multiple co-defendants, there is no "per defendant." *Stopher v. Commonwealth*, 57 S.W.3d 787 (Ky. 2001); *Furnish v. Commonwealth*, 95 S.W.3d 34 (Ky. 2002).

Practice Tip: You must object to not getting your correct number of peremptories. Failure to give the correct number of peremptories is grounds for automatic reversal. The objection is waived, however, once the jury is sworn. *Springer v. Commonwealth*, 998 S.W.2d 439 (Ky. 1999); *Commonwealth v. Young*, 212 S.W.3d 117 (Ky. 2006).

EXERCISING PEREMPTORIES

RCr 9.36 (2) provides: "After the parties have been given the opportunity of challenging jurors for cause, each side or party having the right to exercise peremptory challenges shall be handed a list of qualified jurors drawn from the box equal to the number of jurors to be seated plus the number of allowable peremptory challenges for all parties. Peremptory challenges shall be exercised simultaneously by striking names from the list and returning it to the trial judge." For the proper procedure, see the Checklist below at Preserving the Record.

The Commonwealth can give up peremptory strikes if it looks like the remaining jury pool is getting too small. *Fitzgerald v. Commonwealth*, 148 S.W.3d 817 (Ky. 2004). The defendant, however, must use all his peremptories or he waives the issue of any biased jurors sitting on the jury. *See, e.g.*, *Baze v. Commonwealth*, 965 S.W.2d 817 (Ky. 1997). The court can grant the defense extra peremptories and this may solve the problem, on appeal, of jurors who should have been struck for cause. *See Mulazim*, *supra*. Neither side can hold back peremptories to see first who the other side has struck. *See Baze, supra.*

Practice Tip: If you exercise a peremptory, make sure that person leaves the jury. When the defense failed to notice that a juror who had been struck by the defense was still sitting on the jury, the court ruled that it was not palpable error because the juror had not been proven to be biased. *Cummings v. Commonwealth,* 560 S.W.3d 844 (Ky. 2018).

CHECKLIST FOR STRIKING JURORS

Are We On the Record? - The voir dire of the prospective jurors must be recorded and transcribed, or videotaped, and designated as part of the record on appeal.

Do We Know Who We're Talking About? – It is extremely common for appellate attorneys working on an appeal to experience great difficulty identifying which jurors were being discussed during any given motion to strike for cause and an incomplete record will be construed against the appellant. The identity of the juror cannot often be inferred from the video or audio record. A good practice is to simply preface your motion to strike with a short statement identifying the juror in question, such as "Your honor this motion is in reference to Mr. Smith, juror no. 22." Then make your objection.

Get to the Point - Conduct as thorough a job of questioning as you are allowed to. General questions of fairness and impartiality are not sufficient. Ask specific questions related to the facts of the case and the theory of defense. Attempt to elicit facts known by the juror or opinions held by the juror that reasonably could be expected to influence her decision. "It often takes detailed questioning to uncover deep-seated biases of which the juror may not be aware. The cursory examination typically conducted by the trial court is often inadequate for this purpose." Trial Practice Series, Jury Selection, *The Law, Art, and Science of Selecting a Jury*, 2nd ed., James J. Gobert, Walter E. Jordon (1992 Cumulative Supplement, p. 23), quoted in *Miracle v. Commonwealth*, 646 S.W.2d 720, 723 (Ky. 1983), (Leibson, J., concurring).

Move to Strike - Defense counsel must assert a clear and specific challenge for cause to the prospective juror and must clearly articulate the grounds for the challenge. State the name of the person you are challenging especially if your trial record will be on videotape. Challenge for cause all persons you believe the law requires to be stricken.

List every reason that would require removal of the juror. In some appellate opinions, the courts have assessed the bias of jurors by listing several areas of bias which, when combined, required removal for cause. *See Montgomery v. Commonwealth*, 819 S.W.2d 713 (Ky. 1992).

Preserving the Record - You must use all your peremptory challenges and the record must reflect that. Failure to use all of your peremptories waives the right on appeal to object to any jurors who remain on the jury. *See, e.g.*, *Baze v. Commonwealth*, 965 S.W.2d 817 (Ky. 1997). However, the prosecution can agree to give up some of its strikes. *Fitzgerald v. Commonwealth*, 148 S.W.3d 817 (Ky. 2004).

The procedure originally dictated by *Gabbard v. Commonwealth*, 297 S.W.3d 844 (Ky.2009), *Sluss v. Commonwealth*, 450 S.W.3d 279 (Ky. 2014) and *Futrell v. Commonwealth*, 471 S.W.3d 258 (Ky. 2015), and has received another refinement in *Floyd v. Neal*, 590 S.W.3d 245 (Ky. 2019) and *Ward v. Commonwealth,* 587 S.W.3d 312 (Ky. 2019). The practice outlined in *Floyd* was "a definitive statement of the procedure required to preserve a for cause strike error," and presumably designed to effectuate the provision of RCr 9.36(2) which states that, "Peremptory challenges shall be exercised simultaneously by striking names from the list and returning it to the trial judge." In *Floyd,* the court held that, statements to the contrary in *Sluss* notwithstanding, the procedure described in *Gabbard,* requiring the use of *strike sheets*, is the proper procedure. (Pursuant to *Gabbard*, the use of strike sheets was also required in *Ward v. Commonwealth,* 587 S.W.3d 312 (Ky. 2019).) In order to quote the *Floyd* procedure verbatim:

> [W]e hold that to preserve the error that a trial court failed to strike a juror for cause a litigant must:
> (1) move to strike the juror for caused and be denied;
> (2) exercise a peremptory strike on said juror, and show the use of that peremptory strike on the strike sheet, and exhaust all other peremptory strikes;
> (3) clearly indicate by writing on her strike sheet the juror she would have used a peremptory strike on, had she not been forced to use a peremptory on the juror complained of for cause;
> (4) designate the same number of would-be peremptory strikes as the number of jurors complained of for cause;
> (5) the would-be peremptory strikes must be made known to the court prior to the jury being empaneled; and
> (6) the juror identified on the litigant's strike sheet must ultimately sit on the jury.

Strike Sheets – Be sure the juror strike sheets are made part of the record on appeal. You must indicate clearly who would have been struck if the court had not denied any of your strikes for cause. *Ward v. Commonwealth,* 587 S.W.3d 312 (Ky. 2019); RCr 9.36(4); CR 75.07(4).

After Trial - When the defendant did not learn until after the trial that a juror was related to, and living in the same rural area of the county with, the complaining witness's boyfriend, and was married to the boyfriend's cousin, the proper procedure was to bring this information to the trial court's attention in a motion for a new trial. *Anderson v. Commonwealth*, 864 S.W.2d 909, 911 (Ky. 1993).

BATSON CHALLENGES

The Equal Protection Clause of the 14th Amendment prohibits the discriminatory use of peremptory strikes in order to exclude members of a cognizable minority from participation in jury service. *Batson v. Kentucky*, 476 U.S. 79 (1986). *Batson* applies to both prosecutors and defendants. *Georgia v. McCollum*, 505 U.S. 42 (1992); *Wiley v. Commonwealth*, 978 S.W.2d 333 (Ky. App. 1998). *See also Flowers v. Mississippi*, 139 S.Ct. 2228 (2019).

"[A] criminal defendant may object to race-based exclusions of jurors effected through peremptory challenges whether or not the defendant and the excluded juror share the same race." *Powers v. Ohio*, 499 U.S. 400, 401 (1991). *Batson* challenges can also be made to peremptory strikes which are discriminatory on the basis of gender. *J.E.B. v. Alabama*, 511 U.S. 127 (1994); *Wiley v. Commonwealth*, 978 S.W.2d 333 (Ky. App. 1998). (*Hannan v. Commonwealth*, 774 S.W.2d 462 (Ky. App. 1989), which says that *Batson* does not apply to gender discrimination in the use of jury strikes, was decided before *J.E.B.* and is presumptively invalid.)

Batson challenges must be made before the swearing of the jury and the discharge of the remainder of the jury panel. RCr 8.18; *Dillard v. Commonwealth*, 995 S.W.2d 366 (Ky.1999); *Gamble v. Commonwealth*, 68 S.W.3d 367 (Ky. 2002).

The *Batson* process has three steps: first, the objector must make a prima facie showing of purposeful discrimination in the opponent's exercise of his or her peremptory strikes. The traditional *Batson* situation obtains when a defendant is a member of a minority and the jurors being struck are members of the same minority. In that situation, a prima facie case would involve a showing that a) the defendant is a member of a cognizable racial group, b) the prosecution used peremptory strikes to remove jurors of the defendant's race, and c) the facts and circumstances raise the inference that the prosecutor excluded the jurors on the basis of their race. Remember, though, that under *Powers*, *supra*, the defendant no longer has to be of the same race or gender as the excluded jurors.

Second, if the court rules that a prima facie case has been made, then the burden shifts to the prosecutor to offer an alternative non-discriminatory explanation of the use of his peremptories. The explanation offered need not rise to the level of justifying a strike for cause, and may not even be particularly plausible. But it must be race- or gender-neutral on its face. The information the prosecutor points to does not have to be proven true, but simply offered in good faith. It can come to the prosecutor through means outside of direct questioning of the juror, such as the impressions or perceptions of counsel, personal knowledge, or jury questionnaires. *Commonwealth v. Snodgrass*, 831 S.W.2d 176 (Ky. 1992). It all depends on the facts and circumstances of each particular situation. The Commonwealth was allowed to strike an African-American juror on the basis that the juror was biased toward the prosecution and inclusion of the juror in the jury panel would create a potentially fatal trial error in *Newcomb v. Commonwealth*, 410 S.W.3d 63 (Ky. 2013).

Nevertheless, self-serving explanations based merely on claims of intuition or mere disclaimers of any discriminatory motive are not sufficient to overcome a *Batson* challenge. *Washington v. Commonwealth*, 34 S.W.3d 376 (Ky. 2000).

Last, the court must then decide – as it would decide any disputed fact – whether the proffered reasons are, firstly, neutral and reasonable and then it must also decide, secondly, that the reasons are not a pretext for purposeful discrimination. Clear and reasonably specific reasons for legitimately excluding jurors must meet both requirements. *Gamble v. Commonwealth*, 68 S.W.3d 367 (Ky. 2002).

A prosecutor's vague concern over an African-American prospective juror's age, without more; a prosecutor's bare reference to knowing another African-American prospective juror's past and past associates, without more; and a prosecutor's "gut feeling" that another prospective African-American juror was "too much of a wild card," without more; are not race-neutral reasons for exercising peremptory strikes. *Johnson v. Commonwealth*, 450 S.W.3d 696 (Ky. 2014).

The defendant established a prima face case for gender discrimination when the prosecutor candidly admitted he was striking women because the prosecution key witness was female and he thought that females tend to be harder on other females. *Ross v. Commonwealth*, 455 S.W.3d 899 (Ky. 2015).

Justifications based on no more than the perceived demeanor of a juror do not satisfy the last prong of a *Batson* analysis. *See, e.g.*, *Johnson, supra*, at 703-706 (prosecutor's "gut feeling" that the juror would be "too much of a wild card"); *Washington, supra*, at 379 (prosecutor's opinion that the juror appeared inattentive or bored); *Sifuentes v. Commonwealth,* 2016-SC-000485-MR, 2018 WL 898228, Feb. 15, 2018, *unpublished,* (prosecutor's opinion that juror appeared to be hostile).

Although the United States Supreme Court in *Flowers v. Mississippi*, 139 S.Ct. 2228 (2019) insisted that the opinion "breaks no new legal ground," the court did expand its analysis of prosecutorial reliance on jury demeanor to include the desperate questioning of the jurors in that case. In *Flowers,* the prosecutor asked 145 questions of 5 African-American jurors who were later struck while asking only 12 questions of the 11 white jurors who sat on the case. This desperate treatment can be a part of the *Batson* analysis.

For more discussion on *Batson* Challenges see the Department of Public Advocacy Justice for All Manual, May, 2008, available at http://dpa.ky.gov.

Practice Tip: To preserve the issue on appeal, remember to renew your objection to the Commonwealth's use of peremptories after the Commonwealth offers its reasons. If the prosecutor gives a reason not evident from the record, move for an evidentiary hearing. State again you do not believe the reasons given were non-discriminatory and object again to the seating of the jury before the jury is sworn.

SWEARING OF THE JURY

Some courts swear the jurors to answer truthfully the questions they will be asked, prior to the beginning of voir dire. According to RCr 9.36(3), however, administering the actual oath of a juror found in KRS 29A.300 comes after the strikes for cause and the peremptory strikes, when the final jury which will try the case is finally sat. KRS 29A.300 says: "The court shall swear the petit jurors using substantially the following oath 'Do you swear or affirm that you will impartially try the case between the parties and give a true verdict according to the evidence and the law, unless dismissed by the court?'" The swearing of the jury is the moment when double jeopardy protections attach, and the moment after which no further challenges can be made to the composition of the jury.

Comments by Court about the Credibility of Witnesses or the Weight of Evidence.

Counsel should be wary of attempts by the court to summarize the case, the evidence, or the witnesses at the outset of the trial. The practice in Kentucky, since statehood, has been to disapprove judicial comment on the evidence and how to judge the credibility of witnesses. Telling a jury to consider the witness's interest in the outcome of the proceedings, demeanor, clarity of recollection, etc., was disapproved of in *Walker v. Commonwealth*, 349 S.W.3d 307 (Ky. 2011), but did not rise to the level of palpable error.

IV. THE COMMONWEALTH'S CASE

ORDER OF TRIAL

The order of the guilt/innocence phase of a trial is governed by RCr 9.42. For the order of trial in the sentencing phase of a felony case, see KRS 532.055(2)(c). The PFO statute is KRS 532.080. The death penalty sentencing statute is KRS 532.025. See also "BIFURCATION" on page 2, and "Improper Rebuttal Evidence" on page 55.

ANNOUNCING "READY"

Announcing "ready" for trial waives objections to the Commonwealth's non-compliance with discovery obligations. *Sargent v. Commonwealth*, 813 S.W.2d 801 (Ky. 1991); *Barclay v. Commonwealth*, 499 S.W.2d 283 (Ky.1973). Announcing "ready" waives the right to later request a continuance due to an absent witness. *Fulton v Commonwealth*, 294 S.W.2d 89, 90 (Ky. 1956); *Chaffins v. Commonwealth*, 275 S.W.2d 52, 54 (Ky. 1955); *Swafford v. Commonwealth*, 309 Ky. 178 (Ky. 1949).

No Time Allowed to Prepare

It is an abuse of discretion for a trial court to deny defense counsel in a criminal prosecution a reasonable time to prepare a defense. The defendant's right to represented by reasonably prepared counsel was impinged when he had no notice of the withdrawal of previous counsel and counsel appointed at trial was granted only one hour to confer with the defendant before trial. *Eden v. Commonwealth*, 451 S.W.2d 623 (Ky. 1970). *See also Stumph v. Commonwealth*, 408 S.W.2d 618 (Ky. 1966) (finding an abuse of discretion in denying continuance where counsel was appointed two days before trial, had never tried a case before a jury, and the docket was not congested); *Woods v. Commonwealth*, 305 S.W.2d 935 (Ky. 1957) (finding an abuse of discretion in denying continuance when trial was held the same day that appointed counsel withdrew and new counsel was appointed); *Woolsey v. Commonwealth*, 282 S.W.2d 625 (Ky. 1955) (finding an abuse of discretion in denying continuance when appointed counsel was required to proceed to trial thirty minutes after appointment); *Raisor v. Commonwealth*, 278 S.W.2d 635 (Ky. 1955) (finding error in refusing to grant continuance even after defendant hold told the court he had retained private counsel and would be ready for trial on that date, when attorney appointed by the court on the day of trial had only four hours to prepare).

The probation violation context provides helpful analogies in the context of last-minute appointments. The defendant's due process rights were violated in a revocation hearing in which the probation officer was not sworn, the defendant's attorney was not given the opportunity to cross-examine, no testimony was taken, the officer simply stated the defendant's alleged violations, and the court asked the defendant to respond. *Hunt v. Commonwealth*, 326 S.W.3d 437 (Ky. 2010). The court improperly shifted the burden of proof to the defendant by asking him to show cause why he should not be revoked, and appointment of the public defender at the time of the hearing violated the defendant's due process rights when counsel had just received the file that morning and admitted she had not investigated the allegations against the defendant and had not had time to prepare for the hearing. *Id.* See also *Van Hooser v. Commonwealth*, 2007-CA-001590-MR, 2008 WL 7438772, Ky. App. Oct. 3, 2008, *unpublished*, in which the trial court appointed the public defender and then revoked each defendant within four and three minutes, respectively.

Ineffective Assistance

A claim that counsel cannot be effectively prepared can also support a request for a continuance. Such a claim imports the law on effective assistance of counsel. For example, in *Brown v. Commonwealth*, 2004-CA-001332-MR, 2005 WL 2240201, Ky. App. Sept. 16, *unpublished,* it was held to be ineffective assistance of counsel when the defense attorney announced "ready" knowing that the defendant's "star witness" had not been personally subpoenaed to testify at trial.

When a claim of ineffective assistance of counsel arises, there exists a strong presumption that counsel's conduct falls within the wide range of reasonable professional assistance. *Strickland v. Washington*, 466 U.S. 668 (1984). However, in certain Sixth Amendment contexts, *Strickland* does not apply and prejudice must be presumed. *U.S. v. Cronic*, 466 U.S. 648 (1984). A presumption of prejudice arises, and the *Strickland* analysis is abandoned, under three circumstances: (1) where the accused is completely denied counsel, (2) where counsel entirely fails to subject the prosecution's case to meaningful

adversarial testing, and (3) where, although counsel is available to assist the accused, the likelihood that any lawyer could provide effective assistance is so small that a presumption of prejudice is appropriate. *Cronic*, 466 U.S. at 659. If the trial court finds that counsel completely abdicated his responsibility to his client at a critical proceeding, the court is required to apply *Cronic*'s presumption of prejudice. When defense counsel did not prepare for a juvenile transfer hearing, did not interview witnesses, did not research relevant law, and did not challenge blatantly incorrect testimony, the trial court should have applied the presumption of prejudice established in *Cronic*. *Commonwealth v. Robertson*, 431 S.W.3d 430 (Ky. App. 2013). *See also U.S. v. Morris*, 470 F.3d 596 (6th Cir. 2006) (finding *Cronic*-type ineffective assistance in advising a defendant of a plea offer in the context of a "rocket-docket").

SEPARATION OF WITNESSES

Separation of witnesses under KRE 615 is mandatory once requested by counsel and only those who fall under a clear exception to the rule should be allowed to hear the testimony of other witnesses. *Mills v. Commonwealth*, 95 S.W.3d 838 (Ky. 2003).

Lead investigators are usually exempt from separation under exception (2) of the rule, which allows for "designated representatives," and the Commonwealth does not have to demonstrate that they are "essential to the presentation of the case" under exception (3). *Humble v. Commonwealth*, 887 S.W.2d 567 (Ky. App. 1994).

Other witnesses however, including victims, must meet the "essential to the presentation of the case" exception under (3) and generally should not be allowed to remain in the courtroom during testimony. See *Justice v. Commonwealth*, 987 S.W.2d 306 (Ky. 1998), and especially *Mills v. Commonwealth*, 95 S.W.3d 838 (Ky. 2003), in which it was ruled prejudicial error to allow the victim to remain in the courtroom when the victim was the only witness to the robbery, his credibility was crucial, and listening to the other Commonwealth's witnesses describe the perpetrators and the details of the robbery allowed the victim to take the stand with a completely refreshed memory. See also *Spears v. Commonwealth*, 448 S.W.3d 781 (Ky. 2014), in which the court ruled that KRE 615 also excludes experts who wish to sit in on the testimony of opposing experts. On the other hand, *McAbee v. Chapman,* 504 S.W.3d 18, at 28 (Ky. 2016), notes an exception to the rule enunciated in *Spears,* holding: "If an opinion expert's only way to learn the facts material to his or her opinion is to hear the trial testimony of other witnesses, then a trial court abuses its discretion by sequestering that expert."

The factors a reviewing court will consider in determining whether it was abuse of discretion for a trial court to allow violation of this rule include: (1) the relative importance of the witness's testimony, (2) effect on potential testimony by what the witness already heard, (3) the reasonableness of the litigant's failure to anticipate the need for the witness to be separated, and (4) the contribution of a party to rendering a violation of the rule. *Hatfield v. Commonwealth*, 250 S.W.3d 590 (Ky. 2008).

If a witness violates the rule, the court cannot automatically preclude the witness' testimony, but must hold a hearing before ruling. *Henson v. Commonwealth*, 812 S.W.2d 718 (Ky. 1991). Counsel is free to talk to his or her own witnesses, but it is a violation of the rule to communicate to witnesses who are yet to testify what the testimony of other witnesses has been. *Smith v. Miller*, 127 S.W.3d 644 (Ky. 2004).

READING THE INDICTMENT

See "Practice Tip: Bifurcated Trials" on page 3. Many judges also read the first part of RCr 9.56 after reading the charges: "The law presumes the defendant to be innocent of a crime, and the indictment shall not be considered as evidence or as having any weight against him or her."

PROSECUTION THEORY OF THE CASE

Prosecutors sometimes prefer to try a case in the alternative. For example in *Commonwealth v. Wirth*, 936 S.W.2d 78 (Ky. 1997), the prosecution did not have to elect at the start of the trial which part of the DUI statute it was proceeding under. Similarly, in a murder case, a prosecutor might want to argue that the shooting of the victim was either wanton or intentional. From a defense perspective, this may create a situation that deprives the defendant of his right to a unanimous

verdict under § 7 of the Kentucky Constitution and RCr 9.82(1). The 6th Amendment also grants a right to unanimous verdict in serious cases. *Ramos v. Louisiana*, 140 S.Ct. 1390 (2020). The general rule is that alternative theories for the same offense, and "combination" instructions providing for both alternatives, do not violate the right to a unanimous verdict if the evidence would support a conviction under either theory. *Wells v. Commonwealth*, 561 S.W.2d 85 (Ky. 1978); *Commonwealth v. Combs*, 316 S.W.3d 877 (Ky. 2010). On the other hand, when the jury is presented with alternative theories of guilt in the instructions, and one of those theories is unsupported by the evidence, then the right to a unanimous verdict has been denied. For example, in *Boulder*, the evidence at trial proved only intentional assault but the jury instructions allowed the jury to choose between either intentional or wanton states of mind. *Boulder v. Commonwealth*, 610 S.W.2d 615 (Ky. 1980), *overruled on other grounds*. Note that *Ramos*, *supra*, may suggest a potentially larger federal protection for the right to a unanimous verdict.

In other circumstances, shifting theories of liability can deprive a defendant of the due process right to present a defense. In *Grider v. Commonwealth*, 390 S.W.3d 803, 821 (Ky. 2013), the Commonwealth repeatedly failed to provide the defense with a bill of particulars and then shifted theories of criminal liability in its opening statement. The court ruled that a defendant "should not be required to shoot at a moving target" and dismissed the case with prejudice. See also *Stumpf v. Mitchell*, 367 F.3d 594 (6th Cir. 2004), *overruled on other grounds*, in which it was ruled a due process violation for a prosecutor to use two conflicting theories concerning the identity of the shooter to convict both the defendant and his accomplice in two separate proceedings.

PROSECUTION OPENING STATEMENT

The prosecutor may state the nature of the charge and the evidence upon which he or she will rely to support it. RCr 9.42(a).

"The office of an opening statement is to outline to the jury the nature of the charge against the accused and the law and facts counsel relies upon to support it, so the jury may follow and understand the testimony as it falls from the lips of witnesses. It is highly improper to attempt to sway the jury by making statements as to facts which counsel knows he cannot prove or will not be permitted to introduce. It is never proper in an opening statement for counsel to argue the case or to give his personal opinions or inferences from the facts he expects to prove." *Turner v. Commonwealth*, 240 S.W.2d 80 (Ky. 1951).

The prerecorded statements of witnesses cannot be played during opening statements. *Fields v. Commonwealth*, 12 S.W.3d 275, 281 (Ky. 2000).

It is not reversible error for a prosecutor to fail to mention every element of the offense during his opening statement. *Hourigan v. Commonwealth*, 883 S.W.2d 497 (Ky. App. 1994).

It is reversible error for a prosecutor to discuss evidence that the court has ruled inadmissible. *Linder v. Commonwealth*, 714 S.W.2d 154 (Ky.1986). *See also* KRE 103(c). Prosecutor's comment in opening statement that the evidence would show the defendant was a two-time convicted persistent felon violates the rule prohibiting comment on inadmissible evidence. *Polk v. Greer*, 222 S.W.3d 263 (Ky. App. 2007).

If the prosecutor opens on evidence prejudicial to the defendant but fails to later introduce evidence to support it, the proper remedy is a motion for mistrial. *Williams v. Commonwealth*, 602 S.W.2d 148 (Ky. 1980); *Parker v. Commonwealth*, 241 S.W.3d 805, 809 (Ky. 2007).

Practice Tip: PowerPoint presentations. The Kentucky Court of Appeals agreed that PowerPoint presentations are essentially a "high-tech blackboard" in *Compton v. St. Elizabeth Medical Center, Inc.*, 2004-CA-000135-MR, 2005 WL 327116, Ky. App. Feb. 11, 2005, *unpublished*. "The use of blackboards or other visual aids rests in the sound discretion of the trial court." *Meglemry v. Bruner*, 344 S.W.2d 808, 809 (Ky. 1961) *overruled in part*. If the prosecution intends to use a PowerPoint presentation: (1) Move to Review It in Advance. If it is an opening statement, the presentation must be an accurate reflection of the evidence. (2) Object to Prejudicial "Special Effects." Computer-generated simulations, animations, and sound effects should not take the place of evidence. (3) Make Sure the Presentation Goes Into the Record on Appeal. In video jurisdictions, most court room cameras will not pick up presentations displayed on a wall or a screen. The cameras are pointed at the judge, attorney tables, and witness box, instead. Ask the court to have the prosecution put a copy of the presentation in the record. See also "Computer Generated Visual Evidence" on page 58.

PROSECUTION WITNESSES

The physical layout of the courtroom must allow the defendant to confront witnesses face-to-face. *Star v. Commonwealth*, 313 S.W.3d 30 (Ky. 2010). This includes the prosecutor standing between the defendant and, say, a child witness. *Sparkman v. Commonwealth*, 250 S.W.3d 667 (Ky. 2008). *See also Gentry v. Deuth*, 381 F. Supp. 2d 630 (W.D. Ky. 2004). The only small exception is child victims meeting certain criteria under KRS 421.350.

Once a witness is subpoenaed, the witness can only be excused by the court. Defense counsel is entitled to rely on the fact that the Commonwealth had subpoenaed a witness and it was improper for the prosecutor to contact the witness and tell him he need not appear at trial. *Anderson v. Commonwealth*, 63 S.W.3d 135, 141 (Ky. 2001). KRPC 3.4(a) says an attorney cannot obstruct access of an opposing party to a witness.

Confrontation Clause Under *Crawford*

The potential testimony of all prosecution witnesses should be considered by counsel to ensure that the client's 6th Amendment right to confront witnesses as detailed in *Crawford v. Washington*, 541 U.S. 36 (2004), is protected. *Crawford* prohibits the admission of "testimonal" evidence which is not subect to cross examination by the accused either at trial or at some prior date. For example, in light of *Crawford*, statements against penal interest made by witnesses unavailable for trial are no longer admissible in a criminal trial unless the defendant had the opportunity to confront the witness at the time the statement was made. *Terry v. Commonwealth*, 153 S.W.3d 794 (Ky. 2005). See also *U.S. v. Cromer*, 389 F.3d 662 (6th Cir. 2004), in which it was a violation of the confrontation clause for the investigating officer to tell the jury what the non-testifying confidential informant said about the name of the person he sold drugs to, as well as the physical description of that person and what happened during the transaction.

Other Kentucky cases adopting and applying *Crawford* include: *Jackson v. Commonwealth*, 187 S.W.3d 300 (Ky. 2006); *Heard v. Commonwealth*, 217 S.W.3d 240 (Ky. 2007); *Turner v. Commonwealth*, 248 S.W.3d 543 (Ky. 2008); *Hartsfield v. Commonwealth*, 277 S.W.3d 239 (Ky. 2009); *Parker v. Commonwealth*, 291 S.W.3d 647 (Ky. 2009); and *Commonwealth v. Stone*, 291 S.W.3d 696 (Ky. 2009). *Crawford* does not apply to hearsay statements admitted in pretrial proceedings in which hearsay is admissible. *Oakes v. Commonwealth*, 320 S.W.3d 50 (Ky. 2010).

Co-defendants

The prosecutor cannot call a co-defendant to testify that he pleaded guilty to the charges, or introduce a co-defendant's conviction on the same charges. The convictions of co-defendants are not substantive evidence. "'It has long been the rule in this Commonwealth that it is improper to show that a co-indictee has already been convicted under the indictment.' To make such a reference and to blatantly use the conviction as substantive evidence of guilt of the indictee now on trial is improper regardless of whether the guilt has been established by plea or verdict, whether the indictee does or does not testify, and whether or not his testimony implicates the defendant on trial." *Tipton v. Commonwealth*, 640 S.W.2d 818 (Ky. 1982), citing *Parido v. Commonwealth*, 547 S.W.2d 125 (Ky. 1977) and *Martin v. Commonwealth*, 477 S.W.2d 506 (Ky. 1972). Of course, none of this prevents defense counsel from admitting evidence of a co-defendant's plea or plea bargain

in order to challenge their credibility, although that permits the Commonwealth to introduce relevant specifics. *See Mayse v. Commonwealth*, 422 S.W.3d 223 (Ky. 2013) (finding no error where defense counsel cross examined on plea agreement and Commonwealth then rehabilitated witness using details of the entire plea agreement).

Reversible error occurred when the Commonwealth, over the defendant's objection, called the defendant's co-indictee to the stand knowing she would take the Fifth Amendment, and then asked her a question she then declined to answer on Fifth Amendment grounds. *Higgs v. Commonwealth*, 554 S.W.2d 74 (Ky. 1977). *See also Bush v. Commonwealth*, 839 S.W.2d 550 (Ky. 1992). It is improper to call a witness knowing he will refuse to testify. *Combs v. Commonwealth*, 74 S.W.3d 738, 742 (Ky. 2002), citing *Clayton v. Commonwealth*, 786 S.W.2d 866 (Ky. 1990). For a discussion of the admissibility of co-defendant's statements, see "Separate Trials" on page 23.

Improper Testimony

Repeated unsolicited statements from the Commonwealth's witness on direct examination give rise to the inference that either the witness or the Commonwealth is out of control and, together with other prosecutorial misconduct, can rise to the level of reversible error. *Eldred v. Commonwealth*, 906 S.W.2d 694 (Ky. 1994), *overruled on other grounds*, citing *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky. 1988), *overruled on other grounds*.

It is reversible error requiring mistrial which no admonition can cure for a prosecutor to question a witness in order to assert the content of a former conversation with the witness. Assertions of fact from counsel concerning the contents of a prior conversation with the witness have the effect of making the prosecutor the witness and allow the prosecutor to testify to matters no witness has testified to. The prosecutor should not have been allowed to lead her own prosecution witness. *Holt v. Commonwealth*, 219 S.W.3d 731 (Ky. 2007).

Improper Rebuttal Evidence

RCr 9.42 allows rebuttal evidence from either party. The rule regarding rebuttal evidence is that the Commonwealth should present all of its substantive evidence concerning the elements of the offense in its case-in-chief instead of waiting to present it in rebuttal, especially if the defense has already rested. It is taking undue advantage of a defendant to withhold important evidence till rebuttal. *See, e.g.*, *Archer v. Commonwealth*, 473 S.W.2d 141 (Ky. 1971); *Gilbert v. Commonwealth*, 633 S.W.2d 69 (Ky. 1982). There is no rebuttal exception to RCr 7.24(1), requiring the Commonwealth to disclose any incriminating statements made by the defendant, *Chesnut v. Commonwealth*, 250 S.W.3d 288 (Ky. 2008), so an attempt to reserve undisclosed evidence for rebuttal is doubly problematic.

In *Rowe v. Commonwealth*, 50 S.W.3d 216 (Ky. App. 2001), it was error for the trial court to allow the prosecution to introduce evidence of the defendant's charges involving disorderly conduct and the use of obscene language in public as rebuttal to the defendant's assertion that he had never used obscene language in public. Whether the defendant used obscene language was entirely collateral to the issue of whether the defendant assaulted the victim.

The defendant's prior convictions can be used to impeach him on the issue of credibility, or they can be used to impeach any character witness called by the defendant. But when character was not at issue, it was improper for the prosecution to offer those convictions in rebuttal in order to show the bad character of the defendant. The convictions were inadmissible for that purpose. *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005).

False Testimony

Due process was denied the defendant when the State's key witness testified falsely that he had received no promise of consideration in return for his testimony and the Assistant State's Attorney who had promised the consideration did nothing to correct the false testimony. *Napue v. Illinois*, 360 U.S. 264 (1959). A state may not knowingly use false evidence, including false testimony, to obtain a tainted conviction. *Id*. This principle is implicit in any concept of ordered liberty and does not cease to apply simply because the false testimony goes only to the credibility of a witness. *Id*.

In order to justify reversal when the defendant's conviction was based on false testimony and when the prosecutor did not know that the testimony was false, the defendant must show that there is a reasonable certainty that the testimony was false and that the conviction probably would not have resulted had the truth been known to the jury. *Commonwealth v. Spaulding*, 991 S.W.2d. 651 (Ky. 1999).

The jury was allowed to deliberate the defendant's sentence based on false testimony in *Fegley v. Commonwealth*, 337 S.W.3d 657 (Ky. App. 2011) when the probation officer testified that the defendant could receive a maximum of 120 years in prison when, in fact, he could not receive more than 70 years.

Truthfulness of Witnesses

It is improper to permit a witness to testify that another witness ("declarant") has made prior consistent statements absent an express or implied charge against the declarant of recent fabrication or improper influence. Otherwise, the witness is impermissibly vouching for the truthfulness of the declarant. *Dickerson v. Commonwealth*, 174 S.W.3d 451 (Ky. 2005). A number of cases listed below examine the contours of this prohibition and generally stand for the proposition that commentary on another witness's truthfulness is rarely, if ever admissible.

- It was reversible error to allow the police detective to testify about the prior consistent statements of the victim in a sexual assault case when the victim had already given detailed testimony and the victim's motive to fabricate, if it existed, remained the same from the start of the investigation to the time of trial. The detective's testimony concerning the prior consistent statements had no probative value and was also highly prejudicial, as it served only to bolster the victim's credibility. *Smith v. Commonwealth*, 920 S.W.2d 514 (Ky. 1995).
- Testimony of a social worker was inadmissible hearsay as an attempt to bolster the victim's testimony where social worker testified before any attack had been made on victim's credibility. *Reed v. Commonwealth*, 738 S.W.2d 818 (Ky. 1987). It was reversible error to allow the social worker to unfairly bolster the credibility of the alleged victim. *Smith v. Commonwealth*, 920 S.W.2d 514 (Ky. 1995); *Sanderson v. Commonwealth*, 291 S.W.3d 610 (Ky. 2009).
- A police officer was improperly allowed to bolster the credibility of an informant when he testified that the informant was reliable and that the informant's work had always ended in convictions. *Farrow v. Commonwealth*, 175 S.W.3d 601 (Ky. 2005).
- Commonwealth's witness was improperly allowed to testify while holding a Bible. *Brown v. Commonwealth*, 983 S.W.2d 513 (Ky. 1999).
- It was an inadmissible attempt to bolster the victim's identification of the defendant when the police officer testified that the victim's eyes "got larger" when she first spotted a photograph of the defendant. *McGuire v. Commonwealth*, 573 S.W.2d 360 (Ky. App. 1978).
- Improper bolstering occurred in *Ruiz v. Commonwealth,* 471 S.W.3d 675 (Ky. 2015) when the investigating officer, while careful not to repeat what he was told in an initial interview, was allowed to testify to the demeanor of the alleged victim of sexual abuse as the interview progressed. The only purpose for this testimony from the officer was to bolster the victim's credibility.
- The cumulative effect of repeated bolstering by hearsay was palpable error requiring reversal when the statements and credibility of a child witness were the only evidence against the defendant. *Alford v. Commonwealth*, 338 S.W.3d 240 (Ky. 2011).
- A medical professional's testimony as to who the child identified as the perpetrator during a medical examination is improper hearsay and is not covered under the medical treatment exception to the rule of hearsay. *Colvard v. Commonwealth*, 309 S.W.3d 239 (Ky. 2010); *Hoff v. Commonwealth*, 394 S.W.3d 368 (Ky. 2011).
- Improper bolstering was found to be palpable error and manifest injustice in *King v. Commonwealth*, 472 S.W.3d 523 (Ky. 2015), when the investigating officer was allowed to tell the jury that a task force on child sexual abuse composed of local officials and prominent citizens had reviewed the case and recommended prosecution.

The opposite of bolstering is also prohibited. "A witness should not be required to characterize the testimony of another witness… as lying." This includes defendants. *Moss v. Commonwealth,* 949 S.W.2d 579, 583 (Ky. 1997). This has "long been the rule in this state and what is overwhelmingly the majority rule in other jurisdictions…" *Duncan v. Commonwealth*, 322 S.W.3d 81, 87 (Ky. 2010). *See also Liggett v. People,* 135 P.3d 725 (Colo. 2006), collecting cases. These are commonly referred to in appellate circles as "*Moss* violations."

Investigative Hearsay

Investigative Hearsay refers to a claim that testimony about what an officer was told in the course of an investigation is somehow admissible through the officer's testimony. The Supreme Court has repeatedly admonished prosecutors on this point. In *Sanborn v. Commonwealth*, 754 S.W.2d 534, 541 (Ky. 1988), the court stated: "Prosecutors should, once and for all, abandon the term 'investigative hearsay' as a misnomer, an oxymoron." It repeated this admonition in *Ruiz v. Commonwealth*, 471 S.W.3d 675 (Ky. 2015) (containing a full analysis of the issue).

The police officer's actions must somehow be at issue before this kind of testimony is relevant under KRE 401. *Daniel v. Commonwealth*, 905 S.W.2d 76. 79 (Ky.1995); *Stringer v. Commonwealth*, 956 S.W.2d 883, 887 (Ky. 1997). For example, an officer cannot testify to what he was told by the radio dispatcher that caused him to pull the defendant's car over unless the defendant has made that relevant by "opening the door" and claiming an improper motive in the stop. *White v. Commonwealth,* 5 S.W.3d 140, 142 (Ky. 1999). Likewise, it is error to allow a police officer to testify to why he was suspicious of a defendant in a drug-trafficking case. Such testimony is based on hearsay and is also irrelevant. *Gordon v. Commonwealth*, 916 S.W.2d 176 (Ky. 1995). It was reversible error to allow a police officer to testify that he received an anonymous tip that the defendant was trafficking in drugs when the evidence reflected directly on the defendant's guilt, in spite of the fact it was offered to show why the officer arrested the defendant. *Kerr v. Commonwealth*, 400 S.W.3d 250 (Ky. 2013).

Furthermore, since a defendant can only make such testimony relevant by "opening the door" and attacking the officer or the investigation, this testimony will almost never be relevant during the Commonwealth's direct examination.

Habit Evidence

Prosecution witnesses should not be allowed to testify to the habits or routines of a certain class of people in order to show that the defendant acted in the same way. What other people usually do is not evidence of what the defendant did. This sort of habit evidence is not the kind allowed by KRE 406 which allows evidence as to the habits of particular individuals.

"Profile" evidence is inadmissible in any criminal case to prove either guilt or innocence. *Dyer v. Commonwealth*, 816 S.W.2d 647, 652 (Ky. 1991), *overruled on other grounds*. *See also Tungate v. Commonwealth*, 901 S.W.2d 41, 43 (Ky. 1995); *Pendleton v. Commonwealth*, 685 S.W.2d 549, 553 (Ky. 1985). Likewise, it was error to admit testimony that methamphetamine users are usually skinny and that 85% of them also use the product, *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005), and reversible error to allow testimony that 90% of all abused children delay the reporting of the abuse. *Miller v. Commonwealth*, 77 S.W.3d 566 (Ky. 2002). It was error to solicit evidence that coal truck drivers run red lights and blow their horns, implying that the defendant, a coal truck driver, acted likewise. *Johnson v. Commonwealth*, 885 S.W.2d 951, 953 (Ky. 1994). Finally, reversible error occurred when the opinion testimony of a police detective included that the defendant, after shooting the victims, did not act like people who had lawfully defended themselves, but instead acted like someone who was fabricating a self-protection defense in *Ordway v. Commonwealth*, 391 S.W.3d 762 (Ky. 2012).

Recorded Statements and Narration

When narrating video footage, witnesses are limited to a description of events to which they have personal knowledge and it is improper to allow a witness to interpret the footage or offer opinions. *Boyd v. Commonwealth*, 439 S.W.3d 126 (Ky. 2014). It was error to allow an officer to narrate a recording and testify to matters to which he had no personal knowledge and to express opinions regarding the role played by the defendant in the drug deal. *Commonwealth v. Wright*, 467 S.W.3d 238 (Ky. 2015).

Most recorded interrogations include assertions from the officer that the defendant is not being truthful in some way. In *Lanham v. Commonwealth*, 171 S.W.3d 14 (Ky. 2005), the court ruled that the detective's comments could be heard by the jury in order to provide the context of the defendant's replies, but that the statements were not to be introduced to prove the truth of the matter asserted, and that the trial court should give a limiting admonition to that effect. In *Fields v. Commonwealth*, 12 S.W.3d 275, 279-82 (Ky. 2000), the court ruled that in the case of a video recording of the investigation of a crime scene, the video portion was admissible but the audio voiceover, including the repetition of the defendant's alleged confession, was hearsay. See also *Fulcher v. Commonwealth*, 149 S.W.3d 363 (Ky. 2004), in which the court also

ruled that the audio portion of the video was hearsay, but the defendant failed to object. Compare *Brown v. Commonwealth*, 2004-SC-0021-MR, 2005 WL 387437, Ky., Feb. 17, 2005, *unpublished*, in which an expert commented on the contents of a video. When a tape, such as a recording of a drug deal, is partially inaudible, the court must decide whether the problems are serious enough to mislead the jury or make the entire piece of evidence untrustworthy. *Gordon v. Commonwealth*, 916 S.W.2d 176, 180 (Ky. 1995); *Perdue v. Commonwealth*, 916 S.W.2d 148, 155 (Ky. 1995). An informant cannot act as an "interpreter" of the tape, clarifying inaudible sections as the tape is played. The witness must rather testify from memory, *Gordon, supra*, at 180. It is not within the discretion of a trial court to provide a jury with the prosecutor's version of inaudible or indistinct portions of an audiotape. *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky. 1988), *overruled on other grounds*. The detective improperly interpreted the audio recording of the drug deal in *Childers v. Commonwealth*, 332 S.W.3d 64 (Ky. 2010).

Gruesome or Explicit Photographs and Videos

Admission of an excessive number of gruesome crime scene and autopsy photographs required reversal in *Hall v. Commonwealth*, 468 S.W.3d 814 (Ky. 2015). The trial court admitted a ten-minute video of the crime scene as well as 43 crime scene and autopsy photographs, 28 of which were admitted over objection. The Supreme Court went over every one of the 28 photographs in its opinion. Reversal was required in *Purdom v. Commonwealth,* 2014-CA-002079-MR, 2016 WL 2586080, Ky. App. April 22, 2016, *unpublished,* when the court allowed admission of sexually explicit videos without viewing the videos beforehand, conducting the "probative v. unduly prejudicial" balancing test required by KRE 403, and making appropriate findings of fact.

Charts and Descriptions

Admission of a chart drawn by an absent informant was hearsay and reversible error. *Salinas v. Commonwealth*, 84 S.W.3d 913 (Ky. 2002). Cross-examination of the witness concerning the hearsay did not waive the objection to the admission of the evidence. *Id*. It was error for the court to admit into evidence police-created crime scene reconstruction diagrams through the testimony of an officer who had not been present at the scene at the time of the shooting and thus did not have personal knowledge of the locations of persons and items represented in the diagram; his testimony was inadmissible "investigative" hearsay. *Gosser v. Commonwealth*, 31 S.W.3d 897 (Ky. 2000).

In a case in which a social worker did an out-of-court experiment with a child and a stuffed animal to determine whether the child could have harmed his sibling, the court held that the foundation requirement for testimony involving out-of-court experiments is sufficient similarity between the test conditions and the actual event. *Rankin v. Commonwealth*, 327 S.W.3d 492 (Ky.2010).

Computer Generated Visual Evidence

Demonstrative computer generated visual evidence (CGVE) usually consists of still images or animation which merely illustrates a witness's testimony, while *substantive* CGVE usually consists of computer simulations or recreations which are prepared by experts and which are based on mathematical models in order to recreate or reconstruct an accident or event. The admissibility of CGVE is analyzed in the same way as hand-drawn diagrams or photographically created evidence. It has to be relevant, is subject to exclusion on grounds of prejudice, confusion, or waste of time, is subject to the trial court's discretion over the mode and order of presentation of evidence, and has to be authenticated by testimony of a witness that he or she has personal knowledge of the evidence's subject matter and that the evidence is accurate. CGVE which is merely illustrative of a witness's testimony does not normally depend for admission on testimony as to how the data was gathered or put into the computer. *Gosser v. Commonwealth*, 31 S.W.3d 897 (Ky. 2000). See also "Practice Tip: PowerPoint presentations" on page 54.

ADMONITIONS

The general rule is that admonitions to juries are presumed to cure the prejudice of hearing inadmissible evidence. *Mills v. Commonwealth*, 996 S.W.2d 473, 485 (Ky. 1999). If you want the court to declare a mistrial, you need to be able to explain why an admonition would not be a sufficient remedy. "There are only two circumstances in which the presumptive

efficacy of an admonition falters: (1) when there is an overwhelming probability that the jury will not be able to follow the court's admonition and there is a strong likelihood that the effect of the inadmissible evidence would be devastating to the defendant; or (2) when the question was asked without a factual basis and was 'inflammatory' or 'highly prejudicial.'" *Combs v. Commonwealth*, 198 S.W.3d 574, 581-82 (Ky. 2006), *citing Johnson v. Commonwealth*, 105 S.W.3d 430, 441 (Ky. 2003). Whether a "curative admonition" is sufficient may depend upon the nature and extent of the statements heard by the jury. For example, the KY Supreme Court speculated that a curative admonition would not "unring the bell" of victim testimony about a sexual assault that was subsequently stricken in *Commonwealth v. Barroso*, 122 S.W.3d 554, 565 (Ky. 2003). The Sixth Circuit has held it would not "unring the bell" of the mention of inadmissible polygraph evidence. *United States v. Murray*, 784 F.2d 188, 189 (6th Cir. 1986).

OBJECTIONS

Objections, Legal Standard

KRE 103(a)(1) requires "a timely objection or motion to strike…stating the specific ground of objection, if the specific ground was not apparent from the context" in order to preserve the objection for appellate review. State the grounds of the objection unless the context makes them obvious. If the trial court denies counsel an opportunity to approach the bench and explain the objection, do it "[a]t the first reasonable opportunity to preserve the record." *Anderson v. Commonwealth*, 864 S.W.2d 909, 912 (Ky. 1993).

Conversely, when your evidence is objected to and that objection may be sustained, KRE 103(a)(2) requires you to provide an offer of proof in order to preserve the issue. This means that "the substance of the evidence was made known to the court by offer or was apparent from the context within which questions were asked."

Objections, Purpose of

Appellate courts view objections as giving the trial court the opportunity to do the right thing. For example: "It is the duty of counsel who wishes to claim error to keep current on the law, and to object with specificity so that the trial judge will be advised on how to instruct. The underlying purpose of such a rule is to obtain the best possible trial at the trial level and to call any error to the attention of the trial judge, thereby affording him the opportunity to give the correct instructions." *Gibbs. v. Commonwealth*, 208 S.W.3d 848, 854 (Ky. 2006), *overruled on other grounds*.

Another example: "If there has been no motion for a directed verdict at the close of all the evidence, it cannot be said that the trial judge has ever been given the opportunity to pass on the sufficiency of the evidence as it stood when finally submitted to the jury." *Kimbrough v. Commonwealth*, 550 S.W.2d 525, 529 (Ky. 1997).

The entire philosophy of preservation is based on this principle. Appellate courts will not grant relief when the trial court was never given the opportunity to do so. "[T]he entire premise for the principle that issues not presented to the trial court are not preserved for appellate review is that the trial court should be afforded a reasonable opportunity to rule upon alleged errors that were not brought to his attention and otherwise could have been corrected at trial." *Manns v. Commonwealth*, 80 S.W.3d 439, 442-43 (Ky. 2002).

Objections, Ruling Required

If an objection is made, the party making it must insist on a ruling or the objection is waived. *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005); *Bell v. Commonwealth*, 473 S.W.2d 820, 821 (Ky. 1971); *Harris v. Commonwealth*, 342 S.W.2d 535, 539 (Ky. 1960).

Objections, Request Relief

When an objection is sustained, counsel must ask the court for appropriate relief. If an objection is overruled, the contemporaneous objection (see RCr 9.22) preserves the issue on appeal. On the other hand, if an objection is sustained, there is no further issue preserved for appeal unless the defendant also then requests a mistrial, admonition, or some other remedy which is then denied. "An admonition is appropriate only if the objection is sustained." *Barnes v. Commonwealth*, 91 S.W.3d 564, 568 (Ky. 2002). "In the absence of a request for further relief, it must be assumed that appellant was satisfied

with the relief granted, and he cannot now be heard to complain." *Baker v. Commonwealth*, 973 S.W.2d 54, 56 (Ky. 1998). "[M]erely voicing an objection, without a request for a mistrial or at least an admonition, is not sufficient to establish error once the objection is sustained." *Hayes v. Commonwealth*, 698 S.W.2d 827, 829 (Ky. 1985). The exact same situation obtains when a trial court offers an admonition and the defendant declines to accept it – it is the same as never asking for one.

Practice Tip: Cascade your requests for remedies. Start with mistrial. Accept an admonition if it is offered and helpful, but be clear that you are not waiving the motion for mistrial. Tell the court what admonition you want the jury to be given and why only that admonition could cure the prejudice caused by the disclosed information.

Also, if the court refuses to admit evidence the defendant believes should be admitted, suggesting a limiting instruction along with the evidence will affect the standard of review on appeal. Failure to offer such an instruction, however, leaves the standard of review at palpable error. KRE 105(b). You must also provide an offer of proof if the substance of the evidence is not already clear. KRE 103(a)(2).

Continuing Objections

"Continuing objections" are those which are made at the start of witness testimony on an issue and intended to cover all of the testimony given by the witness that violates a particular legal principle. They are generally not the best practice, especially in light of the fact that KRE 103(a)(1) requires that objections be made "stating the specific ground of objection." Virtually the only time when a continuing objection is safe and appropriate is when counsel objects that the witness is incompetent to testify to anything at all; for example, the testimony might violate the marital privilege, or the same irrelevant evidence is being repeated by different witnesses, or the witness is literally incompetent to testify. In any other situation, counsel should be prepared to follow RCr 9.22 and KRE 103 and make a contemporaneous objection, stating specifically the testimony objected to and specifically what objection is being made. *Dickerson v. Commonwealth*, 174 S.W.3d 451 (Ky. 2005); *Davis v. Commonwealth*, 147 S.W.3d 709 (Ky. 2004).

Judge's Role at Trial

Aside from ruling on the order, mode of presentation, and admissibility of evidence, the two main duties of a trial judge, according to the Kentucky Rules of Evidence, are to: (1) help the jury find the truth, KRE 102 and 611(a)(i), and (2) make sure the jury is not misled or confused, KRE 403. Either of these can always serve as the grounds for an objection.

Constitutional Grounds

Failure to constitutionalize your grounds for objection could mean that your client may someday be barred from appealing to the Federal District Court or the U.S. Supreme Court. In order to appeal to either of those courts, the defendant will have to be able to show that the state court had an opportunity to consider and correct violations of federal constitutional rights. *See Duncan v. Henry*, 513 U.S. 364 (1995). For example, United States Supreme Court Rule 14 says that a petition for a writ of certiorari must contain a statement specifying "the stage in the proceedings, both in the court of first instance and in the appellate courts, when the federal questions sought to be reviewed were raised; the method or manner of raising them and the way in which they were passed on by those courts...." See "CONSTITUTIONAL CHECKLIST" on page 62.

Remember that the right to present a defense is itself a federal constitutional right to due process. "The right of an accused in a criminal trial to due process is, in essence, the right to a fair opportunity to defend against the State's accusations." *Chambers v. Mississippi*, 410 U.S. 284, 294 (1973.) "Whether rooted directly in the Due Process Clause of the Fourteenth Amendment…or in the Compulsory Process or Confrontation clauses of the Sixth Amendment…, the Constitution guarantees criminal defendants a meaningful opportunity to present a complete defense." *Crane v. Kentucky*, 476 U.S. 683, 690 (1986).

Practice Tip: Joining a Co-Defendant's Objections. Appellate courts will not automatically assume that a defendant has joined in his co-defendant's objections or motions. Joining a motion must, therefore, be done explicitly on the record. Attorneys may file a notice that the defendant intends to join in all objections and remind the court again at the beginning of the trial, however, RCr 9.22 and KRE 103(a) suggest there may still be a duty to contemporaneously identify that you join in the objection.

Practice Tip: Being Explicit. In some decisions, remarks which would normally be understood as nothing more than ordinary politeness and civility have been interpreted on appellate review as waivers of some very important issues. In *Alley v. Commonwealth*, 160 S.W.3d 736 (Ky. 2005), defense counsel spent a good deal of time arguing that his client should not be forcibly medicated to gain competency to stand trial. The trial court refused to rule on the issue, saying there was no proper motion before the court on the matter. Defense counsel's response was "That's fine. We understand." The appellate court ruled that defense counsel had, by saying that, waived the issue he had fought over so long and hard. In *Lattner v. Commonwealth*, 2005-CA-001239-MR, 2006 WL 2924653, Ky. App. Oct. 13, 2006, *unpublished*, the defendant had testified that he was against the use of drugs. The prosecutor wanted to impeach the defendant with a former conviction for drug possession over defense objection. The trial judge responded by saying that he thought the defendant had opened the door to the impeachment by setting himself up as a "innocent lamb type guy." Defense counsel's response was, "That's fine." Even though the appellate court explicitly acknowledged that defense counsel had objected to the intended impeachment, it ruled that defense counsel had waived the issue on appeal by then saying "That's fine." So, be polite, but remain explicit about your client's position.

CONSTITUTIONAL CHECKLIST

BAIL

Federal: 8th Amendment
Stack v. Boyle, 342 U.S. 1 (1951)
Kentucky: KY Constitution Sections 2, 16, 17
Fryrear v. Parker, 920 S.W. 2d 519 (Ky. 1996)
Marcum v. Broughton, 442 S.W. 2d 307 (Ky. 1969)

COMPULSORY PROCESS

Federal: 6th Amendment
Pennsylvania v. Ritchie, 480 U.S. 39, 55-56 (1987) (right to compulsory process is same as that afforded by due process)
Kentucky: KY Constitution Section 11
Justice v. Commonwealth, 987 S.W. 2d 306 (Ky. 1998)

CONFRONTATION & CROSS-EXAMINATION

Federal: 6th Amendment
Crawford v. Washington, 541 U.S. 36 (2004)
Kentucky: KY Constitution Section 11
Dillard v. Commonwealth, 995 S.W. 2d 366 (Ky. 1999)
Rogers v. Commonwealth, 992 S.W. 2d 183 (Ky. 1999)

CRUEL & UNUSUAL PUNISHMENT

Federal: 8th Amendment
Gregg v. Georgia, 428 U.S. 153 (1976) (plurality opinion)
cf. Harmelin v. Michigan, 501 U.S. 957 (1991) (no majority for non-capital offense)
Kentucky: KY Constitution Sections 2, 17
Sizemore v. Commonwealth, 485 S.W. 2d 498 (Ky. 1972)
Cornelison v. Commonwealth, 84 Ky. 583, 2 S.W. 235 (1886)

COUNSEL (Right to Counsel; Effective Counsel; Self-Representation/Hybrid Counsel)

Federal: 6th Amendment
Gideon v. Wainwright, 372 U.S. 335 (1963)
Coleman v. Alabama, 399 U.S. 1, 9 (1970) (at critical stage)
Geders v. U.S., 425 U.S. 80, 88 (1976) (access during long recess)
Strickland v. Washington,466 U.S. 668 (1984) (effective counsel)
Kentucky: KY Constitution Section 11
Ivey v. Commonwealth, 655 S.W. 2d 506 (Ky. App. 1983) (Effective counsel)
Hill v. Commonwealth, 125 S.W. 3d 221 (Ky. 2004) (Self/hybrid representation)
Baucom v. Commonwealth, 134 S.W. 3d 591 (Ky. 2004) (hybrid representation)

DOUBLE JEOPARDY

Federal: 5th Amendment
Lockhart v. Nelson, 488 U.S. 33 (1988);
Blockburger v. United States, 284 U.S. 299 (1932)
Kentucky: KY Constitution Section 13
Benton v. Crittenden, 14 S.W. 3d 1 (Ky.1999)

DUE PROCESS (5th Amendment in Federal; 14th Amendment in State)

Federal: 5th & 14th Amendment
Chambers v. Mississippi, 410 U.S. 284, 294 (1973) (opportunity to present defense)
Crane v. Kentucky, 476 U.S. 683, 690 (1986) (opportunity to present defense)
Fuentes v. Shevin, 407 U.S. 67 (1972) (right to notice)
Kentucky: KY Constitution Sections 2, 3, 10, 11, 14 ("Due course of law")
Commonwealth v. Raines, 847 S.W. 2d 724 (Ky. 1993)

EQUAL PROTECTION
Federal: 5th & 14th Amendment
McGinnis v. Royster, 410 U.S. 263 (1973) (unequal treatment under statute)
Kentucky: KY Constitution Sections 1, 2, 3, 59
Yost v. Smith, 862 S.W. 2d 852 (Ky.1993)
Commonwealth v. Brown, 911 S.W. 2d 279 (Ky. App. 1995)
Commonwealth v. Howard, 969 S.W. 2d 700 (Ky. 1998)

EX POST FACTO (Prohibition against)
Federal: Art. 1, Sec. 9 cl. 3, and Sec. 10
Weaver v. Graham, 450 U.S. 24, 30 (1980)
Kentucky: KY Constitution Section 19
Martin v. Chandler, 122 S.W. 3d 540 (Ky. 2003) (the ex post facto clause applies only when a legislature retroactively renders behavior criminal. When a court does it, it violates due process, not ex post facto.)
Bouie v. City of Columbia, 378 U.S. 347, 354–55 (1964).

FREEDOM OF SPEECH
Federal: 1st Amendment
Gooding v. Wilson, 405 U.S. 518 (1972) (violation of 1st Amend. to criminalize language short of "fighting words.")
Kentucky: KY Constitution Section 8
Musselman v. Commonwealth, 705 S.W. 2d 476 (Ky. 1986) (citing *Gooding v. Wilson*)

GRAND JURY INDICTMENT
Federal: None
Green v. United States, 356 U.S. 165, 184 (1958) (no right to grand jury indictment in contempt cases);
cf., Hamling v. U.S., 418 U.S. 87 (1974) (if indicted, sufficiency required)
Kentucky: KY Constitution Section 12
King v. City of Pineville, 222 Ky. 73, 299 S.W. 1082 (1927)
Commonwealth v. Baker, 11 S.W. 3d 585 (Ky. 2000)

INFORMED OF NATURE OF ACCUSATION
Federal: 6th Amendment
Hamling v. United States, 418 U.S. 87 (1974) (sufficiency required)
Kentucky: KY Constitution Section 11
Carter v. Commonwealth, 404 S.W. 2d 461 (Ky. 1966)

JURY TRIAL
Federal: 6th Amendment
Sullivan v. Louisiana, 508 U.S. 275 (1993)
Johnson v. Louisiana, 406 U.S. 356 (1972) (no federal right to jury of 12).
Kentucky: KY Constitution Sections 7 (right to a 12-person jury), 11
Commonwealth v. Simmons, 394 S.W.3d 903 (Ky. 2013)
Jackson v. Commonwealth, 113 S.W. 3d 128 (Ky. 2003)
Whitler v. Commonwealth, 810 S.W. 2d 505 (Ky. 1991)

PRESENT A DEFENSE
Federal: 6th Amendment & 14th Amendment
Crane v. Kentucky, 476 U.S. 683, 690-91 (1986)
Washington v. Texas, 388 U.S. 14 (1976) (right to present witness)
Chambers v. Mississippi, 410 U.S. 284 (1973) (presenting defense trumps evidence rules)
Kentucky: KY Constitution Section 11
Beaty v. Commonwealth, 125 S.W. 3d 196 (Ky.2003) (right to due process includes "the right to present a defense")

PRIVACY

Federal: 5th Amendment & 14th Amendment

Lawrence v. Texas, 539 U.S. 558 (2003) (Due process protects personal decisions re: marriage, procreation, contraception, family relationships, child rearing, and education)

Kentucky: KY Constitution Sections 1, 2, 3

Commonwealth v. Wasson, 842 S.W. 2d 487 (Ky.1992), *Crutcher v. Commonwealth,* 500 S.W.3d 811 (Ky. 2016)

PUBLIC TRIAL

Federal: 6th Amendment

Waller v. Georgia, 467 U.S. 39 (1984)

Kentucky: KY Constitution Section 11

Lexington Herald-Leader Co. v. Meigs, 660 S.W. 2d 658 (Ky. 1983)

RIGHT OF APPEAL

Federal: None

Griffin v. Illinois, 351 U.S. 12 (1956) (if state grants appeal, it must afford due process and equal protection to poor appellants)

Kentucky: KY Constitution Section 115

Fraser v. Commonwealth, 59 S.W. 3d 448 (Ky. 2001)

Stahl v. Commonwealth, 613 S.W. 2d 617 (Ky. 1981)

SEARCH & SEIZURE

Federal: 4th Amendment

Terry v. Ohio, 392 U.S. 1 (1968) (prohibition against unreasonable searches)

Kentucky: KY Constitution Sections 1, 10

Commonwealth v. Robey, 337 S.W. 2d 34 (Ky. 1960)

Holbrook v. Knopf, 847 S.W. 2d 52 (Ky. 1993)

Colbert v. Commonwealth, 43 S.W. 3d 777(Ky. 2001)

SELF INCRIMINATION

Federal: 5th Amendment

Griffin v. California, 380 U.S. 609 (1965) (treating silence as "substantive evidence of guilt" violates 5th Amendment).

Kentucky: KY Constitution Section 11

Jones v. Commonwealth, 303 Ky. 666, 198 S.W. 2d 969 (1947)

Mace v. Morris, 851 S.W. 2d 457 (Ky. 1993)

SPEEDY TRIAL

Federal: 6th Amendment

Barker v. Wingo, 407 U.S. 514, 530 (1972)

Kentucky: KY Constitution Section 11

Hayes v. Ropke, 416 S.W. 2d 349 (Ky. 1967)

UNANIMOUS VERDICT

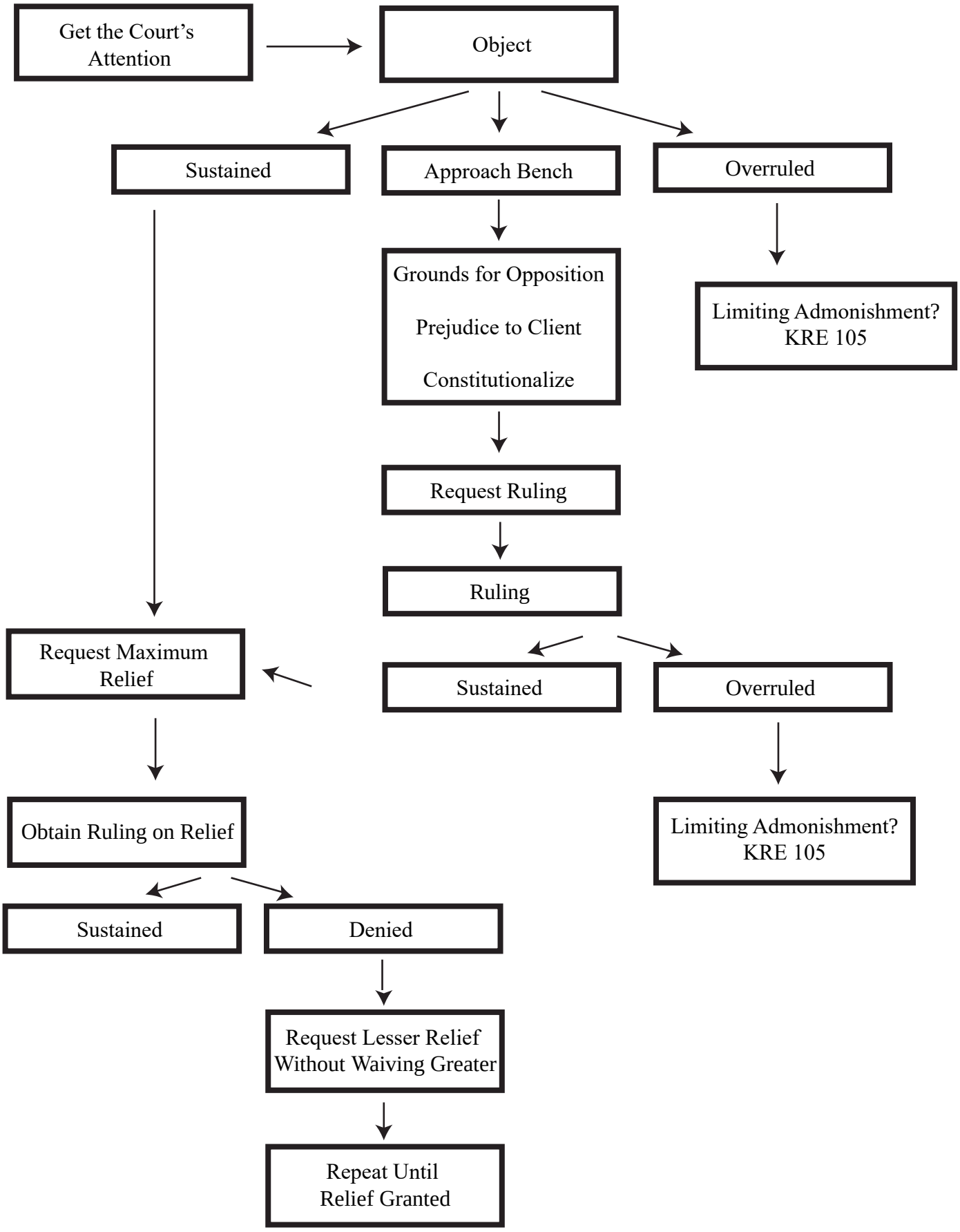
Federal: 6th Amendment; 14th Amendment

Ramos v. Louisiana, 140 S.Ct. 1390, 1397 (2020).

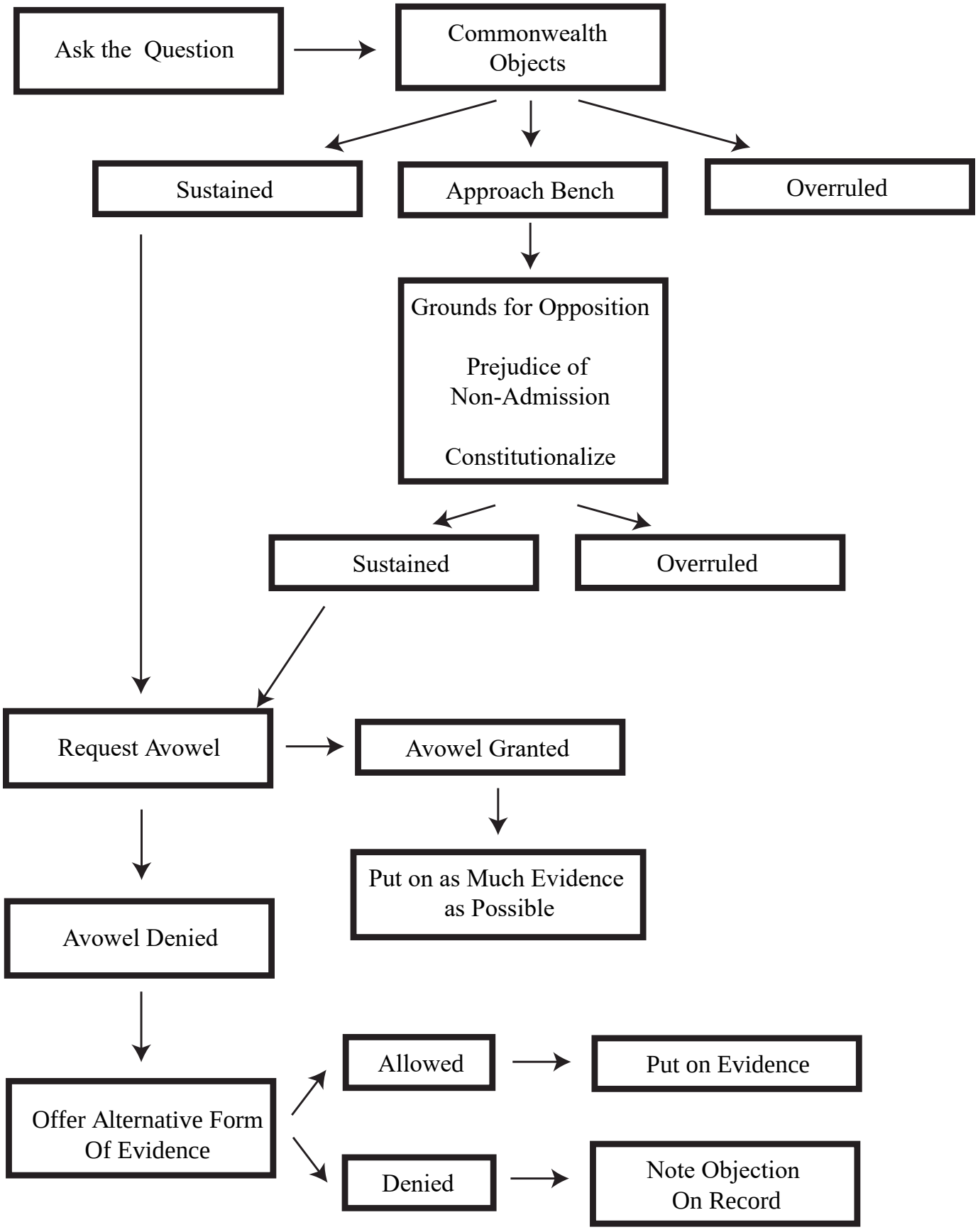
Kentucky: KY Constitution Section 7

Miller v. Commonwealth, 77 S.W. 3d 566 (Ky. 2002)

EXCLUDING EVIDENCE



ADMITTING EVIDENCE



MISTRIAL

Before a mistrial is appropriate the record must reflect a "manifest necessity" for such an extraordinary remedy. *Skaggs v. Commonwealth*, 694 S.W.2d 672, 678 (Ky. 1985). For a mistrial to be proper, the harmful event must be of such magnitude that a litigant would be denied a fair and impartial trial and that the prejudicial effect could be removed in no other way. *Gould v. Charlton Co., Inc.*, 929 S.W.2d 734 (Ky.1996); *Combs v. Commonwealth*, 198 S.W.3d 574 (Ky. 2006).

As a general rule, a mistrial granted on the defendant's motion removes any double jeopardy bar to a retrial. *Commonwealth v. Deloney*, 20 S.W.3d 471 (Ky. 2000), *citing Stamps v. Commonwealth*, 648 S.W.2d 868 (Ky. 1983). In *United States v. Dinitz*, 424 U.S. 600 (1976), an exception to this rule was recognized "where 'bad-faith conduct by judge or prosecutor,' threatens the '[h]arassment of an accused by successive prosecutions or declaration of a mistrial so as to afford the prosecution a more favorable opportunity to convict' the defendant." *Id*. "Even if a criminal defendant successfully moves for a mistrial ..., he may still invoke the bar of double jeopardy in a second effort to try him if the conduct giving rise to the successful motion for a mistrial was intended to provoke him into moving for a mistrial." *Commonwealth v. Grider*, 390 S.W.3d 803, 823 (Ky. App. 2013). *See also, Couch v. Maricle*, 998 S.W.2d 469, 470-71 (Ky. 1999). Mistrials or declared sua sponte by the court, or requested by the prosecutor, will bar retrial if the defense does not affirmatively consent and there is not a "manifest necessity" for the mistrial. *See Commonwealth v. Padgett*, 563 S.W.3d 639 (Ky. 2018) (reviewing history of "manifest necessity" law); *Cardine v. Commonwealth*, 283 S.W.3d 641 (Ky. 2009) (holding defense is not required to object to mistrial to secure double jeopardy bar).

CROSS-EXAMINATION

Scope

The Kentucky Rules of Evidence embody a rule of wide open cross-examination and allow questioning concerning any matter relevant to any issue in the case, subject to judicial discretion regarding the control of the interrogation of witnesses and the production of evidence. KRE 611; *Derossett v. Commonwealth*, 867 S.W.2d 195 (Ky. 1993).

The credibility of a witness may always be questioned. KRE 607 says: "The credibility of a witness may be attacked by any party, including the party calling the witness." KRE 611(b) says: "A witness may be cross-examined on any matter relevant to any issue in the case, including credibility." Section 11 of the Kentucky Constitution and the Sixth Amendment of the United States Constitution preserve the right to confront witnesses.

According to KRE 611(a), cross-examination may be limited by the court in order to, "(1) make the interrogation and presentation effective for the ascertainment of the truth; (2) avoid needless consumption of time; and (3) protect witnesses from harassment or undue embarrassment." The question is then, when do such limitations violate fundamental constitutional rights at stake?

Any refusal to allow cross-examination on bias when the witness' testimony is crucial to the prosecution's case constitutes reversible error. *Delaware v. Van Arsdall*, 475 U.S. 673 (1986); *Davis v. Alaska*, 415 U.S. 308, 318 (1974); *Commonwealth v. Cox*, 837 S.W.2d 898 (Ky. 1992). In *Cox* the defendant was not allowed to conduct any cross-examination of the witness. Furthermore, the denial of effective cross-examination requires automatic reversal and prejudice need not be demonstrated. *Eldred v. Commonwealth*, 906 S.W.2d 694, 702 (Ky. 1994), *overruled on other grounds*. Since a limitation on impeachment impinges on a defendant's right to confrontation, a court should err on the side of allowing impeachment. *Caudill v. Commonwealth*, 120 S.W.3d 635 (Ky. 2003).

Legal Standard

In *Weaver v. Commonwealth*, 955 S.W.2d 722, 726 (Ky. 1997), the court held that, in order for the right to confront to be satisfied, the jury must be given enough information to make the desired inference. In *Bratcher v. Commonwealth*, 151 S.W.3d 332 (Ky. 2004), and *Commonwealth v. Maddox*, 955 S.W.2d 718, 721 (Ky. 1997), the court held that "So long as a reasonably complete picture of the witness's veracity, bias and motivation is developed, the judge enjoys power and discretion to set appropriate boundaries." *Maddox* at 721, quoting *U.S. v. Boylan*, 898 F.2d 230, 254 (1st Cir. 1990). In *Beaty v. Commonwealth*, 125 S.W.3d 196 (Ky. 2003), the court held that a defendant must be allowed "reasonable" cross-

examination in order to demonstrate the witness's bias, animosity, or any other reason why the witness might testify falsely. In *Spears v. Commonwealth*, 558 S.W.2d 641, 642 (Ky. App. 1977), the court held that "In weighing the testimony the jury should be in possession of all facts calculated to exert influence on a witness." This was repeated in *Davenport v. Commonwealth*, 177 S.W.3d 763, 768 (Ky. 2005). It is generally reversible error to refuse to allow cross-examination when "the facts clearly support an inference that the witness was biased, and when the potential for bias exceeds mere speculation." *Davenport*, *supra*, at 769.

The test on review of a court's refusal to allow cross-examination is whether "a reasonable jury might have received a significantly different impression of the witness's credibility had defense counsel been permitted to pursue his proposed line of cross-examination." *Davenport v. Commonwealth*, 177 S.W.3d 763 (Ky. 2005); *Commonwealth v. Cox*, 837 S.W.2d 898, 901 (Ky. 1992), quoting *Olden v. Kentucky*, 488 U.S. 227, 232 (1988), quoting *Delaware v. Van Arsdall*, 475 U.S. 673, 680 (1986).

Parole or Probation

Refusal to allow cross-examination on the fact that the witness was on probation was reversible error when the witness was crucial to Commonwealth's case, and the witness's testimony lacked corroboration. *Davis v. Alaska*, 415 U.S. 308 (1974); *Commonwealth v. Cox*, 837 S.W.2d 898 (Ky. 1992). In *Commonwealth v. Armstrong,* 556 S.W.3d 595 (Ky. 2018), the Kentucky Supreme Court held that the defendant should have been allowed to cross-examine the prosecution witness as to his lifetime status as a parolee stemming from a murder conviction to show bias or motive to lie under KRE 611, even if the 30-year-old offense was too remote in time to be admissible under KRE 609(b). But compare *Davenport*, *supra*, in which the witness's probation was in another county and his testimony was corroborated by other prosecution witnesses, lessening the effect of their bias.

Pending Charges

The general rule is that evidence that a witness has been arrested or charged with a criminal offense, as opposed to evidence of a conviction, is not admissible for purposes of attacking the witness's credibility. *See Moore v. Commonwealth*, 634 S.W.2d 426 (Ky. 1982). An exception to this rule is that a defendant may question a witness concerning criminal charges against him to demonstrate a motive to curry favorable treatment from the prosecution. *Star v. Commonwealth*, 313 S.W.3d 30 (Ky. 2010); *Spears v, Commonwealth*, 558 S.W.2d 641 (Ky. App. 1977). The trial court should allow defense counsel to question a key prosecution witness about the possibility of a deal with the Commonwealth. *Williams v. Commonwealth*, 569 S.W.2d 139 (Ky. 1978). Pending charges in another county, however, are not admissible for this purpose when the prosecutor is not in any position to grant any leniency to the witness. *Bowling v. Commonwealth*, 80 S.W.3d 405 (Ky. 2002), see also *Davenport*, *supra*. In such a case, questioning should be premised on the witness's subjective understanding of the prosecutor's ability to affect their out-of-county case, which may still be relevant.

Procedure for Impeaching with Prior Inconsistent Statement

1. Confirm the substance of the witness's current testimony
2. Lay the foundation for the inconsistent statement and accredit the statement (don't be afraid to be elaborate)
    - Do you recall meeting with, talking with…
    - On (the date)
    - (Two weeks) after the (event); closer to the time of the actual event
    - You were under oath to tell the truth
    - It was important that you tell the truth
    - And you wanted to tell the truth
3. Show the document to the prosecution (if there is a document) and ask to approach the witness
4. Confront the witness with the statement

- You said, told the officer, etc.
- (If in a document, show it to the witness)

5. The witness either then acknowledges the statement or not.
    - If the witness acknowledges that the prior statement was more accurate, there is no need to examine further because the witness has adopted the statement as true and thereby corrected their testimony. The witness may also acknowledge the statement but disagree with it, but that likely will be the subject of the Commonwealth's re-direct.
    - If the witness denies the statement, substantive evidence proving the statement (i.e. recording, witness statements, testimony of investigators, etc) is now admissible substantive evidence.

A hostile witness may not escape impeachment with a prior inconsistent statement simply by saying, "I don't remember." *Wise v. Commonwealth*, 600 S.W.2d 470 (Ky. App. 1978); *United States v. Hadley*, 431 F.3d 484, 512 (6th Circuit 2005). In such circumstances they can still be impeached with a prior statement because the statement shows that they do remember.

When it comes time for closing argument, remember that in Kentucky the prior inconsistent statement may be argued as substantive evidence, meaning you can argue the truth of the matter asserted by the prior statement. *Jett v. Commonwealth*, 436 S.W.2d 788 (Ky. 1969).

KRE 613 uses the word "different." KRS 801(a)(1) uses the word "inconsistent." Both imply that details have been added, changed, or deleted. The two statements don't have to be strictly contradictory.

DIRECTED VERDICTS

Legal Standard

The test for directed verdict at trial is "the trial court must draw all fair and reasonable inferences from the evidence in favor of the Commonwealth. If the evidence is sufficient to induce a reasonable juror to believe beyond a reasonable doubt that the defendant is guilty, a directed verdict should not be given. For the purpose of ruling on the motion, the trial court must assume that the evidence for the Commonwealth is true, but reserving to the jury questions as to the credibility and weight to be given to such testimony." *Commonwealth v. Benham*, 816 S.W.2d 186, 187 (Ky. 1991).

"[T]he trial court is expressly authorized to direct a verdict for the defendant if the prosecution produces no more than a mere scintilla of evidence." *Benham*, *supra*, at 187-188. See also Susan Balliet's article: "Directed Verdicts in Kentucky: What's Reasonable?" The Advocate, vol. 29, no. 3, July 2007, pp. 5-9. "[S]ince the jury is the sole judge of the credibility of the witnesses, it is never proper for the court to direct a verdict of guilty where there is a plea of not guilty, notwithstanding the fact that the evidence of his guilt may be convincing and wholly uncontradicted." *Bardin v. Commonwealth*, 231 S.W. 208, 209 (1921).

A motion for directed verdict may be made at the end of the Commonwealth's case but must be made at the close of all the evidence in order to fully preserve the issue. *Ray v. Commonwealth*, ___ S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020); *Kimbrough v. Commonwealth*, 550 S.W.2d 525 (Ky. 1977); *Baker v. Commonwealth*, 973 S.W.2d 54, 55 (Ky. 1998). See "DIRECTED VERDICTS, RENEWING" on page 77 for issues specific to the final motion for directed verdict at the close of all evidence.

Must Be Specific

An unspecific, general motion for directed verdict will be viewed on appeal as little better than no motion at all. In order to preserve the issue for appeal, the motion must specify the grounds for the motion. Failure to state a specific ground gives the appellate court nothing to rule on. CR 50.01 says, in part: "A motion for directed verdict shall state the specific grounds therefore." *Pate v. Commonwealth*, 134 S.W.3d 593 (Ky. 2004); *Potts v. Commonwealth*, 172 S.W.3d 345 (Ky. 2005). The usual form of this is identifying the element of the offense for which there is insufficient evidence, with appropriate detail. Motions for directed verdict historically addressed all counts and all lesser included offenses, however the new rule permits a motion for directed verdict on only some counts, and only on the counts charged. *Ray v. Commonwealth*, ___

S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020). See also "Instruction Arguments as Sufficiency of the Evidence Claims" on page 81 for a discussion of best practices when making the argument that a client is entitled to direct verdict on the charged offense where there is sufficient evidence to proceed on a lesser included charge.

Practice Tip: Be Comprehensive Yet Specific. Barring exceptional circumstances, defense counsel should move for a directed verdict on all counts. There is no harm to the client in requesting a ruling from the court on each count because the motion is made outside the presence of the jury. More importantly, a motion as to each count is necessary to preserve appellate review of the sufficiency of the evidence on that count. When making the motion, address each count in turn, allege that the prosecution has failed to meet the directed verdict standard, and then articulate with as much specificity as possible the elements on which the evidence was most lacking. In the middle of trial, counsel may not be aware of a technical deficiency of the evidence buried in the record but even a less than artful motion timely made is substantially better than no motion at all if the case is heard on appeal. Lastly, do not forget to renew this motion at the close of all evidence (if there is any defense evidence presented). Failure to do so will waive the motion entirely. *Ray v. Commonwealth*, ___ S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020).

No Prosecution Appeal

When a trial court grants a motion for directed verdict, an appeal by the prosecutor violates the defendant's right of protection against double jeopardy. A directed verdict is an acquittal of the charges and a dismissal of the case with prejudice on the merits of the defendant's factual guilt or innocence. *Cozzolino v. Commonwealth*, 395 S.W.3d 485 (Ky. App. 2012).

According to *R.S. v. Commonwealth*, 423 S.W.3d 178 (Ky. 2014), the proper motion for a directed verdict in a bench trial is a motion to dismiss under CR 41.02(2). The rule does not require that all evidence be evaluated in the light most favorable to the prosecution. This is also true in all juvenile cases tried to the bench.

Remember that if the prosecutor opens on evidence prejudicial to the defendant but fails to later introduce evidence to support it, the proper remedy is a motion for mistrial. *Williams v. Commonwealth*, 602 S.W.2d 148 (Ky. 1980).

V. THE DEFENSE CASE

RIGHT TO PRESENT A DEFENSE

Legal Standard

"The...'right to present a defense' is firmly ingrained in Kentucky jurisprudence, and has been recognized repeatedly by the United States Supreme Court. An exclusion of evidence will almost invariably be declared unconstitutional when it significantly undermines fundamental elements of a defendant's defense." *Dickerson v. Commonwealth*, 174 S.W.3d 451 (Ky. 2005), quoting *Beaty v. Commonwealth*, 125 S.W.3d 196, 206-207 (Ky. 2003). "It is crucial to a defendant's fundamental right to due process that he be allowed to develop and present any exculpatory evidence in his own defense, and we reject any alternative that would imperil that right." *McGregor v. Hines*, 995 S.W.2d 384, 388 (Ky. 1999) (discussing physical evidence). "A trial court may only infringe upon this right when the defense theory is unsupported, speculative, and far-fetched and could thereby confuse or mislead the jury." *Beaty*, *supra*, at 207.

The defendant's due process right to present a defense was violated when the court precluded the defendant from presenting evidence that the victim was a convicted felon and from recounting the statements the victim had made before, during and after he was shot. *Daugherty v. Commonwealth*, 467 S.W.3d 222 (Ky. 2015).

The right to present a defense includes the rights to: (1) be heard, (2) present evidence central to the defense, (3) call witnesses to testify, and (4) rebut evidence presented by the prosecution. 6th and 14th Amendments to the U.S. Constitution, Sections 2 and 11 of the Kentucky Constitution.

Constitutional Significance

The right to present a defense is a federal constitutional right to due process. "The right of an accused in a criminal trial to due process is, in essence, the right to a fair opportunity to defend against the State's accusations." *Chambers v. Mississippi*, 410 U.S. 284, 294 (1973.) "Whether rooted directly in the Due Process Clause of the Fourteenth Amendment…or in the Compulsory Process or Confrontation clauses of the Sixth Amendment…, the Constitution guarantees criminal defendants a meaningful opportunity to present a complete defense." *Crane v. Kentucky*, 476 U.S. 683, 690 (1986).

As a constitutional right, the right to present a defense is more fundamental than any rule of evidence or procedure. *Chambers v. Mississippi*, 410 U.S. 284, (1972) (common law hearsay rules could not be used to deprive defendant of his right to present evidence that another person had confessed to the killing); *Green v. Georgia*, 442 U.S. 95, 97 (1979) (holding "the hearsay rule may not be applied mechanistically to defeat the ends of justice"); *Crane v. Kentucky*, 476 U.S. 683 (1986) (finding KY rule of criminal procedure could not be used to deprive defendant of his right to prove his confession was not credible); *Olden v. Kentucky*, 488 U.S. 227 (1988); (finding black defendant was deprived of right to present a defense when trial judge prevented cross-examination of white complaining witness on her cohabitation with a black boyfriend); *U.S. v. Foster*, 128 F.3d 949 (6th Cir. 1997) (finding defendant deprived of right to present exculpatory grand jury evidence by trial court's ruling that the witness was not "unavailable" under FRE 804(b)(1)); *Ake v. Oklahoma*, 470 U.S. 68 (1985); (finding defendant deprived of right to present a defense when not allowed to hire psychiatrist to rebut prosecution's case for future dangerousness); *Gardner v. Florida*, 430 U.S. 349 (1977) (finding defendant deprived of right to present a defense when death sentence was imposed in part on basis of information in PSI report which was not disclosed to defendant and defendant had no opportunity to rebut). *See also United States v. Scheffer*, 523 U.S. 303 (1998); *Holmes v. South Carolina*, 547 U.S. 319, 324-5 (2006); *Beaty* and *Dickerson*, *supra*; *Montgomery v. Commonwealth*, 320 S.W.3d 28 (Ky. 2010); *McPherson v. Commonwealth*, 360 S.W.3d 207, 214 (Ky. 2012).

One should also remember *Crawford v. Washington*, 541 U.S. 36 (2004), in which it was held that long-standing exceptions to the hearsay rule (such as statements against penal interest) could not be upheld at the expense of the basic right to confront.

Finally, there are a few rules of procedure which give the court the power to exclude defense evidence which was not disclosed by a deadline. RCr 7.24, 8.07, and 8.27 all give the court exclusionary power. Of course, a rule of procedure does not trump a Constitutional right to present a defense but counsel should expect an argument that they constitutionally can

limit it. If necessary, make sure to argue the right to present a defense, Constitutionalize it, and make sure your objection is on the record.

Alternative Perpetrator

The opportunity to present an "alternative perpetrator" defense is also fundamental to the right to present a defense and should be allowed if the defense can prove the alleged alternative perpetrator had both motive and opportunity, the defense does not waste the court's time, and the evidence is not likely to confuse or mislead the jury. "[I]f the evidence [that the crime was committed by someone else] is in truth calculated to cause the jury to doubt, the court should not attempt to decide for the jury that this doubt is purely speculative and fantastic but should afford the accused every opportunity to create that doubt." Failure to allow the defendant to make this defense was reversible error. *Beaty v. Commonwealth,* 125 S.W.3d 196, 209 (Ky. 2003), quoting *John Henry Wigmore, Evidence in Trials at Common Law*, § 139 (Tiller's rev. 1983). *See also Holmes v. South Carolina*, 547 U.S. 319 (2006); *Blair v. Commonwealth*, 144 S.W.3d 801 (Ky. 2004); *Gray v. Commonwealth,* 480 S.W.3d 254 (Ky. 2016).

Courts sometimes impose limits on this right. In *Luna v. Commonwealth*, 460 S.W.3d 851 (Ky. 2015), the court reasoned that because the defendant could not prove motive and opportunity of the alleged alternative perpetrator, he was not entitled to present alternative perpetrator evidence concerning a former boyfriend of the victim.

Defense Theories

In Kentucky, a defendant has broad ability to present theories of defense. A defendant can assert self-defense against charges of wanton murder, manslaughter, or reckless homicide. *Allen v. Commonwealth*, 5 S.W.3d 137, 139 (Ky. 1999); *Estep v. Commonwealth*, 64 S.W.3d 805, 811 (Ky. 2002). A defendant can also deny commission of a criminal offense and alternatively seek the defense of entrapment. *Morrow v. Commonwealth*, 286 S.W.3d 206 (Ky. 2009). The *Morrow* decision should be examined closely by defense counsel, holding that, "… Kentucky courts are bound to instruct juries on the whole law of the case, *Ward v. Commonwealth*, 695 S.W.2d 404, 406 (Ky. 1985), including alternative instructions when supported by the evidence, *Hayes v. Commonwealth*., 625 S.W.2d 583, 584 (Ky. 1981)." However, the defense cannot alternatively argue two mutually exclusive theories of defense such as self-defense and accident. *Grimes v. McAnulty*, 957 S.W.2d 223 (Ky. 1998). The defense may insist that the court give any instructions which might be agreed upon by a jury based on the evidence. See "INSTRUCTIONS, GENERAL REQUIREMENTS" on page 79.

Self-Representation

A court has an affirmative duty to inquire into a defendant's expressed dissatisfaction with counsel if the defendant raises a substantial basis for that dissatisfaction. The scope of inquiry must be sufficient to establish that counsel is able and prepared to effectively assist the defendant. The court is not obligated to inform the defendant, sua sponte, of his right to hybrid representation. *Padgett v. Commonwealth,* 312 S.W.3d 336 (Ky. 2010). When an indigent defendant seeks to displace his appointed counsel, he must show good cause such as a conflict of interest, a complete breakdown of communications, or an irreconcilable conflict. *Grady v. Commonwealth*, 325 S.W.3d 333 (Ky. 2010).

The warning a court should give a defendant, and the questions the court should ask when that defendant seeks to waive counsel and/or when the defendant requests hybrid or self-representation all fall under *Faretta v. California*, 422 U.S. 806 (1975) and more recently *Iowa v. Tovar*, 541 U.S. 77 (2004). The questions recommended by the Kentucky Supreme Court are listed in *Terry v. Commonwealth*, 295 S.W.3d 819, 824 (Ky. 2009). The inquiry must determine that the defendant is proceeding with "eyes open" to the specific dangers and possible consequences of the decision to forego counsel, and must include such factors as the defendant's education, experience, sophistication, the complexity of the charges or defenses, and the stage of the proceedings. Only a complete warning of the dangers of self-representation can establish the defendant chose to waive counsel knowingly, intelligently, and voluntarily. A strict "script" is not necessary as long as the court adequately determines the defendant is proceeding with "eyes open." *Grady v. Commonwealth*, 325 S.W.3d 333 (Ky. 2010). A new trial was required when the court did not adequately advise the defendant of the hazards of representing himself such that he was proceeding with "eyes open" in *Marcum v. Commonwealth,* 583 S.W.3d 24 (Ky. App. 2019).

The right to represent one's self is constitutional but it is not absolute and unfettered. The court must vigilantly protect that

right and whether self-representation is in the best interests of the defendant or whether the defendant is skilled enough to represent himself are not relevant reasons to deny the defendant the right to self-representation. Nevertheless, the right can be lost when abused, and the trial was proper to deny the defendant the right when it was obvious the defendant asked to represent himself only for the purpose of delaying the proceedings and disrupting the court. *Hummel v. Commonwealth*, 306 S.W.3d 48 (Ky. 2010).

Appointment of stand-by counsel over the objections of the defendant is not a violation of the defendant's *Faretta* rights. However, the pro se defendant is entitled to preserve actual control over the case he chooses to present to the jury and participation by stand-by counsel without the defendant's consent should not destroy the jury's perception that the defendant is representing himself. For example, allowing stand-by counsel to participate in bench conferences over the objection of the defendant violates that perception. *Allen v. Commonwealth*, 410 S.W.3d 125 (Ky. 2013).

In Kentucky, hybrid counsel is a legitimate alternative for a defendant, and he should not be told that his only two alternatives are to be represented by counsel or represent himself. *Mitchell v. Commonwealth*, 423 S.W.3d 152 (Ky. 2014).

AVOWALS

If the court denies the admission of evidence, counsel must ensure that the record contains the contents of that excluded evidence by a process known as an avowal or offer of proof so it is available for consideration by the appellate court.

Legal Standard

KRE 103(a)(2) requires an offer of proof to preserve claims for appeal that the trial court erroneously excluded evidence. That proof must provide "the substance of the evidence was made known to the court by offer or was apparent from the context within which questions were asked." Attorney offers of proof are sufficient in Kentucky, although KRE 103(b) still says that the court: "may direct the making of an offer in question and answer form." Although the terms are sometimes used interchangeably, an "avowal" typically refers to a question an answer submission of the testimony outside the presence of the jury with the actual witness, whereas an "offer of proof" is usually an attorney summary of the testimony. Avowals can also be made with documents which the court has excluded.

Judges may be familiar with a previous process for avowals directed by the old KRE 103(a)(2) and RCr 9.52 (now gone). Kentucky courts previously required avowals by question and answer form to preserve the issue, outside the presence of the jury. *Herbert v. Commonwealth*, 566 S.W.2d 798, 803 (Ky. App. 1978); *Partin v. Commonwealth*, 918 S.W.2d 219 (Ky. 1996); *Commonwealth v. Ferrell*, 17 S.W.3d 520, 524 (Ky. 2000). Counsel may still--and for important issues *should* still--request permission to provide the information in this manner when doing so would help preservation of the issue. KRE 103(b). If done well enough or offered prior to the ruling, the procedure may even cause a court to reconsider their position.

Necessary to Preserve Error

KRE 103(a) explicitly says that failure to make an offer of proof/avowal waives the issue of the excluded evidence. When evidence is being excluded, failure to make an avowal has exactly the same effect of never objecting when evidence is being introduced. For example, the error by the trial court in sustaining objections to cross-examination of a witness could not be a basis for reversal when the defendant failed to request an avowal, in *Jones v. Commonwealth*, 833 S.W.2d 839 (Ky. 1992). An avowal must be specific enough to allow appellate review of the decision to exclude the evidence. *Henderson v. Commonwealth*, 438 S.W.3d 335 (Ky. 2014).

Failure to Allow

It is prejudicial error for a trial court to deny a defendant the opportunity to make an avowal. *Jones v. Commonwealth*, 623 S.W.2d 226 (Ky.1981); *Perkins v. Commonwealth*, 834 S.W.2d 182 (Ky. App. 1992). The accused has a right to make a record sufficient to permit appellate review of the alleged errors. *Powell v. Commonwealth*, 554 S.W.2d 386, 390 (Ky. 1977).

TESTIMONY AND STATEMENTS BY THE ACCUSED

Right to Testify

A defendant has a constitutional right to testify which cannot be waived by counsel or refused by a court. *Quarels v. Commonwealth*, 142 S.W.3d 73 (Ky. 2004). A defendant also has a statutory right to testify in his own behalf under KRS 421.225.

Commenting on Failure to Testify

KRS 421.225 also provides that the defendant's failure to testify "shall not be commented upon or create any presumption against him." "[I]t would be fundamentally unfair and a deprivation of due process to allow the arrested person's silence to be used to impeach an explanation subsequently offered at trial." *Doyle v. Ohio*, 426 U.S. 610, 618 (1976). The jury instruction saying that jurors should not draw any inferences of guilt from the defendant's failure to testify is RCr 9.54(3), and is mandatory if requested.

Commenting on Post-Arrest Refusal to Speak to Police

It is improper to allow an officer to testify that the reason he did not interview the defendant was because the defendant had asked for a lawyer. *Spears v. Commonwealth*, 448 S.W.3d 781 (Ky. 2014). It was an abuse of discretion to admit a video showing the defendant's "selective silence," in which she asked for an attorney and agreed to answer some questions during her interview but refused to answer others. *Baumia v. Commonwealth*, 402 S.W.3d 530 (Ky. 2013). *See also Bartley v. Commonwealth,* 445 S.W.3d 1 (Ky. 2014). The Fifth Amendment forbids either comment by the prosecution on the accused's silence or instructions by the court that such silence is evidence of guilt." *Baumia*, *supra*, at 537, quoting *Griffin v. State of California*, 380 U.S. 609 (1965). The reasoning of these cases also supports exclusion of refusals to speak to police after being read Miranda warnings, even when not under formal arrest.

Commenting on Pre-Arrest Failure to Make Denials

An "adoptive admission by silence" occurs when someone other than a party makes a statement in the presence of the party which the party could be expected to deny if untrue. Failure to deny the statement can be taken as an adoption of the statement. Prosecutors sometimes use this to argue that because your client did not deny involvement to the police (or another party) prior to arrest, his or her silence is admissible as evidence of guilt. *See e.g.*, *Marshall v. Commonwealth*, 60 S.W.3d 513, 521 (Ky. 2001). The Kentucky Supreme Court has made it clear that a simple failure to make a denial which might otherwise be expected in a certain situation is not in itself an adoptive admission by silence. KRE 801A(b)(2) requires an actual statement to be made by someone other than the party, which would normally provoke a denial by the party if untrue. As such, "silence is admissible only in conjunction with the accusatory out-of-court statement, because it is only in the context provided by the out-of-court statement that any meaning can be ascribed to the silent response." *Trigg v. Commonwealth*, 460 S.W.3d 322, 331 (Ky. 2015), citing *Commonwealth v. Buford*, 197 S.W.3d 66, 74 (Ky. 2006); *Moss v. Commonwealth,* 531 S.W.3d 479 (Ky. 2017). *See also Beavers v. Commonwealth*, 612 S.W.2d 131 (Ky. 1980). It is not proper for the prosecutor to ask a witness about a client's failure to deny involvement when the client was not first asked a direct question, by the non-party, regarding their involvement. *Niemeyer v. Commonwealth*, 533 S.W.2d 218 (Ky. 1976), *overruled on other grounds*. Simply listening to his wife describe the daughter's allegations of abuse was not an accusation that triggered the "adoptive admission by silence" exception to the hearsay rule in *King v. Commonwealth,* 554 S.W.3d 343 (Ky. 2018).

Commenting on Pretrial Failure to Mention an Alibi Defense

It was reversible error in *Cunningham v. Commonwealth,* 501 S.W.3d 414 (Ky. 2016) for the court to admit evidence of the defendant's pretrial silence with regard to an alibi witness.

Practice Tip: While pre-arrest silence is not, by itself, admissible as hearsay under KRE 801A, the opinion in *Trigg* leaves unanswered the broader constitutional question of the admissibility of evidence regarding pre-arrest silence in general. Counsel should object and make a constitutionalized record on the 5th Amendment right to remain silent.

A defendant is subject to the same impeachment as any other witness. *Caudill v. Commonwealth*, 120 S.W.3d 635 (Ky. 2003). If the defendant takes the stand to testify, he has waived his 5th Amendment protection against self-incrimination and may be cross-examined regarding his pre-arrest silence. *Gordon v. Commonwealth*, 214 S.W.3d 921 (Ky. App. 2006). If a defendant is being re-tried and testified at the first trial, an authenticated transcript of his prior testimony can be treated as "the equivalent of a deposition." RCr 7.22.

If the defendant decides not to testify because he will be impeached by evidence which should not be allowed into the trial, he cannot preserve his objection to the ruling allowing the evidence by placing his intended testimony in an avowal. The only way to preserve an error allowing improper impeachment of the defendant is for the defendant to testify and then object to the impeachment. *Hayes v. Commonwealth*, 58 S.W.3d 879 (Ky.2001).

When a defendant has made a confession, the confession has been suppressed, and the defendant then testifies in trial in a way inconsistent with his suppressed confession, the defendant, (1) can be impeached with the prior confession if the confession was obtained in violation of the Fifth Amendment right to remain silent. *Harris v. New York*, 401 U.S. 222 (1971). But (2), cannot be impeached with the prior confession if it was obtained in violation of the Fourth Amendment or their right against coerced or involuntary confessions. *Mincey v. Arizona*, 437 U.S. 385 (1978); *Michigan v. Harvey*, 494 U.S. 344 (1990); *Canler v. Commonwealth*, 870 S.W.2d 219, 221 (Ky.1994).

The defendant cannot be cross-examined concerning evidence which has been suppressed because of a defective warrant. *Roberts v. Commonwealth*, 250 S.W. 115 (Ky.1923).

A defendant cannot be impeached with a conviction which is still on appeal. *Tabor v. Commonwealth*, 948 S.W.2d 569 (Ky.1997).

Information given to a pretrial services officer by a defendant under RCr 4.08 is confidential and cannot be used at trial without written consent of the defendant, unless one of the enumerated exceptions applies. *Couch v. Commonwealth*, 256 S.W.3d 7 (Ky.2008).

While testifying in a suppression hearing, the defendant cannot be cross-examined concerning any other issues in the case. KRE 104(d), *Shull v, Commonwealth*, 475 S.W.2d 469 (Ky.1971). A defendant's testimony to establish standing at a suppression hearing cannot be used against the defendant at trial unless the defendant testifies. A defendant is not required to make a "Hobson's choice" between establishing standing under the 4th Amendment and then being impeached with it, or maintaining his 5th Amendment right to remain silent and therefore waiving the suppression issue. *Simmons* v. U.S., 390 U.S. 377 (1968); *Hayes*, *supra*, 58 S.W.3d at 595-96.

When testifying in a probation revocation hearing regarding the circumstances surrounding new criminal charges, the probationer's testimony cannot be used as substantive evidence against him at any later criminal trial on the same conduct,. The court should advise the probationer of this rule. The testimony can be used to rebut or impeach if subsequent testimony from the defendant is inconsistent with that given in the hearing. *Barker v. Commonwealth*, 379 S.W.3d 116 (Ky.2012). The same does not apply to parole revocation hearings.

It is improper for the prosecutor to cross-examine the defendant regarding the criminal record of his companion at the time of the offense, and later refer to the companion as a "felon." *Rowe v. Commonwealth*, 50 S.W.3d 216. (Ky. App. 2001).

If the question of a client committing perjury known to be false by the attorney arises during trial, Rule of Professional Conduct 3.3 requires defense counsel to bring the existence of a potential conflict to the attention of the court. Before the attorney does this, however, "she must in good faith have a firm basis in objective fact for her belief, beyond conjecture and speculation, that the client will commit perjury. ... Counsel must rely on facts made known to her by her client, not on a subjective belief that the client might be lying or that the client's consistent version of events differs from other evidence."

Counsel must then state "all material acts" necessary to establish the conflict between herself and the client. Details are not necessary, "a clear statement of the nature of the problem will suffice." The court may allow defense counsel to ask the defendant, "What do you have to say to the jury?" and then allow the defendant to proceed in narrative form. Counsel should not abandon the defendant by leaving the courtroom. *Brown v. Commonwealth*, 226 S.W.3d 74, 84 (Ky. 2007).

Defense counsel may discourage a defendant from testifying to a version of events in a way different from his previous statements. For example, in *Bratcher v. Commonwealth*, 406 S.W.3d 865 (Ky. App. 2012), defense acted competently by advising the defendant not to testify to a version of events different from the one he gave in his taped statement to police. On the other hand, it is never proper for the court to inaccurately warn a defendant that his decision to testify is likely to result in a charge of perjury. KRS 523.070 excludes denial of guilt as a basis for a perjury charge. *Woolfolk v. Commonwealth*, 339 S.W.3d 411 (Ky. 2011).

The defendant cannot use an expert to testify to the defendant's hearsay statements, and thus use the expert to testify by proxy. *Padgett v. Commonwealth*, 312 S.W.3d 336 (Ky. 2010). RCr 7.22 governs previous testimony. See also KRS 403.745(6) regarding previous statements in a hearing for a protective order.

DEFENSE WITNESSES

Truthfulness of Other Witnesses

A prosecutor cannot badger a defendant or other defense witnesses into characterizing prosecution witnesses as liars. Witnesses should not be asked to give opinions regarding the truthfulness of other witnesses, as that is the province of the jury. *Moss v. Commonwealth*, 949 S.W.2d 579 (Ky. 1997), citing *Howard v. Commonwealth*, 12 S.W.2d 324, 329 (Ky. 1928). "Although to aid in the discovery of truth reasonable latitude is allowed in the cross-examination of witnesses, and the method and extent must from the necessity of the case depend very largely upon the discretion of the trial judge, yet, where the cross-examination proceeds beyond proper grounds or is being conducted in a manner which is unfair, insulting, intimidating, or abusive, or is inconsistent with the decorum of the courtroom, the court should interfere with or without objection from counsel. The court not only should have sustained the objections to this character of examination, but should have admonished counsel against such improper interrogation." *Id*.

An exception to this is in *Lanham v. Commonwealth*, 171 S.W.3d 14 (Ky. 2005), in which the jury was allowed to hear the detective calling the defendant a liar in order to establish the context of the defendant's statements. The accusations of the officer were admitted as "verbal acts" and not for the truth of the matter asserted, and the defense was entitled to have the court admonish the jury to that effect upon request from the defendant.

Fifth Amendment

Generally, the rule is that a witness cannot be called to testify if it is known that, upon being questioned, the witness will take the Fifth Amendment and refuse to answer. *See, e.g.*, *Clayton v. Commonwealth*, 786 S.W.2d 866 (Ky. 1990). There is, however, an exception to that rule in cases in which the witness can be effectively cross-examined without being provoked to take the Fifth Amendment. A defense witness should not be excluded from trial merely upon the speculation that he or she might take the Fifth Amendment on cross-examination. It was reversible error to exclude the witness when the Commonwealth could have effectively cross-examined the witness without asking the questions which would have provoked the witness to invoke the Fifth Amendment privilege. *Combs v. Commonwealth*, 74 S.W.3d 738 (Ky. 2002). Excluding a defense witness is a drastic remedy, and the trial court has limited discretion in disallowing the evidence. *Id*. at 743.

Improper Cross

A judgment of conviction will be reversed when the prosecutor persists in asking improper and prejudicial questions for the purpose of getting evidence before the jury which the law does not permit the jury to hear. *See Stewart v. Commonwealth*, 213 S.W. 185 (Ky. 1919); *Nix v. Commonwealth*, 299 S.W.2d 609 (Ky. 1957); *Rollyson v. Commonwealth*, 320 S.W.2d 800 (Ky. 1959); *Vontrees v. Commonwealth*, 165 S.W.2d 145 (Ky.1942); *Slaven v. Commonwealth*, Ky., 962 S.W.2d 845 (Ky. 1997).

The prosecutor's persistent questioning about matters excluded by the court when a motion in limine was granted to the defendant required reversal in *Cole v. Commonwealth*, 686 S.W.2d 831 (Ky. App. 1985).

A prosecutor should not be allowed to inject false issues into the case during cross-examination. Reversal was required in *Woodford v. Commonwealth*, 376 S.W.2d 526 (Ky. 1964), when the prosecutor injected the false issue of a police chase and in *Coates v. Commonwealth*, 469 S.W.2d 346 (Ky. 1971), when the prosecutor injected the false issue of whether the defendant had trafficked in narcotics while in prison. It was required in *Pace v. Commonwealth*, 636 S.W.2d 887 (Ky. 1982), when the prosecutor asked questions on cross-examination which were based on a factual predicate not supported by the evidence, concerning the time the defendant left his home. It was required in *McClellan v. Commonwealth*, 715 S.W.2d 464 (Ky. 1986), when the prosecutor cross-examined a defense witness concerning whether the defendant was remorseful for killing the wrong man, when there was no evidence the defendant had ever said he killed the wrong person.

Intimidating Defense Witnesses

Prosecutorial misconduct required reversal of a murder conviction when two witnesses informed the prosecutor that they had lied in grand jury testimony and the prosecutor then promised both that he would not prosecute for perjury if they testified truthfully at trial; and then kept the promise to the one witness he called but repudiated the promise to the other who was proposed as a defense witness, causing that second witness to decline to appear and preventing the defendant from presenting exculpatory evidence. *Cash v. Commonwealth*, 892 S.W.2d 292 (Ky. 1995). Compare, *Rushin v. Commonwealth*, 2002-CA-001842-MR, 2003 WL 22359522, Ky. App. Oct. 17, 2003, *unpublished*, in which the court found no prosecutorial misconduct when the Commonwealth threatened to indict a defense witness for perjury if she contradicted her sworn testimony to the grand jury, but the threat did not involve breaking any promise that had been made to the witness. On the other hand, it was a violation of due process and a substantial interference with the witness's free and unhampered choice to testify when the prosecutor threatened to revoke the witness's immunity if he testified at trial. *U.S. v. Foster*, 128 F.3d 949 (6th Cir. 1997).

Reversal is required only when a judge's or prosecutor's conduct interfered substantially with a witness's free and unhampered choice to testify. If some other reason motivated the witness's choice not to testify or if the witness did indeed testify for the defendant anyway, then threats are deemed harmless. See *Hillard v. Commonwealth*, 158 S.W.3d 758 (Ky. 2005), in which an objection to the prosecutor subpoenaing defense witnesses to his office and warning them about perjury was not preserved for review.

DIRECTED VERDICTS, RENEWING

Legal Standard

See "DIRECTED VERDICTS" on page 69 for a full discussion. This section addresses the unique issues to the final motion for directed verdict. A motion for directed verdict may be made at the end of the Commonwealth's case but must be made at the close of all the evidence in order to fully preserve the issue. *Ray v. Commonwealth*, ___ S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020); *Kimbrough v. Commonwealth*, 550 S.W.2d 525 (Ky. 1977); *Baker v. Commonwealth*, 973 S.W.2d 54, 55 (Ky. 1998). The test for directed verdict at the close of all evidence is the same as when made after the close of the Commonwealth's case. *Id*.

Timing

If a specific motion was made at the end of the Commonwealth's case, a later renewal of the motion "on the same grounds" will preserve the issue without need to repeat the specifics. *Hill v. Commonwealth*, 125 S.W.3d 221, 230 (Ky. 2004). If no defense evidence is presented, the motion need not be renewed because the court has heard no additional evidence. *Scruggs v. Commonwealth*, 566 S.W.2d 405 (Ky. 1978). If the court hears any more evidence after the close of the Commonwealth's case-in-chief, then the motion for directed verdict must be renewed, whether the presentation of additional evidence ends with the defense case or with the Commonwealth's rebuttal evidence. *Baker*, *supra*. "In effect, therefore, a motion for directed verdict made only at the close of one party's evidence loses any significance once it is denied and the other party, by producing further evidence, chooses not to stand on it." *Kimbrough*, at 529.

See also "Instruction Arguments as Sufficiency of the Evidence Claims" on page 81 for a discussion of best practices when making the argument that a client is entitled to direct verdict on the charged offense yet there is sufficient evidence to proceed on a lesser included charge.

Once the motion for directed verdict was granted at the close of the prosecution's case, it was a violation of double jeopardy to reinstate the charge at the close of all the evidence, because the defendant had been acquitted of the charge when the court granted the directed verdict at the close of the prosecution's case. *Beaumont v. Commonwealth*, 295 S.W.3d 60 (Ky. 2009).

Practice Tip: Timing Your Directed Verdict Motion. Many factors may influence the decision of when to approach the court with a motion for directed verdict. Procedurally, the final motion must be made at the close of all evidence; however, it is often helpful to seek permission of the court to recess prior to making the motion in order to combine preparation for the motion with preparation for argument on jury instructions, or even closing argument. Jury instruction argument usually immediately follows the motion and an argument that an instruction on an offense should not be given is practically identical to a motion for directed verdict. From the close of the Commonwealth's evidence, trials sometimes move very quickly and counsel should be prepared to slow the process down to ensure that the client can adequately consider their decision whether or not to testify and counsel can consider how best to argue for directed verdict and the proper instructions. See also

VI. TO THE JURY

INSTRUCTIONS, GENERAL REQUIREMENTS

The Judge's Role is to Inform the Jury of the Law

"Educating the jury on legal concepts is the function of the trial court." *Rogers v. Commonwealth*, 315 S.W.3d 303, 307 (Ky. 2010). See also RCr 9.54(1): "It shall be the duty of the court to instruct the jury in writing on the law of the case…." Written jury instructions take precedence over any arguably contradictory oral statements made by the court, but defense counsel should object to any oral statements which contradict the written instructions. *McCloud v. Commonwealth*, 286 S.W.3d 780 (Ky. 2009).

The Judge Must Instruct on the "Whole Law of the Case"

"In a criminal case, it is the duty of the trial judge to prepare and give instructions on the whole law of the case, and this rule requires instructions applicable to every state of the case deducible or supported to any extent by the testimony." *Sanders v. Commonwealth*, 301 S.W.3d 497, 500 (Ky. 2010). *See also Commonwealth v. Collins*, 821 S.W.2d 488 (Ky. 1991); *Gabow v. Commonwealth*, 34 S.W.3d 63 (Ky. 2000), *overruled on other grounds*. Jury instructions must be complete, and the defendant has a right to have every issue of fact raised by the evidence and material to his defense submitted to the jury on proper instructions. *Hudson v. Commonwealth*, 202 S.W.3d 17 (Ky. 2006).

Instructions to the jury discussing penalty ranges are not permissible during the guilt phase. *Day v. Commonwealth*, 361 S.W.3d 299 (Ky. 2012).

Lesser Included Offenses

"When the prosecution adduces evidence warranting an inference of a finding of a lesser degree of the charged offense, the court should instruct on the lesser degree even though the defendant presents the defense of alibi." *Reed v. Commonwealth*, 738 S.W.2d 818, 822-23 (Ky. 1987).

"Although a trial judge has a duty to prepare and give instructions on the whole law of the case, including any lesser included offenses which are supported by the evidence, that duty does not require an instruction on a theory with no evidentiary foundation. An instruction on a lesser included offense is required only if, considering the totality of the evidence, the jury might have a reasonable doubt as to the defendant's guilt of the greater offense, and yet believe beyond a reasonable doubt that he is guilty of the lesser offense." *Houston v. Commonwealth*, 975 S.W.2d 925, 929 (Ky. 1998). *See also* RCr 9.54(1). See "LESSER INCLUDED OFFENSES" on page 85.

Affirmative Defenses

"[W]here a defendant admits he committed the offense charged and attempts to justify or excuse his act, his theory of the case must be presented to the jury in an appropriate instruction. . . . The jury instructions must be complete and the defendant has a right to have every issue of fact raised by the evidence and material to his defense submitted to the jury on proper instructions." *Hayes v. Commonwealth*, 870 S.W.2d 786, 788 (Ky. 1993).

This includes when defenses are presented in the alternative. Kentucky courts are bound to instruct on the whole law of the case, including alternative instructions when supported by the evidence ." *Morrow v. Commonwealth*, 286 S.W.3d 206, 213 (Ky. 2009) (allowing the defendant to deny elements of the offense and assert a claim of entrapment).

A client is not required to testify to invoke an affirmative defense, "but there must be sufficient other evidence of record to justify an instruction on [that defense.]" *Saxon v. Commonwealth*, 315 S.W.3d 293, 301 (Ky. 2010). See the list starting at "Specific Defenses: Justification" on page 83 additional information on affirmative defenses.

Interpretation of Evidence

Instructions cannot direct the jury on how to interpret the evidence. "[A]s a general matter, evidentiary matters should be omitted from the instructions and left to the lawyers to flesh out in closing arguments." *Harp v. Commonwealth*, 266 S.W.3d 813, 819 (Ky. 2008).

Elements of the Offense

Instructions should clearly instruct the jury on the elements of the offense. "[J]ury instructions should tell the jury what it must believe from the evidence in order to resolve each dispositive factual issue while still providing enough information to a jury to make it aware of the respective legal duties of the parties. . . . But instructions must not be so bare bones as to be misleading or misstate the law." *Harp v. Commonwealth*, 266 S.W.3d 813, 819 (Ky. 2008).

Every element of the offense must be submitted to the jury. "Other than the fact of a prior conviction, any fact that increases the penalty for a crime beyond the proscribed statutory maximum must be submitted to a jury, and proved beyond a reasonable doubt." *Apprendi v. New Jersey*, 530 U.S. 466, 489 (2000).

Apprendi

In *Apprendi v. New Jersey*, 530 U.S. 466 (2000), *Ring v. Arizona*, 536 U.S. 584, (2002), and *U.S. v. Booker*, 543 U.S. 220 (2005), the United States Supreme Court ruled that, except for prior convictions, any fact necessary to support an enhanced sentence must be either proven beyond a reasonable doubt or admitted by the defendant. A defendant is entitled to a jury determination of any fact which would increase the maximum punishment for an offense. *See, e.g.*, *Brewer v. Commonwealth*, 478 S.W.3d 363 (Ky. 2016).

Presumption of Innocence

The Court is required to instruct on the presumption of innocence. In every case the jury shall be instructed substantially as follows: "The law presumes the defendant to be innocent of a crime, and the indictment shall not be considered as evidence or as having any weight against him or her. You shall find the defendant not guilty unless you are satisfied from the evidence alone, and beyond a reasonable doubt, that he or she is guilty. If upon the whole case you have a reasonable doubt that he or she is guilty, you shall find him or her not guilty." RCr. 9.56(1).

Right to Remain Silent

The instructions must contain the defendant's right to remain silent, if requested. "The instructions shall not make any reference to a defendant's failure to testify unless so requested by the defendant, in which event the court shall give an instruction to the effect that a defendant is not compelled to testify and that the jury shall not draw any inference of guilt from the defendant's election not to testify and shall not allow it to prejudice the defendant in any way." RCr 9.54(3).

Missing Evidence Instruction

You may be entitled to a missing evidence instruction where the Commonwealth has destroyed evidence. It is proper to give an instruction which reads: "If you believe from the evidence that there existed [missing evidence] and that agents or employees of the Commonwealth intentionally destroyed it, you may, but are not required to, infer that the [missing evidence] would be, if available, adverse to the Commonwealth and favorable to the Defendant." *Johnson v. Commonwealth*, 892 S.W.2d 558, 561 (Ky. 1994).

A missing evidence instruction may be warranted where the evidence is missing. See Coopers Jury Instructions. § 2.06A: "The Commonwealth has lost or released [several items of] evidence involved in this case [including][specifically][missing evidence]. In your deliberations, you may infer, but you are not required to infer, that this evidence, if available now, would be favorable to the defendant's case."

This may apply if the missing evidence is a witness. If requested, it would have been proper to give instruction that the jury "should draw no inference from the absence of a witness, because he was unavailable to either side." *Clayton v. Commonwealth*, 786 S.W.2d 866, 868 (Ky. 1990)

PRESERVATION OF ERROR

Instruction Arguments as Sufficiency of the Evidence Claims

Counsel should make objections to the giving of instructions on all of the offenses for which the evidence is not sufficient for a reasonable jury to find guilt. Historically, objections to specific offense instructions were the proper procedure to object to the sufficiency of the evidence. These objections were in the style of a directed verdict motion as to only some counts or as to the offenses as charged (when there was sufficient evidence on lesser included offenses). After *Ray v. Commonwealth*, ___ S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020), *overruling Campbell v. Commonwealth*, 564 S.W.2d 528, 530 (Ky. 1978), such claims are preserved by a motion for directed verdict and do not have to be renewed in the form of an objection to giving instructions on the same charges. Nevertheless, it may still be important to lodge objections to giving specific offense instructions, especially if counsel is requesting the giving of an instruction on a lesser included offense. *See* "LESSER INCLUDED OFFENSES" on page 85. And of course even where the law requires the giving of an instruction on a specific offense, the Commonwealth may tender an instruction which unfairly characterizes the elements or uses other inappropriate language.

Requirement and Sufficiency of Objection

"No party may assign as error the giving or the failure to give an instruction unless the party's position has been fairly and adequately presented to the trial judge by an offered instruction or by motion, or unless the party makes objection before the court instructs the jury, stating specifically the matter to which the party objects and the ground or grounds of the objection." RCr 9.54(2).

A general objection to the giving of an instruction did not preserve error related to the contents of the instruction which was given. *Shelton v. Commonwealth*, 392 S.W.3d 433 (Ky. App. 2012); *See also McCranney v. Commonwealth*, 449 S.W.2d 914 (Ky. 1970).

Any objection to the jury instructions is waived once the jury begins deliberations. *Moran v. Commonwealth*, 399 S.W.3d 35 (Ky. App. 2013).

Sufficiency of Tendered Instructions

Tendering an instruction and arguing to the court in support of the instruction is not sufficient to preserve the objection. A party must specifically object to the instructions given by the court before the court gives those instructions. *Commonwealth v. Collins*, Ky., 821 S.W.2d 488 (Ky. 1991). Tendered instructions did not preserve error where the instructions were filed with a disclaimer, were not mentioned during the instruction conference, and no objection to the instructions were made. *Smith v. Commonwealth*, 370 S.W.3d 871 (Ky. 2012).

The court's failure to include an instruction requiring the jury to find the defendant guilty of manslaughter rather than murder if they had a reasonable doubt about whether the defendant was acting under an extreme emotional disturbance "was not preserved for appeal because Appellant did not object to the instructions on these grounds, make an appropriate motion, or tender such an instruction." *Sherroan v. Commonwealth*, 142 S.W.3d 7, 23 (Ky. 2004). In order to preserve the claim the defendant must seek an appropriate reasonable doubt instruction. It is not sufficient to seek to add the required language into the manslaughter instruction. *Elery v. Commonwealth*, 368 S.W.3d 78 (Ky. 2012)

An error in a defense tendered instruction was still preserved for review where the defendant specifically objected to that aspect of the instruction. *Elery v. Commonwealth*, 368 S.W.3d 78 (Ky. 2012).

Effect of Failure to Preserve

Unpreserved error in failing to give an instruction is not reviewable on appeal. *Bartley v. Commonwealth*, 400 S.W.3d 714 (Ky. 2013); *Martin v. Commonwealth*, 409 S.W.3d 340 (Ky. 2013); *Roberts v. Commonwealth*, 410 S.W.3d 606 (Ky. 2013). Unpreserved error in a defense tendered instruction is not reviewable on appeal. *Thornton v. Commonwealth*, 421 S.W.3d 372 (Ky. 2013); *Noakes v. Commonwealth*, 354 S.W.3d 116 (Ky. 2011). Unpreserved error when the error was known to defense counsel at the time the instructions were agreed to and defense counsel did not object is not reviewable on appeal.

Graves v. Commonwealth, 384 S.W.3d 144 (Ky. 2012). Unpreserved error in a court instruction is reviewable on appeal only as palpable error. *Owens v. Commonwealth*, 329 S.W.3d 307 (Ky. 2011).

Erroneous or defective jury instructions are presumptively prejudicial and subject to harmless error analysis. They will be analyzed for palpable error when the error is unpreserved and the instructions allow the jury to find guilt under the instructions which do not, on their face, constitute the crimes charged. *Stewart v. Commonwealth*, 306 S.W.3d 502 (Ky. 2010).

Practice Tip: Object to Commonwealth Instructions and File a Set of Jury Instructions in Every Case. It is plain from the law above that this is required to preserve claims of error, but there are many more reasons why counsel should take this step. First, you might get your instructions given! Defense instructions can advance your theory of the case and humanize your client to the jury through the use of their name and relevant details. They also take the jury room deliberation away from the technical language of the law and towards the narrative you have articulated in the trial. Second, proposing instructions forces the court to reexamine motions for directed verdict in the context of actual language choices. Arguing the exact wording of an act, for example, might cause the court to consider your position about whether that act was proven by the Commonwealth's evidence. Lastly, there is no rule prohibiting defense friendly instructions which are supported by law. If you can convince a court to give the instruction, its the law for your jury and you can use that instruction in closing. The Commonwealth's version of jury instructions--like their version of nearly all events at trail--is not the one that best suits our clients.

UNANIMOUS VERDICT

Multiple theories in the same instruction are permitted. Alternate legal theories in the same instruction, when both alternatives are supported by the evidence do not violate the requirement of a unanimous verdict. *Smith v. Commonwealth*, 370 S.W.3d 871 (Ky. 2012); *Buchanan v. Commonwealth*, 399 S.W.3d 436 (Ky. 2012).

Prohibited Instructions

The following situations violate the defendant's right to a unanimous verdict:

Different factual offenses in the same instruction. *Kingrey v. Commonwealth*, 396 S.W.3d 824 (Ky. 2013) (date range in instructions could have related to two separate instances of unlawful transaction with a minor); *Johnson v. Commonwealth*, 405 S.W.3d 439 (Ky. 2013) (date range in instructions could have related to two separate acts of criminal abuse); *Little v. Commonwealth*, 422 S.W.3d 238 (Ky. 2013) (instructions failed to differentiate between two different acts of wanton endangerment). When a defendant is charged with multiple counts of the same offense, the instructions themselves must factually differentiate each count. This error cannot be cured by the Commonwealth differentiating the counts during closing argument. *Harp v. Commonwealth*, 266 S.W.3d 813 (Ky. 2008); *Miller v. Commonwealth*, 283 S.W.3d 690 (Ky. 2009); *Banks v. Commonwealth*, 313 S.W.3d 567 (Ky. 2010).

Not requiring the jury to determine an element of the offense which effects the sentencing range until sentencing. *Rodriguez v. Commonwealth*, 396 S.W.3d 916 (Ky. 2013) (In which the judge did not submit the age of the victim to the jury until sentencing.)

Separate instructions which do not differentiate between offenses. *Alford v. Commonwealth*, 338 S.W.3d 240 (Ky. 2011) (Finding no error because the instructions differentiated between what physical conduct would constitute which charge – rape in count one and sodomy in count two).

Instructions on alternative legal theories where one is not supported by the evidence. *Acosta v. Commonwealth*, 391 S.W.3d 809 (Ky. 2013); *Smith v. Commonwealth*, 366 S.W.3d 399 (Ky. 2012); *Mason v. Commonwealth*, 331 S.W.3d 610 (Ky. 2011) Almost every offense has a required mental state, which is either expressly stated in the statute, or implied by the context. *See* KRS 501.040 (providing that even when no mental state is stated, one may be required by context). However, the precise formulation of the mental state depends upon whether the offense is a result offense or an act offense. *See Commonwealth v. Whitmore*, 92 SW3d 76 (Ky. 2002) (finding instruction defining "trafficking" to include several theories not supported by the evidence denied the defendant a unanimous verdict).

DEFENSES

Defense Theory of the Case

Historically, the claim by the defense that the correct verdict is not guilty has been presented to the jury in the instruction to find the defendant not guilty unless guilt is proven beyond a reasonable doubt. However, when the defense admits one or more of the essential elements of the crimes charged but attempts to avoid conviction by proving facts or circumstances in excuse (i.e., relies on an affirmative defense), "such defendant is entitled to a concrete or definite and specific instruction on the defendant's theory of the case." *Hayes v. Commonwealth*, 870 S.W.2d 786, 788 (Ky. 1993). *See e.g.*, *Slaven v. Commonwealth*, 962 S.W.2d 845 (Ky. 1997) (intoxication); *Sanborn v. Commonwealth*, 754 S.W.2d 534, 549-550 (Ky. 1988); *Kohler v. Commonwealth*, 492 S.W.2d 198 (Ky. 1973); *Rudolph v. Commonwealth*, 504 S.W.2d 340 (Ky. 1974); and *Taylor v. Commonwealth*, 995 S.W.2d 355 (Ky. 1999). "All substantive law related to criminal responsibility, including general principles of liability, accountability, justification and responsibility ... is now statutory, and instructions should be stated within the context of the statutory framework." *McGuire v. Commonwealth*, 885 S.W.2d 931, 936 (Ky. 1994).

Includes Alternative Theories

In *Morrow v. Commonwealth*, 286 S.W.3d 206 (Ky. 2009) the court has re-emphasized the duty to give instructions on the whole law of the case, including alternative theories, even if that might result in inconsistent defense instructions.

Defendant Not Required to Testify

"The defendant need not testify in order to invoke [an affirmative defense] but there must be sufficient other evidence of record to justify an instruction on [that defense.]" *Saxton v. Commonwealth*, 315 S.W.3d 293, 301 (Ky. 2010); *Wyatt v. Commonwealth*, 219 S.W.3d 751 (Ky. 2007) (a defendant does not have to testify to obtain an entrapment instruction if evidence supports it from prosecution or other defense witnesses); *Saxton v. Commonwealth*, 315 S.W.3d 293 (Ky. 2010).

Burden of Proof

When something is identified as a defense (choice of evils, self-defense, intoxication, etc.) the defendant has the burden of production to justify an instruction on the defense. Once that burden has been met, the burden of proof is on the prosecution to prove the absence of the defense beyond a reasonable doubt. That burden requires the instructions to include negating the defense as an element of the offense. *LaPradd v. Commonwealth*, 334 S.W.3d 88 (Ky. 2011); See KRS 500.070.

This does not apply to "exculpation" defenses (e.g., insanity), where the defendant bears the burden to prove the defense by a preponderance of the evidence.

Specific Defenses: Justification

Choice of Evils- KRS 503.030.

Self Defense - KRS 503.050, 503.055. "Once a defendant produces evidence that he acted in self-protection, the burden of proof as to that issue shifts to the Commonwealth and is assigned by including as an element of the instruction on the offense 'that he was not privileged to act in self-protection.'" *Estep v. Commonwealth*, 64 S.W.3d 805, 811 (Ky. 2002). Defense of self-protection is available for crimes with mental states other than intent, i.e. wanton murder, second degree manslaughter and reckless homicide and, if sufficient proof is presented, the absence of self-protection must be included in those instructions. *See also Elliot v. Commonwealth*, 976 S.W.2d 416 (Ky. 1998).

An actual mistaken belief in the need to use self- protection that is not wantonly or recklessly held requires acquittal. *Commonwealth v. Hager*, 41 S.W.3d 828, 836 (Ky. 2001).

A murder instruction which, even though properly including absence of self-defense as an element, required the jury to find the defendant guilty before considering the nature of self-defense, was erroneous. *Commonwealth v. Hager*, 41 S.W.3d 828, 836 (Ky. 2001).

The defendant was entitled to instructions on self-defense, even though he did not testify, and evidence supporting his

belief in the need for the use of force was not strong or free from contradiction. *Hilbert v. Commonwealth*, 162 S.W.3d 921 (Ky. 2005).

The defendant was not entitled to a self-defense instruction on multiple assailants, where the defense theory was that each assailant posed an individual threat, and the instructions permitted a finding of self-defense on that theory. *Ordway v. Commonwealth*, 391 S.W.3d 762 (Ky. 2013).

An instruction on provocation must include language that the defendant acted with intent to cause injury to the victim. *Barker v. Commonwealth*, 341 S.W.3d 112 (Ky. 2011).

The Commonwealth is not entitled to a "no duty to retreat" instruction on behalf of the victim, where the victim was on his own property at the time of the incident. *Jones v. Commonwealth*, 366 S.W.3d 376 (Ky. 2011).

A judge can give wanton and intentional murder instructions even if the defendant claims self-defense. *Allen v. Commonwealth*, 5 S.W.3d 137 (Ky. 1999).

Defenses of self-defense and accident are mutually exclusive. *Grimes v. McAnulty*, 957 S.W.2d 223 (Ky. 1997).

Imperfect Self-Defense - Evidence of imperfect self-defense would justify an instruction on reckless homicide or manslaughter second, but not wanton murder. *Ordway v. Commonwealth*, 391 S.W.3d 762 (Ky. 2013); *Commonwealth v. Rose*, 725 S.W.2d 588 (Ky. 1987) *overruled on other grounds*. From a charge of murder, actual mistaken belief in the need to use self-defense that is wantonly or recklessly held, requires an instruction on second degree manslaughter or reckless homicide. The instruction on imperfect self-defense was flawed when it asked whether the defendant was mistaken in his need to protect himself rather than his belief in the need to protect himself. "[F]ocus of the penal code is on the defendant's actual subjective belief in the need for self-protection and not on the objective reasonableness of that belief." *Commonwealth v. Hager*, 41 S.W.3d 828, 836 (Ky. 2001).

Specific Defenses: Responsibility

Insanity - KRS 504.020. "[T]his Court has repeatedly held that the burden of proof on insanity does not shift to the Commonwealth. In fact, we recently dealt with this issue in Star v. Commonwealth, and reaffirmed this principle, noting the long-standing rule in Kentucky is that "[t]he burden of proof as to the question of a defendant's sanity at the time of a homicide never shifts from the defendant. *Star v. Commonwealth*, 313 S.W.3d 30, 35 (Ky.2010)," quoted in *Thornton v. Commonwealth*, 421 S.W.3d 372, 377 (Ky. 2013).

It was not error for the trial court to include the statutory definition of mental illness in instructions where the defendant raised an insanity defense. *Noakes v. Commonwealth*, 354 S.W.3d 116 (Ky. 2011).

RCr 9.55 states: "On request of either party in a trial by jury of the issue of the absence of criminal responsibility for criminal conduct, the court shall instruct the jury at the guilt/innocence phase as to the dispositional provisions applicable to the defendant if the jury returns a verdict of not criminally responsible by reason of mental illness or retardation, or guilty but mentally ill." However, failure to give instruction on disposition of defendant if jury returns verdict of not guilty by reason of insanity or guilty but mentally ill did not deny defendant due process of law where defendant did not make request that instruction be given. *Port v. Commonwealth*, 906 S.W.2d 327, 330 (Ky. 1995).

Specific Defenses: Liability

Intoxication - KRS 501.080. "Intoxication is a defense to a criminal charge only if such condition either:(1) Negatives the existence of an element of the offense; or (2) Is not voluntarily produced and deprives the defendant of substantial capacity either to appreciate the criminality of his conduct or to conform his conduct to the requirements of the law." KRS 501.080.

Evidence of alcohol or drug use is not enough. "There must be something in the evidence reasonably sufficient to support a doubt that the defendant knew what he was doing." *Harris v. Commonwealth,* 313 S.W.3d 40, 50 (Ky. 2010); *McGuire v. Commonwealth,* 885 S.W.3d 931 (Ky. 1994); *Jewell v. Commonwealth*, 549 S.W.2d 807, 812 (Ky. 1977), *overruled on other grounds*.

Cases where evidence supported an intoxication instruction: *Jewell*, *supra* (defendant claimed at trial he was not drunk but could not remember the crime; others testified he was drunk); *Conyers v. Commonwealth,* 530 S.W.3d 413 (Ky. 2017);

Nichols v. Commonwealth, 142 S.W.3d 683 (Ky. 2004); *Brown v. Commonwealth*, 575 S.W.2d 451 (Ky. 1978); *Mishler v. Commonwealth*, 556 S.W.2d 676, 680 (Ky. 1977) (finding reversible error in the denial of an intoxication instruction even where the defendant's convenient memory loss during the actual commission of offense was preposterous; holding the jury should have been able to consider and decide for itself). *See also King v. Commonwealth,* 509 S.W.3d 34 (Ky. 2017). *But see Hammond v. Commonwealth,* 504 S.W.3d 44 (Ky. 2016)(finding no error in denying intoxication instruction where defendant in robbery and assault case plainly acted intentionally in the view of the trial court).

Ignorance or mistake - KRS 501.070. Mistake of fact which negates the existence of a mental state which is an essential element of the offense requires the court to instruct on this defense. The mistake must be reasonable and the act justified must be taken under bona fide mistaken belief. *Cheser v. Commonwealth*, 904 S.W.2d 239 (Ky. App. 1994), *overruled on other grounds*.

Duress- KRS 501.090. The defendant was entitled to an instruction on duress based on his own testimony that the co-defendant threatened his life even though the factual predicate for his claim was implausible at best. *Taylor v. Commonwealth*, 995 S.W.2d 355 (Ky. 1999).

Innocent Possession – KRS 218A.220. KRS 218A.220 creates a right to instructions on "innocent possession" when the defense is that the drugs were confiscated and held to be turned over to police and when the facts are sufficient to warrant the instruction. *Commonwealth v. Adkins*, 331 S.W.3d 260 (Ky. 2011). In *Crabtree v. Commonwealth*, 455 S.W.3d 390 (Ky. 2014), a motion for directed verdict should have been granted on charges of possession of child pornography on a computer because the evidence did not show the defendant would have had to know the pornography was on the computer.

Entrapment - KRS 505.010. In a trafficking case, the defendant was entitled to an instruction on entrapment since his testimony that he (1) never transferred drugs before, (2) only knew where to locate cocaine because of his prior usage, and (3) received no benefit from his participation in the transfer of cocaine other than satisfying an undercover police informant for whom he had feelings, supports his entrapment defense. *Farris v. Commonwealth*, 836 S.W.2d 451 (Ky. App. 1992).

If a defendant claiming an entrapment defense satisfies the burden to demonstrate that he was induced to engage in the criminal conduct by a government agent seeking to obtain evidence against him for the purpose of criminal prosecution, the burden then shifts to the prosecution to prove beyond a reasonable doubt that the defendant was predisposed to engage in the criminal act prior to inducement by the government or its agent. *Morrow v. Commonwealth*, 286 S.W.3d 206. (Ky. 2009). In *Morrow*, evidence supported a finding that the defendant, induced by the government informant to engage in a transaction involving sale of prescription drugs, was not predisposed to engage in drug trafficking, and thus defendant was entitled to a jury instruction on an entrapment defense in a prosecution for complicity to commit first degree trafficking in a controlled substance. Although there were rumors that the defendant had been involved in the drug trade, the defendant, employed as a part-time deputy jailer at the time of his arrest, had never been in any trouble prior to his arrest, he repeatedly indicated to the informant that he did not sell drugs and was not involved in drugs, and he was not initially named by the informant as being among the people known to have involvement in the drug trade.

Extreme Emotional Disturbance - KRS 508.040. An instruction on Extreme Emotional Disturbance is only appropriate if there is definite, non-speculative evidence of a "triggering event" which causes an emotional disturbance. *Driver v. Commonwealth*, 361 S.W.3d 877 (Ky. 2012).

LESSER INCLUDED OFFENSES

Definition

KRS 505.020(2): A defendant may be convicted of an offense that is included in any offense with which he is formally charged. An offense is so included when:

> It is established by proof of the same or less than all the facts required to establish the commission of the offense charged; or

It consists of an attempt to commit the offense charged or to commit an offense otherwise included therein; or

It differs from the offense charged only in the respect that a lesser kind of culpability suffices to establish its commission; or

It differs from the offense charged only in the respect that a less serious injury or risk of injury to the same person, property[,] or public interest suffices to establish its commission

Kentucky does not use a "same elements" test, but rather a fact based approach. *Hall v. Commonwealth*, 337 S.W.3d 595 (Ky. 2011).

When Required

Lesser included offenses are not technically defenses to any charge, but the defendant is entitled to instructions on them because, in fact and principle, lesser included offenses are defenses against conviction of a higher charge. A judge is required to give instructions on lesser included offenses under his obligation to instruct on the whole law of the case, but does not have to offer them sua sponte, nor does he have to give them in the absence of an evidentiary foundation. *See, e.g.*, *Ward v. Commonwealth*, 695 S.W.2d 404, 406 (Ky. 1985); *Trimble v. Commonwealth*, 447 S.W.2d 348 (Ky. 1969); *Martin v. Commonwealth*, 571 S.W.2d 613 (Ky. 1978); *Luttrell v. Commonwealth*, 554 S.W.2d 75 (Ky. 1977); *Clifford v. Commonwealth*, 7 S.W.3d 371 (Ky. 1999). An instruction on lesser included offenses is also required when it is the prosecution that presents evidence which might support such an instruction. *Commonwealth v. Collins*, 821 S.W.2d 488 (Ky. 1991).

The defendant was entitled to lesser included offense instruction where the jury could have had reasonable doubt as to greater offense but believe that the defendant was guilty of the lesser beyond a reasonable doubt. *Swan v. Commonwealth*, 384 S.W.3d 77 (Ky. 2012). Differences in the level of injuries are usually sufficient to establish an entitlement to a lesser offense instruction. *Id.* . "An appellate court likewise applies this "reasonable juror" standard to a claim that the trial court erred by refusing to give a lesser included offense instruction. Considering the evidence favorably to the proponent of the instruction, we ask, as just noted, whether a reasonable juror could acquit of the greater charge but convict of the lesser." *Allen v. Commonwealth*, 338 S.W.3d 252, 255, n1 (Ky. 2011) citing *Thomas v. Commonwealth*, 170 S.W.3d 343 (Ky.2005); *Osborne v. Commonwealth*, 43 S.W.3d 234, 244 (Ky.2001); *Commonwealth v. Wolford*, 4 S.W.3d 534 (Ky.1999).

Differences in mental state will justify a lesser included offense instruction only if a juror could have a reasonable doubt that the defendant possessed the greater mental state, but still believe beyond a reasonable doubt that he possessed the lesser mental state. *Hudson v. Commonwealth*, 385 S.W.3d 411 (Ky. 2012).

The Commonwealth cannot avoid a lesser included offense instruction merely through artful pleading. So, for example, a defendant charged with wanton murder could get an "intent to injure" instruction for manslaughter in the first degree, even though the mental states were different, so long as the jury could have a reasonable doubt as to the greater and believe in the lesser beyond a reasonable doubt. *Allen v. Commonwealth*, 338 S.W.3d 252 (Ky. 2011).

"When the prosecution adduces evidence warranting an inference of a finding of a lesser degree of the charged offense, the court should instruct on the lesser degree even though the defendant presents the defense of alibi." *Reed v. Commonwealth*, 738 S.W.2d 818, 822-23 (Ky. 1987).

Proper Procedure

If requesting an instruction for a lesser offense, you should object to the giving of the instruction of the greater offense and tender your own proposed instruction for the lesser to preserve any directed-verdict style argument you made as to that charge. This was previously required by law, but after *Ray v. Commonwealth*, ___ S.W.3d ___, WL 2020 WL 6390123 (Ky. 2020), *overruling Seay v. Commonwealth*, 609 S.W.2d 128, 130 (Ky. 1980), it is instead required to move for directed verdict on the original charge to preserve such a claim. Either way, it remains sound practice to object to the giving of the instruction on the original charge to bolster your argument that the lesser charge instruction is warranted. See also "DIRECTED VERDICTS" on page 69 and "DIRECTED VERDICTS, RENEWING" on page 77.

Effect of Requesting or Failing to Request

RCr 9.54 imposes upon the party the duty to inform the trial court of its preferences regarding "the giving or the failure to give" a specific jury instruction. Therefore, when the allegation of instructional error is that a particular instruction should have been given but was not or that it should not have been given but was given, RCr 9.54 operates as a bar to appellate review unless the issue was fairly and adequately presented to the trial court for its initial consideration. *Martin v. Commonwealth*, 409 S.W.3d 340, 346 (Ky. 2013).

Specific Offenses

Assault in the first degree can be a lesser included offense of attempted murder. *Perry v. Commonwealth*, 839 S.W.2d 268 (Ky. 1992); *Hall v. Commonwealth*, 337 S.W.3d 595 (Ky. 2011). **Theft** can be lesser included offense of **robbery**. *Jordan v. Commonwealth*, 703 S.W.2d 870 (Ky. 1981). **Receiving** can be a lesser included offense of **theft**. *Conklin v. Commonwealth*, 799 S.W.2d 582 (Ky. 1990). **Possession of a controlled substance** is a lesser included offense of **trafficking**. *Jackson v. Commonwealth*, 633 S.W.2d 61 (Ky. 1982). The evidence supported a jury instruction on the lesser-included offense of **unlawful possession of a methamphetamine precursor** in the prosecution for **manufacturing methamphetamine** where a plastic jar of salt was seized from the defendant's home and later destroyed, the officer could not describe the salt with any detail, and the salt was not tested to determine if it was the salts of isomers of ephedrine, pseudoephedrine, or phenylpropanolamine. *Burd v. Commonwealth*, 2011-SC-000531-MR, 2012 WL 5289418, Ky. Oct. 25, 2012, *unpublished*.

There is no such thing as attempted **wanton murder** or attempted **manslaughter 1st** (when there is no evidence of extreme emotional disturbance) for the same reason in each case: one cannot intentionally attempt to commit an unintentional act. *Prince v. Commonwealth*, 987 S.W.2d 324 (Ky. App. 1997); *Holland v. Commonwealth*, 114 S.W.3d 792 (Ky. 2003); *Hall v. Commonwealth*, 337 S.W.3d 595 (Ky. 2011). *But see Allen v. Commonwealth*, 338 S.W.3d 252 (Ky. 2011) (stating in dicta that Commonwealth pleading cannot prevent this defense, assuming defense is consistent with facts at trial).

Waiver of Objections

A defendant who submits a lesser included offense has waived any objection to conviction for that offense. Example: Submitting a misdemeanor instruction as a lesser included offense waives the one-year statute of limitations on prosecution of a misdemeanor contained in KRS 500.050(2). *Commonwealth v. Oliver*, 253 S.W.3d 520 (Ky. 2008).

COMPLICITY AND FACILITATION

Complicit Conduct and Mental State

A person is liable under a complicity theory when (with the appropriate mental state) they:

(a) Solicits, commands, or engages in a conspiracy with such other person to commit the offense; or
(b) Aids, counsels, or attempts to aid such person in planning or committing the offense; or
(c) Having a legal duty to prevent the commission of the offense, fails to make a proper effort to do so.

KRS 502.020. The complicity statute has two theories of liability, which are based on the mental state of the defendant: Complicity as to the Act and Complicity as to the Result. The mental state must be included in a complicity instruction. *Young v. Commonwealth*, 426 S.W.3d 577 (Ky. 2014).

Complicity as to the Act is applicable only to offenses where the conduct constitutes the offense (e.g., theft). *Tharp v. Commonwealth*, KRS 40 S.W.3d 356 (Ky. 2001). It requires that the defendant engaged in complicit conduct "with the intention of promoting or facilitating the commission of the offense." KRS 502.020(1). Complicity as to the Result is applicable only to offenses where "causing a particular result is an element of the offense" (e.g., murder). *Tharp*, *supra*. It requires the defendant to act "with the kind of culpability with respect to the result that is sufficient for the commission of the offense." KRS 502.020(2).

If crime is a "result" offense (assault, murder) then a complicity to the result instruction should be used. If the crime is an "act" offense, then complicity to the act instruction should be used. *Peacher v. Commonwealth*, 391 S.W.3d 821 (Ky. 2013). It is often necessary to determine whether the offense charged is a "result" offense, or an "act" offense (sometimes referred

to as a "conduct" offense). The distinction is easily stated but sometimes hard to apply. If the offense is defined in terms of causing a particular result, i.e., causing death or causing property damage, it is a result offense. All other crimes are defined in terms of engaging in particular conduct, e.g., stealing, and are regarded as "act" or "conduct" offenses.

When Complicity Applies

The complicity statute only applies where the defendant's conduct meets the requirements of KRS 502.020 but is not sufficient to constitute the principal offense. So, for example, a person who acts as a middleman between drug distributer and drug dealer, transferring controlled substances from the former to the latter, is not entitled to a complicity instruction, because the offense of trafficking was complete when the transfer was made. *Commonwealth v. Day*, 983 S.W.2d 505 (Ky. 1999).

Intent Element Required

Failure to include the element of intent in complicity instructions is reversible error. *Harper v. Commonwealth*, 43 S.W.3d 261 (Ky. 2001). *See also Young v. Commonwealth*, 426 S.W.3d 577 (Ky. 2014). An instruction which requires that the jury make only a finding of the intent of the principal actor, and not the defendant, is palpable error. *Staples v. Commonwealth*, 454 S.W.3d 803 (Ky. 2014). However, failure to include the intent element in an instruction defining the offense was cured by an instruction defining complicity as "Complicity—means that a person is guilty of an offense committed by another person when, with the intention of promoting or facilitating the commission of the offense, he solicits commands or engages in a conspiracy with such other person to commit the offense, or aids, counsels, or attempts to aid such person in planning or committing the offense". *Delacruz v. Commonwealth*, 324 S.W.3d 418, 421 (Ky. App. 2010).

Difference between Facilitation and Complicity

"Under either statute [complicity or facilitation], the defendant acts with knowledge that the principal actor is committing or intends to commit a crime. Under the complicity statute, the defendant must intend that the crime be committed; under the facilitation statute, the defendant acts without such intent. Facilitation only requires provision of the means or opportunity to commit a crime, while complicity requires solicitation, conspiracy, or some form of assistance. Facilitation reflects the mental state of one who is 'wholly indifferent' to the actual completion of the crime." *Thompkins v. Commonwealth*, 54 S.W.3d 147, 150-51 (Ky. 2001).

Facilitation is a Lesser Included Offense of Complicity - "[A]n instruction on facilitation as a lesser-included offense of complicity is appropriate if and only if on the given evidence a reasonable juror could entertain reasonable doubt of the defendant's guilt of the greater charge, but believe beyond a reasonable doubt that the defendant is guilty of the lesser offense." *Dixon v. Commonwealth*, 263 S.W.3d 583, 586 (Ky. 2008).

A criminal facilitation instruction is generally only proper where the defendant is charged as an accomplice, not as the principal offender. *Roberts v. Commonwealth*, 410 S.W.3d 606 (Ky. 2013).

SENTENCING INSTRUCTIONS

Persistent Felony Offender

The Court has found palpable error where a criminal defendant was convicted of being a Persistent Felony Offender (PFO) when the facts necessary to convict him thereof, although capable of being proved, were not in the jury instructions. *See Carver v. Commonwealth*, 303 S.W.3d 110, 123 (Ky. 2010); *Sanders v. Commonwealth*, 301 S.W.3d 497, 499–500 (Ky. 2010).

The Court has also found palpable error where the facts necessary to convict the defendant of being a first-degree PFO were incapable of being proved because the Commonwealth only offered proof that the defendant had been convicted of one felony before the commission of the underlying offense. *Blane v. Commonwealth*, 364 S.W.3d 140, 154 (Ky. 2012).

An instruction on being a first-degree persistent felony offender, stating that defendant's prior offenses had been "committed as a persistent felony offender, second-degree," was error. Whether the defendant had PFO status at the time of his prior convictions was immaterial to the first-degree PFO charge. *Owens v. Commonwealth*, 329 S.W.3d 307 (Ky. 2011).

An erroneous instruction allowing conviction of being a first-degree persistent felony offender (PFO) based on prior convictions for misdemeanor third-degree arson and felony theft was palpable error requiring reversal, although the defendant could have been convicted as PFO if the jury had been properly instructed. *Carver v. Commonwealth*, 303 S.W.3d 110 (Ky. 2010).

A defendant is entitled to an instruction on the defendant's failure to testify under RCr 9.54(3), upon request, in a persistent felony offender proceeding. *Hibbard v. Commonwealth*, 661 S.W.2d 473 (Ky. 1983).

Combined Truth in Sentencing & PFO Sentencing

If the accused is also charged as a persistent felony offender (PFO), the penalty phase (including truth in sentencing evidence) and a PFO phase can be combined, and the jury in the combined bifurcated hearing could be instructed to (1) fix a penalty on the basic charge in the indictment, (2) determine then whether the defendant is guilty as a PFO, and if so, (3) fix the enhanced penalty as a persistent felony offender. This is the better practice for trial courts to follow during the penalty phase. *Owens v. Commonwealth*, 329 S.W.3d 307 (Ky. 2011); *Conrad v. Commonwealth,* 534 S.W.3d 779 (Ky. 2017).

Consecutive/Concurrent Recommendation

"Although not binding on a trial judge, a jury 'shall recommend' whether a defendant's sentences should run concurrently or consecutively. [The Supreme] Court has recognized that due process entitles a defendant to this jury recommendation, which "is far from meaningless or pro forma, and ... has 'significance, meaning, and importance.'" *Davis v. Commonwealth*, 365 S.W.3d 920, 922 (Ky. 2012), citing KRS 532.055 (2) and *Lawson v. Commonwealth*, 85 S.W.3d 571, 584 (Ky. 2002); *Benet v. Commonwealth*, 253 S.W.3d 528 (Ky. 2008).

MISCELLANEOUS

Reasonable Doubt

RCr 9.56 explicitly prohibits instructing the jury on the definition of "reasonable doubt." For a review of existing authority see *Smith v. Commonwealth*, 410 S.W.3d 160 (Ky. 2013). *See* "Defining Reasonable Doubt" on page 93

Comments on Evidence and Credibility

Telling a jury to consider the witness's interest in the outcome of the proceedings, demeanor, clarity of recollection, etc., was disapproved of in *Walker v. Commonwealth*, 349 S.W.3d 307 (Ky. 2011), but did not rise to the level of palpable error.

Interrogatories

Trial courts may use fact-based interrogatories (special verdicts) in the jury instructions in a criminal case if, and only if, the interrogatories are accompanied by verdict forms which authorize the return of general verdicts. The interrogatories cannot take a jury step-by-step to any one verdict, and the court cannot direct a general verdict of guilty based upon the jury's answer to the interrogatories. They should be used only sparingly and with due consideration of the defendant's rights to due process. *Commonwealth v. Durham*, 57 S.W.3d 829 (Ky.2001).

Checklist of objections to certain jury instructions

◊ Did you tender instructions or object to instructions to preserve error? RCr 9.54.

◊ Did you tender instructions with "a disclaimer," waive them, or not object to the final instructions?
See Smith v. Com., 370 S.W.3d 871 (Ky. 2012) (finding waiver of issue).

◊ Are you specific with your objections to the instructions?

◊ Did you make sure your objection to a particular instruction is on the record?

◊ If the conference is in chamber's and not recorded, repeat objection in court

◊ Does the instruction instruct the jury on every element of the offense?

Object if:

◊ Multiple jury instructions are identical. *Miller v. Com.*, 283 S.W.3d 690 (Ky. 2009).

◊ An instruction has multiple theories. *Travis v. Com.*, 327 S.W.3d 456 (Ky. 2010).

◊ Multiple theories in definition. *Carver v. Com.*, 328 S.W.3d 206 (Ky. App. 2010).

◊ A presumption of innocence instruction is not given.

◊ The defendant's right to remain silent instruction is requested and not given.

◊ The judge does not grant a missing evidence instruction. *See Johnson v. Com.*, 892 S.W.2d 558 (Ky. 1994).

◊ In an instruction for complicity, the instruction lacks an element regarding the Defendant's intent to promote for facilitate the commission of the offense.

◊ An instruction includes *mens rea* for a result or conduct.

◊ "A person acts intentionally with respect to a result or to a conduct…." The "conduct" language is immaterial to results-only crimes.

◊ The judge refuses to instruct on facilitation as a lesser included offense to complicity when there is evidence of the defendant being "wholly indifferent' to the actual completion of the crime." *See Thompkins v. Com.*, 54 S.W.3d 147, 150-51 (Ky. 2001).

◊ Your jurisdiction follows Cooper's, but the Cooper's instruction doesn't track the statute.

Checklist for drafting instructions

◊ Do not assume Cooper's contains the best instructions for your client.
"The works of Palmore and Cooper, or any other established authorities, while invaluable, are not holy writs." *Commonwealth v. Leinenbach*, 351 S.W.3d 645, 646 (Ky. 2011).

◊ Do your own instructions before trial. If available, let co-counsel do it.

◊ Ensure the instructions are filed in the record, not sealed.

◊ Insert the definitions into the instructions, not a separate definitions section.

◊ You must have a jury finding on every essential element of the crime.
e.g., whether an item is a dangerous instrument or deadly weapon.

Instructions for Specific Crimes

Assault in the 3d Degree – instruction must include element that the defendant knew victim was a police officer acting in the course of his duties. *Mullikan v. Commonwealth*, 341 S.W.3d 99 (Ky. 2011).

Criminal abuse – no requirement of a specific instruction describing the defendant's duty to care for the victim. *Bartley v. Commonwealth*, 400 S.W.3d 714 (Ky. 2013).

Drug paraphernalia – improper to instruct on possession of "crack pipes and/or foil", where there is no evidence of foil. *Jackson v. Commonwealth*, 343 S.W.3d 647 (Ky. 2011) (finding no palpable error). No requirement to use the word "knowingly." *Perdue v. Commonwealth*, 411 S.W.3d 786 (Ky. App. 2013).

Drug Possession cases – where the facts would support a theory that the defendant possessed drugs only with intent to turn them over to law enforcement, the defendant is entitled to an "innocent possession" instruction. *Commonwealth v. Adkins*, 331 S.W.3d 260 (Ky. 2011).

Escape 2nd degree – must include the element of escape from detention center. *Lawton v. Com.*, 354 S.W.3d 565 (Ky. 2011).

Fleeing and Evading 1st Degree (Domestic Violence) – must include the definition of "unmarried couple." *Wright v. Com.*, 391 S.W.3d 743 (Ky. 2012).

Incest – must include the age element as part of guilt phase instructions. *Rodriguez v. Com.*, 396 S.W.3d 916 (Ky. 2013).

Rape – where the jury instructions did not include both age and forcible compulsion, the offense was a Class B felony, notwithstanding that age was undisputed. *Newman v. Commonwealth*, 366 S.W.3d 435 (Ky. 2012).

Robbery – the defendant is entitled to an instruction requiring the jury to find that he intended the co-defendant to complete the robbery. *Goncalves v. Commonwealth*, 404 S.W.3d 180 (Ky. 2013).

Tampering with physical evidence instructions - must specifically identify the evidence being tampered with. *Owens v. Com.*, 329 S.W.3d 307 (Ky. 2011).

Practice Tip: Tendering Instructions. Any instructions requested and denied by the court should be tendered and placed in the record for review. (Beware that some judges do not automatically place tendered instructions into the record.) If you object to giving instructions on a specific charge but then tender instructions on that charge anyway, state for the record that you are not waiving your objection to the giving of instructions but that, if the court is going to give instructions, these are the instructions you would move the court to adopt.

Practice Tip: Jury Instruction Conferences. Jury instruction conferences often take place in the judge's chambers and are not on the record. Many judges then go back on the record regarding the matter of instructions once everyone returns to the courtroom. If the judge does not do this you should either move the court to put the conferences on the record or, once you return into the courtroom, state for the record; (1) whether you tendered instructions, and (2) any objections you made to the giving of instructions or to the contents of any instructions.

PROSECUTION CLOSING ARGUMENT

Legal Standard

The prosecutor is given wide latitude in closing argument, *Maxie v. Commonwealth*, 82 S.W.3d 860 (Ky. 2002), *Bowling v. Commonwealth*, 873 S.W.2d 175 (Ky.1993), but the prosecutor may not cajole or coerce the jury to reach a verdict. *Lycans v. Commonwealth*, 562 S.W.2d 303 (Ky. 1978). Except in extraordinary circumstances, a proper ruling is usually to remind the jury that argument of counsel is not evidence and that the jury is charged with the duty to recall the evidence. *Commonwealth v. Petry*, 945 S.W.2d 417 (Ky. 1997). The standard for reversal in cases of prosecutorial misconduct during closing argument is either: (1) misconduct which is "flagrant," or (2) the proof of the defendant's guilt is not overwhelming and defense counsel objected and the trial court refused to sustain the objection or cure the error with a sufficient admonition to the jury. *Barnes v. Commonwealth*, 91 S.W.3d 564 (Ky. 2002); *U.S. v. Dakota*, 188 F.3d 664 (6th Cir. 1999). There is a four-part test for determining whether the comments of a prosecutor constitute "flagrant misconduct": "1) whether the remarks tended to mislead the jury or to prejudice the accused; (2) whether they were isolated or extensive; (3) whether they were deliberately or accidentally placed before the jury, and; (4) the strength of the evidence against the

accused." *Murphy v. Commonwealth,* 509 S.W.3d 34, 54 (Ky. 2017). These criteria are reviewed in *Brown v. Commonwealth,* 553 S.W.3d 826 (Ky. 2018).

Nevertheless, prosecutorial misconduct can also have a cumulative effect throughout a trial. In that case, the test on appeal is the overall fairness of the trial, not the personal culpability of the prosecutor. The misconduct must be so serious as to render the entire trial fundamentally unfair. *Soto v. Commonwealth*, 139 S.W.3d 827 (Ky. 2004); *U.S. v. Young*, 470 U.S. 1 (1985); *Summitt v. Bordenkircher*, 608 F.2d 247 (6th Cir. 1979).

Objection Required to Preserve Claims

Notice that the legal standard for misconduct during closing arguments requires that defense counsel object to the improper argument. Failure to object waives the issue on appeal. *Johnson v. Commonwealth*, 892 S.W.2d 558, 562 (Ky. 1994); *Caudill v. Commonwealth*, 120 S.W.3d 635 (Ky. 2003); *Barnes v. Commonwealth*, 91 S.W.3d 564 (Ky. 2002). In fact, some decisions from the Kentucky Supreme Court have made it clear that the court may have reversed the defendant's convictions if only counsel for the defendant had objected during closing argument. *Id*. Counsel must make a contemporaneous objection (RCr 9.22) to the improper argument and move for a mistrial and/or lesser remedy. Counsel should always invoke Section 2 of the Kentucky Constitution and the Due Process Clause of the 14th Amendment to the U.S. Constitution to support the objection and motion for mistrial. Counsel should resist the judge's offer to give the jury a "curative" instruction or an admonition, rather than grant a mistrial, if such an instruction or admonition is insufficient to cure the prejudice and a mistrial would be helpful to the client. If the defense consents to an admonition, either after having a mistrial denied or because they elect not seek one, counsel should consider crafting a specific admonition that would best cure the prejudice. See "ADMONITIONS" on page 58.

In *Brewer v. Commonwealth*, 206 S.W.3d 343, 351 (Ky. 2006) the prosecutor told the jury they needed to "send a message" to the community by convicting the defendant. Defense counsel did not object. The court said: "Lest this opinion be misconstrued, we do find that the Commonwealth's exhortation to this jury to 'send a message' to the community was improper. We strongly urge the prosecutors throughout the Commonwealth to use extreme caution in making similar arguments. Indeed, had a timely objection been made, we may have found the Commonwealth's comments to constitute reversible error." Similarly, in *Scott v. Commonwealth*, 2005-SC-000100-MR, 2006 WL 3751391, Ky. Dec. 21, 2006, *unpublished*, the prosecutor again argued that the jury should "send a message." The court said that, "...had the issue been preserved, a more rigorous analysis would have been required. Thus, while such comments do not constitute manifest error in the instant case, we note that, generally, any benefit the Commonwealth perceives in utilizing such an argument is far outweighed by the risk of reversal on appeal." Compare those two cases with *Barnes*, *supra*, in which in court sustained 29 objections by defense counsel during the prosecutor's closing argument, and admonished the jury 11 times. Nevertheless, the conviction was still reversed because the court refused to sustain an objection to the prosecutor's statement to the jury that finding the defendant innocent would be the only crime greater than the murder itself.

What if the trial court forbids attorneys to object during closing arguments? "We cannot hold trial counsel strictly accountable to the rules regarding making contemporaneous objections when the record suggests counsel was repeatedly denied a reasonable opportunity to make a record." *Alexander v. Commonwealth*, 864 S.W.2d 909, 915 (Ky. 1993). Think about starting the trial with a detailed motion in limine regarding improper argument during closing, and if possible, offer to make avowals of the grounds for your objections.

Requesting Relief

If an objection is overruled, the contemporaneous objection (RCr 9.22) preserves the issue on appeal. On the other hand, if an objection is sustained, there is no further issue preserved for appeal unless the defendant also then requests a mistrial or admonition which is then denied. "An admonition is appropriate only if the objection is sustained." Barnes, *supra*, at 568. "In the absence of a request for further relief, it must be assumed that appellant was satisfied with the relief granted, and he cannot now be heard to complain." *Baker v. Commonwealth*, 973 S.W.2d 54, 56 (Ky. 1998). "[M]erely voicing an objection, without a request for a mistrial or at least an admonition, is not sufficient to establish error once the objection is sustained." *Hayes v. Commonwealth*, 698 S.W.2d 827, 829 (Ky. 1985). See also *Wallace v. Commonwealth*, 478 S.W.3d 291 (Ky. 2016), in which the defense failed to request either and the prosecutorial misconduct was not preserved for review.

The exact same situation obtains when a trial court offers an admonition and the defendant declines to accept it. If you request a mistrial and the court offers an admonition, accept the admonition if you want to—even try and help craft it—but make clear you are not waiving your motion for a mistrial. *See* "ADMONITIONS" on page 58.

IMPROPER CLOSING ARGUMENTS, EXAMPLES

The following is meant to be illustrative but not exhaustive.

Defining Reasonable Doubt

Counsel is not allowed to define reasonable doubt. *Commonwealth v. Callahan*, 675 S.W.2d 391 (Ky. 1984). Nevertheless, pointing out that "beyond a reasonable doubt" is different from "beyond a shadow of a doubt" is not an attempt to define reasonable doubt. It is, rather, simply to point out the obvious. *Howell v. Commonwealth,* 163 S.W.3d 442 (Ky. 2005).

However, the use of an analogy is an attempt to define reasonable doubt, and it violates the 14th Amendment safeguard "against the dilution of the principle that guilt is to be established by probative evidence and beyond a reasonable doubt." In *Rice v. Commonwealth*, 2004-SC-1076-MR, 2006 WL 436123, Ky. Feb. 23, 2006, *unpublished*, the court found error where the prosecutor used the example, during voir dire, of deciding to marry someone. See also *Marsch v. Commonwealth*, 743 S.W.2d 830 (Ky.1988) in which the prosecutor, during voir dire, used the example of himself as a hypothetical witness to an auto accident. "In all those cases [where this court found an impermissible attempt to define 'reasonable doubt'], some attempt was made to use other words to convey to the jury the meaning of 'beyond a reasonable doubt'." *Howell*, *supra*, at 447, quoting *Simpson v. Commonwealth*, 759 S.W.2d 224, 226 (Ky. 1988).

Reversal was required when the strength of the evidence against the defendant was weak, the prosecutor defined reasonable doubt in such a way as to lower the standard, and the court's admonition did not cure the error, in *Rodgers v. Commonwealth*, 314 S.W.3d 745 (Ky. App. 2010). The prosecutor lowered the standard by saying, "If any of you find yourself in the jury room saying to yourself or thinking that 'yeah, I know the defendant did it, but I just don't think the Commonwealth proved their case,' well, I submit to you that if you know he did it, then this case was proven."

Arguing Legal Presumptions

The primary purpose of a statutory presumption for the Commonwealth is to enable the Commonwealth to overcome a directed verdict. A statutory presumption for the Commonwealth should not be used to compel an inference from a jury. They should not be included in jury instructions in any way which might lead a jury to infer that the Commonwealth need not prove every element of the offense beyond a reasonable doubt. *County Court of Ulster County, N.Y. v. Allen*, 442 U.S. 140 (1979); *Sandstrom v. Montana*, 442 U.S. 510 (1979); *Francis v. Franklin*, 471 U.S. 307 (1985); *Commonwealth v. Collins*, 821 S.W.2d 488 (Ky. 1991); *Wells v. Commonwealth*, 561 S.W.2d 85 (Ky. 1978). Of course, the great exception to the rule that juries are not instructed on presumptions is that juries in every criminal case must be instructed on the presumption of innocence. RCr 9.56 (1).

Irrelevant Matters

A lawyer shall not knowingly or intentionally allude to any matter that the lawyer does not reasonably believe is relevant. SCR 3.130-3.4(e).

Matters Not in Evidence

A lawyer shall not knowingly or intentionally allude to any matter that will not be supported by admissible evidence. SCR 3.130-3.3(e). A prosecutor may not mention prejudicial facts that have not been introduced into evidence. *Johnson v. Commonwealth*, 450 S.W.3d 696 (Ky. 2014); *Sommers v. Commonwealth*, 843 S.W.2d 879 (Ky.1992); *Bowling v. Commonwealth*, 279 S.W.2d 23 (Ky. 1955). Nor may a prosecutor argue there is a vast store of incriminating evidence which the jury was not allowed to hear because of the rules of evidence. *Mack v. Commonwealth*, 860 S.W.2d 275 (Ky.1993). When the court rules that part of a tape recording is not admissible, it is error for the prosecutor to tell the jury he "wished" the jury could have heard those parts that had been excluded. *Moore v. Commonwealth*, 634 S.W.2d 426 (Ky. 1982).

Misstatements of Law, Evidence

It was improper for the prosecutor to misstate the testimony of the psychologist both on cross-examination and in closing argument. *Ice v. Commonwealth*, 667 S.W.2d 671 (Ky. 1984). Reversal was required when the prosecutor, in cross-examination and in closing argument, depicted the DNA evidence as conclusively identifying the defendant when in fact the DNA expert testified to only a partial match with the defendant's DNA and a partial match with someone else. The flagrant prosecutorial overreaching made the trial fundamentally unfair. *Duncan v. Commonwealth*, 322 S.W.3d 81 (Ky. 2010).

A prosecutor misstated the law on insanity when he told the jury the test was whether the defendant knew right from wrong. *Mattingly v. Commonwealth*, 878 S.W.2d 797 (Ky. App. 1994). Comments in closing argument which left the jury with the impression that the defendant's parole eligibility could have been 6 years, when in fact it was 17 years, required reversal and a new sentencing phase in *Beard v. Commonwealth,* 581 S.W.3d 537 (Ky. 2019). *See also Robinson v. Commonwealth,* 181 S.W.3d 30 (Ky. 2005); *Rupee v. Commonwealth,* 754 S.W.2d 852 (Ky. 1988).

Personal Opinions, Beliefs, Knowledge

A lawyer shall not state a personal opinion as to the justness of a cause, the credibility of a witness or the guilt or innocence of an accused. SCR 3.130-3.4(e). It is improper for a prosecutor to tell the jury that he knows of his own personal knowledge that the persons referred to by the defendant's alibi witness were "rotten to the core." *Terry v. Commonwealth*, 471 S.W.2d 730 (Ky. 1971). It is improper for the prosecutor to suggest the defendant is guilty simply because he was indicted or is being prosecuted. *U.S. v. Bess*, 593 F.2d 749 (6th Cir. 1979).

Credibility and Character of Witnesses

A lawyer shall not state a personal opinion as to the credibility of a witness, including the defendant. SCR 3.130-3.4(e). The personal opinion of the prosecutor as to the character of a witness is not relevant and is not proper comment. *Moore v. Commonwealth*, 634 S.W.2d 426 (Ky. 1982). Under this rule, it is improper for a prosecutor to comment that he has known and worked with a police officer for a long time, that the officer is honest and conscientious, and that the officer's word is worthy of belief. *Armstrong v. Commonwealth*, 517 S.W.2d 233 (Ky. 1974). It is also improper to make the accused appear to be guilty of a more severe uncharged offense. *Jacobs v. Commonwealth*, 551 S.W.2d 223 (Ky. 1977) (finding improper comment by prosecutor that person accused of possession was guilty of tracking). It is error for the prosecutor to comment on the defendant's spouse's failure to testify. *Gossett v. Commonwealth*, 402 S.W.2d 857 (Ky. 1966).

Failure of Accused to Testify

Commenting on failure of the accused to testify is a violation of the right to remain silent. *Commonwealth v. Robertson*, 431 S.W.3d 430 (Ky. 2013). This includes commenting on the the accused's failure to name an alternative perpetrator. *Churchwell v. Commonwealth*, 843 S.W.2d 336 (Ky. App. 1992) (finding error where prosecutor argued accused would have named passenger as true perpetrator if innocent). It is also improper for a prosecutor to suggest a jury infer that an innocent person would testify to deny guilt. *Green v. Commonwealth*, 815 S.W.2d 398 (Ky. App. 1991) (finding error where prosecutor argued defendant would have denied ownership of drugs if innocent).

It is also improper for counsel for the co-defendant in a joint trial to comment on the defendant's failure to testify. *Luttrell v. Commonwealth*, 554 S.W.2d 75 (Ky. 1977).

Inflammatory, Abusive Language

It is error for a prosecutor to make demeaning comments about the defendant and defense counsel. *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky.1988). The prosecutor must stay within the record and avoid abuse of the defendant and counsel. *Whitaker v. Commonwealth*, 183 S.W.2d 18 (Ky. 1944). A prosecutor must not be permitted to make unfounded and inflammatory attacks on the opposing advocate. *U.S. v. Young*, 470 U.S. 1 (1985). *See also Murphy v. Commonwealth,* 509 S.W.3d 34 (Ky. 2017). It is improper, for example, for a prosecutor to refer to a defendant as a "black dog of a night," "monster," "coyote that roamed the road at night hunting women to use his knife on," and "wolf." *Sanborn*

v. Commonwealth, 754 S.W.2d 534 (Ky. 1988).

A prosecutor may not encourage a verdict based on passion or prejudice, or for reasons not reasonably inferred from the evidence. *Bush v. Commonwealth*, 839 S.W.2d 550 (Ky.1992). *See also Clark v. Commonwealth*, 833 S.W.2d 793 (Ky. 1991); *Morris v. Commonwealth*, 766 S.W.2d 58 (Ky. 1989); *Ruppee v. Commonwealth*, 754 S.W.2d 852 (Ky. 1988); *Estes v. Commonwealth*, 744 S.W.2d 421 (Ky. 1988).

Local Prejudice

Reversal was required when the prosecutor argued in closing argument, "If you want a Clark County lawyer to come over here to defend a Clark County thief who breaks into and steals from an Estill County place of business, then that is your business, and if you want that then you will find this thief here not guilty." *Taulbee v. Commonwealth*, 438 S.W.2d 777 (Ky. 1969).

Golden Rule

It is error for a prosecutor to urge jurors to put themselves or members of their families in the shoes of the victim. *Lycans v. Commonwealth*, 562 S.W.2d 303 (Ky. 1978).

Send a Message

It is improper for a prosecutor to include in closing arguments that the jury should convict to "send a message" to the community. In both *Commonwealth v. Mitchell*, 165 S.W.3d 129 (Ky. 2005), and *Brewer v. Commonwealth*, 206 S.W.3d 343 (Ky. 2006), the Kentucky Supreme Court clearly indicated it had lost patience with this form of argument but could not reverse the cases because defense counsel did not object and the argument did not rise to palpable error. However, in *McMahon v. Commonwealth*, 242 S.W.3d 348 (Ky. App. 2007), the court reversed the defendant's conviction for this kind of argument when defense did object and when there was no need for this type of argument because defense counsel had conceded there was sufficient evidence to convict. A prosecutor's "send a message" argument also required reversal in *Gaines v. Commonwealth*, 283 S.W.3d 243 (Ky. App. 2008).

There is a limited exception to the general prohibition on using this language. "Send a message" language can be appropriate when arguing to a jury during penalty phase closing arguments that a sentence will have the effect of deterring future wrongful conduct by the accused. *Cantrell v. Commonwealth*, 288 S.W.3d 291 (Ky. 2009).

Jury Responsibilities

A prosecutor may not minimize a jury's responsibility for its verdict or mislead the jury as to its responsibility. *Clark v. Commonwealth*, 833 S.W.2d 793 (Ky. 1992). It was reversible error for a prosecutor to minimize the jury's responsibility in assessing the death penalty by implying that ultimate responsibility would fall to the judge or appellate courts in *Ward v. Commonwealth*, 695 S.W.2d 404 (Ky. 1985).

A prosecutor may not argue to jurors that a not guilty verdict (or a guilty verdict on a lesser-included offense) is a violation of their oath. *Goff v. Commonwealth*, 44 S.W.2d 306 (Ky. 1931); *Barnes v. Commonwealth*, 91 S.W.3d 564 (Ky. 2002).

Protecting the Community

It is prosecutorial misconduct for a prosecutor to repeatedly refer the jury to the danger to the community if it turned the defendant loose. *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky. 1988).

Neither the prosecutor, defense counsel, nor the court should relate to the jury the future consequences of a particular verdict anytime during a criminal trial. *Woodward v. Commonwealth*, 984 S.W.2d 477 (Ky. 1998). But see RCr 9.55, which permits such an instruction if requested in insanity defense cases.

It is error for a prosecutor to urge the jury to convict in order to protect community values, preserve civil order, or deter future lawbreaking. *U.S. v. Solivan*, 937 F.2d 1146 (6th Cir. 1991). It is error for a prosecutor to tell the jury that if they do not convict, they have no right to complain when they become victims of crime. *Dennis v. Commonwealth*, 526 S.W.2d 8 (Ky. 1975).

It is error for a prosecutor to appeal to the community's conscience in the context of the war on drugs and to suggest that

drug problems in the community would continue if the jury did not convict the defendant. *U.S. v. Solivan*, 937 F.2d 1146 (6th Cir. 1991).

The Commonwealth is not at liberty to place upon the jury the burden of doing what is necessary to protect the community. *King v. Commonwealth*, 70 S.W.2d 667 (Ky. 1934).

It was improper for the prosecutor to comment on the consequences of a particular verdict when he suggested the victim's child would be spared from seeing the victim assaulted again in the future if the jury returned a verdict of guilty. *Driver v. Commonwealth*, 361 S.W.3d 877 (Ky. 2012).

Demonstrations

A demonstration during closing argument may repeat evidence already offered but cannot introduce new evidence. For example, a prosecutor cannot reveal the scar of the complaining witness, have the complaining witness reenact the crime, or have the complaining witness and the defendant stand together for the purpose of comparing their height. *See, e.g.*, *Price v. Commonwealth*, 59 S.W.3d 878 (Ky. 2001).

Reading Law to the Jury

Counsel should not read extracts from the statutes or law books to the jury or offer dissertations on abstract rules of law. The only law counsel should argue is the jury instructions. *Broyles v. Commonwealth*, 267 S.W.2d 73 (Ky. 1954); *Reed v. Commonwealth*, 131 S.W. 776 (Ky. 1910).

CONTACT WITH JURORS

KRS 29A.310(2) prohibits contact between jurors and witnesses or officers of the court after they have been sworn. If this occurs, the proper procedure is for the court to hold a hearing. *Henson v. Commonwealth*, 812 S.W.2d 718 (Ky. 1991). *See also Combs v. Commonwealth*, 198 S.W.3d 574 (Ky. 2006). Likewise, jurors should not be contacted after they begin deliberations. KRS 29A.320(1), RCr 9.74. *But see Combs, supra,* in which a juror personally delivered a verdict to the judge's office in the mistaken belief that it was proper procedure.

After deliberations have begun, the officer in charge of the jury must swear to keep them together and to allow no one to communicate with them on any subject connected with the trial. RCr 9.68. The jury should not be placed in the custody of a sheriff or deputy who has been an important prosecution witness. *Sanborn v. Commonwealth*, 754 S.W.2d 534, 547 (Ky. 1988), citing *Turner v. Louisiana*, 379 U.S. 466, 473 (1965).

DELIBERATIONS

"[A]ny decision to allow the jury to have testimony replayed during its deliberations is within the sound discretion of the trial judge." *Baze v. Commonwealth*, 965 S.W.2d 817 (Ky. 1997). However, all information given to the jury after deliberations have begun must be given in open court, before the entire jury, in the presence of the defendant, and with counsel. RCr 9.74

Providing the jury with any evidence not admitted into evidence during trial requires automatic reversal, and no prejudice need be shown. *Mills v. Commonwealth*, 44 S.W.3d 366 (Ky.2001).

Jurors are entitled to use their notes during deliberations. *Barnett v. Commonwealth*, 317 S.W.3d 49 (Ky .2010), *overruling Harper v. Commonwealth*, 694 S.W.2d 665 (Ky. 1985). However, failure to allow them to do so does not rise to the level of structural or palpable error. *McCleery v. Commonwealth*, 410 S.W.3d 597 (Ky .2013).

Sworn depositions should not go into the jury room because the jury may give greater weight to the written testimony than to the "live" testimony at the trial. *Berrier v. Bizer*, 57 S.W.3d 271 (Ky. 2001). *See also Welborn v. Commonwealth*, 157 S.W.3d 608 (Ky. 2005).

Likewise, transcripts of trial testimony, in places where the record is transcribed instead of videotaped, cannot go back into the jury room, but must be read to the jury in open court. *St. Clair v. Commonwealth*, 140 S.W.3d 510 (Ky. 2004).

Transcripts of a defendant's tape-recorded confession cannot go back into a jury room. *Sanborn v. Commonwealth*, 754 S.W.2d 534 (Ky. 1988), *overruled on other grounds*.

The jury should not be allowed to take recorded testimonial witness statements into the jury room. *McAtee v. Commonwealth*, 413 S.W.3d 608 (Ky. 2013). The court should not allow the jury to listen to such statements in the defendant's absence, *McGuire v. Commonwealth*, 368 S.W.3d 100 (Ky. 2012). In *Napier v. Commonwealth*, 2012-CA-001672-MR, 2014 WL 3973113, Ky. App., Aug. 1, 2014, *unpublished*, it was palpable error to allow the jury to view a detective's recorded interview of a witness in the privacy of the jury room and without the defendant being present. The fact that the laptop was also "unclean" exacerbated the situation, because the jury must be denied access to materials not in evidence. See *Mills*, *supra*.

"Non-testimonial exhibits" may be allowed into the jury room. RCr 9.72, *Burkhart v. Commonwealth*, 125 S.W.3d 848 (Ky. 2004) (the exhibit was a surveillance video from a security camera). *See also McAtee v. Commonwealth*, 413 S.W.3d 608 (Ky. 2013). Non-testimonial exhibits may include video and audio recordings of drug transactions. *Springfield v. Commonwealth*, 410 S.W.3d 589 (Ky. 2013). In *Commonwealth v. Wright*, 467 S.W.3d 238 (Ky. 2015), allowing the jury to listen to the non-testimonial audio recording of a drug buy on the prosecutor's laptop was not reversible error even if the laptop could have allowed juror access to the Internet and other materials not in evidence. The mere possibility of such access is not itself sufficient grounds for denying the jury access to the evidence.

Practice Tip: Ask the court to do an in camera review of the contents of the prosecutor's laptop to verify that it is clean, especially if the prosecutor will not allow inspection by the defense. Ask that the jurors be admonished not to access any materials beyond those specifically the subject of their request.

Substituting jurors after the case has been submitted to the jury for deliberation (using a previously discharged alternate juror) requires that the court have a colloquy on the record to ascertain that the replacement juror was not tainted by outside contacts and that the court instruct the jury to start deliberations all over again. *Crossland v. Commonwealth*, 291 S.W.3d 223 (Ky. 2009).

An improper alteration of a jury verdict implicates manifest injustice and, as such, palpable error which affects the substantial rights of a party. It is not automatic grounds for reversal and a new trial if the error is one of form, such as a mistake on the form, rather than substance. When the jurors notified the court that the verdict it read was not the verdict they had chosen to convey, the court was right to allow the foreperson of the jury to alter the form in open court. *Buchanan v. Commonwealth*, 399 S.W.3d 436 (Ky. App. 2012).

CONTINUANCE DURING TRIAL

A 14-day continuance after the first day of trial was not in itself a violation of due process absent a showing of prejudice, when the court admonished the jurors not to discuss the case, the case was not so complex that jurors would forget facts it heard, the most complex evidence was introduced after the delay, and no good alternative to the delay existed. *Knuckles v. Commonwealth*, 315 S.W.3d 319 (Ky. 2010).

DEADLOCK, THE "ALLEN CHARGE"

See RCr 9.57(1). As explained in *Ali v. Commonwealth*, 2005-SC-000609-MR, 2007 WL 1159953, Ky. April 19, 2007, *unpublished*, this jury instruction is referred to as the "Allen charge," based on a case in which the United States Supreme Court approved instructions which might be given to a deadlocked jury. *See Allen v. U.S.*, 164 U.S. 492, 501 (1896). Some defense attorneys object to the giving of this charge in the belief that the charge has a tendency to make deadlocking pro-defendant jurors cave in and change their vote. If that is your concern, you should object to giving the instruction and move for a mistrial on the grounds that the jury should not be coerced into rendering a verdict. This argument gets stronger the more times the judge sends the jury back to keep deliberating. It is coercive to give the charge to a jury before the jury has indicated that it is deadlocked. *Bell v. Commonwealth*, 245 S.W.3d 738 (Ky. 2008), *overruled on other grounds*.

POLLING THE JURY

KRS 29A.320(e) requires that the jury be sent back for further deliberations if, upon being polled, the jurors do not unanimously and unambiguously endorse the verdict. *King v. Commonwealth*, 465 S.W.3d 38 (Ky. App. 2015).

UNANIMOUS VERDICT

A defendant is entitled to a unanimous verdict under Section 7 of the Kentucky Constitution and under the Sixth Amendment of the Federal Constitution. *Ramos v. Louisiana*, 140 S.Ct. 1390 (2020), *overruling Johnson v. Louisiana*, 406 U.S. 356 (1972) and *Apodaca v. Oregon*, 406 U.S. 404 (1972); *Cannon v. Commonwealth*, 163 S.W.2d 15 (Ky. 1942). *See also* RCr 9.82(1). Aside from the obvious requirement of agreement by all twelve jurors, unanimity also becomes an issue when the jury is instructed that it can find the defendant guilty under either of two theories, since some jurors might find guilt under one theory, while others might find guilt under another. The rule is that if the evidence would support a conviction under either theory, the requirement of jury unanimity is satisfied. *See, e.g.*, *Brown v. Commonwealth,* 553 S.W.3d 826 (Ky. 2018). If the jury is instructed on a theory under which it could not have found guilt, however, then the requirement of unanimity is violated because, in that situation, there is no way to know that every juror voted for conviction under a proper theory. *Davis v. Commonwealth*, 967 S.W.2d 574 (Ky. 1998). *See also Wells v. Commonwealth*, 561 S.W.2d 85 (Ky. 1978); *Hayes v. Commonwealth*, 625 S.W.2d 583 (Ky. 1981); *Carver v. Commonwealth*, 328 S.W.3d 206 (Ky. App. 2010); *Travis v. Commonwealth*, 327 S.W.3d 456 (Ky. 2010).

When a defendant is charged with multiple counts of the same offense, jury instructions which do not factually differentiate between the counts violate the requirement of a unanimous verdict. *Harp v. Commonwealth*, 266 S.W.3d 813 (Ky. 2008); *Miller v. Commonwealth*, 283 S.W.3d 690 (Ky. 2009) (finding palpable error); *Banks v. Commonwealth*, 313 S.W.3d 567 (Ky. 2010); *Martin v. Commonwealth*, 456 S.W.3d 1 (Ky. 2015); *Ruiz v. Commonwealth*, 471 S.W.3d 675 (Ky. 2015); *Dunn v. Maze,* 495 S.W.3d 735 (Ky. 2016). A defendant does not receive a unanimous verdict on a criminal abuse charge when the instructions fail to specify which injury or act the jury should consider. *Johnson v. Commonwealth*, 405 S.W.3d 439 (Ky. 2013). Likewise, the defendant failed to receive a unanimous verdict in *Kingery v. Commonwealth*, 396 S.W.3d 824 (Ky. 2013), when the instructions failed to distinguish factually between two alleged criminal acts, as well as in *Rodriguez v. Commonwealth*, 396 S.W.3d 916 (Ky. 2013), when the instructions did not require a unanimous finding by the jury that the victim was under 12 years of age at the time of the offense.

If the Commonwealth proceeds at trial on theories of both wanton and intentional murder, the instructions must require the jury to state under which theory they find the defendant guilty. *Hudson v. Commonwealth*, 979 S.W.2d 106 (Ky. 1998); *Benjamin v. Commonwealth*, 266 S.W.3d 775 (Ky. 2008). The right to a unanimous verdict was denied the defendant when the jury could consider two different alleged victims for the same count of wanton endangerment. *Little v. Commonwealth*, 422 S.W.3d 238 (Ky. 2013).

If a defect in a verdict is merely formal, the defense must bring the error to the court's attention before the jury is discharged; but if the defect is one of substance, the error may be raised after the jury is discharged such as in a motion for a new trial. *Caretenders, Inc. v. Commonwealth*, 821 S.W.2d 83 (Ky. 1991).

For a discussion of KRS 501.100 and "Continuing Course of Conduct" counts, see "Sufficiency of Notice and Proof" on page 17.

INCONSISTENT VERDICTS

In the Same Trial

This issue can and should be raised to the extent that the finding of one verdict prevents the finding of the other and it is advantageous to the client, however a better practice may be to propose instructions which preclude this possibility by correctly identifying specific details. When appellate courts review this issue the test is basically the same as in the case of unanimous verdicts: what matters is not the logical consistency of the verdicts but the sufficiency of the evidence. Inconsistent verdicts are tolerated as long as there was sufficient evidence for the jury to find guilt on the guilty verdicts it returned. *Commonwealth v. Harrell*, 3 S.W.3d 349 (Ky. 1999); *Fister v. Commonwealth*, 133 S.W.3d 480 (Ky. 2003) (citing

Dunn v. U.S., 284 U.S. at 390, 393 (1932) and *U.S. v. Powell*, 469 U.S. 57, 67 (1984), for the proposition that "each count of an indictment should be regarded as a separate indictment, and thus consistency in a verdict is not necessary").

In Separate Trials

Can a defendant charged with complicity be found guilty, as a matter of law, when all his co-defendants have already been tried and acquitted? The answer is "yes." KRS 502.030 says: "In any prosecution for an offense in which the criminal liability of the accused is based upon the conduct of another person pursuant to ... KRS 502.020, it is no defense that: (1) Such other person has not been prosecuted for or convicted of any offense based on the conduct in question, or has previously been acquitted thereof, or has been convicted of a different offense, or has an immunity to prosecution or conviction for such conduct...."

TRUTH-IN-SENTENCING, KRS 532.055

Nature of Prior Convictions

The jury may be informed of the "nature" of the defendant's prior convictions, but that term is generic, rather than specific, and is meant to include the "kind, sort, type, order, or general character of the offense." "The evidence of prior convictions is limited to conveying to the jury the elements of the crimes." *Mullikan v. Commonwealth*, 341 S.W.3d 99, 109 (Ky. 2011). Reading indictments including the names of the victims and other details was error in *Webb v. Commonwealth*, 387 S.W.3d 319 (Ky. 2012). Detailed testimony by the victim of the defendant's prior assault on her exceeded the scope of the statute. *Robinson v. Commonwealth*, 926 S.W.2d 853, 855 (Ky. 1996). Reversal of the penalty phase of the trial was required after egregious manifest injustice when evidence of prior offenses identified local victims and included three dismissed wanton endangerment charges. *Stansbury v. Commonwealth*, 454 S.W.3d 293 (Ky. 2015). Where age is an element of the crime, the jury should be informed of that through a reading of the relevant statute instead of a general phrase like "children" or, presumably, the identifying the actual age of the people involved. *See Newman v. Commonwealth*, 366 S.W.3d 435, 446 (Ky. 2012). Likewise, warrants and citations including factual information concerning the defendant's prior convictions also exceeded the scope of the statute. *Hudson v. Commonwealth*, 979 S.W.2d 106 (Ky. 1998). *But see Cuzick v. Commonwealth*, 276 S.W.3d 260 (Ky. 2009) in which citations were allowed to be read to the jury (strong dissent from 3 justices).

An AOC Courtnet listing of prior offenses is not sufficiently reliable for use in sentencing hearings. *Finnel v. Commonwealth*, 295 S.W.3d 829 (Ky. 2009).

Webb, *supra*, sets out the proper procedure for introduction of evidence regarding the nature of prior crimes. The "first and preferred method" is to have the judge recite the elements of the prior offenses. If both parties agree, the prosecutor may read the elements of the offenses, but the jury should be told he or she is not testifying as a witness but only as an attorney reading agreed-upon, stipulated evidence. If the parties do not agree, the prosecutor may call a witness to testify to the elements of the previous crimes. *Webb*, at 329.

Unlike KRE 609, which limits the age of prior convictions used for impeachment to ten years, there is no age limit on prior convictions for the purposes of truth-in-sentencing. *McKinnon v. Commonwealth*, 892 S.W.2d 615 (Ky. App. 1995).

Proof of Prior Convictions

Proof of the defendant's prior convictions in the form of a certified computer printout from the Kentucky State Police was admissible and certified copies of the judgments of conviction themselves were not necessary, despite the best evidence rule, in a case in which there was no dispute whatsoever as to the defendant's prior convictions. *Hall v. Commonwealth*, 817 S.W.2d 228 (Ky. 1991), *overruled on other grounds*. However, similar records from another state were improperly admitted, requiring reversal, when the records were not certified as required by KRS 422.040 and when no witness could testify that the records met the requirements of the business record exemption to the hearsay rule. *Robinson v. Commonwealth*, 926 S.W.2d 853 (Ky. 1996). Prior convictions were not properly established when the clerk authenticated the case jacket, citation, and dockets, but failed to authenticate or testify that the charges resulted in convictions. *Lisle v. Commonwealth*. 290 S.W.3d 675 (Ky. App. 2009). Courtnet records are neither reliable nor an official court record for the purpose of

proving prior convictions. *Finnell v. Commonwealth*, 295 S.W.3d 829 (Ky. 2009).

It is error to allow the introduction of prior convictions which are still pending on direct appeal or have been granted discretionary review, but not if they are being attacked collaterally. This is true for truth-in-sentencing as well as for PFO purposes. *Melson v. Commonwealth*, 772 S.W.2d 631 (Ky. 1989); *Thompson v. Commonwealth*, 862 S.W.2d 871 (Ky. 1993), *overruled in part by St. Clair v. Commonwealth*, 140 S.W.3d 510, 570 (Ky. 2004); *Kohler v. Commonwealth*, 944 S.W.2d 146 (Ky. App.1997); *Tabor v. Commonwealth*, 948 S.W.2d 569 (Ky. App. 1997). Evidence showing charges for which the defendant was not convicted – dismissed or amended charges – is inadmissible. *Blane v. Commonwealth*, 364 S.W.3d 140 (Ky. 2012). *See also Chavies v. Commonwealth*, 354 S.W.3d 103 (Ky. 2011).

The word "conviction" is ambiguous, however, and can refer either to an initial conviction after a guilty verdict or guilty plea, or it can refer to the more refined legal conception of a final judgment after all appeals have been exhausted. In some statutes, the word conviction refers to the former event. For example, a person is a "convicted felon" for purposes of the handgun statute (KRS 527.040) the moment the verdict or plea occurs. *See Thomas v. Commonwealth*, 95 S.W.3d 828, 829 (Ky. 2003). Also, based on a meticulous reading of the phrase "prior record of conviction" in KRS 532.025(2)(a)(1), the Kentucky Supreme Court has ruled that prior convictions, for purposes of the aggravator which must be found before imposition of the death penalty is possible, are also merely "a plea of guilty accepted by the trial court or a jury's or judge's verdict of guilty." *St. Clair v. Commonwealth*, 140 S.W.3d 510, 570 (Ky. 2004), *overruling in part, Thompson, supra*. *Melson*, *supra*, was presumably not affected by the decision in *St. Clair*. But see *Hayes v. Commonwealth*, 175 S.W.3d 574 (Ky. 2005), in which the Kentucky Supreme Court seems to have applied *St. Clair* in a non-capital, truth-in-sentencing case.

Out-of-state Convictions

On the other hand, a computer printout from another state showing the defendant's record of convictions and also a number of dismissed charges was ruled inadmissible. The dismissed charges were not proper evidence, and the record did not meet the requirements of KRS 422.040. That statute requires records of out-of-state convictions to be certified by the clerk with the seal of the court and also certified by the "judge, chief justice, or presiding magistrate." *Robinson v. Commonwealth*, 926 S.W.2d 853 (Ky. 1996); *Merriweather v. Commonwealth*, 99 S.W.3d 448 (Ky. 2003).

Juvenile Adjudications

A defendant's juvenile adjudications of guilt may be introduced during the penalty phase if the crime was one which would have been a felony if committed by an adult. KRS 532.055(2)(a)(6). The portion of that same statute which allows the use of juvenile adjudications for the purpose of impeachment during the guilt/innocence phase, however, has been ruled unconstitutional. *Manns v. Commonwealth*, 80 S.W.3d 439 (Ky. 2002). This admission, however, is still subject to a KRE 403 analysis. *Jackson v. Commonwealth*, 481 S.W.3d 794, 800 (Ky. 2016).

In a trial of a youthful offender, the violent offender statute prohibition on probation does not apply and the juvenile must be brought back before the court upon reaching the age of 18 for an additional probation hearing. KRS 640.030(2); *Commonwealth v. Merriman*, 265 S.W.3d 196 (Ky. 2008).

Challenging Prior Convictions

When the prosecution offers evidence of prior convictions based on guilty pleas, the burden shifts to the defendant to show that the pleas were not valid. The Commonwealth is not required to prove both that the prior conviction occurred and that it was constitutionally proper. The defendant's prior convictions were properly admitted when he failed to meet the burden of demonstrating the invalidity of the pleas. *See Parke v. Raley*, 506 U.S. 20 (1992); *Dunn v. Commonwealth*, 703 S.W.2d 874 (Ky. 1986), *overruled in part by Commonwealth v. Fugate,* 527 S.W.3d 42 (Ky. 2017). This includes even misdemeanor convictions introduced for the purposes of truth-in-sentencing. *McGinnis v. Commonwealth*, 875 S.W.2d 518 (Ky. 1994), *overruled on other grounds*.

The proper time to raise the question of the constitutional validity of a prior conviction is in a pretrial motion, and the trial court did not err in refusing to allow the defendant to put on evidence raising the issue when the defendant waited until the sentencing/PFO phase to do it. *Commonwealth v. Gadd*, 665 S.W.2d 915 (Ky. 1984) *overruled in part by Commonwealth*

v. Fugate, 527 S.W.3d 43 (Ky. 2017).

Failure to challenge a prior DUI 1st conviction at the time of the DUI 2nd conviction waived the right to challenge the DUI 1st conviction when it was used to enhance the current charge to DUI 4th. *Commonwealth v. Lamberson*, 304 S.W.3d 72 (Ky. App. 2010). *See also Fugate, supra.*

Fugate, supra, overruled both *Dunn* and *Gadd* to this extent that they permitted a pretrial hearing in the court where the present charge was filed. After *Fugate*, a defendant is not entitled to a collateral review of a prior conviction used to enhance a subsequent offense absent a showing that he was completely denied counsel during the prior proceedings. *Id*.

Practice Tip: Prior Convictions. Defense counsel should move for pretrial discovery of any documents on which the Commonwealth may rely in the penalty phase and make appropriate motions in limine, specifically noting that advance notice of such documents is required to permit possible collateral attack (i.e. RCr 11.42 or CR 60.02 action). Disclosure of these documents is required by RCr 7.24(2). After *Fugate*, *supra*, counsel is effectively prevented from the ability to challenge documents of conviction turned over mid-trial because their only venue for the challenge (absent a complete deprivation of counsel) is in the court of conviction not the court presently trying the case. At trial, object to inadmissible or undisclosed evidence and any mention of it in testimony or closing arguments, and move for a new sentencing phase if the client is prejudiced or receives a presumptively prejudicial high sentence. Counsel may point out that the Commonwealth was put on notice of the reason for the request and elected not to provide the documents in advance. Note this argument is even stronger if made clear during the discovery request itself by written correspondence which makes it into the court record prior to trial.

Parole Eligibility

Testimony of a parole officer that, given the parole board's discretion, the period a person spent on parole was apt to be less than the theoretical maximum, comported with the aims of the truth-in-sentencing statute and was not so misleading as to be unfair. *Cox v. Commonwealth*, 399 S.W.3d 431 (Ky. 2013). Testimony concerning parole eligibility and the possible effects of sentence credits must accurately reflect the law. *See Commonwealth v. Higgs*, 59 S.W.3d 886 (Ky. 2001); *Offut v. Commonwealth*, 799 S.W.2d 815 (Ky. 1990); *Robinson v. Commonwealth*, 181 S.W.3d 30 (Ky. 2005); *Little v. Commonwealth,* 553 S.W.3d 220 (Ky. 2018). Although the truth-in-sentencing statute explicitly authorizes the prosecution to establish "minimum parole eligibility," a defendant may also introduce such evidence. *Boone v. Commonwealth*, 780 S.W.2d 615, 617 (Ky. 1989); *Offut v. Commonwealth*, 799 S.W.2d 815, 818 (Ky. 1990). Comments in closing argument which left the jury with the impression that the defendant's parole eligibility could have been 6 years, when in fact it was 17 years, required reversal and a new sentencing phase in *Beard v. Commonwealth,* 581 S.W.3d 537 (Ky. 2019). *See also Rupee v. Commonwealth,* 754 S.W.2d 852 (Ky. 1988). Parole eligibility testimony is admissible in a death penalty proceeding. *Huddleston v. Commonwealth,* 542 S.W.3d 237 (Ky. 2018), *overruling Perdue v. Commonwealth,* 916 S.W.2d 148 (Ky. 1995).

Victims

Victim impact evidence is largely irrelevant to the issue of guilt or innocence and should be reserved for the penalty phase of the trial. *Bennett v. Commonwealth*, 978 S.W.2d 322 (Ky. 1998). KRS 532.055 defines a "victim" pursuant to KRS 421.500, which was modified after what is known nationally as "Marsy's Law" (a "Victim's Bill of Rights") was ratified in a general election in 2020 to become a new section of the Kentucky Constitution (§ 26A). KRS 421.500(1)(a) defines a "victim" as "an individual directly and proximately harmed as a result of" a felony, or a misdemeanor involving "threatened or actual" physical injury, harassment, or restraint, or involving a child or incompetent person or a sexual offense or trespass." Victim impact testimony is appropriate only for the crime for which the defendant was convicted. It does not include testimony regarding offenses for which the defendant was acquitted. *St. Clair v. Commonwealth*, 451 S.W.3d 597 (Ky. 2014). It is unclear at the time of publication how the new constitutional section and statutory change will alter practice or procedure in criminal cases.

KRS 532.055(2)(a)(7) does not allow victims to offer opinions as to what would constitute an appropriate sentence. *Hilton v. Commonwealth,* 539 S.W.3d 1 (Ky. 2018). (Although "the victim's recommendation for an appropriate sentence" may be included in the *written* victim impact statement which may be used by the probation officer in preparing a pre-sentence

investigation report, KRS 421.520(2).) The right to controvert the contents of a pre-sentence investigation report does not extend to the contents of a victim impact statement. *Phillips v. Commonwealth*, 297 S.W.3d 593 (Ky. App. 2009).

Mitigation

The trial court erred during the penalty phase when it excluded the defendant's mitigating evidence regarding the circumstances which led to his prior conviction for reckless homicide. *Wood v. Commonwealth*, 432 S.W.3d 726 (Ky. App. 2014). Proper mitigation evidence does not include the sentences received by co-defendants for the same crime, *Commonwealth v. Bass*, 777 S.W.2d 233, 236 (Ky. 1989), or plea offers made by the prosecution, *Neal v. Commonwealth*, 95 S.W.3d 843, 847 (Ky. 2003).

Serious Physical Injury/Violent Offender

While a court may make a finding of serious physical injury for the purpose of sentencing a defendant as a violent offender when the evidence is sufficient to do so, "it would behoove the Commonwealth to avoid this issue in the future and put the question of finding serious physical injury before the jury." *Biederman v. Commonwealth*, 434 S.W.3d 40, 46 (Ky. 2014).

Preservation of Sentencing Error

Error which occurs at sentencing can be addressed by a motion to alter, amend or vacate a judgment under CR 59.05, which is applicable to criminal cases and must be filed within 10 days after entry of the final judgment. In *Crane v. Commonwealth*, 833 S.W.2d 813, 819 (Ky. 1992), the Supreme Court suggested that a motion to recuse the trial judge based on comments made prior to sentencing should have been raised in a CR 59.05 motion.

Bail Pending Appeal

RCr 12.78 permits the trial court to grant bail pending appeal in any case except one in which the defendant has been sentenced to either life or death. Defense counsel needs to request this at sentencing. An appellate court will not deal with the issue of bail unless "application to the trial court is not practicable," or unless the trial court denied the request. In most situations, if the request has simply never been made at the trial court level, the court of appeals will send the defendant's attorney back to the trial court.

KRS 532.070 allows a judge to convert an indeterminate sentence of one year on a Class D felony to a determinate sentence of 12 months in the local jail, if the prison sentence would be unduly harsh. This statute only applies to jury verdicts and is not applicable to guilty pleas. *Bailey v. Commonwealth*, 70 S.W.3d 414 (Ky. 2002).

Practice Tip: Parole Eligibility. The Commonwealth might not present all the evidence relevant to parole eligibility to the jury. If it does not, and it applies in your case, make sure the jury also knows about such things as (1) lack of good time credit for violent offenses, (2) lack of good time credit for any offense until minimum parole eligibility, (3) lack of parole eligibility until completing the sex offender treatment program, and (3) the additional 5-year period of post-incarceration supervision for sex offenses. Object to parole eligibility which is too high or too low. Object to parole guidelines which do not apply to your case.

PERSISTENT FELONY OFFENDER, KRS 532.080

Burden of Proof

A defendant may be convicted by reasonable inferences which are a logical consequence of the evidence presented. The Commonwealth retains the burden of proving every element beyond a reasonable doubt, but jurors can make inferences based on the evidence. *Martin v. Commonwealth*, 13 S.W.3d 232 (Ky. 2000), *overruling, Hon v. Commonwealth*, 670 S.W.2d 851 (Ky. 1984), which required proof of all elements of PFO by direct evidence. For example, proof of the defendant's age at the time of a prior offense may be inferred from proof of the defendant's date of birth. *Maxie v. Commonwealth*, 82 S.W.3d 860 (Ky.2002). However, jurors must be able to infer from the evidence offered, and not just guess. *Moore v. Commonwealth*, 462 S.W.3d 378 (Ky. 2015).

It is improper to read the indictments to prove PFO status. *Bray v. Commonwealth*, 703 S.W.2d 478 (Ky.1985). It is improper to admit evidence of dismissed or amended charges. *Tanner v. Commonwealth*, 2011-SC-000364-MR, 2013 WL 658123, Ky. Feb. 21, 2013, *unpublished*.

Penalties for PFO

Effect on Probation Eligibility, All PFO Levels - No person convicted of PFO can be eligible for probation, shock probation, or conditional discharge unless all the new offenses that are being enhanced by the PFO charge are class D felonies and do not involve a violent act against a person or (for PFO1st only) a sex crime against a minor. KRS 532.080(5)&(7).

Second Degree - PFO2nd degree sentencing is calculated using KRS 532.080(5). The sentencing range is increased to the next highest level felony listed in 532.060(2). There is no effect on parole eligibility. For example: a class D becomes a C, C becomes a B, and so on. There is no effect on sentencing for a class A felony with PFO2nd.

First Degree - Subsection (6)(a) of KRS 532.080, details the possible penalty ranges for the various ways in which a defendant may be found guilty of PFO 1st degree. It is notoriously difficult to decipher and includes the sentencing ranges possible when both the prior offense and the new offense is a felony sex crime against a minor. "Sex crime committed against a minor" is defined in KRS 17.500. The following chart is included to clarify the sentence possibilities and effect on parole eligibility caused by KRS 532.080(7).

IF		THEN	
PRIOR OFFENSES	NEW OFFENSE	SENTENCE	EFFECT ON PE
2 Felony Priors	A or B	20-50, life	Min. 10 years (but greater PE scheme may override).
	C	10-20	Min. 10 years (but greater PE scheme may override).
	D	10-20	No effect on PE
	1 felony sex crime against a minor	Same as above based on class of new offense	Same as above based on class of new offense
1 Felony Sex Crime Against Minor	A or B	20-50, life	Min. 10 years (but greater PE scheme may override).
	C	10-20	Min. 10 years (but greater PE scheme may override).
	D	10-20	No effect on PE
	1 felony sex crime against a minor, any class of felony	20-50, life, LWOP 25	Min. 10 years (but greater PE scheme ***will*** override).

Challenging Prior Convictions

When the prosecution offers evidence of prior convictions based on guilty pleas, the burden shifts to the defendant to show that the pleas were not valid. The defendant's prior convictions were properly admitted when he failed to do so. *See Parke v. Raley*, 506 U.S. 20 (1992); *Dunn v. Commonwealth*, 703 S.W.2d 874 (Ky. 1986), *overruled in part by Commonwealth v. Fugate,* 527 S.W.3d 43 (Ky. 2017).

The proper time to raise the question of the constitutional validity of a prior conviction is in a pretrial motion, and the trial court did not err in refusing to allow the defendant to put on evidence raising the issue when the defendant waited until the sentencing/PFO phase to do it. *Commonwealth v. Gadd*, 665 S.W.2d 915 (Ky. 1984), *overruled in part by Commonwealth v. Fugate,* 527 S.W.3d 43 (Ky. 2017), *Diehl v. Commonwealth*, 673 S.W.2d 711 (Ky. 1984). See also *Hodges v. Commonwealth*, 984 S.W.2d 100 (Ky. 1998), in which failure to challenge a prior conviction upon the occasion of the first use of that conviction for enhancement purposes waives later attempts to challenge the same prior conviction.

Uncounseled prior convictions appear to remain an exception to this rule. One should argue that uncounseled prior convictions can be attacked at any time, even collaterally. *Commonwealth v. Fugate,* 527 S.W.3d 43 (Ky. 2017). See also Brian Scott West, "Ignorance of the Law Is an Excuse: Suppressing Prior Guilty Pleas Under *Boykin v. Alabama*," The Advocate, vol. 23, no. 3, May 2001, pp. 50-56.

Proof of conviction of "statutory rape" in Georgia was sufficient to allow the jury to find that the defendant was guilty of a prior sex crime against a minor under subsection (3) of the PFO statute, even if the prosecution did not introduce evidence of the victim's age. *Bullitt v. Commonwealth,* 595 S.W.3d 106 (Ky. 2019).

See also "Practice Tip: Prior Convictions" on page 101.

Sequence of Prior Offenses

In the case of prior convictions used for purposes of PFO, the prior offenses have to have resulted in convictions prior to the date of the current offense. Convictions which occurred after the current charge, but before the defendant's sentencing on the current charge, cannot be used. *Bray v. Commonwealth*, 703 S.W.2d 478 (Ky. 1985). *See also Dillingham v. Commonwealth*, 684 S.W.2d 307, 309 (Ky. App. 1985). "[T]he philosophy underlying the legislation is that a person who commits a felony after having been convicted of a felony has doubt cast on his ability to be rehabilitated and that a person who commits a felony after having been convicted of a felony the second time may well be incorrigible and deserving of more extended incarceration. It has always been the progressive acts which so designate an individual." *Bray*, at 479-80. If the defendant is still on felony diversion at the time of the subsequent offense, the diverted felony cannot be used to PFO because there was not yet a conviction for that felony at the time of the subsequent offense. *Commonwealth v. Derringer*, 386 S.W.3d 123 (Ky.2012). This is true even if the diversion is later revoked and sentence imposed prior to trial on the new offense. *Id* at 132.

Identity

A name is direct prima facie evidence of the identity of a person. *Braden v. Commonwealth*, 600 S.W.2d 466 (Ky. App. 1978), *vacated on other grounds,* citing *Jones*, *infra*. Once the case has been made, however, there is legally sufficient evidence for conviction unless the defendant provides evidence to show he is not the person who was previously convicted. *Jones v. Commonwealth*, 457 S.W.2d 627, 631 (Ky.1970).

Separate Indictments

A defendant may be indicted for PFO in an indictment separate from the current offenses. *Price v. Commonwealth*, 666 S.W.2d 749 (Ky. 1984). Nevertheless, the defendant must at least be arraigned on the charge before he can be tried on it. The defendant has a right to notice of the charges. *Hutson v. Commonwealth*, 171 S.W.3d 743 (Ky. 2005). The defendant's due process rights were violated when the Commonwealth failed to indict him on PFO prior to trial, the defendant was "ambushed" with the charge during trial, had no opportunity to prepare a defense to the PFO, and no opportunity to enter an informed plea agreement. *Clark v. Commonwealth*, 324 S.W.3d 747 (Ky. App. 2010).

Merger of Prior Offenses

KRS 532.080(4) says that "two (2) or more convictions of crime for which that person served concurrent or uninterrupted consecutive terms of *imprisonment* shall be deemed to be only one (1) conviction, unless one (1) of the convictions was for an offense committed while that person was imprisoned." This reflects the original purpose of the statute, which was to restrict the application of PFO status to persons who had already actually served time in prison but then continued to re-offend. *See, e.g.*, *Zachery v. Commonwealth,* 580 S.W.2d 220 (Ky. 1979), *overruled by Commonwealth v. Hinton,* 678 S.W.2d 388 (Ky. 1984); KRS 532.080 (commentary). Subsequent modification to the statute necessitated re-interpretation of this subsection without the requirement of actual imprisonment. *See, e.g.*, *Commonwealth v. Hinton, supra*. Nevertheless, whether the previous convictions were themselves separated by actual time served in prison still makes a difference.

Under the law governing concurrent versus consecutive sentencing, there are many possible scenarios in which someone may be convicted and serve time for one offense, and then commit another offense for which the sentence may run

either concurrently and consecutively to the sentence for the first offense. In such instances, the two prior convictions are separate convictions for the purpose of PFO enhancement, regardless if the sentences ran concurrently or consecutively. The "concurrent/consecutive sentence break applies only to those who may have committed more than one crime but who have received their sentences for all of the crimes committed before serving any time in prison." *Adkins v. Commonwealth*, 647 S.W.2d 502, 506 (Ky. App. 1982). Serving time and then being released on shock probation prior to a subsequent offense will create two separate offenses for PFO purposes. *Boyd v. Commonwealth*, 439 S.W.3d 126 (Ky. 2014). The same is true in the case of offenses committed while on parole. *Williams v. Commonwealth*, 639 S.W.2d 788, 790 (Ky. App. 1982); *Blades v. Commonwealth*, 339 S.W.3d 450 (Ky. 2011). The court noted that, "the rehabilitative efforts on his first conviction failed, the rehabilitative efforts on his second conviction failed, and he is, under the statute, a persistent felony offender in the first degree upon receiving his third conviction." *See also Combs v. Commonwealth*, 652 S.W.2d 859 (Ky. 1983).

A later-imposed concurrent sentence is deemed to have commenced at the beginning of the original sentence, so that, even if the second sentence standing alone would have fallen within the 5-year time period for use in PFO proceedings, the sentence instead began and ended with a prior sentence which did not fall within the 5-year period, when the two sentences ran concurrently to each other. *Lienhart v. Commonwealth*, 953 S.W.2d 70 (Ky. 1997).

PFO and Double Enhancement

It is double enhancement (a type of double jeopardy violation) to use the same, single prior conviction to prove the status of a convicted felon (e.g., in a case of Felon in Possession of a Firearm), and to prove the status as a Persistent Felony Offender. *Jackson v. Commonwealth,* 650 S.W.2d 250 (Ky. 1983). It is not double jeopardy when the defendant has two prior convictions and one is used to prove status as a felon and the other is used to prove status as a Persistent Felony Offender. *Dale v. Commonwealth,* 715 S.W.2d 227 (Ky. 1986). It is not double enhancement when the defendant has only one prior conviction but two new offenses, and the single prior conviction is used to prove status as a felon in *one of the new charges* and used again to prove status as a Persistent Felony Offender in the *other new charge. O'Neal v. Commonwealth,* 114 S.W.3d 860 (Ky. App. 2003).

PFO and Possession of a Controlled Substance, KRS 218A.1415

The first sentence of KRS 532.080(8) says that when the new offense is Possession of a Controlled Substance under KRS 218A.1415, it cannot be PFO'd "regardless of the number or type of prior convictions that may have been entered against the defendant." *Eldridge v. Commonwealth,* 479 S.W.3d 614 (Ky. App. 2015). The second sentence of (8) says that prior convictions for Possession of a Controlled Substance may be used to PFO a new offense as long as the new offense is "a different felony offense." *Boone v. Commonwealth*, 412 S.W.3d 883 (Ky. App. 2013).

PFO and Second Offenses

KRS 532.080(10) restricts the use of prior convictions in cases in which the new offense has been enhanced by proof of a prior conviction.). Subsection (10)(a) says that one cannot *both* enhance a new offense based on a prior conviction *and then* PFO the new offense as well. Statues that are exceptions to that general rule are in subsection (10)(b)(1), such as DUI 4th and Assault 4th Domestic Violence 3rd. Subsection (b)(2) says that the PFO statute may also be applied to a defendant if the Commonwealth elects to prosecute the new offense as a first offense.

There are no published opinions on KRS 532.080(10) at the time of this revision, but there are a couple of unpublished cases on point (see CR 76.28(4)(C)). In *Jackson v. Commonwealth,* 2014-SC-000506-MR, 2016 WL 2604841, Ky. May 5, 2016, *unpublished,* the defendant had two prior convictions. One of the prior convictions was for trafficking. The new offense charged against the defendant was also trafficking. The prosecution attempted to use the prior trafficking conviction to enhance the new trafficking charge to trafficking second offense. The prosecution then used the second prior conviction to enhance the trafficking second offense to a PFO second degree. The defendant argued that KRS 532.080(10) prohibited the prosecution from both enhancing the new offense to second offense *and* charging the defendant with PFO second degree on the same charge. The Supreme Court said, at 7, "Jackson's argument was correct…" See also *Wills v. Commonwealth,* 2016-CA-000495-MR, 2017 WL 1829714, Ky. App. May 5, 2017, *unpublished*, in which the Court of Appeals held that it constituted an illegal sentence to allow the prosecution to both enhance the defendant's trafficking charges to second or

subsequent offenses and to allow those enhanced charges to be PFO'd as well.

Morrow v. Commonwealth, 77 S.W.3d 558 (Ky. 2002), *overruling Gray v. Commonwealth*, 979 S.W.2d 454 (Ky. 1998), stood for the proposition that when a defendant has twice been convicted for trafficking in a controlled substance, he can be convicted of both trafficking as a subsequent offender and PFO 2nd, even though the two prior convictions would merge into one conviction under the PFO statute. *See also Bolen v. Commonwealth*, 31 S.W.3d 907 (Ky. 2000); *Knuckles v. Commonwealth,* 315 S.W.3d 319 (Ky. 2010). *Morrow, Bolen* and *Knuckles* were all decided prior to the enactment of KRS 532.08(10) in June, 2011, and have been superseded by enactment of the statute. (Note, e.g., *Duncan v. Commonwealth,* 2015-CA-001536-MR, 2017 WL 129076, Jan. 13, 2017, *unpublished,* in which the defendant's trafficking charge was enhanced to a subsequent offense and he was also PFO'd on the same offense. In that case, the Commonwealth conceded that the defendant had been "subject to an illegal double enhancement." At 4.)

Subsection (10) protections may not apply to cases in which the penalty range increases but the classification of the offense does not. For example, according to KRS 218A.1413, Trafficking 2nd Degree, if the drugs involved are under the specified amounts, a 1st offense is a Class D that carries 1-3 years, and 2nd offense carries 1-5 years and is *still a Class D.* KRS 532.080(10) would not prohibit both enhancing the new charge to a second offense and enhancing it under the PFO statute as well. *See, e.g.*, *Turner v. Commonwealth,* 2016-CA-000119-MR, 2017 WL 2209954, Ky. App. May 12, 2017, *unpublished*.

PFO and Sentencing Caps

When the defendant was convicted of a Class C Trafficking charge and it was enhanced to 10-20 years with a charge of PFO 2nd, and the jury gave the defendant 20 years on that charge, the KRS 532.110(1)(c) limit on aggregating Class C and D felonies at 20 years operated to prevent running his other charges consecutive to the enhanced Trafficking charge. *Blackburn v. Commonwealth*, 394 S.W.3d 395 (Ky. 2011). This also includes the situation in which a Class C or D felony sentence is enhanced by a PFO 1st. KRS 532.110(1)(c) says that, "the aggregate of consecutive indeterminate terms shall not exceed in maximum length the longest extended term which would be authorized by KRS 532.080 for the highest class of crime for which any of the sentences is imposed." In this case, the longest term a Class C or D felony can get on a PFO 1st is 20 years. So, then, the aggregate of all the sentences combined cannot exceed 20 years, either.

Although both statutes seem to exclude any provisions of KRS 532 which might increase the maximum penalty for those offenses, KRS 218A.1413 (Second Degree Trafficking) can be enhanced by PFO, *Gamble v. Commonwealth*, 453 S.W.3d 716 (Ky. 2015), while KRS 218A.1415 (First Degree Possession) cannot be enhanced by PFO. *Eldridge v. Commonwealth*, 479 S.W.3d 614 (Ky. App. 2015). The difference is that KRS 532.080(8) specifically mentions First Degree Possession.

Capital Offenses

Capital offenses cannot be enhanced by the PFO statute. *Offut v. Commonwealth*, 799 S.W.2d 815 (Ky. 1990), *Berry v. Commonwealth*, 782 S.W.2d 625 (Ky. 1990), *overruled on other grounds*.

Practice Tip: Remember to renew a motion for directed verdict at the close of the PFO evidence. Although the jury is only determining a question of status, it is still making a finding of fact, and such a motion preserves technical deficiencies in the evidence submitted to them.

PFO CHECKLIST

At Least 21 Years Old at Time of Sentencing - See *Hayes v. Commonwealth*, 660 S.W.2d 5 (Ky. 1983), in which it was not error when defendant was not over 21 at the time of the offense but was over 21 at the time of sentencing. See also *Harris v. Commonwealth*, 338 S.W.3d 222 (Ky. 2011), for the same situation.

Stands Convicted of a Felony for Current Offense – The phrase "stands convicted" in the PFO statute means "the new offense." This has been interpreted to require that the defendant be first sentenced on the underlying current offense before he can be convicted as a Persistent Felony Offender. *Commonwealth v. Hayes,* 734 S.W.2d 467 (Ky. 1987), *Davis v. Manis*, 812 S.W.2d 505 (Ky. 1991).

Prior Conviction Was for a Sentence of One Year or More - This part of "the statute does not require actual imprisonment." *James v. Commonwealth*, 647 S.W.2d 794, at 796 (Ky. 1983), rever*sed on other grounds by James v. Kentucky*, 104 S.Ct. 1830 (1984), *overruled on other grounds by Jenkins v. Commonwealth*, 607 S.W.3d 601 (Ky. 2020). Out-of-state convictions that were misdemeanors in North Carolina, but which carried sentences of up to 2 years, were felonies for PFO purposes when the defendant received sentences of 18 months and 2 years, even if the sentences were probated. *Ware v. Commonwealth*, 47 S.W.3d 333 (Ky. 2001). An indeterminate sentence of one year modified to a definite sentence of less than one year under KRS 532.070(2) qualifies as a prior conviction for PFO purposes as well. *Hamilton v. Commonwealth*, 754 S.W.2d 870 (Ky. App. 1988). Sentences of 60 days and probation did not qualify as prior convictions in *Johnson v. Commonwealth*, 277 S.W.3d 635 (Ky. App. 2009). The evidence at trial must show that a sentence of imprisonment of one year or more was actually imposed. In *James*, supra, the Nebraska court imposed a sentence of probation, not imprisonment. (In Nebraska, a court does not impose a sentence of imprisonment unless the defendant is subsequently revoked.) In *Jenkins*, *supra*, the court reversed the defendant's PFO conviction because the evidence did not reflect that the Michigan court had actually imposed a term of imprisonment of one year or more, even though it was clear that the offense the defendant had been convicted of was a felony in Michigan with a statutory minimum sentence of 2-and-a-half years.

Defendant Was at Least 18 at the Time the Prior Offense Was Committed - "For purposes of the Penal Code, a person is 'over the age of 18' from the first moment of the day on which his 18th birthday falls." *Garret v. Commonwealth*, 675 S.W.2d 1, 1 (Ky.1984).

Requisite Prior Felonies - PFO 1st, 2 Priors or 1 Prior Sex Crime as Defined by KRS 17.500; PFO 2nd, 1 Prior.

AND ANY ONE OF THE FOLLOWING:

Prior Was Served Out within 5 Years of Date of Current Offense - For purposes of PFO 1st, only one of the prior felonies has to meet this or one of the following criteria. *Howard v. Commonwealth*, 608 S.W.2d 62, 64 (Ky. App. 1980). The 5 year period now includes any time spent on post-incarceration supervision.

OR

On Probation or Parole for the Prior Offense at Time of Current Offense.

OR

Discharged from Probation or Parole within 5 Years of Date of Current Offense.

OR

In Custody for Prior Offense at Time of Current Offense. See KRS 532.080(4), which says these offenses do not merge into one offense with the prior offense for which the person was imprisoned.

OR

Escaped from Custody for Prior Offense at Time of Current Offense. This refers to offenses committed after an escape. Escape charges themselves fall under the previous criteria of offenses committed while in custody. *Damron v. Commonwealth*, 687 S.W.2d 138 (Ky. 1985).

PRESENTENCE INVESTIGATION REPORTS (PSI)

PSI's include the defendant's risk and needs assessment and probation's calculation of jail credit. KRS 532.050. In felony cases, Corrections calculates and awards custody credit unless the defendant has sufficient credit to serve out, in which case the court may award that credit at sentencing. KRS 532.120; *Caraway v. Commonwealth*, 459 S.W.3d 849 (Ky. 2015). The Department of Corrections may correct errors as well. *See, e.g.*, *Bowling v. White*, 480 S.W.3d 911 (Ky. 2016). Juvenile records may be included in the PSI. KRS 532.050 says the PSI shall include, "An analysis of the defendant's history of delinquency or criminality." *Schooler v. Commonwealth,* 628 S.W.2d 885 (Ky. App. 1981). But remember that the older the records are, the less relevant they may be. *Schooler* concerned a defendant who had only recently become an adult.

Importance of PSIs

There is not likely to be any document which will have a greater impact on the post-sentencing treatment of the defendant than the PSI. The contents of the PSI will affect: the classification the client will receive and what restrictions may come with that, what kind of work he will be allowed to do and where he can do it, what kind of statutory credit he will receive and, last but not least, whether he will be paroled. The PSI follows the client throughout the prison system.

For instance, upon in-processing at LaGrange, the inmate will be classified as to custody level (maximum, close, medium, restricted, or minimum). Their classification will affect which institutions they can go to, job assignments, cell or dorm assignments, eligibility for furloughs, and eligibility for community-based rehabilitation and reassimilation programs. The classification is carried out on a scoring system of different categories in which heavy reliance is placed on the contents of the PSI.

The "crime story" section of the PSI may also affect classification. For example, even if the client pleaded to Robbery 2nd Degree, which does not involve injury to the victim, the classification officer can read the "crime story" taken from the arresting officer's citation and determine that an injury did occur and, on that basis, invoke KRS 197.140 to determine that the client is ineligible to work outside the walls of the prison.

The parole board is also often more interested in the alleged facts of the case than the charge to which the client ultimately pleaded. The board will even consider, against the client, the facts surrounding charges that were dismissed, if it appears they were only dismissed as part of a plea deal, and not because they were unfounded.

Copy to Defendant

In some jurisdictions, whether the defendant is entitled to a copy of the PSI still seems to be an issue. The old 1987 case which says that a defendant is not entitled to a copy of the PSI, *Bush v. Commonwealth*, 740 S.W.2d 943 (Ky. 1987), was based on the 1987 version of the PSI statute, KRS 532.050(4), which at the time only allowed the defendant to be informed of the contents of the PSI. The statute was revised in 1990 to require furnishing a copy of the PSI to the defendant's counsel, KRS 532.050(6), and effective April 1, 2009, RCr 11.02 was modified to require that the defendant's attorney receive a copy of the PSI no later than 2 business days prior to final sentencing.

Waiving

A defendant can waive inspection and controversion of the PSI, *Alcorn v. Commonwealth*, 557 S.W.2d 624 (Ky. 1977), but denying the defendant the right to challenge the contents when he wishes to do so is a denial of due process. *Stewart v. Commonwealth*, 2013-CA-001716-MR, 2015 WL 2437555, Ky. App. May 22, 2015, *unpublished.* The PSI will be written regardless of whether the defendant reviews it. So, do not waive review of the PSI unless the client is getting some more important benefit.

Practice Tip: PSIs. When faced with misleading or incorrect information in a PSI, make sure to do the following:

- Specifically identify what should be corrected or omitted. If the PSI was prepared from the original police reports but a jury found the client guilty of only a lesser offense, or if the defendant pleaded guilty to an amended charge and some charges were dismissed, object to any reference to allegations concerning the originally charged offense.
- Specifically inform the court of exactly what the PSI should say instead.
- Make a motion on the record that only the amended PSI be submitted to the Department of Corrections. Memorialize the amendments in an order for the judge to sign, if necessary.
- If the court denies your relief, make sure the record clearly reflects what you think the PSI should say.
- Offer to help write the PSI. Offer to send information to be included on the PSI if it might be helpful to the client.
- Ensure that this is done prior to final sentencing so that the correct document is received by Corrections. In *Mills v. Commonwealth*, 2004-SC-0140-MR, 2005 WL 2317982, Ky. Sept. 22, 2005, *unpublished*, the Kentucky Supreme Court found it difficult to ascertain whether the corrected PSI had ever made it to the Department of Corrections.

VII. INITIATING THE APPEAL

DEADLINES AND REQUIREMENTS

After verdict, time limitations apply to motions and filling which can affect the finality of the verdict.

Motion for New Trial, Motion for Judgment Notwithstanding Verdict (Within 5 Days)

A motion for new trial under RCr 10.06 must be filed within 5 days after the verdict is returned. (The exception is a motion for new trial based on newly discovered evidence (CR 60.02), which must be filed within a year or "at a later time if the court for good cause so permits.") It can cover any issue arising from the trial. RCr 10.02(1); *Johnson v. Commonwealth*, 17 S.W.3d 109 (Ky. 2000). Nevertheless, raising an issue for the first time in a motion for new trial or motion for judgment notwithstanding the verdict does not preserve an issue for appeal if it was not objected to during the trial. *Byrd v. Commonwealth*, 825 S.W.2d 272 (Ky. 1992), *overruled on other grounds* by *Shadowen v. Commonwealth*, 82 S.W.3d 896 (Ky. 2002).

A motion for judgment notwithstanding the verdict under RCr 10.24 must also be filled within 5 days of the verdict and, since it is essentially a renewed motion for directed verdict, i.e., a complete acquittal, it can only be filed if the defendant moved for a directed verdict at the close of all the evidence. The Commonwealth cannot appeal from a Motion for Judgment Notwithstanding the Verdict which has been granted. *Maupin v. Commonwealth,* 542 S.W.3d 926 (Ky. 2018), *overruling Commonwealth v. Brindley,* 724 S.W.2d 214 (Ky. 1987).

Remember that in *Funk v. Commonwealth*, 842 S.W.2d 476 (Ky. 1992) and other prior cases, the Court has recognized that cumulative error may be a ground for reversal even if each individual error is not sufficient to require reversal. In *Funk*, the court found that the cumulative effect of prejudice from three trial errors was sufficient to require reversal.

If you miss the deadline, move for an extension and then file the motions.

Withdrawing a Plea of Guilty (Prior to Sentencing)

See "Withdrawing a Plea of Guilty" on page 112.

Automatic *In Forma Pauperis Order* (At Sentencing)

KRS 31.120(1)(c) reads: "A person who, after conviction, is sentenced while being represented by a public defender shall continue to be presumed a needy person, and the court, at the time of sentencing, shall enter an order *In Forma Pauperis* for purposes of appeal without having to show further proof of continued indigence, unless the court finds good cause after a hearing to determine that the defendant should not continue to be considered an indigent person." A Motion to Proceed *In Forma Pauperis* may still be necessary if the judge does not automatically sign the Order, but the court cannot refuse to sign the order without a hearing finding a change in the defendant's indigent status.

DPA must still be (re-)appointed to the appeal even if DPA represented the client at trial. Otherwise, the appellate court and DPA consider the appellant to be represented on appeal by trial counsel, or to be proceeding pro se. Trial counsel can tender an order appointing, combined or separate from an *in forma pauperis* order, to be signed at sentencing or at the time of filing of the notice of appeal. This avoids trial counsel gets a letter from the appellate court ordering him or her to show cause why the appeal has not been perfected and why it should not then be dismissed.

Notice of Appeal and Designation of Record (Within 30 Days)

RCr 12.04 requires that the notice of appeal be filed within 30 days of the final judgment or within 30 days of the denial of the motion for new trial. The exception to this is when the court finds that the defendant is no longer indigent. The notice need not list the issues on appeal or the name of any particular attorney who will be representing the defendant.

Within 10 days of filing the notice of appeal, a designation of record must be filed. One must be filed in every case. The designation of record states what portions of the trial-level proceedings are to be included in the appellate record. It must include the specific dates of the proceedings which are to be included in the record. A short description of each event should also be included if there may be any doubt. The clerk will not spontaneously just "copy everything." Also, remember

to include designations of any relevant district or juvenile court proceedings. This is especially important when district court testimony was used to cross-examine a witness or when representing a youthful offender who was transferred to circuit court.

Failure to designate the record properly can lead to dismissal of the appeal or the refusal of the appellate court to review issues pertaining to the missing part of the record. *Commonwealth v. Black*, 329 S.W.2d 192 (Ky. 1959). All absences in the record on appeal are presumed to favor the trial court.

A certificate as to transcript is also required in any appeal without a video record. It must be attached to the designation of record and must be signed by both trial counsel and the court reporter. CR 75.01(2).

Practice Tip: Exhibits. Not all exhibits are automatically transferred to the appellate court. CR 75.07(3) provides: "Except for (a) documents, (b) maps and charts, and (c) other papers reasonably capable of being enclosed in envelopes, exhibits shall be retained by the clerk and shall not be transmitted to the appellate court unless specifically directed by the appellate court on motion of a party or upon its own motion." Photograph any large exhibits which will not go to the appellate court and the clerk can send up the photographs with the record. Include copies of any power point presentations and the original copies of any documents that have been enlarged. Finally, check the record sheet with the clerk to make sure it includes all the exhibits and also indicates which were introduced into evidence and what was just marked for identification.

INITIATING THE APPEAL: QUICK REFERENCE

Required for All Appeals:

Notice Of Appeal
- File with the Court where in which the final judgment took place.
- State that the client wishes to appeal the final judgment.

Designation of Record
- Designate the entire record.
- Specifically list each court event, and provide the date it occurred.

Motion to Proceed *In Forma Pauperis*
- State that the client was previously appointed DPA representation
- File pursuant to KRS 453.190 and KRS 31.110

Special Circumstances:

When Denied *In Forma Pauperis* Status
- File a Notice of Appeal from Denial of *In Forma Pauperis* Status
- File with the Court that denied the Motion to Proceed *In Forma Pauperis*
- File pursuant to *Gabbard v. Lair*, 528 S.W.2d 675 (Ky. 1975) and KRS 31.120(1)(c)

Motion for Additional Time to Certify Record on Appeal
- File motion with the appellate court
- File pursuant to CR 73.08
- Attach an affidavit of the Clerk of the Circuit Court stating an extension is needed and why.
- Include the requested due date for the record, and the length of the extension requested.

TERMINATION OF REPRESENTATION

Upon termination of representation the defendant is entitled to the entirety of the file prepared by his attorney, including attorney work-product. The work product privilege is meant to protect an attorney, but not from his own former client and does not override questions of ownership. *Clark v. Commonwealth*, 194 S.W.3d 324 (Ky. 2006).

VIII. GUIDE TO KENTUCKY SENTENCING LAW

GENERALLY

Authorized dispositions for capital offenses (murder) in KRS 532.030(1) are: death, life without parole, life without parole for 25 years, life, a term of imprisonment of not less than 20 years and not more than 50 years. Authorized dispositions for Class A, B, C, and D felonies in KRS 532.060(2) are: Class A felony – life, 20 to 50 years, Class B felony – 10-20 years, Class C felony – 5-10 years, Class D felony 1-5 years. Some Class D drug offenses (like possession) carry maximum terms of 3 years imprisonment, e.g., KRS 218A.1413 and 218A.1415. (For a history of Kentucky sentencing law since the passage of the Penal Code in 1975, see "The Kentucky Penal Code: Forty Years of Unresolved Tension and Conflict Between Sentencing Philosophies," Ernie Lewis and Dan Goyette, The Advocate, Oct. 2014, available at http://dpa.ky.gov.)

Illegal Sentences

No court has jurisdiction to impose an illegal sentence, and an appellate court may review an illegal sentence even if the issue was not previously raised by the defendant. In *Walker v. Commonwealth,* 568 S.W.3d 364 (Ky. App. 2018), the court ruled that the imposition of an illegal sentence is always an abuse of discretion and that failure to correct the sentence would also be an abuse of discretion even if correcting the sentence would require the court to exceed its usual jurisdictional limit of 10 days to correct the sentence pursuant to CR 59.05. (The Department of Corrections actually sent a letter to the judge in that case, asking the court to amend the original order.) *See also Phon v. Commonwealth,* 545 S.W.3d 284, 302 (Ky. 2018); *Spicer v. Commonwealth,* 442 S.W.3d 26, 35 (Ky. 2014); *Jones v. Commonwealth,* 382 S.W.3d 22, 27 (Ky. 2011); *McClanahan v. Commonwealth,* 308 S.W.3d 694, 701 (Ky. 2010).

Withdrawing a Plea of Guilty

A court can, for any reason, permit the withdrawal of a guilty plea under RCr 8.10 at any time before judgment. A court is obligated to permit withdrawal if it rejects a plea agreement or if the plea was otherwise invalid. *Id*. The validity of guilty pleas is typically challenged on the grounds that they were not entered knowingly, intelligently, and voluntarily. *See Boykin v. Alabama*, 395 U.S. 238 (1969). This may, or may not, include a claim that the defendant's counsel was ineffective and so contributed to the entry of an invalid plea.

A defendant's motion to withdraw a plea of guilty is a "critical stage" in the criminal proceedings, triggering the Sixth Amendment right to the effective assistance of counsel. This includes a right to conflict free counsel. *Commonwealth v. Tigue,* 459 S.W.3d 372 (Ky. 2015). As a result, a indigent person moving the court to withdraw a guilty plea is entitled to a new, conflict-free attorney to pursue the motion if any of the claims being made allege ineffective assistance of their current counsel. *Id*. Examples of claims that might constitute ineffective assistance at that stage include a failure to investigate the case, failure to negotiate a case, failure to advise about the direct or collateral consequences of the plea, and failure to correctly advise about parole eligibility. *See also Marks v. Commonwealth,* 555 S.W.3d 462 (Ky. App. 2018).

The right to counsel is also denied when the defendant, acting as hybrid counsel, claims ineffective assistance of counsel on the basis that counsel allegedly deceived the defendant with regard to how easy it would be to withdraw his plea of guilty. Such an allegation also creates a conflict of interest for defense counsel. *Zapata v. Commonwealth,* 516 S.W.3d 799 (Ky. 2017).

However, the right to counsel is not denied and defense counsel does not face a conflict of interest when ineffective assistance of counsel is not alleged and defense counsel files and pursues the motion to withdraw the plea on behalf of the client. *Dorsey v. Commonwealth,* 565 S.W.3d 569 (Ky. 2018) (finding no error or conflict where defendant alleged he believed judge could reduce parole eligibility but agreed with counsel that counsel advised him otherwise).

Practice Tip: Motions to Withdraw a Guilty Plea. *Dorsey*, *supra*, demonstrates that there is a rather blurry line defining what constitutes a conflict for current counsel and as a result most motions to withdraw a guilty plea should be pursued by separate counsel. In practice, the colloquies which accompany a guilty pleas can easily be used to disprove most claims that are not founded in an error made by counsel. In any event, current or successor counsel should always file a formal motion to withdraw the guilty plea rather than resting on the pro se verbal or written allegations of the client. The failure to formally plead the basis for the withdrawal can effectively bar a claim. *See Russell v. Commonwealth*, 495 S.W.3d 680 (Ky. 2016).

Felony or Misdemeanor or Something Else

KRS 532.070(2) allows a trial court to sentence a defendant found guilty by a jury of a Class D felony to the sentencing rage for a Class A Misdemeanor sentence after having considered "the nature and circumstances of the crime" and "the history and character of the defendant." Modification in this manner does not convert the felony conviction to a misdemeanor one. *Commonwealth v. Doughty*, 869 S.W.2d 53 (Ky. App. 1994); Hamilton v. Commonwealth, 754 S.W.2d 870 (Ky. App. 1988). Both KRS 508.032 and KRS 510.015 appear to allow a jury to sentence a defendant to a misdemeanor sentence after the charge has been indicted by the grand jury and tried as a felony. For the proper procedure in the case of KRS 508.032, see *Brewer v. Commonwealth,* 478 S.W.3d 363 (Ky. 2015). A Youthful Offender pleading to or found guilty of a felony charge for which he could not have been transferred to circuit court must be sentenced in circuit court as a juvenile. KRS 640.040; *Chipman v. Commonwealth,* 313 S.W.3d 95 (Ky. 2010).

AGGREGATING SENTENCES

Multiple misdemeanor convictions cannot be aggregated for more than one year. KRS 532.110(1)(b). The exception is misdemeanors committed while on misdemeanor probation, which can run either concurrent or consecutive. KRS 533.040(3), *Walker v. Commonwealth*, 10 S.W.3d 492 (Ky. App. 1999).

Multiple simultaneous convictions for Class C and D felonies cannot be aggregated for more than 20 years. KRS 532.110(1)(c). This also applies to sentences handed down in different counties. In *Throgmorton v. Commonwealth,* 2010-CA-001974-MR, 2013 WL 560712, Ky. App., Feb. 15, 2013, *unpublished*, the Ballard circuit court ordered the sentence in one case to run concurrently with sentences in two other cases, one of which was in another county. The defendant wound up with a sentence of 32 years for nothing but Class D felonies. The Court of Appeals held that the maximum aggregate sentences which could be imposed could not exceed 20 years. The court cited *Goldsmith v. Commonwealth,* 363 S.W.3d 330 (Ky. 2012) as precedent, which also dealt with separate sentences out of different counties. The sentence cap does not apply to convictions for new felonies committed while already on felony probation or parole. In those cases, the total of old and new sentences combined can exceed 20 years because KRS 533.060(2) requires that the new sentences run consecutive to the old ones. The new sentences can run either concurrently or consecutively to each other, *Peyton v. Commonwealth*, 253 S.W.3d 504 (Ky. 2008), *overruling Devore v. Commonwealth*, 662 S.W.2d 829 (Ky. 1984), but if they are run consecutively then they cannot exceed 20 years, either. *Blackburn v. Commonwealth*, 394 S.W.3d 395 (Ky. 2011), *overruling Devore v. Commonwealth*, 662 S.W.2d 829 (Ky. 1984). This also includes the situation in which a Class C or D felony sentence is enhanced by a PFO 1st. KRS 532.110(1)(c) says that, "the aggregate of consecutive indeterminate terms shall not exceed in maximum length the longest extended term which would be authorized by KRS 532.080 for the highest class of crime for which any of the sentences is imposed." In this case, the longest term a Class C or D felony can get on a PFO 1st is 20 years. So, then, the aggregate of all the sentences combined cannot exceed 20 years, either. The statute requiring that sentences for sex crimes involving multiple victims must run consecutively to one another is not exempt from the statutory cap limiting aggregate Class C and D felonies to 20 years. *Commonwealth v. Stambaugh*, 327 S.W.3d 435 (Ky. 2010).

The limit of simultaneous aggregated consecutive felonies of any class is 70 years. KRS 532.110(1)(c). The jury should be instructed regarding this sentencing cap in cases in which the defendant could get more than 70 years if the charges are all run consecutively. *Allen v. Commonwealth*, 276 S.W.3d 768 (Ky. 2008).

Judicial Discretion, Hammer Clauses

A defendant cannot plead to, nor can a court impose as a result of a plea, a sentence exceeding the statutory maximum. A "hammer clause" imposing more than the maximum sentence if the defendant was revoked, violates the separation of powers doctrine and is an abuse of discretion even if the defendant agrees to the provision. *McClanahan v. Commonwealth*, 308 S.W.3d 694 (Ky. 2010), *overruling Myers v. Commonwealth* 42 S.W.3d 594 (Ky. 2001), and *Johnson v. Commonwealth*, 90 S.W.3d 39 (Ky. 2002). The court cannot commit to a sentencing scheme at the time of the guilty plea which provides increased penalties for violations committed between the plea and sentencing. The record must reflect that sentence was imposed only after the court had considered alternatives to incarceration, the circumstances of the crime, the history, character and condition of the defendant, and the PSI. *Knox v. Commonwealth*, 361 S.W.3d 891 (Ky. 2012). *But see Pursley v. Commonwealth,* 500 S.W.3d 807 (Ky. 2016) (affirming of a modified hammer clause which increased the Commonwealth's recommended sentence to the maximum sentence legally permitted if the defendant committed new crimes prior to sentencing). Likewise, the court cannot commit to running the defendant's sentences concurrently if the defendant succeeds on probation, or consecutively if the defendant is revoked, even if the defendant agrees to it. The court must fix the defendant's sentence at the time of conviction. *Machniak v. Commonwealth*, 351 S.W.3d 648 (Ky. 2011). When the plea agreement said that the defendant would not be allowed to withdraw his plea at sentencing if he got into any more trouble between the plea and then, to deny the defendant's motion to withdraw his plea summarily in deference to the plea agreement would have been an abuse of discretion (but that the trial court made the proper inquiries before denying the plea anyway). *Prater v. Commonwealth*, 421 S.W.3d 380 (Ky. 2014). The court's revocation of a pretrial diversion agreement, when the defendant had failed only one drug test, and when the diversion agreement held a zero-tolerance clause, failed to show proper use of judicial discretion and especially failed to demonstrate the discretion required by KRS 439.3406. *Helms v. Commonwealth*, 475 S.W.3d 637 (Ky. App. 2015).

While a court must show sensitivity to a victim's concerns, it cannot abdicate its duty to exercise its own discretion at sentencing. Victims do not have authority to dictate the terms of a defendant's sentence. *Griffith v. Commonwealth*, 454 S.W.3d 315 (Ky. App. 2015). The statute permitting victim impact testimony at a jury sentencing does not allow victims to offer opinions as to what would constitute an appropriate sentence, even if such statements might be properly submitted to the judge at the time of final sentencing. *Hilton v. Commonwealth,* 539 S.W.3d 1 (Ky. 2018).

CONSECUTIVE VS. CONCURRENT

Generally

When two sentences run concurrently, the Department of Corrections counts them as having started at the same time. A later-imposed concurrent sentence is deemed to have commenced at the beginning of the original sentence. *Lienhart v. Commonwealth*, 953 S.W.2d 70 (Ky. 1997); KRS 197.035(2); 197.045(3).

A definite (misdemeanor) term of imprisonment must run concurrently with an indefinite (felony) term of imprisonment, and serving-out the indefinite term will satisfy both sentences. KRS 532.110(1)(a). This applies even when the sentences are imposed by different courts. *Powell v. Payton*, 544 S.W.2d 1 (Ky. 1976). A definite term of imprisonment will run concurrent with an indefinite term even when the felony is diverted. When the defendant had pleaded guilty to the felony and the misdemeanor at the same time, the defendant was entitled to credit for the time he served on the misdemeanor when his felony diversion was revoked. *Prather v. Commonwealth*, 301 S.W.3d 20 (Ky. 2009). *See also Ingram v. Commonwealth*, 338 S.W.3d 302 (Ky. App. 2011).

If the judgment is silent with regard to other sentences, the sentences run concurrently. KRS 532.110(2). For example, the court did not have jurisdiction to run the defendant's revoked probation time consecutively to time revoked in another county when the judgment was silent as to whether the sentences were to run consecutively to one another. *Goldsmith v. Commonwealth*, 363 S.W.3d 330 (Ky. 2012). Note, however, that when orders from separate circuits are not silent, but conflict with regard to whether sentences should run consecutively or concurrently, it has been the policy of the Department of Corrections to give precedence to the most recent order. The exception to all this is when a new felony is committed on felony probation. See *Riley v. Parke*, *below*.

A trial court can run a sentence in Kentucky concurrent with a federal sentence or sentence in another state, but it must specify that the Kentucky sentence runs concurrently and specify the sentence with which it will run concurrently. KRS 532.115.

Life Sentences

No sentence of a term years, received at the same time as a life sentence – any life sentence - can run consecutively to that life sentence and life sentences cannot run consecutive to one another. *Bedell v. Commonwealth*, 870 S.W.2d 779 (Ky. 1993); *Holloman v. Commonwealth*, 37 S.W.3d 764 (Ky. 2001). This does not apply when the defendant was already on probation or parole at the time of the offense. See *Stewart v. Commonwealth*, 153 S.W.3d 789 (Ky. 2005), in which the defendant had to serve-out a prior sentence before he could start his life sentence. No sentence of a term of years can run consecutive to a sentence of life without parole for 25 years. *Winstead v. Commonwealth*, 327 S.W.3d 479 (Ky. 2010). As stated in *Bedell*, it does not matter whether the life sentence is capital or non-capital. All that matters is that it is a life sentence. See also *Goben v. Commonwealth,* 503 S.W.3d 890 (Ky. 2016), in which the defendant's sentence of life *plus* 20 years was remanded for correction to show that the 20-year sentence ran concurrently with the life sentence.

Exceptions

New Offenses Committed on Probation or Parole - Although the general rule is that misdemeanor sentences must run concurrent to felony sentences, and that consecutive misdemeanor sentences cannot exceed one year, sentences for new felonies or misdemeanors committed while on probation can run consecutively to revoked felony or misdemeanor sentences. Generally, when a new offense is committed while a defendant is still on probation:

A sentence for a **felony committed while on felony probation** must run consecutively to the probated felony sentence. KRS 533.060(2); *Brewer v. Commonwealth*, 922 S.W.2d 380 (Ky. 1996). Although KRS 533.040(3) seems to require that the probation first be revoked before it can run consecutively, KRS 533.060(2) controls over KRS 533.040(3), so the sentences have to run consecutively regardless of whether the probation has been revoked.

Furthermore, although KRS 532.110(2) allows sentences to be run concurrently if the judgment does not specify how they are to run, in the case of felonies committed while on felony probation, the Department of Corrections will run those sentences consecutively, whether the judgment is silent on the matter or not. *Riley v. Parke*, 740 S.W.2d 934 (Ky. 1987).

A sentence for a **felony committed while on misdemeanor probation** can run consecutively to the probated misdemeanor sentence, but does not have to. KRS 533.040(3); *Warren v. Commonwealth*, 981 S.W.2d 134 (Ky. App. 1998). KRS 532.110(1) requires the misdemeanor time to run concurrently with the felony time. On the other hand, KRS 533.040(3) says that a revoked sentence of probation can be run consecutively. Since the statutes conflict, the court can do either.

A sentence for a **misdemeanor committed while on felony probation** can run consecutively to the probated felony sentence, but does not have to. KRS 533.040(3); *Snow v. Commonwealth*, 927 S.W.2d 841 (Ky. App. 1996). This is the same conflict between the same two statutes as above, with the same result: the court can run the sentences either concurrently or consecutively.

A sentence for a **misdemeanor committed while on misdemeanor probation** can run consecutively to the probated misdemeanor sentence, but does not have to. KRS 533.040(3); *Walker v. Commonwealth*, 10 S.W.3d 492 (Ky. App. 1999). Although KRS 532.110(1)(b) prohibits aggregated misdemeanors to exceed 1 year, KRS 533.040(3) allows the sentences to be run consecutively when, and only if, the probated sentence has already been revoked.

KRS 533.040(3) requires that, when a defendant is serving a sentence and has an outstanding probated sentence which has not yet been revoked, that the probated sentence has to run concurrently to the time the defendant is serving unless the probated sentence is revoked, either (1) prior to the defendant's parole or (2) within 90 days that the grounds for revocation come to the attention of the Department of Corrections, whichever comes first. This statute was designed to prohibit prosecutors from waiting until a defendant serves out, and then revoking him on the probation and sending him right back to prison. *See* statute commentary; *Kiser v. Commonwealth*, 829 S.W.2d 432 (Ky. App. 1992). KRS 533.040(3) covers "any federal or state jail, prison or parole term for another offense." The trial court was prohibited from ordering the defendant's revoked sentence to run consecutively to out-of-state charges when the revocation did not occur within

90 days of the time the grounds for revocation and out-of-state conviction came to the attention of the Department of Corrections. *Ware v. Commonwealth*, 326 S.W.3d 464 (Ky. App. 2010). *See also Sutherland v. Commonwealth*, 910 S.W.2d 235 (Ky. 1995).

Court imposition of a "**hammer clause**" which specified the sentences would run concurrently when they were probated but would run consecutively if the defendant violated probation, was in violation of the statute requiring that whether sentences run concurrently or consecutively must be fixed at the time of sentencing. *Machniak v. Commonwealth*, 351 S.W.3d 648 (Ky. 2011).

SPECIAL SITUATIONS: SENTENCES MUST RUN CONSECUTIVELY

Sex Crimes

Sentences for two or more sex crimes involving two or more victims must run consecutively. KRS 532.110(1)(d). Application of this provision to crimes committed prior to the enactment of the statute (July 12, 2006) was held to violate the prohibition against ex post facto laws in *Cecil v. Commonwealth*, 297 S.W.3d 12 (Ky. 2009). Statute requiring that sentences for sex crimes involving multiple victims must run consecutively to one another is not exempt from the statutory cap limiting aggregate Class C and D felonies to 20 years. *Commonwealth v. Stambaugh*, 327 S.W.3d 435 (Ky. 2010).

Ammunition

When sentenced for the use of armor-piercing or flanged ammunition and sentenced for committing the underlying crime, those sentences must run consecutively. KRS 527.080(3).

Escape

Sentences imposed for the crime of escape must run consecutively to any other sentence the defendant must serve, even if the Commonwealth waits more than 90 days to revoke the prior probations. KRS 532.110(3) controls over KRS 533.040(3). *Wilson v. Commonwealth*, 78 S.W.3d 137 (Ky. App. 2001).

Awaiting Trial

Sentences must run consecutively if the defendant is "awaiting trial" for one offense and commits the second. KRS 533.060(3). When a defendant has been held to answer charges in District Court, has been released on bond, and commits a new offense after being indicted by the grand jury, the defendant is "awaiting trial" for the purposes of KRS 533.060(3) even if he has not yet been formally arraigned in Circuit Court and even if he does not know he was indicted. The sentences had to be run consecutively. *Moore v. Commonwealth*, 990 S.W.2d 618 (Ky. 1999); *Brown v. Commonwealth*, 295 S.W.3d 854 (Ky. App. 2009).

When a defendant has pleaded guilty and commits a new offense while awaiting sentencing, he is "awaiting trial" for the purposes of KRS 533.060(3) even if no trial was scheduled. *Cosby v. Commonwealth*, 147 S.W.3d 56 (Ky. 2004). In *Williams v. Commonwealth*, 354 S.W.3d 158 (Ky.App. 2011), that logic was extended to new offenses which take place while on felony pretrial diversion.

KRS 533.060(3) controls over KRS 532.110(1), so that if a felony is committed while awaiting trial for even just a misdemeanor, the two sentences have to run consecutively. *Handley v. Commonwealth*, 653 S.W.2d 165 (Ky. App. 1983).

A person shock-probated on a felony sentence may still be required to serve a concurrent misdemeanor sentence which was not also shock-probated. *Romans v. Brooks*, 637 S.W.2d 662 (Ky. App. 1982).

DEFERRED PROSECUTION

KRS 218A.14151 requires the Commonwealth to agree to deferred prosecution because it constitutes an interruption of the prosecution as it allows dismissal of the charges with prejudice. Allowing a court to unilaterally approve entry into a deferred prosecution program over the objection of the Commonwealth would be a separation of powers violation. A

circuit court cannot order deferred prosecution over the objection of the Commonwealth on the basis that the prosecutor failed to state "substantial and compelling" reasons why deferred prosecution would not be appropriate. A comparison of the language of KRS 218A.14151(2) with the definition of "presumptive probation" in KRS 218A.010(37) reveals that the reference to substantial and compelling reasons concerns the appropriateness of presumptive probation once deferred prosecution has been denied. *Jones v. Commonwealth*, 413 S.W.3d 306 (Ky. App. 2012).

KRS 218A.14151 limits deferred prosecution agreements regarding felonies to the discretion of the Commonwealth's Attorney and circuit court. The Commonwealth Attorney was not bound by the deferred prosecution agreement entered into by the defendant with the county attorney and agreed to by the district court. Deferred prosecution of felony charges which may result in dismissal must take place in circuit court because district court does not have the jurisdiction to dispose of felony charges. *Commonwealth v. Vibbert*, 397 S.W.3d 910 (Ky. App. 2013).

PRETRIAL DIVERSION

KRS 533.250 requires the Commonwealth to agree to pretrial diversion because it constitutes an interruption of the prosecution as it allows dismissal of the charges with prejudice. Allowing a court to unilaterally approve entry into a deferred prosecution program over the objection of the Commonwealth would be a separation of powers violation. *Flynt v. Commonwealth*, 105 S.W.3d 415 (Ky. 2003).

When a change in law reduced the underlying offense from a felony to a misdemeanor, the defendant was entitled to be sentenced to the misdemeanor drug paraphernalia charge when her circuit court diversion was revoked. Since the original felony charge had been diverted, final judgment had not been entered in the case and the defendant could still take advantage of the change in law. *Smith v. Commonwealth*, 400 S.W.3d 742 (Ky. 2013).

PROBATION ELIGIBILITY

If a defendant is statutorily eligible for probation, KRS 533.010(2) requires that the court "shall consider" probation, and that probation "shall be granted" unless imprisonment is necessary for the protection of the public. A blanket refusal to consider probation is reversible sentencing error. *Patterson v. Commonwealth*, 555 S.W.2d 607 (Ky. App. 1977). It is also denial of a mandatory judicial function – the exercise of discretion. *Wyatt v. Ropke*, 407 S.W.2d 410 (Ky. 1966). The record at sentencing must reflect that the court considered the feasibility of probation or conditional discharge. *Brewer v. Commonwealth*, 550 S.W.2d 474 (Ky. 1977). The record must show that the court considered alternative sentences based upon the individual facts of the case and of the defendant. *Knox v. Commonwealth*, 361 S.W.3d 891 (Ky. 2012).

A defendant convicted of PFO 2nd based on new convictions of only Class D felonies, is eligible for probation if none of the crimes involved violence. KRS 532.080(5). A defendant convicted of PFO 1st based on new convictions of only Class D felonies, is eligible for probation if none of the crimes involved violence or a sex crime. KRS 532.080(7).

A juvenile youthful offender who is sentenced as an adult is always eligible for probation not withstanding any of the ineligibility criteria below.

INELIGIBLE FOR PROBATION

Generally

KRS 533.060(2) generally prohibits probation for felonies committed while on felony probation. However, KRS 533.030(6) explicitly states that prohibition does not apply to Class D felonies. Therefore, even if the sentence for the new offense must run consecutively to the sentence for the old one, the sentence for the new offense can still be probated if it is a Class D felony. *Adams v. Commonwealth*, 46 S.W.3d 572 (Ky. App. 2000). But note that KRS 533.030(6) does not cover those charges which cannot be probated under KRS 439.265, 439.3401, or 532.047.

Violent Offenders

KRS 532.047 says violent offenders are ineligible for probation "unless such probation is granted in accordance with KRS

439.3401." *Stull v. Commonwealth,* 443 S.W.3d 10 (Ky. App. 2014). Violent offenders are ineligible for shock probation. KRS 439.265(4)(a). Conviction of any Class A felony will qualify an individual to be a violent offender. A finding of death or serious physical injury is not necessary. *Pate v. Department of Corrections*, 466 S.W.3d 480 (Ky. 2015); *Mills v. Department of Corrections*, 438 S.W.3d 328 (Ky. 2014). A violent offender who meets the criteria of a victim of domestic violence is exempt from any of the restrictions on probation or parole found in the violent offender statute. The reference to KRS 533.060 in KRS 439.3401 is a reference to that portion of 533.060 which lays out the procedures for determining whether a person is a victim of domestic violence. *Holland v. Commonwealth*, 192 S.W.3d 433, 437 (Ky. App. 2005).

Sex Offenders

Anyone convicted of Rape 2nd degree, Sodomy 2nd degree, Incest, Unlawful Transaction with a Minor 1st degree (involving sexual activity), Use of a Minor in a Sexual Performance, or attempt to commit these offenses. Note that in 2007 a good number of crimes involving human trafficking were also added to the violent offender statute.

Anyone convicted of Rape 2nd degree, Sodomy 2nd degree, Promoting Prostitution 1st, 2nd, or 3rd degree, Permitting Prostitution, Incest, Use of a Minor in a Sexual Performance, Promoting a Sexual Performance by a Minor, Using Minors to Distribute Material Portraying a Sexual Performance by a Minor, or felony attempt to commit these offenses

AND WHO EITHER

uses force, causes bodily injury, befriends the child as a stranger solely for purposes of committing one of these offenses, uses a dangerous instrument or deadly weapon, has a prior conviction for one of these offenses, kidnapped the minor for the purpose of committing one of these offenses, committed one of these offenses on more than one minor at the same time, engaged in substantial sexual conduct with a minor under 14 while committing one of these offenses, or occupied a position of special trust and engaged in substantial sexual conduct while committing one of these offenses. KRS 532.045 *but see* KRS 533.030(6) in the case of Class D felonies.

Persistent Felony Offenders

Anyone convicted of PFO 2nd, unless all of the new convictions are for Class D felonies and none of them involved acts of violence. KRS 532.080(5). Anyone convicted of PFO 1st, unless all of the new convictions are for Class D felonies and none of them involved acts of violence or the commission of a sex crime. KRS 532.080(7).

Projectile Weapon

Anyone convicted of a Class A, B, or C felony which involved use of a projectile weapon. KRS 533.060; *Haymon v. Commonwealth*, 657 S.W.2d 239 (Ky. 1983). The prohibition against probation in this statute does not extend to capital offenses. *Gaines v. Commonwealth,* 439 S.W.3d 160 (Ky. 2014).

New Offense while on Parole or Probation

KRS 533.060(2), but see KRS 533.030(6). See the discussion above under "Generally" on page 114.

Armed and Wearing Body Armor

Anyone guilty of any felony offense under KRS 218A, 507, 508, 509, 511, or 513, or guilty of possession of a destructive device, unauthorized use of a motor vehicle, riot 1st degree or 2nd, possession of a firearm by convicted felon, unlawful possession of a weapon on school property, possession of a handgun by a minor, or theft of a motor vehicle under KRS 514.030 AND wearing body armor and armed with a deadly weapon. (KRS 533.065)

PROBATION REVOCATION

Notice of Conditions of Probation, Generally

When a defendant is probated, they are supposed to be given a written statement explicitly listing the terms and conditions of their probation. KRS 533.030(5). (See the standard probation contract at the end of this section.) The defendant must be

personally served. *Flaugher v. Commonwealth,* 526 S.W.3d 91, 94 (Ky. App. 2017). Simply writing down the conditions of conditional discharge or probation on a district court docket is not sufficient notice. *Wyatt v. Commonwealth*, 387 S.W.3d 350 (Ky. App. 2012). *But see Jarrell v. Commonwealth*, 384 S.W.3d 195, *overruled on other grounds* (Ky. App. 2012) (finding no error where record reflected that defendant had been orally informed of the conditions of his probation). Nevertheless, the law presumes that anyone on probation knows that breaking the law may have an effect on his probation. *Tiitsman v. Commonwealth*, 509 S.W.2d 275 (Ky. App. 1974). Violations of the Uniform Code of Military Justice (UCMJ) can be "offenses" for the purpose of revocation if the violation could result in a fine or imprisonment. *Commonwealth v. Lopez*, 292 S.W.3d 878 (Ky. 2009). The court has no power to inflict banishment from the county as a condition of discharge or probation. *Weigand v. Commonwealth*, 397 S.W.2d 780 (Ky. 1966). *See also Butler v. Commonwealth*, 304 S.W.3d 78 (Ky. App. 2010).

Standard of Proof

The standard of proof for revocation is not beyond a reasonable doubt, but rather preponderance of the evidence. *Murphy v. Commonwealth*, 551 S.W.2d 838 (Ky. App. 1977); *Radson v. Commonwealth*, 701 S.W.2d 716 (Ky. App. 1986); *Jarrel v. Commonwealth*, 384 S.W.3d 195 (Ky. App. 2012). For this reason, it is not necessary for a defendant to be convicted on a new charge in order to be revoked on an old one. *Tiryung v. Commonwealth*, 717 S.W.2d 503 (Ky. App. 1986); *Miller v. Commonwealth*, 329 S.W.3d 358 (Ky. App. 2010). A court does not have to await the outcome of new criminal charges before holding a revocation hearing. *Barker v. Commonwealth*, 379 S.W.3d 116 (Ky. 2012).

The Commonwealth bears the burden. Shifting the burden to the defendant to "show cause" why he should not be revoked violates due process. *Hunt v. Commonwealth*, 326 S.W.3d 437 (Ky. 2010).

Attempts to comply can be a defense against revocation. In *Keith v. Commonwealth*, 689 S.W.2d 613 (Ky. App. 1985), the defendant was ordered to admit himself to Eastern State Hospital, but the hospital said he did not need inpatient care and enrolled him in an outpatient program instead. After finding that the defendant "made every reasonable effort to comply with the conditions imposed upon him," *id*. at 615, the Court of Appeals vacated the revocation and said that "when there is no evidence to support the court's decision to revoke, the revocation of that probation is totally arbitrary." *Id*. at 625.

Judicial Discretion, Findings Required by Statute

KRS 439.3106 requires courts to make findings that an individual both "constitutes a significant risk to prior victims of the supervised individual or the community at large" and that he "cannot be appropriately managed within the community" prior to revocation. *Commonwealth v. Andrews*, 448 S.W.3d 773, 776 (Ky. 2014). It also requires consideration of lesser alternatives to revocation. *Id*. at 780. To that extent, the statute limits a court's authority to revoke probation. *Brann v. Commonwealth*, 469 S.W.3d 429 (Ky. App. 2015).

The record must also reflect that all of these findings were made by the trial court. "On remand, the trial court shall enter express findings as to both elements of KRS 439.3106(1). Per *Andrews*, once the trial court has fully considered and found as to these elements, its analysis should produce a conclusion concerning whether revocation or a lesser sanction is most appropriate, thus serving both the spirit of, and the intent behind, KRS 439.3106." *McClure v. Commonwealth*, 457 S.W.3d 728, 734 (Ky. App. 2015). *Andrews* findings are necessary when revoking a pretrial diversion. *Zanders v. Commonwealth,* 572 S.W.3d 76 (Ky. App. 2019). Reversal was required in *Lainhart v. Commonwealth,* 534 S.W.3d 234 (Ky. App. 2017), when the court voided the defendant's diversion without making any findings of fact required by *Andrews.* Though the defendant did not preserve the issue at the time by objecting, the Court of Appeals found it to be palpable error, requiring reversal. It was palpable error for the trial court to fail to make the findings required in *Andrews,* in *Walker v. Commonwealth,* 588 S.W.3d 453 (Ky. App. 2019). On the other hand, it was sufficient that the trial court had made the necessary findings, even if it offered no explanation for them in *New v. Commonwealth,* 598 S.W.3d 88 (Ky. App. 2020). The *Andrews* findings are also necessary when revoking a conditional discharge. *Fazzari v. Commonwealth,* 2017-CA-000802-MR, 2019 WL 1868232, Ky. App. May 17, 2019, *unpublished.* Absconding from probation is not an exception to the requirements of making the findings. *Hess v. Commonwealth,* 2016-CA-001500-MR, 2019 WL 405319, Ky. App. Feb. 1, 2019, *unpublished.*

The standard of review for revocations is abuse of discretion. *Lucas v. Commonwealth*, 258 S.W.3d 806 (Ky. App. 2008). The trial court abused its discretion and remand was necessary in *Bran*, *supra*, when the record did not reflect the trial court's

consideration of KRS 439.3106 at the time it revoked the defendant. Remand was necessary in *McClure*, *supra*, when the trial court failed to make findings regarding whether the defendant could be appropriately managed in the community. *See also Blankenship v. Commonwealth*, 494 S.W.3d 506 (Ky. App. 2015). Remand was required when the court revoked the defendant's pretrial diversion without considering whether the defendant was a significant risk and without considering a range of responses to the defendant's new charges. *Williams v. Commonwealth*, 462 S.W.3d 407 (Ky. App. 2015).

Expressly referring to the factors is not necessary, as long the record reflects that the issues were considered by the court and the facts supported the findings. *McVey v. Commonwealth*, 467 S.W.3d 259 (Ky. App. 2015). Although the courts in *Jarrell v. Commonwealth*, 384 S.W.3d 195 (Ky. App. 2012), *abrogated*, and *Southwood v. Commonwealth*, 372 S.W.3d 882 (Ky. App. 2012), *abrogated*, did not follow the precise language of KRS 439.3106 in revoking the defendants, the findings which were made by the courts covered the necessary findings.

It also an abuse of discretion to arrive at these findings without a sufficient factual basis for them. In some possible instances, a single violation, even if proven by a preponderance of the evidence, may not support findings of significant risk or unmanageability in the community. In *Andrews*, for instance, the court said, "If the trial court had based its decision solely on Andrews' violation of the condition that he remain drug-free, we would have had to deem that decision an abuse of discretion under the new state of the law." *Supra*, at 780. "[S]ince the enactment of KRS 439.3106 a failure to comply with a condition of probation is no longer sufficient to automatically justify revocation of probation." *Downs v. Commonwealth*, 2011-CA-001556-MR, 2013 WL 1867982, Ky. App. May 3, 2013, *unpublished*. It was abuse of discretion for the court to revoke the defendant as a predetermined outcome without the necessary findings when remaining drug free was a condition of diversion, the defendant had only a single positive drug screen and the defendant was diverted under a zero-tolerance provision which set out revocation as the consequence of any violation of the terms of the diversion. *Helms v. Commonwealth*, 475 S.W.3d 637 (Ky. App. 2015).

Graduated Sanctions

The statute does not limit a court's discretion to revoke prior to the use of lesser alternatives such as graduated sanctions. "Nothing in the statute or in the Supreme Court's interpretation of it requires the trial court to impose lesser sanctions prior to revoking probation." *McClure*, *supra*, at 732.

The administrative regulation covering the application of graduated sanctions is 501 KAR 6:250. Get a copy. The regulation lists which offenses are considered minor and major offenses, and then specifies which graduated sanctions are appropriate for each, depending on the risk level of the probationer. *See* Probation and Parole Violation Matrix chart in the back of this Notebook.

When a defendant is sanctioned for a violation and then later revoked for the same violation, the Double Jeopardy Clause does not apply because revocation does not rise to the level of being "put in jeopardy" in the Constitutional sense because a revocation cannot result in another conviction. *Kaletch v. Commonwealth*, 396 S.W.3d 324 (Ky. App. 2013), quoting *Thompson v. Commonwealth*, 147 S.W.3d 22, 54 (Ky. 2004). But remember that if a graduated sanction is imposed in lieu of revocation, KRS 533.040(2) still requires revocation within 90 days of the time Corrections became aware of the new offense or the sentences have to run concurrently. *See Ware v. Commonwealth*, 326 S.W.3d 464 (Ky. App. 2010); *Sutherland v. Commonwealth*, 910 S.W.2d 235 (Ky. 1995); *Kiser v. Commonwealth*, 829 S.W.2d 432 (Ky. App. 1992).

Due Process Requirements

Although there is no constitutional right to probation or parole, a defendant still has a constitutional right to due process in revocation proceedings. This is because the defendant has a liberty interest at stake under the 14th Amendment. The minimum due process requirements of a revocation were first applied to parole revocations in *Morrissey v. Brewer*, 408 U.S. 471 (1972), and extended to probation revocations in *Gagnon v. Scarpelli*, 411 U.S. 778 (1973). They are: (1) written notice of the alleged violations, (2) disclosure of the evidence against the defendant, (3) opportunity to be heard in person and to present witnesses and documentary evidence, (4) the right to confront and cross-examine adverse witnesses, (5) a "neutral and detached" hearing body or court, and (6) written findings of fact as to the evidence relied on and the reasons for revocation. These requirements were adopted in Kentucky in *Murphy v. Commonwealth*, 551 S.W.2d 838 (Ky. App. 1977).

KRS 535.050(2) provides that a court may not revoke or modify the conditions of a defendant's probation without a hearing, with the defendant, represented by counsel, following written notice of the grounds of revocation or modification. The prosecution has a right to notice of a scheduled revocation and to attend and participate. *Goff v. Commonwealth*, 472 S.W.3d 181 (Ky. App. 2015).

The defendant's due process rights were violated in a revocation hearing in which the probation officer was not sworn, the defendant's attorney was not given the opportunity to cross-examine, no testimony was taken, the officer simply stated the defendant's alleged violations, and the court asked the defendant to respond. *Hunt v. Commonwealth*, 326 S.W.3d 437 (Ky. 2010). The court improperly shifted the burden of proof to the defendant by asking him to show cause why he should not be revoked, and appointment of the public defender at the time of the hearing violated the defendant's due process rights when counsel had just received the file that morning and admitted she had not investigated the allegations against the defendant and had not had time to prepare for the hearing. *Id*. *See also Gibson v. Commonwealth*, 425 S.W.3d 102 (Ky. App. 2013).

In *Townsend v. Commonwealth*, 2011-CA-001768-MR, 2013 WL 645944, Ky. App. Feb. 22, 2013, *unpublished*, the defendant was revoked on the basis of nothing but hearsay and the court said "there are limits to how informal the proceedings can be." *Townsend*'s fundamental minimum due process rights to confront and cross-examine were violated by the procedure. The trial court's acceptance of a probation officer's signed report did not justify the finding of a violation in *Goff v. Commonwealth*, 472 S.W.3d 181 (Ky. App. 2015).

Attorney at Original Sentencing

A court cannot revoke a probated sentence if the defendant did not have an attorney (or knowingly, intelligently, and voluntarily waive the right to one) when the sentence was imposed and probated. *Alabama v. Shelton*, 535 U.S. 654 (2002). *See also Stone v. Commonwealth*, 217 S.W.3d 233 (Ky. 2007).

Not as Extensive as a Criminal Trial

The due process rights of a defendant at a revocation hearing are not equivalent to those of a defendant in a criminal trial. *See, e.g.*, *Robinson v. Commonwealth*, 86 S.W.3d 54 (Ky. App. 2002) (noting that a revocation hearing is not a second criminal prosecution). For instance:

Appointment of Counsel – KRS 533.050(2) creates a statutory right to counsel in probation revocation cases. However, appointment of counsel at earlier steps relevant to the court's ultimate decision has been previously held to be determined on a case-by-case basis. *See Dunson v. Commonwealth*, 57 S.W.3d 847, 849 (Ky. App. 2001) (finding that counsel is not required at drug court termination hearing where facts not in dispute), quoting *Gagnon v. Scarpelli*, 411 U.S. 778 (1973) (adopting a similar case-by-case basis standard for parole revocation hearings). On the other hand, counsel should be appointed when the defendant claims he is innocent of the charge of violating the conditions of his release or, when the violation is not in question, the defendant maintains he has a justification for the violation, there is mitigation to consider, or the issues are complex. *Gagnon,* at 790. *See also Hunt*, *supra*.

Discovery – RCr 7.24 does not apply to revocation hearings, and the defendant was not entitled to the tests used, the lab standards, and the amount of marijuana found in the defendant's system. *Robinson v. Commonwealth*, 86 S.W.3d 54 (Ky. App. 2002). The defendant's revocation was proper in as much as the defendant had in fact tested positive for marijuana. *Id*. However, remember that *Gagnon, supra,* held that minimum due process requires disclosure of the evidence against the defendant.

Confrontation – The 6th Amendment right to confront is not absolute in informal procedures such as probation revocations. Affidavits, depositions, documents, and other reliable substitutions for live witnesses are allowable when witnesses are unavailable or great hardship would be involved in producing them. *Marshall v. Commonwealth*, 638 S.W.2d 288 (Ky. App. 1982). *But see Townsend*, *supra*.

Evidence – The rules of evidence do not apply to revocation hearings. KRE 1101(d)(5). Hearsay is admissible. *Marshall v. Commonwealth*, 638 S.W.2d 288 (Ky. App. 1982). *But see Townsend*, *supra*. Illegally seized evidence is admissible. *Tiryung*

v. Commonwealth, 717 S.W.2d 503 (Ky. App. 1986). Statements made in violation of *Miranda* are admissible. *Childers v. Commonwealth*, 593 S.W.2d 80 (Ky. App. 1980).

Written Notice of Grounds for Revocation

In *Radson v. Commonwealth*, 701 S.W.2d 716 (Ky. App. 1986), the defendant was given notice of one ground of revocation, but was actually improperly revoked on the basis of another ground to which he had not been given notice. See also *Baumgardner v. Commonwealth*, 687 S.W.2d 560 (Ky. App. 1985), in which the court improperly ordered an immediate revocation hearing sua sponte after the defendant's trial and acquittal for receiving stolen property.

Service of notice of intent to revoke should be served on the defendant personally. The requirement of service on the defendant in KRS 533.050(1) can be waived by counsel by not raising the issue prior to the hearing. *Messer v. Commonwealth*, 754 S.W.2d 872 (Ky. App. 1988). *See also Patrick v. Commonwealth*, 2006-CA-001125-MR, 2008 WL 746075, Ky. App. March 21, 2008, *unpublished*; *Patton v. Commonwealth*, 2011-CA-000101-MR, 2012 WL 592331, Ky. App. Feb. 24, 2012, *unpublished*.

Right to Be Heard, Present Evidence, Confront

In *U.S. v. Dodson*, 25 F.3d 385 (6th Cir. 1994), the defendant was not allowed to testify in his own behalf or present evidence. The court ruled that, even at revocation hearings, "[i]n order to ensure a constitutionally sufficient opportunity to contest the allegations and provide *evidence in mitigation, a defendant must also be afforded as a matter of due process the opportunity to be heard in person and to present witnesses and documentary evidence.*" At 388, *emphasis original.*

A defendant cannot challenge a decision to revoke probation by challenging the validity of the underlying conviction. *Lucas v. Commonwealth*, 380 S.W.3d 554 (Ky. App. 2012).

When testifying in a probation revocation hearing regarding the circumstances surrounding new criminal charges, the probationer's testimony cannot be used as substantive evidence against him in the Commonwealth's case at any later criminal trial on the same conduct, and the court should advise the probationer of this. The testimony can be used to rebut or impeach if subsequent testimony from the defendant is inconsistent with that given in the hearing. *Barker v. Commonwealth*, 379 S.W.3d 116 (Ky. 2012).

Neutral Court

Reversal was required in *Baumgardner v. Commonwealth*, 687 S.W.2d 560 (Ky. App. 1985), when the judge who presided over the defendant's trial and acquittal sua sponte ordered a revocation hearing and presided over that as well.

Findings of Fact

In *Keith v. Commonwealth*, 689 S.W.2d 613 (Ky. App. 1985), the defendant was ordered to admit himself to Eastern State Hospital, but the hospital said he did not need inpatient care and enrolled him in an outpatient program instead. After finding that the defendant "made every reasonable effort to comply with the conditions imposed upon him," *id*. at 615, the Court of Appeals vacated the revocation and said that "when there is no evidence to support the court's decision to revoke, the revocation of that probation is totally arbitrary." *Id*. at 625. See also *Baumgardner v. Commonwealth*, 687 S.W.2d 560 (Ky. App. 1985), in which there were no findings of fact, and the only evidence presented at the hearing was that the defendant had been acquitted of the charges for which he was being revoked.

Oral findings are sufficient for revocation proceedings if the findings make sufficient reference to the factual basis for revocation and have been preserved sufficiently for review so that a reviewing court can review whether the basis for revocation was proper/ *Commonwealth v. Alleman*, 306 S.W.3d 484 (Ky. 2010); *Miller v. Commonwealth*, 329 S.W.3d 358 (Ky. App. 2010). See also *Richardson v. Commonwealth*, 323 S.W.3d 379 (Ky. App. 2010), in which it was held that the defendant's due process rights were not violated by oral findings and an order of revocation which did not specify the factual basis for revocation, where the grounds for revocation were in written findings and the videotaped record preserved the basis of revocation adequately for review.

Credit for Time Held in Contempt

The defendant was entitled to jail custody credit for the numerous times he was incarcerated during his failed attempt to successfully complete drug court, in spite of the fact that the court imposed the jail time as sanctions for contempt. *Nicely v. Commonwealth*, 326 S.W.3d 441 (Ky. 2010). The only power the court had to impose jail time was through the fact that the defendant was on probation, and the defendant's so-called acts of contempt were not isolated acts of disrespect but were directly related to the terms of his probation, as modified by his entrance into drug court. *Id*. When statutory provisions allow for incarceration as a modification of the terms of probation, the court must rely on those rather than on its inherent powers of contempt. *Id*. Even additional crimes committed while on probation are not a matter of contempt or defiance of the court, but a matter of the violation of law. The defendant is also eligible for time spent in home incarceration either before or after conviction. Violation of the terms of home incarceration interrupts the credit. KRS 532.245, abrogating *Buford v. Commonwealth*, 58 S.W.3d 490 (Ky. App. 2003).

Timing of Revocation

KRS 533.020(1) specifies that revocation take place prior to the end of the probation period.. A court loses jurisdiction to revoke the defendant's probation or to hold a revocation hearing when the probation period ends. *Conrad v. Evridge*, 315 S.W.3d 313 (Ky. 2010). A court's prior order disposing of an earlier probation violation will toll the period pursuant to KRS 533.040, however any statements made in the order about the length of the period are controlling. *Id*. See also *Grundy v. Commonwealth*, 400 S.W.3d 752 (Ky. App. 2013), in which the trial court took notice that the probation period had ended by saying the defendant had been probated "five years ago yesterday, as a matter of fact" but then revoked the defendant anyway. This was held to be an abuse of discretion and a miscarriage of justice.

Exceptions to this rule include when the defendant has absconded from supervision, *Commonwealth v. Whitcomb*, 2011-CA-000346-MR, 2012 WL 1886564, Ky. App., May 25, 2012, *unpublished*, and when the running of the time period is tolled by a violation which results in incarceration and the defendant is then put back on probation. KRS 533.040(2) requires that no credit be given toward expiration of the probation period between the date of the violation and the restoration of probation. *Commonwealth v. Dulin*, 427 S.W.3d 170 (Ky. 2014). Under *Nicely, supra,* the defendant is getting credit toward time served in the event their probation is revoked for this violation or a future one. A warrant issued for the probationer's arrest before expiration of the probationary period extended the jurisdiction of the court to revoke beyond the expiration of the original probationary period in *Robinson v. Commonwealth*, 437 S.W.3d 153 (Ky. App. 2013), pursuant to KRS 533.020(4). Such a warrant serves to extend the jurisdiction of the court only until the probationer's first appearance before the court on the warrant. *Commonwealth v. Tapp,* 497 S.W.3d 239 (Ky. 2016); *Jensen v. Commonwealth,* 564 S.W.3d 335 (Ky. App. 2018). The *Tapp* court ruled that jurisdiction had ended where the warrant was 1) issued prior to the end of the probation period; 2) served on the defendant after the probation period; and 3) the court continued the case from the first appearance on the warrant for a revocation hearing without explicitly ordering an extension of the probation period. *Tapp* also acknowledges that it would be proper for a court in this circumstance to order a continuation of the probationary period till after the hearing on the basis of the probable cause affidavit filed alleging a violation. Failure to pay restitution does not automatically toll. *See Wright*, *below*.

It is an abuse of discretion to base a defendant's revocation on an offense committed prior to the beginning of the probationary period. *Northcutt v. Commonwealth*, 2006-CA-002196-MR, 2007 WL 3227251, Ky. App,. Nov. 2, 2007, *unpublished*.

A court does not have to await the outcome of new criminal charges before holding a revocation hearing. *Barker v. Commonwealth*, 379 S.W.3d 116 (Ky. 2012). Also challenge the use of convictions which are on appeal. They are not admissible in truth-in-sentencing/guilt phase or PFO phase proceedings. *Williams v. Commonwealth*, 178 S.W.3d 491 (Ky. 2005).

KRS 533.040(3), governing probation revocations of people while incarcerated, requires that the probation revocation be completed, and not merely initiated, within the 90 day period if the sentence is to run consecutively. *Commonwealth v. Love*, 334 S.W.3d 92 (Ky. 2011).

On the other hand, the court retained jurisdiction to void the defendant's diversion agreement even after the time of

the diversion had terminated because the Commonwealth had filed a timely motion to void the agreement prior to the expiration of the diversion period in *Ballard v. Commonwealth*, 320 S.W.3d 69 (Ky. 2010). The court retained jurisdiction to void the agreement and even reinstate the original charges A motion to void a diversion agreement must be made prior to the termination of the diversion period in order for the court to have jurisdiction to void the agreement, *Tucker v. Commonwealth*, 295 S.W.3d 455 (Ky. App. 2009). See also *Maggard v. Commonwealth*, 2010-CA-001678-MR, 2012 WL 246389, Ky. App., Jan. 27, 2012, *unpublished*, relying on *Ballard* and *Tucker*.

Extending the Probation Period

KRS 533.020(4), which allows the probationary period to be extended for "the time necessary to complete restitution" does not automatically prolong the court's jurisdiction without a duly entered court order. *Commonwealth v. Wright*, 2011-CA-000996-MR, 2012 WL 1890365, Ky. App., May 25, 2012, *unpublished*. Although a defendant may waive the extension of his probation time in order to pay restitution, if the defendant does not do so, the court must direct restitution to be paid, list the amount of payments and those to whom the payments must be made, and make factual findings in support of extending the period of probation. Even if the defendant had waived the extension of his probation period, the court lost jurisdiction to revoke him when it waited until after his period of probation had expired to extend his probation. *Commonwealth v. Adams,* 566 S.W.3d 225 (Ky. App. 2018).

A misdemeanor conviction for attempt to commit an unlawful transaction with a minor did not qualify the defendant as a sex offender who must be ordered into the three-year sex offender treatment program, and the defendant's two-year misdemeanor probation period could not be extended in order to complete the program. *Miller v. Commonwealth*, 391 S.W.3d 801 (Ky. 2013).

A defendant can agree to an extension of probation beyond statutory limits (2 years for misdemeanors and 5 for felonies) in order to avoid a more severe sanction. *Commonwealth v. Griffin*, 942 S.W.2d 289 (Ky. 1997).

Separate Sentencing and Updated PSI

When a defendant has violated the terms of his diversion, the court has decided to revoke the diversion, and the Commonwealth has decided to proceed to sentencing, the defendant is entitled to a sentencing hearing just as if he had never been diverted, including an updated PSI. *Peeler v. Commonwealth*, 275 S.W.3d 223 (Ky. App. 2008). A court can impose any part or all of the remaining time to serve, but not more than the original sentence. *Hord v. Commonwealth*, 450 S.W.2d 530 (Ky. 1970); *Evans v. Commonwealth*, 2006-CA-0000072-MR, 2007 WL 1201782, Ky. App. April 20, 2007, *unpublished*.

Child Support, Fines, Restitution

Relying on the United States Supreme Court holding in *Bearden v. Georgia*, 461 U.S. 660 (1983), the Supreme Court of Kentucky noted that, "when considering revocation for failure to pay fines and restitution, the trial court must consider (1) whether the probationer made sufficient bona fide attempts to make payments but [had] been unable to do so through no fault of his own and, if so, (2) whether alternatives to imprisonment might suffice to serve interests in punishment and deterrence." The trial court must specifically identify the evidence it relies upon in making these determinations on the record, as well as the specific reason(s) for revoking probation on the record. *Commonwealth v. Marshall*, 345 S.W.3d 822, 828 (Ky. 2011). The *Bearden* standard was applied to fines in Kentucky in *Mauk v. Commonwealth*, 700 S.W.2d 803 (Ky. App. 1985), applied to restitution in Kentucky in *Clayborn v. Commonwealth*, 701 S.W.2d 413 (Ky. App. 1985), and applied to child support (as a type of restitution) in *Marshall, supra*. *See also Bowlin v. Commonwealth*, 357 S.W.3d 561 (Ky. App. 2012); *Hamm v. Commonwealth*, 367 S.W.3d 605 (Ky. App. 2012); *Gamble v. Commonwealth*, 293 S.W.3d 406 (Ky. 2009).

The Supreme Court's holding in *Bearden*, by logical extension, also applies to the failure to find and/or maintain employment. The court must consider whether the defendant made attempts to find employment but could not. *Mbaye v. Commonwealth*, 382 S.W.3d 69 (Ky. App. 2012). *See also Keith v. Commonwealth*, 689 S.W.2d 613 (Ky. App. 1985).

Courts have observed that the receipt of Supplemental Security Income (SSI) benefits does not preclude the enforcement of a child support obligation where there is evidence that the obligor retains or has regained the ability to earn income

from which child support could be paid. However, the court is not free to completely disregard the Social Security Administration's determinations that an SSI recipient is disabled and needs the full amount of his or her award for subsistence. If child support is to be demanded from the SSI benefit, there must be evidence clearly establishing the recipient's ability to afford the support payment. *Commonwealth v. Ivy*, 353 S.W.3d 324 (Ky. 2011). See also *om. ex rel. Hale v. Stovall*, 2006-CA-000324-MR, 2007 WL 1784081, Ky. App. June 8, 2007, *unpublished*, in which the court set the child support at $0.00 because the defendant's only income was SSI.

In a revocation hearing for probated time issued as a contempt sanction for failure to pay child support, the trial court is required to set a purge amount upon its original finding of contempt and imposition of conditional discharge. In order to preserve for appeal the issue of whether the trial court erred in not setting a purge amount following a finding of contempt, the defendant must request a purge amount at the time he was found in contempt. In order to find the defendant in contempt, the court must determine whether the defendant made bona fide attempts to make ordered support payments but was unable to do so through no fault of his own, and whether alternatives to imprisonment might accomplish the objectives of the Commonwealth prior to revocation. *Shaffeld v. Commonwealth*, 368 S.W.3d 129 (Ky. App. 2012). Reversal was required in *Lainhart v. Commonwealth,* 534 S.W.3d 234 (Ky. App. 2017), when the court voided the defendant's diversion on nothing more than proof the defendant had missed payments, and did not conduct the inquiry required by *Shaffeld* and *Marshall.* Though the defendant did not preserve the issue by objecting at the time, the Court of Appeals found it to be palpable error, requiring reversal. The child support guidelines are at KRS 403.211 et seq.

However, a court order ordering a defendant to pay restitution at an amount to be determined in the future is not a valid order for restitution because it does not fix the amount. KRS 532.033 lists the requirements of a valid order of restitution and requires that the court fix the amount at sentencing. KRS 431.200 controls post-sentencing attempts to collect restitution in cases of damaged property, and requires the filing of a verified petition within 90 days of sentencing. Since that petition was never filed, and the court normally loses jurisdiction over a case 10 days after the entry of final judgment, and since the court waited for 7 years for the defendant to serve out his sentence before setting the amount of restitution, the court had lost jurisdiction over the defendant to order restitution. *Rollins v. Commonwealth*, 294 S.W.3d 463 (Ky. App. 2009). On the other hand, the defendant waived the issue of whether the court retained jurisdiction to order an amount of restitution 10 days after entry of the final judgment in the case, when he agreed to a restitution hearing after sentencing. *Commonwealth v. Steadman*, 411 S.W.3d 717 (Ky. 2013).

An order of restitution that failed to fix the amount was also ruled invalid in *Brown v. Commonwealth*, 326 S.W.3d 469 (Ky. App. 2010).

It was an abuse of discretion to revoke the defendant when the trial court recognized that the defendant was making a good faith effort to comply with her restitution payment schedule, but revoked the defendant anyway. *Wills v. Commonwealth*, 396 S.W.3d 319 (Ky. App. 2013).

PAROLE ELIGIBILITY

The date set by the Department of Corrections as the date of a state prisoner's parole eligibility is a fixed date. It is not brought closer by any kind of good-time, work-time, or educational achievement credit. In fact, although statutory good time is listed in the prisoner's sentence calculation in his resident record card, prisoners do not actually receive credit for good time until they reach their minimum parole eligibility date. *Robinson v. Commonwealth*, 181 S.W.3d 30 (Ky. 2005).

Parole Eligibility By Types of Crime

Life sentences, except for life without the possibility of parole for 25 years, minimum parole eligibility is **20 years**. KRS 439.3401(2). KRS 439.3401(2) also says, "Violent offenders may have a greater minimum parole eligibility date than other offenders who receive longer sentences, including a sentence of life imprisonment." This seems plain enough, but it is not the law. For any sentence over 23 years and 6 months, the parole eligibility is 20 years. No sentence can have a longer parole eligibility than a life sentence. *Hughes v. Commonwealth*, 87 S.W.3d 850 (Ky. 2002). This includes parole eligibility at 85%. KRS 439.3401(2).

Capital offenses with a term of years, Class A felonies of any kind, and Class B felonies involving death or serious physical

injury or which are specifically listed as violent offenses, **85% parole eligibility**, by statute, KRS 439.3401(3)(a), for offenses committed after July 15, 1998, not to exceed 20 years. Manslaughter 2nd Degree (a Class C felony) when the victim was a peace officer, firefighter, or EMS personnel killed in the line of duty and the victim was "clearly identifiable" as a peace officer, firefighter, or EMS personnel. KRS 439.3401(3)(b). When a violent offense is combined consecutively or concurrently with a nonviolent offense, the parole eligibility is calculated at 85% of the sentence for the violent offense.

Convicted of either Manslaughter 2nd Degree or Reckless Homicide and the victim was a peace officer, firefighter, or EMS personnel killed in the line of duty, KRS 439.3401(3)(c), Theft by Unlawful Taking of 10 million dollars or more, KRS 514.030(3), guilty of a Chapter 507 homicide offense or a chapter 507A fetal homicide offense not otherwise constituting a violent offense, and the victim died of an overdose of a Schedule I controlled substance, KRS 439.3401(3)(d), convicted of Importing Heroin, KRS 218A.1410, Trafficking Heroin, Class C felony or higher, KRS 218A.1412(c), Aggravated Trafficking, Class B felony, KRS 218A.142, **50% parole eligibility**.

Class B felonies not involving death or serious physical injury or not specifically listed as a violent offense, violent and nonviolent Class C and D felonies, **20% parole eligibility**, by administrative regulation as provided in KRS 439.340(3)(b), 501 KAR 1:030, for offenses committed after December 3, 1980.

An exception is nonviolent Class D felonies with a total aggregate sentence of not more than five years. They have **15% parole eligibility** or two months of original sentence, whichever is longer, by statute, KRS 439.340(3)(a).

Escape and Crimes Committed in the Institution Exception. According to 501 KAR 1:030, Section 3(4)(a), when an inmate commits new crimes while in the institution or escapes and commits new crimes while on escape, the parole eligibility will be calculated for the original offense, *added to* the penalty for the crime committed in the institution or for the escape itself, *added to* each separate penalty for any crimes committed on escape.

Wearing body armor and being armed with a deadly weapon while committing various enumerated felony offenses: **no probation or parole ever.** KRS 533.065.

A sexual offender who qualifies for the Sexual Offender Treatment Program: **no parole until completion of the program.** KRS 439.340(11).

Persistent Felony Offender Parole Eligibility

KRS 532.080 also imposes additional parole eligibility requirements for those convicted of a persistent felony offender charge which may increase the standard parole eligibility that applies. The chart below summarizes this overlap. Note that the Department of Corrections will always impose the single highest parole eligibility scheme that applies, which may be higher than the one depicted here (for example if the charge is heroin trafficking and a 50% eligibility applies).

Parole Eligibility in Persistent Felony Offender Sentencing

	Without PFO	With PFO 2nd	With PFO 1st
Class A Felony	20-50, life (85% PE)	20-50, life (85% PE, max 20 yr.)	20-50, life (85% PE, max 20 yr.)
Class B Felony	10-20 (20/85% PE)**	20-50, life (20/85% PE, max 20 yr.)**	20-50, life (20/85% PE, min 10 yr. and max 20 yr.)**
Class C Felony	5-10 (20% PE)	10-20 (20% PE)	10-20 (10 year PE)
Class D Felony	1-5 (20% PE)*	5-10 (20% PE)*	10-20 (20% PE)

* 15% PE may apply for aggregate sentences which total 5 or less (minimum 2 months). *See* KRS 439.340(3)(a).

** 85% PE applies is it is required by the violent offender statute in KRS 439.3401(1)&(3)(a).

For general rules of parole eligibility, see also "PAROLE ELIGIBILITY CHART" on page 133.

CREDIT FOR TIME SERVED

A defendant must be given credit for time served prior to sentencing when the time was served on the charge which resulted in that sentence. KRS 532.120(3). Time served for a charge of which the defendant is acquitted shall be credited toward any sentence on any other charge which was lodged against the defendant while in custody, by warrant or detainer. KRS 532.120(4).

Time spent on home incarceration is credited to time served when the sentence has been imposed and the court has ruled that part of the sentence can be served on home incarceration. KRS 532.120(7); 532.210(4); 532.245; 533.030(6). Time spent on home incarceration as a condition of pretrial release is also credited toward time served. Violation of the terms of home incarceration interrupts the credit. KRS 532.245, abrogating *Buford v. Commonwealth*, 58 S.W.3d 490 (Ky. App. 2003).

Challenging the Calculation of Credit for Time Served

An inmate must exhaust all administrative remedies, which includes following the correct administrative procedure, prior to filing a petition for declaration of rights seeking credit against a sentence. See *Thrasher v. Commonwealth*, 386 S.W.3d 132 (Ky. App. 2012), in which the court held that proper procedure required an inmate to commence any challenge to the calculation of his sentence with request to the offender information services office at the institution where he was confined, and the inmate submitted only an undated letter received from the Department of Corrections Offender Information Services, which contained no reference to good time credit or to the inmate's particular case, in violation of KRS 454.415(4). The trial court is not statutorily permitted to make the initial determination regarding credit for time served. That job is up to the Department of Corrections. A defendant may challenge a decision of the Department of Corrections involving jail credit in the trial court only after exhausting all other administrative remedies. *Sanders v. Commonwealth,* 600 S.W.3d 266 (Ky. App. 2020).

SERVING TIME

Kinds of Time

Generally, felony sentences are indeterminate, i.e., they are subject to the kinds of statutory credit described below and, as such, may result in shorter time to serve than the term actually imposed. Parole may be granted early, or late, or denied altogether. KRS 532.060. A sentence for a misdemeanor, however, is a definite term. KRS 532.090. Although definite sentences not eligible for all of the same credits, certain types of sentencing credit are available to inmates "confined in the county jail on conviction of misdemeanor charges." KRS 441.127 provides credit for labor performed in the jail or community service, earning G.E.D. diplomas, completing drug treatment programs, providing meritorious service, and for good behavior. It is doubtful whether the granting of such credit is a widespread practice. For instance, many jails do not offer G.E.D. programs, or drug treatment, or opportunities for community service.

Placement

Those persons who receive a sentence of five (5) years or less "shall serve that term in a county jail in a county in which the fiscal court has agreed to house state prisoners." Class C and D felons who receive sentences over five years may also serve their time in a regional detention facility rather than in a state institution. KRS 532.100(4)(a)&(b). State prisoners who cannot be housed in county jails or regional detention facilities must be transferred to a state institution within 45 days of final sentencing. KRS 532.100(7).

Modification of Sentence

When a defendant is sentenced to one year of indeterminate time, the court may convert that sentence to a definite term of one year or less if it believes the felony sentence to be unduly harsh. KRS 532.070(2). This statute only applies to sentences imposed by juries, however, and not to plea bargains. *Bailey v. Commonwealth*, 70 S.W.3d 414 (Ky. 2002).

Calculation of

One often hears that a "state year" is 7 months, 21 days, or that it is around 8 months. This is a fair estimate but not entirely accurate. The truth is there is no single answer to what constitutes a state year. It depends entirely on what kind of statutory (sometimes called "sentencing") credit the prisoner receives during each year. There are several kinds of credits available listed below.

Statutory Good Time, KRS 197.045(1)(b)(1)

A prisoner can get 10 days of good time per month. This is probably the source of the rumor that a state year is around eight months. People multiply 10 days per month by 12 months and assume that means that 120 days (4 months) will come off the time, leaving only 8 months to serve out of every state year. It does not work that way. In actuality, the time is being taken off the end of the year as the year progresses, so the prisoner never "serves" 12 months. For instance, after the first three months, at 10 days credit per month, the last month of the year falls off:

1 2 3 4 5 6 7 8 9 10 11 ~~12~~

In another 3 months, the next-to-last month falls off:

1 2 3 4 5 6 7 8 9 10 ~~11~~ ~~12~~

Leaving, in this case, a "state year" of 9 months:

1 2 3 4 5 6 7 8 9 ~~10~~ ~~11~~ ~~12~~

Good time can be suspended for misconduct.

Violent offenders do not get good time. KRS 439.3401(4). This has usually been read conservatively to mean that offenders who have mixed sentences containing time to serve for violent offenses and time to serve for nonviolent offenses will be denied good time credit *on the portion of the sentence which is for the violent offenses, when the sentences run consecutively.* So, for instance, if an offender has 10 years on a violent offense and another five years consecutive to the violent offense on a nonviolent offense, DOC will count off 3 months for every year of the 5 years of nonviolent time (their usual way of calculating good time credit) and then take 15 months off of the total sentence. In this way, the offender receives good time credit *on the nonviolent portion of the total sentence.*

Practitioners should be aware, however, that at the date of this revision there is a published opinion by the Kentucky Supreme Court which holds that neither good-time nor work-time credit can be applied to any nonviolent portion of a violent offender's total sentence. *Kentucky Department of Corrections v. Dixon,* 572 S.W.3d 46 (Ky. 2019). In that opinion, the court held that KRS 532.120(1)(b) dictates that consecutive sentences be aggregated into a single, total sentence and there is no statutory authority for "unpacking" such sentences so as to award good-time credit to only a certain portion of the total sentence. See also KRS 197.045(3), which requires aggregation of consecutive sentences. The court also noted that KRS 439.3401(4) does not say that violent *offenses* do not receive good-time credit, but rather that violent *offenders* do not receive the credit. This also seems to be the reasoning in *Joseph v. Kentucky Justice & Public Safety Cabinet,* 2015-CA-001853-MR, 2017 WL 1203367 (Ky. App. March 31, 2017), *unpublished.*

Nevertheless, the court did not address the secondary question of whether the award of good-time credit is wholly at the discretion of the Department of Corrections, citing *Brown v. Kentucky Department of Corrections,* 2014-CA-001441-MR, 2016 WL 1627424, (Ky. App. Apr. 22, 2016), *unpublished,* in which the Department of Corrections seems to have claimed to have such discretion.

At the date of this revision of the manual, the issue remains unaddressed by any further published opinions, but it is certain to come up again. In the meantime, practitioners should keep abreast of the issue for the sake of providing accurate

advice to clients.

Sexual offenders earn sentencing credits of all types but do not get it applied to their sentences until completion of the Sexual Offender Treatment Program. KRS 197.045(4); KRS 439.340(11).

Meritorious Good Time, KRS 197.045(1)(b)(2)

This is credit for performing duties and work while incarcerated, and is usually handed out liberally. A prisoner can get an extra 7 days of credit per month with this (and 7 more for service during a time of emergency). So, if the prisoner is getting meritorious work time on top of good time, the 9th month of his state year will also fall off of his sentence after a little more than 4 months. This would reduce his "state year," that year, to only 8 months.

There is also an exceptional emergency service type of meritorious good time not to exceed 7 days per month. KRS 197.045(1)(b)(3).

Educational Good Time, KRS 197.045(1)(a)(2)&(3)

This is awarded upon the completion of a G.E.D. or the earning of a high school diploma, upon the earning of a 2- and 4-year degree, and upon completion of a drug treatment program requiring participation for a minimum of six months. This is a 90-day credit. So, if it is added to the credit our hypothetical prisoner already has for this year, his "state year" can be as short as 5-6 months.

Work Credit, KRS 197.047

The statute provides for 1 "sentence credit" for every full 8 hours worked, and 1 day off the actual sentence deducted for every 5 sentence credits earned. KRS 197.047(6)(b) says that this work credit shall not be applied to any prisoner serving a sentence for a violent offense. *See Dixon, supra*.

All of these types of sentencing credit can be forfeited once earned, as well as the right to earn sentencing credit in the future, if the prisoner commits offenses, violates the rules, or files a civil action which is later dismissed as being malicious, harassing, or frivolous. KRS 197.045(2)&(5)(a). *See also* Brenn O. Combs, "Understanding Sentence Calculation and Application," *The Advocate*, vol. 25, no. 5, September, 2003, pp. 30-36.

Credit While on Probation and Parole

Credit can now be earned for time spent on parole with the exception of persons who violated their parole, violent offenders, and persons who are registered sexual offenders. KRS 439.344. Upheld in *Commonwealth ex rel. Conway v. Thompson*, 300 S.W.3d 152 (Ky. 2009), corrected January 4, 2010. All of the same types of good time credit available to prisoners are also available to people on parole. KRS 439.345(2), 501 KAR 6:270, policy 27-20-03, Parole Compliance Credit (Amended 3/12/12). Effective July 15, 2020, all of these same types of good time credit became available to persons on probation as well. KRS 439.268. KRS 533.020(4), which requires the trial court to fix the probation period, was amended to allow DOC to amend the probation period as well.

Sex Offenders

If a person convicted of a Class D sex offense receives a sentence of 2 years or more, he must serve that sentence in a state institution. KRS 532.100(4)(a). State prisoners who cannot be housed in county jails or regional detention facilities must be transferred to a state institution within 45 days of final sentencing. KRS 532.100(7).

Be aware that, since KRS 439.340(11) requires completion of the Sexual Offender Treatment Program before a prisoner is eligible for parole, and since the program takes at least 2 years to complete, if a client receives a sentence of two years they will simply have to serve it all out. Good time will also not be credited until completion of the treatment program. KRS 197.045(4).

POSTINCARCERATION SUPERVISION

Even if an inmate is not granted parole and serves out his sentence, an additional 5 years of postincarceration supervision is required by KRS 532.043 and KRS 532.060(3)&(4) for the following offenses: any felony sex crime in KRS 510, Incest, Unlawful Transaction 1st Degree sexual activity, Use of a Minor in a Sexual Performance, and Human Trafficking involving commercial sexual activity. Persons revoked pursuant to these statutes will not be eligible for parole. 501 KAR 1:030. Under KRS 532.060(4) and KRS 532.400, an additional one year of postincarceration supervision will be required for persons convicted of a capital offense, a Class A felony, who have a maximum or close security classification, or are not eligible for parole by statute and have served out. Violations of the terms of supervision may result in the person's reincarceration to serve the remaining original sentence, the entire supervision period, or balance of the supervision period. See KRS 532.060(3)&(4).

Postincarceration supervision statutes apply retroactively, whether or not they were in effect at the time of sentencing. *Brady v. Commonwealth*, 396 S.W.3d 315 (Ky. App. 2013).

The period of postincarceration supervision is set by the trial court. *See, e.g.*, *Walker v. Commonwealth,* 568 S.W.3d 364 Ky. App. 2018). It is the duty of the Department of Corrections to set the conditions of the postincarceration supervision. A trial court cannot set the conditions of this supervision. *Chames v. Commonwealth*, 405 S.W.3d 519 (Ky. App. 2012).

PAROLE REVOCATION

The minimum due process requirements of a revocation were first applied to parole revocations in *Morrissey v. Brewer*, 408 U.S. 471 (1972), and extended to probation revocations in *Gagnon v. Scarpelli*, 411 U.S. 778 (1973). They are: (1) written notice of the alleged violations, (2) disclosure of the evidence against the defendant, (3) opportunity to be heard in person and to present witnesses and documentary evidence, (4) the right to confront and cross-examine adverse witnesses, (5) a "neutral and detached" hearing body or court, and (6) written findings of fact as to the evidence relied on and the reasons for revocation. These requirements were adopted for probation revocations in Kentucky in *Murphy v. Commonwealth*, 551 S.W.2d 838 (Ky. App. 1977).

In *Jones v. Bailey,* 576 S.W.3d 128 (Ky. 2019), the court adopted the minimum due process requirements for parole revocations, holding that the Kentucky Parole Board revocation procedures in place at the time violated the requirements outlined in *Morrissey v. Brewer*, 408 U.S. 471 (1972). *Jones* held that the administrative procedures then in effect were inadequate because: "reviewing the administrative record is only minimally reliable and a wholly unsatisfactory basis for a revocation decision" and a parolee is entitled to "an evidentiary final revocation hearing where he could present evidence and confront witnesses." *Id*. at 144. "[A]s with probation revocation, the standard of proof required to establish a conditional-freedom violation is preponderance of the evidence" Id. at 147. "In order to prepare meaningfully for the final hearing, an offender must receive notice of the time, place, and nature of the hearing, as well as the evidence against him, and the standard by which the evidence of violation(s) will be judged." *Id*. at 150. The parolee is entitled to "a written statement by the factfinders as to the evidence relied on and reasons for revoking parole [or probation]." *Id*. at 151. "[T]he offender must be informed of his right to request counsel and … the need for counsel must be assessed on a case-by case basis." *Id*. at 147.

The ruling in *Jones* obligated the Parole Board to revise its procedures. Consequently, the Board issued 501 KAR 1:040E, an emergency measure designed to meet the minimum procedural requirements set out in the ruling. A finalized version of the procedure has still not been adopted at the time of this revision. The new emergency provisions apply to revocation of parole and revocation of postincarceration supervision as well.

501 KAR 1:040E contains the following features:

- A preliminary hearing in which the standard of proof is probable cause as to each violation alleged, the parole officer bears the burden of proof, witnesses must be placed under oath and subject to cross-examination, and the hearing is on the record.
- If probable cause is found, a warrant is issued and a final hearing must be scheduled.
- New provisions for a final hearing, in which: a "factfinder" must conduct the hearing on the record; the standard of proof is preponderance of the evidence - merely taking note of the evidence in the preliminary hearing is not sufficient; the parolee is notified of the evidence against him or her and has the right to present defenses and mitigation; written findings of fact must be provided within 21 days, including whether the violations were proven by a preponderance of the evidence and whether revocation is recommended; and the Board must accept the factfinder's decision with regard to the evidence but does not have to accept the factfinder's recommendation as to revocation.

If preponderance of the evidence is found, the Board can revoke the parolee or reinstate the parole with a change in conditions. If preponderance is not found, parole is reinstated as before. However, KRS 439.3106(2) allows for a third option: at the final revocation hearing, the Board can continue the hearing and impose a "parole continuation sanction" on the defendant, if the defendant agrees. If the defendant does not agree, the final revocation hearing will be set for the next available date. The sanction can last up to 9 months. During this time, the parolee is in some form of custody with the understanding that if he or she successfully completes the sanction, he or she will be returned to community supervision under the former conditions. If the parolee fails to successfully complete the sanction, the final revocation hearing will be rescheduled.

Effective July 15, 2020, KRS 439.440 requires that any prisoner returned to state custody for violation of the conditions of release shall be heard by the Parole Board within sixty (60) days.

Questions to ask at a parole revocation hearing may include:

- Is the person legally on supervision? Some people may have served out or are not required to be on supervision.
- Are the terms of the release legal?
- Did the client actually violate one of the conditions?
- Is a revocation warrant permitted? This is usually only permitted on a new offense if the defendant pleaded guilty, if the offense took place in front of the parole officer, or if only a technical violation is charged. See 501 KAR 1.040E.
- Was compliance with the conditions of release impossible? A defendant does not violate the terms of supervision if compliance with those terms was impossible or out of the defendant's control. *Keith v. Commonwealth,* 689 S.W.2d 613 (Ky. App. 1985).
- Is revocation the appropriate response to the violation? In *Commonwealth v. Andrews,* 448 S.W.3d 773 (Ky. 2014), the court held that, in probation revocation cases, even if a violation is found, KRS 439.3106 requires a trial court to make further findings regarding whether the defendant's failure to abide by the terms of his release constituted a significant risk to prior victims in the community and whether the probationer cannot be managed in the community. In *Murrell v. Kentucky Parole Board,* 531 S.W.3d 503, (Ky. App. 2017), the court said that the holding in *Andrews* applies to parole revocations proceedings as well. See also *Newcomb v. Kentucky Parole Board,* 2018-CA-001837-MR, 2019 WL 5681419, Ky. App. Nov. 1, 2019, *unpublished.*
- Were graduated sanctions tried? (See the Graduated Sanctions chart in the back of this manual.)

Appealing a parole revocation decision is not as straightforward as appealing a decision to revoke probation. If an appeal is in order, contact the Post-Conviction Branch of DPA.

SEX OFFENSES

The procedure for a comprehensive sex offender presentence evaluation is laid out in 501 KAR 6:200. KRS 532.045 prohibits probation in the case of sex offenses involving injury, weapons, befriending a child for the purpose of committing a sex crime, and acts committed by people in a special position of trust, etc. "Sex crime" and "sex offender" are defined in KRS

17.500. The Sexual Offender Treatment Program is covered under KRS 197.400 to 197.440 and uses the definitions set out in KRS 17.500 to determine who must take the program. According to KRS 197.045(4) and KRS 439.340(11), no sex offender can receive good time credit or be eligible for parole before completing the treatment program. The program is described in 501 KAR 6:220. Completion of the treatment program will require taking responsibility for the crime. There is a waiting period to get into the program, and the program can take 3 years to complete. Consider the possibility that, especially in the case of shorter sentences, the defendant will likely have to serve out his sentence. The Sex Offender Registration Program is laid out in KRS 17.500 through 17.580. See the Department of Public Advocacy Collateral Consequences Manual, June, 2013, for a description of registration requirements, at http://dpa.ky.gov/. Postincarceration Supervision may also apply to the defendant (KRS 532.043), including continued counseling requirements (KRS 532.045). Sex offender postincarceration supervision revocation hearings are covered by 501 KAR 1:070. For an overview of how conviction of different possible sexual offenses affect these factors, see the Department of Corrections chart below.

PAROLE ELIGIBILITY CHART

20% Eligibility (default PE, applies to non-violent offenses committed after December 3, 1980)

(Credit is given for time served prior to sentencing, however min. PE is 2 months from sentencing)

12-23 months .....4 months	14 years .....2 years, 10 months	29 years .....5 years, 10 months
2 years .....5 months	15 years ..... 3 years	30 years ..... 6 years
3 years .....7 months	16 years .....3 years, 2 months	31 years .....6 years, 2 months
3 years, 6 months.....8 months	17 years .....3 years, 5 months	32 years .....6 years, 5 months
4 years, 6 months.....11 months	18 years .....3 years, 7 months	33 years .....6 years, 7 months
5 years .....1 year	19 years .....3 years, 10 months	34 years .....6 years, 10 months
5 years, 6 months.... 1 year, 1 month	20 years ..... 4 years	35 years ..... 7 years
6 years .....1 year, 2 months	21 years .....4 years, 2 months	36 years .....7 years, 2 months
7 years .....1 year, 5 months	22 years .....4 years, 5 months	37 years .....7 years, 5 months
8 years .....1 year, 7 months	23 years .....4 years, 7 months	38 years .....7 years, 7 months
9 years .....1 year, 10 months	24 years .....10 months	39 years .....7 years, 10 months
10 years ..... 2 years	25 years ..... 5 years	more than 39 years
11 years .....2 years, 2 months	26 years .....5 years, 2 months	up to and including life..... 8 years
12 years .....2 years, 5 months	27 years .....5 years, 5 months	PFO 1st ,and A,B, or C felony10 years
13 years .....2 years, 7 months	28 years .....5 years, 7 months	

PFO 1st based only on new nonviolent or non-sex-crime Class D Felonies does not have to serve 10 years to be eligible for parole, but is calculated at 20% instead. The 10 years only applies if any one of the new offenses is a Class C or above. KRS 532.080(7).

15% Eligibility (applies to nonviolent class D sentences 5 years or less) KRS KRS 439.340(3)(a).

(Credit is given for time served prior to sentencing, however min. PE is 2 months from sentencing)

12-13 months .....2 months	34-40 months .....6 months	>60 months..... not eligible for 15% time.
14- 20 months .....3 months	41-46 months .....7 months	
15-26 months .....4 months	47-53 months .....8 months	
27-33 months .....5 months	54-60 months .....9 months	

50% Eligibilty (applies for listed offenses)

Although the math here is very easy, 50% PE applies to Manslaughter 2nd Degree or Reckless Homicide where victim was a peace officer, firefighter, or EMS personnel killed in the line of duty, KRS 439.3401(3)(c), Theft by Unlawful Taking of 10 million dollars or more, KRS 514.030(3), 507 homicide offense or a chapter 507A fetal homicide offense not otherwise constituting a violent offense, and the victim died of an overdose of a Schedule I controlled substance, KRS 439.3401(3)(d), Importing Heroin, KRS 218A.1410, Trafficking Heroin, Class C felony or higher, KRS 218A.1412(c), and Agravated Trafficking, Class B felony, KRS 218A.142.

Violent Offender, 85% (applies to violent offenses committed after July 15, 1998)

Includes: Capital offense, Class A felonies, Class B felonies involving death or serious physical injury and those Class B felonies listed in KRS 439.3401(1). Violent offenders do not get good time credit! KRS 439.3401(4).Manslaughter 2nd Degree (a Class C felony) when the victim was a peace officer, firefighter, or EMS personnel killed in the line of duty and the victim was "clearly identifiable" as a peace officer, firefighter, or EMS personnel. KRS 439.3401(3)(b).

10 years ..... 8 yr, 6 mo	15 years .....12 yr, 9 mo	20 years .....17 yr
10 years, 6 months.....9 yr	15 years, 6 months.....13 yr	20 years, 6 months.....17 yr, 6 mo
11 years .....9 yr, 4 mo	16 years .....13 yr, 7 mo	21 years .....17 yr, 10 mo
11 years, 6 months.....9 yr, 10 mo	16 years, 6 months.....14 yr, 1 mo	21 years, 6 months.....18 yr, 4 mo
12 years .....10 yr, 2 mo	17 years .....14 yr, 5 mo	22 years .....18 yr, 8 mo
12 years, 6 months.....10 yr, 9 mo	17 years, 6 months.....15 yr	22 years, 6 months.....19 yr, 3 mo
13 years .....11 yr	18 years .....15 yr, 4 mo	23 years .....19 yr, 7 mo
13 years, 6 months.....11 yr, 7 mo	18 years, 6 months.....15 yr, 10 mo	23 years, 6 months or greater.....20 yr
14 years .....11 yr, 11 mo	19 years .....16 yr, 2 mo	Life sentence – 20 years.
14 years, 6 months.....12 yr, 5 mo	19 years, 6 months.....16 yr, 8 mo	

For any sentence over 23 years, 6 months, parole eligibility is 20 years. *Hughes v. Commonwealth*, 87 S.W.3d 850 (Ky.2002). There is an exception to 85% eligibility for victims of domestic violence. KRS 439.3401(5).

Ineligible for parole

Wearing body armor and armed with a deadly weapon AND guilty of any felony offense under KRS 218A, 507, 508, 509, 511, or 513, or guilty of possession of a destructive device, unauthorized use of an automobile, riot 1st degree or 2nd degree, possession of firearm by convicted felon, unlawful possession of weapon on school property, possession of handgun by minor, or theft of a motor vehicle under 514.030. KRS 533.065

A sexual offender who qualifies for sexual offender treatment who has not yet finished the treatment program. KRS 439.340(11)

PROBATION AND PAROLE VIOLATION MATRIX

OFFENDER RISK LEVEL					
VIOLATION	**Very High**	**High**	**Moderate**	**Low**	**Admin**
1st Minor	**2**	**1**	**1**	**1**	**1**
2nd Minor	**3**	**2**	**2**	**2**	**1**
3rd (or more) Minor	**4**	**3**	**3**	**2**	**2**
1st Major	**4**	**3**	**3**	**2**	**2**
2nd Major	**4**	**3**	**3**		
3rd (or more) Major	**4**	**4**	**4**		

Response Range 1	**Response Range 2**	**Response Range 3**	**Response Range 4**
	Any Response or Combination of Responses in Range 1 or:	**Any Response or Combination of Responses in Range 1-2 or:**	**Any Response or Combination of Responses in Range 1-3 or:**
Verbal or Written Warning	Cerfew up to 60 days	Cerfew up to 120 days	Cerfew up to 180 days
Increased Reporting	Community Service 20-30 hours	Community Service 30-40 hours	Community Service 40-50 hours
Increased Frequency of Drug Testing	Electronic Monitoring	Halfway House	Jail Time up to 60 days (requires hearing with releasing authority)
Increase Level of Supervision	Increased Treatment up to Residential	Jail Time up to 30 days (requires hearing with releasing authority)	Request Revocation
Loss of Travel or Other Privileges	Discretionary Detention up to 10 days with Supervisor Approval		
Cerfew up to 30 days			
Referral to Social Service Clinician for Sub. Abuse Assessment for Counseling or Treatment			
Referral to Community Service Agency for Counseling or Treatment			
Community Service up to 8 hours			

*Upon consideration of the totality of the circumstances and with supervisory approval, the officer may direct the offender into appropriate interventions not included in the violation matrix or seek to impose a high lever sanction, up to and including revocation.

Rev. 06/20/05

Commonwealth **of Kentucky- Division of Probation and Parole**

Conditions of Supervision

Name: _____ Number:

I understand that a Court and/or Parole Authority has placed me under the supervision of the Kentucky Division of Probation and Parole, and I agree to abide by the following conditions:

I will report as directed at intervals and places as directed by my Probation and Parole Officer.

My level of supervision is:

☐ **High Risk** – (Minimum requirement of two face-to-face contacts per month between officer and offender. One contact shall be at a location outside the office. One face-to-face contact at the offender's residence shall occur at least once every three months)

☐ **Moderate Risk** – (Minimum requirement of one face-to-face contact per month between officer and offender. One face-to-face contact at the offender's residence shall occur at least once every six months)

☐ **Low Risk** – (Minimum requirement of one face-to-face contact every three months between officer and offender. The offender shall mail in reports during the months when the offender does not report in person.)

☐ **Administrative Supervision** – (The offender shall mail in reports once every three months with accompanying verification of employment and compliance with financial obligations.)

I agree to abide by the following <u>special conditions</u> as ordered by the Court and/or Parole Authority:

1.
2.
3.
4.

☐ I shall make restitution to _____ at the rate of $_____per month for a total of $_____.
☐ I shall pay a supervision fee to _____ Circuit Court Clerk at the rate of $_____ per month for a total of $_____.
☐ I shall pay fines and court costs of $_____ by _____.
☐ I shall complete _____ hours of community service work by _____.
☐ I shall complete any treatment program as directed by the Court, Paroling Authority or my officer.
☐ I shall pay child support to _____ at the rate of $_____ per month.
☐ I understand I am under a curfew and must be inside my residence from 10:00 p.m. to 6:00 a.m. seven days per week.

<u>General Conditions</u>

1. I understand that I shall be subject to search and seizure without a warrant if my officer has reasonable suspicion that I may have illegal drugs, alcohol or other contraband on my person or property.
2. I understand that I shall not use or possess any alcoholic beverages (or enter any place where they are sold as the primary commodity, ie. Bars, Nightclubs, Liquor Stores, etc.) or narcotics/controlled substances that are not currently prescribed to my by a licensed physician.
3. I understand that I shall avoid associating with any convicted felon and shall not visit residents of jails or prisons unless permission is obtained from my officer and institutional or jail authority.
4. I understand that I shall submit to alcohol and/or drug testing and shall pay for said testing if directed by my officer.
5. I understand that my Probation and Parole Officer may visit my residence and place of employment at any time. I understand that I will maintain only one residence and shall not change my residence without approval of my officer.
6. I shall work regularly and support my legal dependants. I will immediately report to my officer any change or loss of employment. If unemployed I will make every attempt to obtain bona fide employment.
7. My designated area of supervision is _____ and I will not leave this area without my officer's permission. I also understand that I do hereby agree to waive extradition to the State of Kentucky and also agree that I will not contest any effort by any other state to return me to the State of Kentucky. Failure to comply with the above will be deemed to be a violation of the terms and conditions of my release.
8. I shall not violate any law or ordinance of this state, any other state or the United States. If I am arrested, cited, or served with a Criminal Summons/Emergency Protective Order/Domestic Violence Order or if I am questioned by any law enforcement official I will report this within 72 hours to my Probation and Parole Officer. I understand that I cannot serve as an informant or special agent for any law enforcement agency without written permission of the Court .
9. I shall not harass or threaten <u>any</u> employee of the Kentucky Department of Corrections and agree to cooperate fully with any Probation and Parole Officer *or* any Peace Officer acting at the direction of a Probation and Parole Officer, during the course of my supervision. I shall not falsify any written or oral report to any employee of the Kentucky Department of Corrections.
10. I understand that as a convicted felon that I shall not be permitted to purchase, own or have in my possession or control a firearm, ammunition, dangerous instrument or deadly weapon. I understand that I have lost the right to vote and hold public office. When I become eligible I may apply for Restoration of Civil Rights at any Probation and Parole Office. Restoration of Civil Rights does not give a convicted felon the right to purchase, own or possess a firearm.
11. I understand that I have five (5) days from the date of an incident to file a written grievance with my officer.

I have read, or had read to me the above conditions of my release that I must fully observe while under active supervision. I fully understand and accept the above conditions and realize that any violation shall be reported and failure to abide by these conditions can be grounds for revocation of my release. I have been given a copy of these Conditions of Supervision.

Date:_____ OFFENDER:_____

Date:_____ Probation and Parole Officer:_____

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 i

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
531.360	Advertising Matter Portray Sex Performance By Minor, 1st	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.360/502.020	Complicity: Advertising Matter Portray Sex Performance By Minor, 1st	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.360 [1]	Advertising Matter Portray Sex Performance By Minor, 2nd/GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.360 [1]/502.020	Complicity: Advertising Matter Portray Sex Performance By Minor, 2nd/GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.340 [1]	Dist Of Matter Portray Sex Performance By Minor, 2nd Or GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.340 [1]/502.020	Complicity: Dist Of Matter Portray Sex Performance By Minor, 2nd Or GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.340	Dist Of Matter Portraying Sex Performance By Minor, 1st Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.340/502.020	Complicity: Dist Of Matter Portraying Sex Performance By Minor, 1st Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.030 [1]	Distribution Obscene Matter To Minors-With Prior Conviction	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.030 [1]/502.020	Complicity: Distribution Obscene Matter To Minors-With Prior Conviction	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[1]	Human Trafficking No Serious Physical Injury	C	5-10 Yrs	No	Yes (Committed after 6/26/2007)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[1]/502.020	Complicity: Human Trafficking No Serious Physical Injury	C	5-10 Yrs	No	Yes (Committed after 6/26/2007)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[2]	Human Trafficking No Serious Physical Injury Vic < 18	B	10-20 Yrs	No	Yes (Committed after 6/26/2007)	20% (Committed before 6/26/2007) 85% Committed after 6/26/2007	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[2]/502.020	Complicity: Human Trafficking No Serious Physical Injury Vic < 18	B	10-20 Yrs	No	Yes (Committed after 6/26/2007)	20% (Committed before 6/26/2007) 85% Committed after 6/26/2007	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[2]/506.010	Criminal Attempt: Human Trafficking No Serious Physical Injury Vic < 18	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[2]/506.030	Criminal Solicitation: Human Trafficking No Serious Physical Injury Vic < 18	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[2]/506.040	Criminal Conspiracy: Human Trafficking No Serious Physical Injury Vic < 18	C	5-10 Yrs	No	No	20%	None	No	No
529.100[2]/506.080	Criminal Facilitation: Human Trafficking No Serious Physical Injury Vic < 18	C	5-10 Yrs	No	No	20%	None	No	No
529.100[3]	Human Trafficking Serious Physical Injury	B	10-20 Yrs	No	Yes (Committed after 6/26/2007)	20% (Committed before 6/26/2007) 85% Committed after 6/26/2007	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[3]/502.020	Complicity: Human Trafficking Serious Physical Injury	B	10-20 Yrs	No	Yes (Committed after 6/26/2007)	20% (Committed before 6/26/2007) 85% Committed after 6/26/2007	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[3]/506.010	Criminal Attempt: Human Trafficking Serious Physical Injury	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[3]/506.030	Criminal Solicitation: Human Trafficking Serious Physical Injury	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[3]/506.040	Criminal Conspiracy: Human Trafficking Serious Physical Injury	C	5-10 Yrs	No	No	20%	None	No	No
529.100[3]/506.080	Criminal Facilitation: Human Trafficking Serious Physical Injury	C	5-10 Yrs	No	No	20%	None	No	No
529.100[4]	Human Trafficking Serious Physical Injury Vic < 18	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[4]/502.020	Complicity: Human Trafficking Serious Physical Injury Vic < 18	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[4]/506.010	Criminal Attempt: Human Trafficking Serious Physical Injury Vic < 18	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[4]/506.030	Criminal Solicitation: Human Trafficking Serious Physical Injury Vic < 18	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.100[4]/506.040	Criminal Conspiracy: Human Trafficking Serious Physical Injury Vic < 18	B	10-20 Yrs	No	No	20%	None	No	No
529.100[4]/506.080	Criminal Facilitation: Human Trafficking Serious Physical Injury Vic < 18	B	10-20 Yrs	No	No	20%	None	No	No
530.020	Incest	C	5-10 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

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RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
530.020/502.020	Complicity: Incest	C	5-10 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020[3]	Incest	C	5-10 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020[3]/502.020	Complicity: Incest	C	5-10 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020 [1]	Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	B	10-20 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020 [1]/502.020	Complicity: Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	B	10-20 Yrs	Yes	No	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020 [1]/506.010	Criminal Attempt: Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	C	5-10 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
530.020 [1]/506.030	Criminal Solicitation: Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
530.020 [1]/506.040	Criminal Conspiracy: Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	C	5-10 Yrs	No	No	20%	None	No	No
530.020 [1]/506.080	Criminal Facilitation: Incest - Forcible Compulsion/incap Of Consent, Or U/18 Yoa	C	5-10 Yrs	No	No	20%	None	No	No
530.020 [2]	Incest - Victim U/12 Yoa Or Serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020 [2]/502.020	Complicity: Incest - Victim U/12 Yoa Or Serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.020 [2]/506.010	Criminal Attempt: Incest - Victim U/12 Yoa Or Serious Physical Injury	B	10-20 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
530.020 [2]/506.030	Criminal Solicitation: Incest - Victim U/12 Yoa Or Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
530.020 [2]/506.040	Criminal Conspiracy: Incest - Victim U/12 Yoa Or Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
530.020 [2]/506.080	Criminal Facilitation: Incest - Victim U/12 Yoa Or Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
510.148 [3]	Indecent Exposure, 1st Degree, 3rd Offense	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.148 [3]/502.020	Complicity: Indecent Exposure, 1st Degree, 3rd Offense	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

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***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.148	Indecent Exposure, 1st Degree, 4th Or GT Offense	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.148/502.020	Complicity: Indecent Exposure, 1st Degree, 4th Or GT Offense	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
509.040 [13]	KIDNAPPING	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [13]/502.020	Complicity: KIDNAPPING	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [13]/506.010	Criminal Attempt: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [13]/506.030	Criminal Solicitation: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [13]/506.040	Criminal Conspiracy: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [13]/506.080	Criminal Facilitation: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [5]	KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [5]/502.020	Complicity: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [5]/506.010	Criminal Attempt: KIDNAPPING	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [5]/506.030	Criminal Solicitation: KIDNAPPING	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [5]/506.040	Criminal Conspiracy: KIDNAPPING	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [5]/506.080	Criminal Facilitation: KIDNAPPING	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [9]	KIDNAPPING	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [9]/502.020	Complicity: KIDNAPPING	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [9]/506.010	Criminal Attempt: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [9]/506.030	Criminal Solicitation: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [9]/506.040	Criminal Conspiracy: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [9]/506.080	Criminal Facilitation: KIDNAPPING	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [4]	KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [4]/502.020	Complicity: KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [4]/506.010	Criminal Attempt: KIDNAPPING - HB455	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [4]/506.030	Criminal Solicitation: KIDNAPPING - HB455	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [4]/506.040	Criminal Conspiracy: KIDNAPPING - HB455	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [4]/506.080	Criminal Facilitation: KIDNAPPING - HB455	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [8]	KIDNAPPING - HB455	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [8]/502.020	Complicity: KIDNAPPING - HB455	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [8]/506.010	Criminal Attempt: KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [8]/506.030	Criminal Solicitation: KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [8]/506.040	Criminal Conspiracy: KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [8]/506.080	Criminal Facilitation: KIDNAPPING - HB455	B	10-20 Yrs	No	No	20%	None	No	No

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

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**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
509.040 [15]	KIDNAPPING - HB7	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [15]/502.020	Complicity: KIDNAPPING - HB7	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [15]/506.010	Criminal Attempt: KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [15]/506.030	Criminal Solicitation: KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [15]/506.040	Criminal Conspiracy: KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [15]/506.080	Criminal Facilitation: KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [7]	KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [7]/502.020	Complicity: KIDNAPPING - HB7	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [7]/506.010	Criminal Attempt: KIDNAPPING - HB7	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [7]/506.030	Criminal Solicitation: KIDNAPPING - HB7	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [7]/506.040	Criminal Conspiracy: KIDNAPPING - HB7	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [7]/506.080	Criminal Facilitation: KIDNAPPING - HB7	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [14]	KIDNAPPING - HB76	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [14]/502.020	Complicity: KIDNAPPING - HB76	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [14]/506.010	Criminal Attempt: KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [14]/506.030	Criminal Solicitation: KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [14]/506.040	Criminal Conspiracy: KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [14]/506.080	Criminal Facilitation: KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [6]	KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [6]/502.020	Complicity: KIDNAPPING - HB76	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [6]/506.010	Criminal Attempt: KIDNAPPING - HB76	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [6]/506.030	Criminal Solicitation: KIDNAPPING - HB76	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [6]/506.040	Criminal Conspiracy: KIDNAPPING - HB76	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [6]/506.080	Criminal Facilitation: KIDNAPPING - HB76	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [1]	Kidnapping-Adult	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [1]/502.020	Complicity: Kidnapping-Adult	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [1]/506.010	Criminal Attempt: Kidnapping-Adult	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [1]/506.030	Criminal Solicitation: Kidnapping-Adult	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [1]/506.040	Criminal Conspiracy: Kidnapping-Adult	C	5-10 Yrs	No	No	20%	None	No	No
509.040 [1]/506.080	Criminal Facilitation: Kidnapping-Adult	C	5-10 Yrs	No	No	20%	None	No	No
509.040	Kidnapping-Minor	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040/502.020	Complicity: Kidnapping-Minor	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040/506.010	Criminal Attempt: Kidnapping-Minor	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040/506.030	Criminal Solicitation: Kidnapping-Minor	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040/506.040	Criminal Conspiracy: Kidnapping-Minor	C	5-10 Yrs	No	No	20%	None	No	No
509.040/506.080	Criminal Facilitation: Kidnapping-Minor	C	5-10 Yrs	No	No	20%	None	No	No

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

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***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
509.040 [2]	Kidnapping-Victim Death	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [2]/502.020	Complicity: Kidnapping-Victim Death	X	20-50 Yrs*	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [2]/506.010	Criminal Attempt: Kidnapping-Victim Death	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [2]/506.030	Criminal Solicitation: Kidnapping-Victim Death	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [2]/506.040	Criminal Conspiracy: Kidnapping-Victim Death	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [2]/506.080	Criminal Facilitation: Kidnapping-Victim Death	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [3]	Kidnapping-With Serious Physical Injury	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [3]/502.020	Complicity: Kidnapping-With Serious Physical Injury	A	20-50 Yrs	No	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [3]/506.010	Criminal Attempt: Kidnapping-With Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [3]/506.030	Criminal Solicitation: Kidnapping-With Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.040 [3]/506.040	Criminal Conspiracy: Kidnapping-With Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
509.040 [3]/506.080	Criminal Facilitation: Kidnapping-With Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
531.335	Poss Of Matter Portray Sex Performance By Minor	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.335/502.020	Complicity: Poss Of Matter Portray Sex Performance By Minor	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.155	Proh Use Of Elec Comm Sys To Proc Minor/peace Off R/sex Off	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.155/502.020	Complicity: Proh Use Of Elec Comm Sys To Proc Minor/peace Off R/sex Off	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.320(2C)	Promoting A Minor In Sex Performance-Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.320(2C)/502.020	Complicity: Promoting A Minor In Sex Performance-Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.320(2C)/506.010	Criminal Attempt: Promoting A Minor In Sex Performance-Physical Injury	B	10-20 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
531.320(2C)/506.030	Criminal Solicitation: Promoting A Minor In Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.320(2C)/506.040	Criminal Conspiracy: Promoting A Minor In Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
531.320(2C)/506.080	Criminal Facilitation: Promoting A Minor In Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
531.320(2B)	Promoting A Minor U/16 In Sex Performance	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
531.320(2B)/502.020	Complicity: Promoting A Minor U/16 In Sex Performance	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.320(2B)/506.010	Criminal Attempt: Promoting A Minor U/16 In Sex Performance	C	5-10 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
531.320(2B)/506.030	Criminal Solicitation: Promoting A Minor U/16 In Sex Performance	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.320(2B)/506.040	Criminal Conspiracy: Promoting A Minor U/16 In Sex Performance	C	5-10 Yrs	No	No	20%	None	No	No
531.320(2B)/506.080	Criminal Facilitation: Promoting A Minor U/16 In Sex Performance	C	5-10 Yrs	No	No	20%	None	No	No
531.320(2A)	Promoting A Sexual Performance By A Minor U/18	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.320(2A)/502.020	Complicity: Promoting A Sexual Performance By A Minor U/18	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
529.040	Promoting Prostitution-2nd Degree	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
529.040/502.020	Complicity: Promoting Prostitution-2nd Degree	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.350	Promoting Sale Of Matter Portray Minor Sex Perf-GT 2nd Off	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.350/502.020	Complicity: Promoting Sale Of Matter Portray Minor Sex Perf-GT 2nd Off	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.060	Promoting Sale Of Obscenity-3rd Or GT Offense	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.060/502.020	Complicity: Promoting Sale Of Obscenity-3rd Or GT Offense	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.350 [2]	Promotng Sale Of Matter Portray Sex Perf By Minor-2nd Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.350 [2]/502.020	Complicity: Promotng Sale Of Matter Portray Sex Perf By Minor-2nd Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040[7]	RAPE 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040[7]/502.020	Complicity: RAPE 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040[7]/506.010	Criminal Attempt: RAPE 1ST DEGREE - HB455	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.040[7]/506.030	Criminal Solicitation: RAPE 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040[7]/506.040	Criminal Conspiracy: RAPE 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	No	No
510.040[7]/506.080	Criminal Facilitation: RAPE 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	No	No
510.040[8]	RAPE 1ST DEGREE - HB455	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.040[8]/502.020	Complicity: RAPE 1ST DEGREE - HB455	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040[8]/506.010	Criminal Attempt: RAPE 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.040[8]/506.030	Criminal Solicitation: RAPE 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040[8]/506.040	Criminal Conspiracy: RAPE 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	No	No
510.040[8]/506.080	Criminal Facilitation: RAPE 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	No	No
510.040[9]	RAPE 1ST DEGREE - HB76	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040[9]/502.020	Complicity: RAPE 1ST DEGREE - HB76	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040[9]/506.010	Criminal Attempt: RAPE 1ST DEGREE - HB76	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.040[9]/506.030	Criminal Solicitation: RAPE 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040[9]/506.040	Criminal Conspiracy: RAPE 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	No	No
510.040[9]/506.080	Criminal Facilitation: RAPE 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	No	No
510.05	RAPE IN THE 2ND DEGREE	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.05/502.020	Complicity: RAPE IN THE 2ND DEGREE	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.06	RAPE IN THE 3RD DEGREE	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.06/502.020	Complicity: RAPE IN THE 3RD DEGREE	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [2]	Rape, 1st Degree	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.040 [2]/502.020	Complicity: Rape, 1st Degree	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [2]/506.010	Criminal Attempt: Rape, 1st Degree	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [2]/506.030	Criminal Solicitation: Rape, 1st Degree	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [2]/506.040	Criminal Conspiracy: Rape, 1st Degree	C	5-10 Yrs	No	No	20%	None	No	No
510.040 [2]/506.080	Criminal Facilitation: Rape, 1st Degree	C	5-10 Yrs	No	No	20%	None	No	No
510.040	Rape, 1st Degree - Domestic Violence	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040/502.020	Complicity: Rape, 1st Degree - Domestic Violence	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040/506.010	Criminal Attempt: Rape, 1st Degree - Domestic Violence	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.040/506.030	Criminal Solicitation: Rape, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040/506.040	Criminal Conspiracy: Rape, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	No	No
510.040/506.080	Criminal Facilitation: Rape, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	No	No
510.040 [4]	Rape, 1st Degree - Domestic Violence W/serious Physical Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [4]/502.020	Complicity: Rape, 1st Degree - Domestic Violence W/serious Physical Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [4]/506.010	Criminal Attempt: Rape, 1st Degree - Domestic Violence W/serious Physical Inj	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [4]/506.030	Criminal Solicitation: Rape, 1st Degree - Domestic Violence W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [4]/506.040	Criminal Conspiracy: Rape, 1st Degree - Domestic Violence W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [4]/506.080	Criminal Facilitation: Rape, 1st Degree - Domestic Violence W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [1]	Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [1]/502.020	Complicity: Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [1]/506.010	Criminal Attempt: Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [1]/506.030	Criminal Solicitation: Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [1]/506.040	Criminal Conspiracy: Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [1]/506.080	Criminal Facilitation: Rape, 1st Degree - Incap Of Const/phys Help W/ser Phys Inj	B	10-20 Yrs	No	No	20%	None	No	No

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RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.040 [3]	Rape, 1st Degree - Incapable Of Consent/physically Helpless	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [3]/502.020	Complicity: Rape, 1st Degree - Incapable Of Consent/physically Helpless	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [3]/506.010	Criminal Attempt: Rape, 1st Degree - Incapable Of Consent/physically Helpless	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [3]/506.030	Criminal Solicitation: Rape, 1st Degree - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [3]/506.040	Criminal Conspiracy: Rape, 1st Degree - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	No	No
510.040 [3]/506.080	Criminal Facilitation: Rape, 1st Degree - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	No	No
510.040 [6]	Rape, 1st Degree - Victim LT 12 YOA	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [6]/502.020	Complicity: Rape, 1st Degree - Victim LT 12 YOA	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [6]/506.010	Criminal Attempt: Rape, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [6]/506.030	Criminal Solicitation: Rape, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [6]/506.040	Criminal Conspiracy: Rape, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [6]/506.080	Criminal Facilitation: Rape, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [5]	Rape, 1st Degree w/Serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [5]/502.020	Complicity: Rape, 1st Degree w/Serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.040 [5]/506.010	Criminal Attempt: Rape, 1st Degree w/Serious Physical Injury	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.040 [5]/506.030	Criminal Solicitation: Rape, 1st Degree w/Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.040 [5]/506.040	Criminal Conspiracy: Rape, 1st Degree w/Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
510.040 [5]/506.080	Criminal Facilitation: Rape, 1st Degree w/Serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
510.050 [1]	Rape, 2nd Degree (mentally Incapacitated By Intox Sub)	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.050 [1]/502.020	Complicity: Rape, 2nd Degree (mentally Incapacitated By Intox Sub)	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.060	Rape, 3rd Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.060/502.020	Complicity: Rape, 3rd Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.050	Rape-2nd Degree-No Force	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.050/502.020	Complicity: Rape-2nd Degree-No Force	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.110	Sexual Abuse, 1st Deg, Victim U/12 Years Of Age	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.110/502.020	Complicity: Sexual Abuse, 1st Deg, Victim U/12 Years Of Age	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.110 [1]	Sexual Abuse, 1st Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.110 [1]/502.020	Complicity: Sexual Abuse, 1st Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [7]	SODOMY 1ST DEGREE - HB455	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.070 [7]/502.020	Complicity: SODOMY 1ST DEGREE - HB455	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [7]/506.010	Criminal Attempt: SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [7]/506.030	Criminal Solicitation: SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [7]/506.040	Criminal Conspiracy: SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [7]/506.080	Criminal Facilitation: SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [9]	SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [9]/502.020	Complicity: SODOMY 1ST DEGREE - HB455	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [9]/506.010	Criminal Attempt: SODOMY 1ST DEGREE - HB455	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [9]/506.030	Criminal Solicitation: SODOMY 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [9]/506.040	Criminal Conspiracy: SODOMY 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [9]/506.080	Criminal Facilitation: SODOMY 1ST DEGREE - HB455	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [10]	SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [10]/502.020	Complicity: SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [10]/506.010	Criminal Attempt: SODOMY 1ST DEGREE - HB76	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [10]/506.030	Criminal Solicitation: SODOMY 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [10]/506.040	Criminal Conspiracy: SODOMY 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [10]/506.080	Criminal Facilitation: SODOMY 1ST DEGREE - HB76	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [8]	SODOMY 1ST DEGREE - HB76	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [8]/502.020	Complicity: SODOMY 1ST DEGREE - HB76	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [8]/506.010	Criminal Attempt: SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [8]/506.030	Criminal Solicitation: SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [8]/506.040	Criminal Conspiracy: SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [8]/506.080	Criminal Facilitation: SODOMY 1ST DEGREE - HB76	B	10-20 Yrs	No	No	20%	None	No	No

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*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.08	SODOMY IN THE 2ND DEGREE	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.08/502.020	Complicity: SODOMY IN THE 2ND DEGREE	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.09	SODOMY IN THE 3RD DEGREE	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.09/502.020	Complicity: SODOMY IN THE 3RD DEGREE	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [1]	Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [1]/502.020	Complicity: Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [1]/506.010	Criminal Attempt: Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [1]/506.030	Criminal Solicitation: Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [1]/506.040	Criminal Conspiracy: Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [1]/506.080	Criminal Facilitation: Sodomy, 1st Deg - Incap Const/phys Help W/serious Phys Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [2]	Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [2]/502.020	Complicity: Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [2]/506.010	Criminal Attempt: Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [2]/506.030	Criminal Solicitation: Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [2]/506.040	Criminal Conspiracy: Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [2]/506.080	Criminal Facilitation: Sodomy, 1st Deg - Incapable Of Consent/physically Helpless	C	5-10 Yrs	No	No	20%	None	No	No

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*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.070 [6]	Sodomy, 1st Degree	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [6]/502.020	Complicity: Sodomy, 1st Degree	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [6]/506.010	Criminal Attempt: Sodomy, 1st Degree	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [6]/506.030	Criminal Solicitation: Sodomy, 1st Degree	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [6]/506.040	Criminal Conspiracy: Sodomy, 1st Degree	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [6]/506.080	Criminal Facilitation: Sodomy, 1st Degree	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [3]	Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [3]/502.020	Complicity: Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [3]/506.010	Criminal Attempt: Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [3]/506.030	Criminal Solicitation: Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [3]/506.040	Criminal Conspiracy: Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [3]/506.080	Criminal Facilitation: Sodomy, 1st Degree - Domestic Viol - W/serious Physical Inj	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [4]	Sodomy, 1st Degree - Domestic Violence	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [4]/502.020	Complicity: Sodomy, 1st Degree - Domestic Violence	B	10-20 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [4]/506.010	Criminal Attempt: Sodomy, 1st Degree - Domestic Violence	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [4]/506.030	Criminal Solicitation: Sodomy, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [4]/506.040	Criminal Conspiracy: Sodomy, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	No	No
510.070 [4]/506.080	Criminal Facilitation: Sodomy, 1st Degree - Domestic Violence	C	5-10 Yrs	No	No	20%	None	No	No
510.070	Sodomy, 1st Degree - Victim LT 12 YOA	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070/502.020	Complicity: Sodomy, 1st Degree - Victim LT 12 YOA	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
510.070/506.010	Criminal Attempt: Sodomy, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070/506.030	Criminal Solicitation: Sodomy, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070/506.040	Criminal Conspiracy: Sodomy, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	No	No
510.070/506.080	Criminal Facilitation: Sodomy, 1st Degree - Victim LT 12 YOA	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [5]	Sodomy, 1st Degree W/serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [5]/502.020	Complicity: Sodomy, 1st Degree W/serious Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.070 [5]/506.010	Criminal Attempt: Sodomy, 1st Degree W/serious Physical Injury	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None	Yes	Yes (If Committed after 7/12/2006)
510.070 [5]/506.030	Criminal Solicitation: Sodomy, 1st Degree W/serious Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
510.070 [5]/506.040	Criminal Conspiracy: Sodomy, 1st Degree W/serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
510.070 [5]/506.080	Criminal Facilitation: Sodomy, 1st Degree W/serious Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
510.080 [1]	Sodomy, 2nd Degree (mentally Incapacitated By Intox Sub)	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.080 [1]/502.020	Complicity: Sodomy, 2nd Degree (mentally Incapacitated By Intox Sub)	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.090	Sodomy, 3rd Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.090/502.020	Complicity: Sodomy, 3rd Degree	D	1-5 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.080	Sodomy-2nd Degree	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
510.080/502.020	Complicity: Sodomy-2nd Degree	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

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*Sex Crime as defined by KRS 17.500. Pursuant to KRS 197.045 an offender convcited of a sex crime on or after 7/15/1998 must complete the Sex Offender Treatment Program in order to be eligible for parole or receive any form of Good Time Credit.

**Violent Crime as defined by KRS 439.3401. All violent offenders are ineligible for statutory good time and must serve 85% of thier sentence before the may serve out (Note: Class D and Class C violent offenses are eligible for parole after 20%, but must serve 85% if not granted parole).

***Minimum parole eligibilty - If an offender is convcited of crimes that require service of different percentages, only the sentence requiring the larger percentage applies. Other factors, such as a PFO I conviction may also affect the minimum parole eligibilty. Note: For crimes requiring service of 50% the maximum is 12 years and the Maximum for crimes requiring 85% is 20 years (Per Lemon vs. Corrections and Hughes vs. Commonwealth)

RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
530.064(1)(a) [1]	Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [1]/502.0	Complicity: Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [1]/506.0	Criminal Attempt: Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	B	10-20 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [1]/506.0	Criminal Solicitation: Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
530.064(1)(a) [1]/506.0	Criminal Conspiracy: Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	B	10-20 Yrs	No	No	20%	None	No	No
530.064(1)(a) [1]/506.0	Criminal Facilitation: Unlawful Trans W/minor, 1st, Illegal Sex Act., Phys Injury	B	10-20 Yrs	No	No	20%	None	No	No
509.020	Unlawful Imprisonment-1st Degree	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
509.020/502.020	Complicity: Unlawful Imprisonment-1st Degree	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
530.064(1)(a) [2]	Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [2]/502.0	Complicity: Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [2]/506.0	Criminal Attempt: Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	C	5-10 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a) [2]/506.0	Criminal Solicitation: Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
530.064(1)(a) [2]/506.0	Criminal Conspiracy: Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	C	5-10 Yrs	No	No	20%	None	No	No
530.064(1)(a) [2]/506.0	Criminal Facilitation: Unlawful Trans W/minor 1st, Illegal Sex Act, U/16 Yoa	C	5-10 Yrs	No	No	20%	None	No	No
530.064(1)(a)	Unlawful Trans W/minor, 1st - Illegal Sex Act, U/18 Yoa	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
530.064(1)(a)/502.020	Complicity: Unlawful Trans W/minor, 1st - Illegal Sex Act, U/18 Yoa	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.370 [1]	Use Minor To Distrib Matter Portray Sex Perf Minor-2nd Or GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.370 [1]/502.020	Complicity: Use Minor To Distrib Matter Portray Sex Perf Minor-2nd Or GT	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.370	Use Minor To Distrib Matter Protray Sex Perf Minor-1st Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.370/502.020	Complicity: Use Minor To Distrib Matter Protray Sex Perf Minor-1st Off	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.040 [1]	Use Minor To Distribute Obscene Material-With Prior Convict	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.040 [1]/502.020	Complicity: Use Minor To Distribute Obscene Material-With Prior Convict	D	1-5 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)

KY DOC SEX OFFENDER SENTENCING REFERENCE GUIDE

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RELATED STATUTE(S)	OFFENSE	FELONY CLASS	PENALTY RANGE	SEX CRIME*	VIOLENT CRIME**	PAROLE ELIGIBILITY***	SOCD/SOPS REQUIRED	REGISTRATION REQUIRED	RESIDENCY RESTRICTIONS
531.310(2C)	Use Of A Minor In A Sex Performance-Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.310(2C)/502.020	Complicity: Use Of A Minor In A Sex Performance-Physical Injury	A	20-50 Yrs	Yes	Yes (Committed after 7/15/1986)	20% (Committed before 7/15/1986) 50% Committed 7/15/1986 - 7/15/1998 85% Committed after 7/15/1998	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.310(2C)/506.010	Criminal Attempt: Use Of A Minor In A Sex Performance-Physical Injury	B	10-20 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
531.310(2C)/506.030	Criminal Solicitation: Use Of A Minor In A Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.310(2C)/506.040	Criminal Conspiracy: Use Of A Minor In A Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
531.310(2C)/506.080	Criminal Facilitation: Use Of A Minor In A Sex Performance-Physical Injury	B	10-20 Yrs	No	No	20%	None	No	No
531.310(2B)	Use Of A Minor U/16 In A Sex Performance	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.310(2B)/502.020	Complicity: Use Of A Minor U/16 In A Sex Performance	B	10-20 Yrs	Yes	Yes (Committed after 7/12/2006)	20% (Committed before 7/12/2006) 85% Committed after 7/12/2006	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.310(2B)/506.010	Criminal Attempt: Use Of A Minor U/16 In A Sex Performance	C	5-10 Yrs	Yes	No	20%	None	Yes	Yes (If Committed after 7/12/2006)
531.310(2B)/506.030	Criminal Solicitation: Use Of A Minor U/16 In A Sex Performance	C	5-10 Yrs	No	No	20%	None	Yes (If Victim was a Minor)	Yes (If Committed after 7/12/2006 and victim was a minor)
531.310(2B)/506.040	Criminal Conspiracy: Use Of A Minor U/16 In A Sex Performance	C	5-10 Yrs	No	No	20%	None	No	No
531.310(2B)/506.080	Criminal Facilitation: Use Of A Minor U/16 In A Sex Performance	C	5-10 Yrs	No	No	20%	None	No	No
531.310(2A)	Use Of A Minor U/18 In A Sexual Performance	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)
531.310(2A)/502.020	Complicity: Use Of A Minor U/18 In A Sexual Performance	C	5-10 Yrs	Yes	Yes (Committed after 7/12/2006)	20%	None (Committed Before 7/15/1998) 3 Yrs (Committed 7/15/1998 - 7/14/2000) Note: Court Must Order 7/15/1998 - 7/14/2000 3 Yrs (committed 7/15/2000 - 7/12/2006) 5 Yrs Committed after 7/12/2006)	Yes	Yes (If Committed after 7/12/2006)

EXHIBITS. Anything other than testimony that can be perceived by the senses and presented at trial or a hearing

WHAT TYPE OF EVIDENCE CAN I ADMIT AS AN EXHIBIT?

Real Evidence: tangible objects (weapon, paraphernalia, hat)
Demonstrative Evidence: representative or illustrative items that you plan to admit as evidence (photo, video, map, chart)
Records: business or government agency business writings (medical records, timesheets, police records)
Writings: evidence other than records that are in writing (diary, letter, contract)

WHAT ARE THE STEPS TO FOLLOW TO GET AN EXHIBIT ADMITTED?

STEP 1: **MARK** the exhibit for identification
"I have marked this (describe item) as defense exhibit 1, for identification."

STEP 2: **SHOW** to **O**PPOSING COUNSEL.
"I am showing defense exhibit 1 to the prosecutor."

STEP 3: Ask **P**ERMISSION to **APPROACH** the witness
"May I approach the witness?"

STEP 4: **S**HOW to witness and **AUTHENTICATE**.

STEP 5: **ADMIT** the exhibit (if desired and permissible)
"I move to have defense exhibit 1 admitted into evidence."

STEP 6: **PUBLISH** the exhibit to the jury (if desired)
" I ask that defense exhibit 1 be published to the jury."

SHOW the prosecutor
Some exhibits must be shown to the prosecutor prior to trial. Others you may want to provide to the prosecutor and judge prior to trial to avoid issues. Sometimes surprise is best.

MARK



Check with your clerk to see if you should mark your exhibits, or if they prefer to mark exhibits. This will vary by county and judge.

EXHIBITS AND LAYING EVIDENTIARY FOUNDATIONS

When Necessary – "Whenever Evidence law makes proof of a fact or event a condition to the admission of an item of evidence, that fact or event is part of the foundation for the evidence's admission." Criminal Evidentiary Foundations, Imwinkelried & Blinka, Lexis, 1997, p. 2.

Pretrial Hearings and Motions in Limine – Some questions involving the admissibility of evidence require a judicial finding of fact before the evidence is admissible. KRE 104(a). These types of foundations involve preliminary questions of law. Some of these questions must be argued outside the presence or hearing of the jury. KRE 104(c), RCr 9.78. The court is not bound by the rules of evidence, except that it may not hear privileged information.

Laying a Foundation in Front of a Jury – In other instances, what is necessary for an item of evidence to be relevant is the establishment of another fact. KRE 104(b). This is often called "conditional relevancy." In those cases, the jury hears both the foundation fact and the primary fact and can use one to weigh the credibility of the other. Typical examples of these kinds of foundations include authenticating documents or objects, etc., under KRE Article IX, establishing that a lay witness has personal knowledge of what she is about to testify to, and reviewing an expert's credentials relevant to his expert testimony. Foundational facts must be proven with "evidence sufficient to support a finding of the fulfillment of the condition," KRE 104(b). The standard is preponderance of the evidence. *See, e.g.*, *Bourjaily v. U.S.*, 483 U.S. 171 (1987). What follows are some guides to laying foundations in those cases.

AUTHENTICATION, KRE 901:

Business records

- The witness can identify the documents.
- They were prepared in the course of regularly conducted business activity.
- The documents were stored and witness has personal knowledge of the business' filing system.
- She properly removed a record from this filing system.
- She recognizes the exhibit as the record she removed from this system.
- How does she recognize it as that record?

Computer records

- The witness has personal knowledge of the business' filing system.
- The business uses a computer.
- The computer is reliable.
- The business has a procedure for inputing records into this computer.
- This procedure has specific safeguards to ensure reliability and accuracy.
- The computer is properly maintained.
- She used the computer to obtain certain records.
- She followed proper procedures to obtain these records.
- The computer was functioning properly at the time she obtained these records.
- She recognizes the exhibit as these records.
- How does she recognize it as the records?
- If the records contain any unusual symbols, have the witness explain them.

Copies

- Witness is familiar with the original.
- The original was copied.
- The original was lost or destroyed.
- A thorough search has failed to locate the original.
- She believes that the exhibit is a "true and accurate" copy of the original.

Documents, witness observed formation

- When did she observe the formation?
- Who was there?
- How was the document formed?
- Does she recognize the exhibit as this same document?
- How does she recognize it?

Documents, witness familiar with author's handwriting

- Does she recognize the handwriting on the writing?
- How is she familiar with the author's handwriting style?
- What is her familiarity based upon?

Letters, sent by witness

- Witness authored/prepared a letter to another person.
- She signed the original letter.
- She knows the letter was properly mailed.
- She recognizes the exhibit as that letter.
- How does she recognize it?

Letters, received by witness in reply to earlier letter

- Witness authored/prepared the first letter.
- She addressed it to the author of this letter and properly mailed it.
- She received a letter in reply.
- The letter arrived through the mail system.
- The reply letter was either responsive to her first letter or references her first letter in its own text.
- The reply letter had the name of whomever wrote it.
- She recognizes the exhibit as the reply letter.
- How does she recognize the exhibit as the reply letter?

Photographs

- The witness is familiar with the scene depicted in the photograph at the relevant time and date.
- She believes that the exhibit "fairly and accurately" depicts the scene at the relevant time and date.

Taped conversations

- Have you had the opportunity to hear the voice of Mr. X before?
- How many times have you heard his voice?
- How familair are you with Mr. X's voice?
- Have you heard the recording marked as exhibit "a" for identification?
- Do you recognize the voice?
- To whom does the voice belong?

Telephone: witness knows the declarant

- When did the phone call take place?
- Where was the witness when the call occurred?
- How does the witness recognize the declarant's voice?
- Who was the declarant?
- Who else was on the line?
- Who said what to whom?

Telephone: witness finds out later who the caller was

- When did the phone call take place?
- Where was the witness when the call occurred?
- The witness did not recognize the declarant's voice at the time.
- She later talked to the declarant again.
- Where did she talk to the declarant again?
- When did she talk to the declarant again?
- What were the surrounding circumstances? Why did she

talk to the declarant again?
- She now recognizes the declarant's voice from the previous phone call.
- Who was the declarant?
- Who else was on the line then?
- Who said what to whom?

Telephone: witness dialed a listed business number

- When did the phone call take place?
- Where was the witness when the call occurred?
- How did the witness obtain the business number (telephone directory, internet, information, flyer)?
- She dialed the business number.
- Voice on the other end informed her that she had reached the business.
- Who else was on the line then?
- Who said what to whom?

Caller identification

- Establish the reliability of caller identification. The judge may take judicial notice or you may have to call a telephone company representative as an expert witness (see "Scientific Evidence" litany).
- The witness obtained and installed (or had installed) a caller id box to her telephone before the specific call.
- The witness installed (or had installed) the caller id box properly. This may be proven by either expert testimony or circumstantial evidence (it worked for a period of time and the day of the specific call).
- The specific call occurred.
- When the specific call occurred, the caller id box displayed a particular telephone number. The witness may be able to testify from personal knowledge if she recalls the number or you may need to establish a foundation for the caller id box's logging capacity.
- The witness knows who that number belongs to (from personal knowledge, a telephone directory, or a backwards telephone entry already entered into evidence).
- The witness publishes the identity of the person to whom that phone number belongs.

Physical Evidence, unique

- The exhibit can be identified through the senses and possesses some unique identifying features.
- The witness recognizes the exhibit.
- She knows what the exhibit looked like on the relevant date.
- She recognizes the unique identifying features that distinguish it from other similar objects.
- The exhibit is in the same condition now as when she saw it before.

Physical evidence, not unique-Chain of custody required

- Either one witness or a series of witnesses needs to show through standard procedures or personal knowledge that the exhibit as been in the "continuous, secure, and exclusive" possession of one or several specified people.
- The exhibit was specially labeled and remained in a sealed, tamper-resistant container the entire time.

DEMONSTRATIVE EVIDENCE:

Models/diagrams, Verifying

- Follow the photograph litany. If the model or diagram is not to scale, the witness should say so and you should not object to a limiting instruction.

Marking

- First, you need to determine whether the judge prefers that a diagram be completely marked before being introduced into evidence or will allow witnesses to label an exhibit already in evidence. Second, you should give very specific standardized marking instructions, make sure the record reflects that the witness followed your instructions, and have a legend on the diagram to explain the markings.

Witness drawings

- The witness is familiar with the relevant scene on the relevant day.
- The drawing would help the witness explain her testimony.
- The drawing is a reasonably accurate depiction of the scene on that day (and is not prejudicial in any way).

Witness demonstrations

- The witness observed a relevant physical action.
- The demonstration would help the witness explain her testimony (and is more probative than prejudicial).
- The witness demonstrates the physical action.

Charts that summarize evidence

- The witness (usually an expert) used exhibits and testimony already in evidence to prepare the chart.
- Every fact on the chart is taken from specific witness testimony or exhibit already in evidence.
- She explains any mathematical computations or other extrapolations of the evidence used to obtain a result on the chart.

WITNESSES:

Lay Witness

- Must have personal knowledge, KRE 602, 701

Expert Testimony, KRE 703

1. Qualify the witness. The witness' qualifications include:

- Advanced educational degree(s) in the area
- Other specialized training in the area
- License(s) to practice in the area
- Experience actually practicing in the area for "a substantial amount of time"
- Teaching in the area
- Publishing in the area
- Membership in a professional organization(s) in the area
- Previous qualification and testimony as an expert in court

2. The expert explains the general theory behind her testimony (unless the theory or principle is stipulated to or judicially noticed).

3. The factual basis of the expert opinion:

- Personal knowledge,
- Third-party hearsay (if admissible in your jurisdiction),
- Hypothetical questions:
- Tell the expert the facts to assume (usually there must already be evidence on the record supporting these assumed facts).
- Tell her to assume that a witness(es) testified accurately.

4. The statement of the expert opinion.

5. The explanation of the expert opinion.

REFRESHING RECOLLECTION:

Present recollection revived

- The witness forgets facts that she recalled earlier on the stand.
- She states that she knew the facts before but cannot remember them now.
- She states that her report or another item will help her remember.
- She is given the report or other item for review (it is not admitted into evidence).
- She states that she remembers.
- She continues to testify without referring further to the report or item.

Past recollection recorded

- The witness doesn't recall the relevant event.
- She had firsthand knowledge of the event earlier.
- She made a record earlier of the event at or about the time the event occurred.
- Give the witness the exhibit, her record (it does not have to be admitted into evidence).
- She recognizes the exhibit as her record.
- This record was complete and accurate when she made it.
- It is in the same condition now as when she made it.
- She reads or refers to the necessary parts of the record in order to recall what she witnessed earlier

IMPEACHMENT:

Prior inconsistent statement, KRE 613

- Get the witness to commit to her testimony in direct examination.
- The witness made a prior statement (oral or written) at a specific place.
- The witness made the statement at a specific time.
- What were the surrounding circumstances?
- Establish that the prior statement was made under reliable circumstances.
- Read/say the prior inconsistent statement and get her to admit making it. Give her the chance to explain.
- If she fights you at all, you will have to prove the first chance you have that she actually made the statement.

Untruthfulness, reputation for, KRE 608

- The impeaching witness ("impeacher") is a member of the same community (residential or social) of the witness.
- The impeacher has been a member for a substantial period of time.
- The impeacher states that the witness has a reputation for untruthfulness in that community.
- The impeacher knows the witness' reputation for untruthfulness.

Untruthfulness, opinion regarding

- The impeacher knows the witness personally.
- How she knows the witness. Number of years acquainted? How regularly does she see him?
- The impeacher has a personal opinion of the witness' truthfulness.
- In the impeacher's opinion, the witness is untruthful.

* Derived from, in part, Edward J. Imwinkelried & Daniel D. Blinka, Criminal Evidentiary Foundations, (1997 & Supp. 1999) ("Criminal Foundations").

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